In the Matter of A. D., Washington County Circuit Court No. 25JU04261
Formal Notice of Fabrication, Material Omission, and Required Action
Delivered Under the Standard the Recipient Bound Themselves to During January 28, 2026 Recorded Commitment

AshLe' Penn
17548 NW Springville Road, Unit 9
Portland, OR 97229
(424) 242-3374
ashlepenn.ap3@gmail.com

To:

Sonya Faulkner
D16 Manager, Oregon Department of Human Services — Child Welfare
Sonya.Faulkner@odhs.oregon.gov

Cc:

Yazmin Wadia — Assistant Attorney General
yazmin.wadia@doj.oregon.gov

Laurie K. Hernandez — Child Welfare Program Manager
laurie.k.hernandez@odhs.oregon.gov

Alicia L. Reynolds — Child Welfare Manager
alicia.l.reynolds@odhs.oregon.gov

David Milne — Social Service Specialist
david.milne@odhs.oregon.gov

Skye F. Hopkins — Resource Developer
skye.f.hopkins@odhs.oregon.gov

Kimberly Beck — Juvenile Processing Clerk
kimberly.a.beck@ojd.state.or.us

Richard Moellmer — Trial Court Administrator
richard.e.moellmer@ojd.state.or.us

Fariborz Pakseresht — Director, ODHS

Rolanda Garcia— Interim Director, ODHS Child Welfare Division

Oregon Attorney General
attorneygeneral@doj.oregon.gov

Oregon Foster Care Ombudsperson
alexis.l.amorelli@odhs.oregon.gov

Office of Washington County Counsel —
countycounsel@washingtoncountyor.gov

RE: False Testimony, Material Omission/Selective Reporting, and Fabricated Evidence by ODHS Staff in *In re A.D.*, Case No. 25JU04261; Required Action Under Your Recorded Commitment of January 28, 2026

Sent by Email With Enclosed Recordings, Court Transcript, and Exhibits A through S
Proposed Stipulation Attached as Appendix A

But there is no such thing as a minor amount of actionable perjury or of false evidence that is somehow permissible.

Because government perjury and the knowing use of false evidence are absolutely and obviously irreconcilable with the Fourteenth Amendment's guarantee of Due Process in our courts. Furthermore, the social workers' alleged transgressions were not made under pressing circumstances requiring prompt action, or those providing ambiguous or conflicting guidance. There are no circumstances in a dependency proceeding that would permit government officials to bear false witness against a parent. — *Hardwick v. County of Orange*, 844 F.3d 1112, 1117–19 (9th Cir. 2017)

Enclosed Records (Exhibits A through S)

Exhibit A. Neuropsychological Evaluation / Parental Assessment of AshLe' Penn by Christopher K. Tongue, Ph.D., Licensed Psychologist (evaluation date 10/30/2021).

Exhibit B. Letter from Al-Quan Davis to AshLe' Penn dated January 15, 2023 (Alquan_Davis_2023.pdf).

Exhibit C. Audio excerpt of Sonya Faulkner's January 28, 2026 statement (Sonya_Faulkner_Byte.mp4).

Exhibit D. Audio recordings of January 28, 2026 and April 28, 2026 recorded calls (recantation).

Exhibit E. Kimberly Beck email of September 9, 2025 at 3:09 PM rejecting Mother's September 8, 2025 filing.

Exhibit F. Full October 31, 2025 jurisdictional trial transcript (Emilie Marquand testimony; Judge Rini rulings).

Exhibit G. Rylan Duffy *Declaration of Diligent Efforts toward Service* (October 10, 2025).

Exhibit H. Kayla Miller *Affidavit Regarding Efforts to Serve Parent* (October 28, 2025).

Exhibit I. Sonya Faulkner emails of June 2, 2026 (10:33 AM and 3:19 PM).

Exhibit J. Copy of Notice of Tort Claim and § 1983 Pre-Suit Demand.

Exhibit K. Washington County HR fee-waiver denial letter from Aaron Mendes dated September 19, 2025 (referencing "evidence the County has in its possession").

Exhibit L. Washington County Human Resources fee-waiver denial letter from Aaron Mendes dated September 19, 2025.

Exhibit M. Washington County District Attorney's October 31, 2025 denial opinion signed by Deputy DA Sabina Khachaturova.

Exhibit N. Petitioner's October 17, 2025 Petition for Review of Fee-Waiver Denials served on District Attorney Barton.

Exhibit O. Text-message thread from ODHS Supervisor Heather Kitto documenting the 5:40 p.m. September 6, 2025 release text and the 5:59 p.m. reversal text—the nineteen-minute reversal window.

Exhibit P. Shelter-hearing transcript excerpts from September 8, 2025 confirming Mother's telephonic contact with the court and the unauthorized appearance of attorney Ireland Mahoney.

Exhibit Q. ODHS records reflecting the March 26, 2024 two-hour in-home interview at Mother's residence and the "Out of control not believed to be met" supervisor consultation finding.

Exhibit R. ARIA certification of completion of mental-health services as directed by the court.

Exhibit S. Wolfpack Consulting and Therapeutic Services, LLC progress notes, partial records offered to establish participation without disclosing unnecessary confidential information.

Exhibit T. Mother's early attempts to resolve any required services, demonstrating the length of time before the agency established the treatment it later relied on as a barrier to return.

CONTENTS

1. Your Commitment, and What It Now Requires 5

A. The Relief I Seek Is Restoration, Not a Placement Decision 5

B. What I Require Within Seventy-Two (72) Hours 5

C. Pleaded Strictly in the Alternative, and Without Waiver 6

D. Reservation — No Appearance, No Waiver, No Concession 6

2. Emilie Marquand's Sworn Testimony Was False in at Least Twelve Respects, Each Disproved by the Agency's Own File 3

3. Emergency Protective Custody Was Taken on a Basis the Agency Never Authorized, Never Pleaded, and Never Placed Before Any Court 5

A. The Agency Told Mother the Reason for Custody, in Writing, at the Moment It Decided: the Child's Self-Harm Statement — Nothing About Mother's Conduct. 5

B. The Agency Told Mother a Summons Would Be Delivered — It Never Told Her the Hearing's Date or Time. 6

C. The Agency's Own ORS 419B.171 Form Has a Box for Exactly That Basis — and the Agency Did Not Check It. 7

D. The Self-Harm Basis Was Never Pleaded as a Jurisdictional Allegation. 7

E. The Statement Was Recanted, and the Agency Knew It Before the Shelter Hearing. 7

F. You Have Already Acknowledged the Defect, on a Recorded Call. 7

G. Nineteen Minutes. 7

H. The Consequence. 7

I. The Agency's Own Stated Basis for Emergency Custody Is Not a Lawful Ground to Remove a Child. 8

J. The Impending Danger Safety Threat Assessment, Confronted Line by Line 8

4. The Court Entered Jurisdiction Without Service — on a "Whereabouts Unknown" Default the Agency's Own Sworn Filings Disprove 12

A. Service of Summons Is the Statutory Precondition to Jurisdiction 12

B. The Court's Authority to Set the Default Aside Is Broad, and Its Exercise Is Required Where the Default Rested on Legal Error13

C. The Agency Concedes Mother Was Never Served. 13

D. The Default Rests on a Predicate the Agency's Own Affidavits Disprove. 13

E. The Agency's Two Theories Cannot Both Be True. 14

F. "Constructive Notice" Is Not Service, and the State's Two Arms Advanced Two Incompatible Theories. 14

G. The Agency Identified the One Lawful Path to Proceed Without Personal Service — and Did Not Take It. 14

H. The Agency Circulated the Wrong Address and Served Mother, Alone, by Mail Rather Than Email. 14

I. The Wrong-Address Error Recurs Across Mother's Cases — and It Manufactured the "Warrant" and "Evasion" the Agency Used to Default Her. 15

J. The "Evasion" Finding Rested on a Racialized Assumption, Not Evidence. 16

K. The Default Was Defective When Entered, and the Court Has Never Revisited It. 16

L. The Consequence. 16

M. The Agency's Continued Reliance on the Default After the Court Acknowledged the Wrong Address Is Fraud Upon the Court, and It Is Sanctionable as to the AAG 16

5. The Prima Facie Case Rests on Unsworn Reports Recited by a Witness With No Firsthand Knowledge 16

A. Relaxed Shelter-Hearing Evidentiary Rules Do Not Immunize the Creation or Submission of Fabricated Evidence. 16

6. The "Cannot Assess" Contradiction 24

7. Affirmative State-Inflicted Harm and Manufactured Dependency 25

A. The State Reintroduced the Danger 25

B. Procedural Extinguishment of Mother's Remedies 25

C. Unlawful Assumption of Jurisdiction 25

8. The Fabrication Record 25

A. Fabrication of Reasonable Efforts — The False Statement of Fact by AAG 26

B. Fabrications About Mother's Engagement With the Agency and With Services 28

C. Fabrications About the Safety Plan 31

D. Fabrications About Mother's Parenting Capacity 31

E. Material Misquotation: 33

F. Fabricated Third-Party Statements 34

G. Fabrications and Internal Contradictions About Mother's Home 35

H. Fabrications About Mother's Presence at Father's Home 35

I. Fabrication of "Unwilling or Unable to Protect" from Father 36

J. Fabrication and Concealment of the September 6, 2025 Recantation 36

K. Fabrications in the Diligent-Efforts Sworn Submissions 36

L. Fabrications About the Visitation Record 36

M. Fabrication About the Child's Preference 37
N. Fabrication About the "Criminal Activities" Allegation 37
O. Fabrication About the "Refused DV Grant" 37
P. Fabrication Regarding Mother's Access to the Case File 37
Q. Fabrications About the September 8, 2025 Clerk Rejection and Service 37
R. Emilie Marquand's Sworn Testimony (October 31, 2025 Trial) 38
S. Judge Rini's Ordered Services Contradict Dr. Tongue's Court-Ordered Expert Evaluation 41
T. Judicial Misleading Characterization of Mother's Habeas Filing 42
9. Neither Absolute Nor Qualified Immunity Shields This Conduct 42
A. Every Further Endorsement of This Record Is a Present Decision, Not an Inherited One 43
10. Preservation of Evidence 44
11. Reservation of Rights 44
12. Appendix A — Proposed Stipulation and Order 45

1. Your Commitment, and What It Now Requires

Ms. Faulkner,
You told me on a recorded line that if you found perjury or unlawful conduct in this record, you would "absolutely handle that" with your employees and "notify the court."[1] You added that you would review the representations at issue and reconnect. You did not engage their substance and did not obtain the underlying records. You pointed instead to the fact that the juvenile court had already taken jurisdiction, as though the existence of a jurisdictional finding answered the objection. It does not. Jurisdiction entered on the basis of false evidence is not self-justifying. It is the injury.

A. The Relief I Seek Is Restoration, Not a Placement Decision

I do not ask ODHS to exercise discretion over where my daughter lives. I ask the State to cease an interference for which it has never identified lawful authority. ORS 419B.815(1) provides that a court "may make an order establishing jurisdiction under ORS 419B.100 only after service of summons and a true copy of the petition." *Dept. of Human Services v. K. L.*, 272 Or App 216, 220 (2015). That is a precondition, not a formality. It was never satisfied here, and ODHS has never claimed otherwise.

B. What I Require Within Seventy-Two (72) Hours

1. **Release Al-mira to me.** ODHS has never identified the statutory predicate on which it took her before the court. It has never pleaded the basis it communicated to me in writing at 5:59 PM on September 6, 2025, and never obtained the service ORS 419B.815(1) which is a condition precedent to jurisdiction. ODHS's own Conditions for Return, signed by David Milne and supervisor Skye Hopkins on May 14, 2026, states that the agency finds it "challenging to determine if Al Mira would be exposed to violence and at risk if she were to return to Ms. Penn's home." An agency that states it cannot determine risk has not found risk. A child is not withheld from her mother on an inability to determine.

2. **Move the juvenile court to set aside the October 31, 2025 default** and every judgment resting on it, under ORS 419B.923, and to dismiss the petition. ORS 419B.923(1) provides that "the court may modify or set aside *any* order or judgment made by it," and the enumerated reasons "include, but are not limited to" clerical mistake, excusable neglect, and newly discovered evidence. The Court of Appeals has held that this list is non-exclusive and that the legislature "intended to provide a juvenile court with broad authority under ORS 419B.923(1) to modify or set aside a judgment or order," deliberately rejecting the closed grounds of ORCP 71. *Dept. of Human Services v. A. D. G.*, 260 Or App 525, 536–39 (2014).

3. **Disclose to the court, on the record, the matters withheld from it**: the September 6, 2025 recantation absent from the September 8, 2025 petition and shelter order; the five channels of contemporaneous contact omitted from the Duffy Declaration and the Miller Affidavit; and the statements attributed to me and to the maternal grandmother that each of us denies under oath. ORS 419B.923(8) expressly preserves "the power of a court to set aside an order or judgment for fraud upon the court." Disclosure is the step that permits the court to exercise it.

4. **Produce a written determination**, addressed to me, identifying each representation catalogued below that ODHS now concedes to be false, unsupported, or materially incomplete, and identifying each that ODHS maintains, with the record citation on which it relies.

5. **Refer** Emilie Marquand, and the authors of the sworn diligent-efforts submissions, for review under ORS 162.065 (Perjury) and ORS 162.075 (False Swearing), and for professional-conduct review.

6. **Initiate formal correction of the ODHS record.** Within seventy-two (72) hours, confirm in writing that ODHS has opened a formal record-correction review covering each false, unsupported, materially incomplete, or misleading statement identified in this Notice and its exhibits, including statements in case notes, safety assessments, protective-custody materials, fact-finding reports, petitions, court reports, referral materials, service records, visitation records, diligent-efforts submissions, and any other ODHS electronic or paper record concerning Mother or A.D.

    (a) ODHS shall not continue to repeat, republish, rely upon, or transmit a representation that its own underlying records contradict while the correction review is pending. For each challenged statement, ODHS shall identify:

        i) The document, author, date, page or case-note entry, and database location;

        ii) Whether ODHS concedes the statement is false, unsupported, materially incomplete, or misleading;

[1] *Record cite:* 1_28_26 Sonya Faulkner Call; Exhibit C (`Sonya_Faulkner_Byte.mp4`); Exhibit D.

iii) The corrective action taken, including correction, retraction, supersession, removal from future reports, or a conspicuous notation identifying the dispute and the evidence that contradicts the statement;

iv) Every court report, agency report, referral, assessment, or third-party disclosure in which ODHS has repeated or relied upon the statement; and

v) The person responsible for the determination.

(b) If ODHS declines to amend a particular entry, it shall issue a written denial that identifies the precise factual basis, record citation, governing policy or rule, and review/appeal procedure. ODHS shall associate this Notice and Mother's written statement of disagreement with every disputed record it declines to amend, so that no ODHS employee, provider, court, or recipient encounters the agency's accusation without also receiving Mother's documented objection and the contrary records.

(c) ODHS records are not a gossip repository. They are state-created records repeatedly used to determine whether a parent is separated from her child, whether services are imposed, whether visitation is restricted, and what assertions are made to a court. The agency may not continue to circulate characterizations it cannot substantiate, nor treat repetition of an accusation as proof of it. Where ODHS knows that a statement is false or materially misleading, the obligation is correction—not preservation of a false narrative for later use against Mother.

(d) **Preserve** all records identified in this letter pending resolution.

C. Pleaded Strictly in the Alternative, and Without Waiver

The following is pleaded in the alternative only. It does not withdraw, qualify, or compromise anything above, and it is not an acknowledgment that the State's custody of Al-mira was at any time lawful.

(a) **If ODHS declines to release Al-mira**, it shall nonetheless place her with me immediately pending resolution, and shall state in writing the specific, current, non-speculative threat of serious harm *attributable to my conduct* on which it contends her continued removal rests or authorizes its continuance.

(b) **ODHS shall identify, in writing, what it contends I must do that I have not done — stated as conduct, not as consent to warrantless entry** — and the date by which the agency will complete the assessment its own May 14, 2026 safety plan describes as "still ongoing". ODHS will identify why this assessment has far exceeded the prescribed timelines as established by ODHS' policy and remains open without the requisite action being taken on it.

Every condition the agency has recorded against me restates a single fact: that I have not admitted ODHS to my home. None records an act of mine that endangered my daughter.

(c) **If the agency continues to maintain Al-mira's out of home placement, it will be required to provide a concrete visitation plan and any transportation assistance the agency has available to it to Mother**, and cease treating my assertion of constitutional rights as evidence of danger. The agency will be required to state, in writing, its reasons that it has restricted visitation to supervised visits only especially with caseworker David Milne, on August 10, 2026 stating to Mother that he does not believe there is anything that Mother has to fix in order to be reunified with her daughter. Milne stated that the only requisite would be to meet him at Starbucks to accept the agency's safety plan. Requiring supervised visitation for a Mother whom the caseworker identifies no safety threats against is irreconcilable with agency policy and state and federal law.

D. Reservation — No Appearance, No Waiver, No Concession

Nothing in this letter constitutes an appearance, a waiver of any objection to jurisdiction, service, notice, or venue, or an acknowledgment that the State's custody of Al-mira was at any time lawfully obtained or is lawfully maintained. Every request is made under protest. Every alternative request is made without prejudice to the primary demand. My participation in this correspondence, and my filings in the juvenile court, are and have been special appearances contesting jurisdiction and service; they do not confer what service alone can confer.

The State has already tried to have this both ways. To default me under ORS 419B.914 the agency needed me to be an unlocatable absent parent. To defeat my objection to jurisdiction the agency told the court I "ha[ve] constructive notice of these proceedings, that she has been attempting to file in the dependency case," and the court found that I "clearly know[] of the proceedings as she keeps filing." Both cannot be true. My filings are not a substitute for the service the agency never accomplished, and they are not a waiver of the defect they exist to challenge. "Parents and children have a well-elaborated constitutional right to live together without

governmental interference. That right is an essential liberty interest protected by the Fourteenth Amendment's guarantee that parents and children will not be separated by the state without due process of law except in an emergency." *Wallis v. Spencer*, 202 F.3d 1126, 1136 (9th Cir. 2000). My family has been subjected to precisely the form of state interference the Ninth Circuit forbids. Al-mira's removal was based on an insufficient investigation, the repeated suppression of exculpatory facts, social workers' intentional misrepresentations of agency action, and a fabricated narrative about my family delivered to the court with knowledge of the truth.

The Ninth Circuit has addressed the precise constitutional injury that occurs when social workers lie to a dependency court in order to separate a parent and child. In *Hardwick v. County of Orange*, social workers told the dependency court that the mother had caused her daughters to miss a mandatory visit with their father, when the actual problem had been caused by the visitation monitor. The social workers further represented that the mother had turned the children against the monitor and had told them that their father was trying to take them away. The record showed that the social worker herself had made the inappropriate and threatening statements to the children. On the basis of those false representations, the dependency court concluded that the mother was "using" her children and immediately removed the girls from her custody. *Hardwick v. County of Orange*, 844 F.3d 1112, 1117–19 (9th Cir. 2017).

That is not a distant or abstract comparison. It is the same constitutional mechanism used here: ODHS social workers supplied the court with false accounts of my conduct, concealed or omitted the facts that contradicted those accounts, converted my efforts to protect my daughter and obtain information into evidence against me, and then relied on the resulting false narrative to establish jurisdiction, obtain default findings, keep Al-mira separated from me, and impose services upon me. ODHS also retaliated against me for exercising my right to decline voluntary, non-court-ordered engagement with the agency. Rather than acknowledge that I retained the right to demand a lawful basis for agency intervention, to communicate in writing, to decline unrequested services, and to withhold consent to agency demands not ordered by a court, ODHS portrayed my exercise of those rights as "non-engagement," "refusal," "lack of cooperation," and evidence that I was unwilling or unable to protect my daughter.

In *Hardwick*, the Ninth Circuit held that social workers were not entitled to absolute immunity for alleged fabrication of evidence, perjured testimony, and false representations made outside their legitimate quasi-prosecutorial role. The court further held that deliberate fabrication and use of false evidence to separate a parent from her children violates clearly established constitutional rights and is not protected by even qualified immunity. *Hardwick*, 844 F.3d at 1118–23.

This is what happened here. Emilie Marquand lied under oath. She gave the court factual assertions that were false, contradicted by ODHS's own records, contradicted by her own testimony in the same period of testifying, or made without *any* evidentiary support. Those lies were material. The court relied on these fabricated or misleading characterizations and has since treated me as if I have abandoned my daughter and offended the court. The truth of the matter is that ODHS has absolutely no evidence of *any history* that I have abused/neglected my daughter, no evidence that I have ever used their father or his home as punishment, no evidence that I refused to retrieve my daughter from the hospital, no evidence that my own Mother believes me to be unfit or that she's attempted to gain custody of my children, no evidence that the agency removed her from my care on September 6, 2025 under a lawful basis, no evidence that Al-mira is unsafe in my home with the last worker to have assessed my home finding the exact opposite (the only narrative that she is unsafe has come from ODHS workers who **have not** assessed my home), no evidence that I am unable/unwilling to understand the needs of my child (with the only clinical assessment in the record coming from a *qualified individual* by Dr. Tongue), no evidence that I do not engage substantially in services during a prior period of your agency's interference in my home, no evidence that the agency notified me of the date/time of the shelter hearing to support its claims of my avoidance — Ms. Faulkner, the list could continue.

The following are the specific lies, fabrications, omissions, and material misrepresentations ODHS presented to the court through Marquand's sworn testimony:

1. **Marquand testified that I "did not engage in any services" and "failed to do any of the services"** in the prior dependency case. She specifically identified parenting classes, stable housing, visitation, a neuropsychological evaluation, agency contact, victim/survivor services, releases of information,

and participation in the children's services. That testimony is false. The agency possessed records showing, among other things, my completed neuropsychological evaluation with Dr. Tongue, parenting education, domestic-violence services, signed releases, agency contacts, and my self-initiated domestic-violence grant. The blanket assertion that I completed *none* of those services was not a reasonable characterization of the record; it was a material fabrication.

2. **ODHS reports claim that there is a warrant for Mother's arrest due to a possession charge as well as theft.** Should the agency have done its due diligence, it would have been able to ascertain that the warrant is not for either of those things but instead due to a failure to appear after the court, in that case as well, sent notice to an incorrect address while having knowledge of Mother's true address and later issuing a warrant for **failure to appear**. Mother is presently navigating the issuance of such a warrant and submitted a motion to quash on July 1, 2025 that the court has failed to rule on.

3. **ODHS reports claim there is a no-contact order presently between Barry Washington and Mother due to domestic violence.** The ageny fabricated this entirely. There is absolutely no supporting statements from the children nor anyone else that establishes a present threat of domestic violence in Mother's home. The agency failed to conduct a proper investigation in this respect or it would have shown that the no-contact order was put in place erroneously in claiming that Mother and Barry Washington are co-defendants when they are not.

4. **Marquand then contradicted her own "no engagement" testimony.** In the same hearing, when discussing the twenty hotline calls related to Father, she testified that I had engaged in those assessments—then changed that to say that I had engaged "limitedly." ODHS cannot truthfully tell the court, on the one hand, that I did not engage in *any* services and, on the other, that I engaged in the assessments but only "limitedly." The first statement was used to portray me as wholly noncompliant; the latter confirms that the first was false.

5. **Marquand testified that I refused to pick Al-mira up from the hospital and refused to protect her.** That statement omits the actual circumstances and recasts my demand for an explanation of ODHS's claimed authority as parental abandonment. The agency contacted me after Al-mira had already been taken into protective custody; I demanded that ODHS explain the basis for continuing custody once I had been reached. I also arranged for her maternal great-uncle to go to the hospital at my request as he could reach her more immediately and thereby return her to my care much faster. The agency's own report confirms that he arrived at the hospital at my request. My insistence that ODHS articulate a lawful basis for continued custody is not evidence that I refused to protect or retrieve my child.

6. **Marquand presented speculation that I "coached" Al-mira to recant as though it were an established fact.** The actual record reflects that Al-mira told the agency that ODHS had lied to me about what she said and that she had not made the statement attributed to her. Marquand converted that denial into an accusation that I coached my daughter, without identifying any direct evidence that I coached her and despite the absence of any finding establishing that accusation. Speculation from a hospital social worker or agency employee is not evidence that a mother coached her child. Marquand nevertheless presented that accusation under oath as part of the factual basis for jurisdiction. The accusation was false, defamatory in its ordinary meaning, unsupported by evidence, and materially prejudicial because it portrayed Mother as manipulating her daughter, undermining Al-mira's credibility, and interfering with the agency's ability to assess safety. It then became part of the official agency and court record used to justify continued separation.

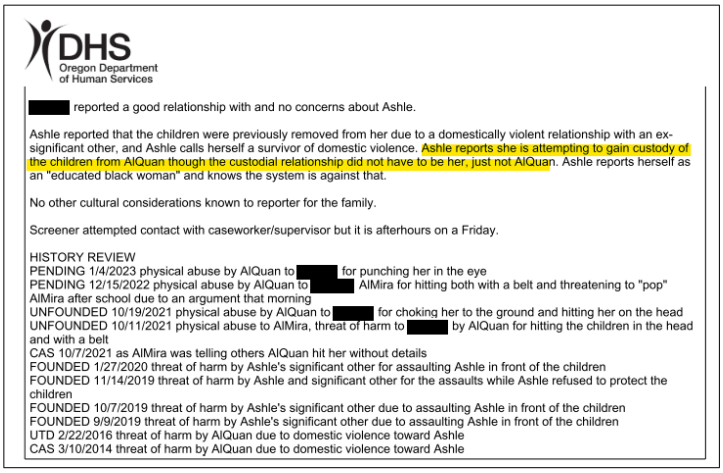
7. **Marquand used "32 calls" to create a false narrative of substantiated abuse, neglect, physical abuse, and substance use by Mother.** She testified that the calls concerned neglect, threat of harm, exposure to violence, physical abuse, and substance use. But a hotline call is not a founded finding. The number of calls cannot be presented as proof that their allegations were true, and the number attributed to Mother is severely misrepresented, as demonstrated below. The agency's own disposition history distinguishes founded, unfounded, unable-to-determine, screened-out, duplicate, and pending matters. Aggregating all calls into a single adverse "history" was materially misleading and an omission of the truth used to mislead the court.

8. **Marquand invoked substance use while admitting that ODHS had not assessed it.** She testified that there were "significant concerns around the substance use," but immediately admitted that the cases were pending and that ODHS had not had meaningful contact with me "to fully assess …and get information about her substance use." ODHS presented substance use as a *concern*—which does not meet the threshold for emergency protective custody—in support of jurisdiction while admitting it had not obtained the information necessary to establish whether substance use existed, whether it

affected parenting, or whether it posed any danger to Al-mira.

9. **Marquand testified that I failed to protect Al-mira from Father while omitting ODHS's own role in treating Father as a safe placement.** ODHS endorsed Father as a safe placement and participated in lifting the no-contact barrier after his first arrest and after Al-mira had been placed with me successfully for several months. It was ODHS that allowed Al-mira's return to Father's care, and Marquand's testimony failed to mention the assessments that occurred after her placement with me, that there were no concerns for her while in my care, and that the agency itself knew of the escalations and documented the need to act but did not. Instead, the agency advocated for removal of the no-contact order, which would lead to the later assault and strangulation allegations arising after Al-mira was back in Father's care. ODHS cannot place a child with Father, characterize Father as safe, and then use the resulting danger as proof that Mother failed to protect her from the very placement ODHS endorsed — all while omitting Mother's assessments and engagement, and while testifying that Mother had not engaged whatsoever.

10. **Marquand faulted me for failing to modify the domestic-relations custody order while omitting the procedural and jurisdictional barriers to doing so.** She presented Father's sole custody as though it established my inability or unwillingness to protect Al-mira, without identifying any lawful mechanism available to me to unilaterally alter Father's custody order, and without acknowledging the jurisdictional barriers that prevented me from obtaining the relief ODHS now says I should have secured. She omitted that Al-mira was *safely* placed with me, enrolled in school, and **evaluated and assessed within my home**. She also omitted that I submitted a request to Washington County Circuit Court to modify custody, but the court declined to accept it because it determined it lacked jurisdiction at the time of filing.



DHS
Oregon Department of Human Services

[redacted] reported a good relationship with and no concerns about Ashle.

Ashle reported that the children were previously removed from her due to a domestically violent relationship with an ex-significant other, and Ashle calls herself a survivor of domestic violence. Ashle reports she is attempting to gain custody of the children from AlQuan though the custodial relationship did not have to be her, just not AlQuan. Ashle reports herself as an "educated black woman" and knows the system is against that.

No other cultural considerations known to reporter for the family.

Screener attempted contact with caseworker/supervisor but it is afterhours on a Friday.

HISTORY REVIEW
PENDING 1/4/2023 physical abuse by AlQuan to [redacted] for punching her in the eye
PENDING 12/15/2022 physical abuse by AlQuan to [redacted] AlMira for hitting both with a belt and threatening to "pop" AlMira after school due to an argument that morning
UNFOUNDED 10/19/2021 physical abuse by AlQuan to [redacted] for choking her to the ground and hitting her on the head
UNFOUNDED 10/11/2021 physical abuse to AlMira, threat of harm to [redacted] by AlQuan for hitting the children in the head and with a belt
CAS 10/7/2021 as AlMira was telling others AlQuan hit her without details
FOUNDED 1/27/2020 threat of harm by Ashle's significant other for assaulting Ashle in front of the children
FOUNDED 11/14/2019 threat of harm by Ashle and significant other for the assaults while Ashle refused to protect the children
FOUNDED 10/7/2019 threat of harm by Ashle's significant other due to assaulting Ashle in front of the children
FOUNDED 9/9/2019 threat of harm by Ashle's significant other due to assaulting Ashle in front of the children
UTD 2/22/2016 threat of harm by AlQuan due to domestic violence toward Ashle
CAS 3/10/2014 threat of harm by AlQuan due to domestic violence toward Ashle

Figure 1. There is documentation that I communicated with ODHS of my attempts to gain custody of the girls and Marquand characterized my . *(Source: ODHS case notes.)*

11. **Marquand testified that I made "very little" meaningful attempt at visitation while ODHS had not provided a workable visitation plan.** ODHS failed to substantiate the authority it claims it had when it exercised emergency protective custody on 9/6/25, and Marquand's testimony attributed visitation failures to me. Marquand failed to inform the court that Al-mira's placement was more than thirty miles away, required several hours of bus travel, and that I lacked transportation. ODHS provided no assistance in facilitating visitation. The agency restricted my contact with her while she was hospitalized without a court order and without identifying what harm it claimed to be preventing, then delayed or withheld a concrete visitation structure and treated the predictable absence of agency-facilitated visits as evidence against me. ODHS records show that Al-mira requested to speak with me while she was in the hospital on 9/7/25 and that she was denied access to a phone while in the hospital as ODHS claims I was escalated with hospital staff. Being "escalated" while speaking with hospital staff as they told me my daughter was no longer in the hospital, while she was but they were hiding her from me, still does not identify what harm I posed to her that ODHS was preventing. ODHS cannot withhold a plan, restrict contact, provide no transportation support, and then characterize the resulting lack of visits as Mother's lack of interest in her child. The narrative that I was not "interested" in planning for her was Marquand's depiction of my non-interest in speaking with ODHS. I have a right not to speak with ODHS and your agency has no right to require that I do and present to the court that the exercise of that right equates to danger. Further, DHS policy requires first visit within a week and encourages caseworkers to schedule first visit within 48 hours - as stated by the

court at the shelter hearing. ODHS did not fulfill this requirement and would then later attribute its failings to adhere to its own rules on me.

12. **Marquand characterized my emails as "more demands than anything."** My written communications sought the factual basis for ODHS's actions, its position on the authority it claimed to be exercising over the emergency removal, information about my daughter, the records necessary to understand the allegations, and documented communication with a system I have—especially now—proven reasons not to trust. Calling those requests "demands" reframed my efforts to obtain information I am entitled to and to protect my legal relationship with my daughter as proof of non-engagement. It was designed to punish me for requesting accountability rather than evidence that I failed to parent or protect Al-mira.

13. **Marquand testified that Al-mira did not want to return to Mother, while later acknowledging that Al-mira was willing and wanting to live with Mother after family counseling.** Those statements cannot both be presented as a categorical basis for continued separation. The latter testimony confirms that Al-mira's position was not an absolute rejection of Mother, but a desire for support and counseling in restoring the relationship. This testimony also disregards several documented statements from my daughters describing their relationship with me to the contrary.

Ms. Faulkner, these are some of the representations that ODHS placed before the court while I was denied notice (Al-mira's lawyer states in a letter to her that the agency attempted to serve me between 9/30/25 and 10/14/25 — nearly a month after her removal; this is not acceptable for an agency that claims that I refused to appear), the petition, the reports, the evidence, and a genuine opportunity to respond and defend. The defective service and default process did not merely create a procedural problem. It enabled these assertions to be presented without contradiction, testing, cross-examination, or correction, and then converted into jurisdictional findings against me. The agency had knowledge that, and certified in its Declaration of Diligent Efforts, the earliest attempts at service took place on October 10, 2025 - well after Al-mira's removal. This does not afford a parent an opportunity to appear and defend at the shelter hearing as required by ORS 419B.185(1). The agency also had knowledge that it sent its process server to an incorrect address (conceded on the record in open court at a later hearing) yet did not move to correct the diligent efforts assertions it had already made.

Even more to this point, ODHS possessed and used language drawn directly from the court-ordered neuropsychological evaluation I completed during prior involvement with your agency, yet it mischaracterized the extent of my participation and portrayed me to the court as a parent who had failed to engage or complete services. It then tried to recast that prior history as evidence of a purported "pattern" in the present proceeding, even though the record does not support that characterization **and** the agency is required to provide current proof of a non-speculative and serious threat likely to be realized.

Marquand's testimony identified *nothing* demonstrating that any threat to Al-mira was current, likely to be realized, or that threatened serious loss or injury. The testimony represented generalizations, speculation, and outright falsifications of factual information (as with the purpose of outstanding warrants and substance abuse that has **never** been established by your agency). ODHS also attributed at least two statements to my mother that she has now sworn, under oath, were never made. These are not harmless errors; they are knowing or reckless misrepresentations that foreseeably injure both parent and family. No good-faith defense can excuse falsifying a parent's history to mislead the court or inventing statements and attributing them to that parent's mother. For that reason, neither absolute nor qualified immunity should be understood to shield ODHS personnel from liability for this conduct.

On our recorded call of January 28, 2026, you stated[2]:

If I were to find any unlawful or concerning information in the record or any information that we perjured ourselves, I would absolutely handle that with our employees and also notify the court.

You added that you would review the representations at issue and reconnect. In subsequent calls and emails, however, you did not engage the substance of those concerns or obtain access to the underlying records. You repeatedly pointed to the fact that the juvenile court had already taken jurisdiction, as though the existence of a jurisdictional finding were itself an answer to my claim that **ODHS obtained jurisdiction by presenting**

[2] See SonyaFaulknerByte.mp4.

fabricated and misleading evidence and omitting the truth. Jurisdiction entered on the basis of false evidence is not self-justifying; it is the core of the due process violation I have been describing.

2. Emilie Marquand's Sworn Testimony Was False in at Least Twelve Respects, Each Disproved by the Agency's Own File

The jurisdictional case against Mother was carried by one witness, caseworker Emilie Marquand, testifying on October 31, 2025. Her testimony, and the reports the agency submitted with it, are false or unsupported in at least the following respects. None turns on Mother's word against the agency's; each is disproved by the agency's own records, its own expert, or the same witness's own contradictory testimony in the same hearing.

(a) **That Mother "did not engage in any services and actually failed to do any of the services."** The agency possessed Mother's completed court-ordered neuropsychological evaluation (Exhibit A), seventeen sessions of DV counseling, ARIA completion, and a year-long parenting course — and Marquand conceded minutes later that Mother "has engaged in those assessments."

(b) **That "32 calls" logged under Mother proved she "lacks skills" and "does not understand" her child.** The agency's own CF307A intake history shows the sole founded finding against Mother is a 2019 failure-to-protect from Barry Washington's domestic violence; every other screened report closed unfounded or unable to determine. A tally of contacts is not a finding.

(c) **That Mother's "substance use" was a safety concern.** Marquand admitted under oath that "the agency has not had meaningful contact with the mother to fully assess her and get information about her substance use." No substance-abuse allegation appears in the intake history, and none accompanied the child's removal from her father. Jurisdiction was taken on an unassessed inference. *Dep't of Human Servs. v. A. W.*, 276 Or App 276, 278 (2016).

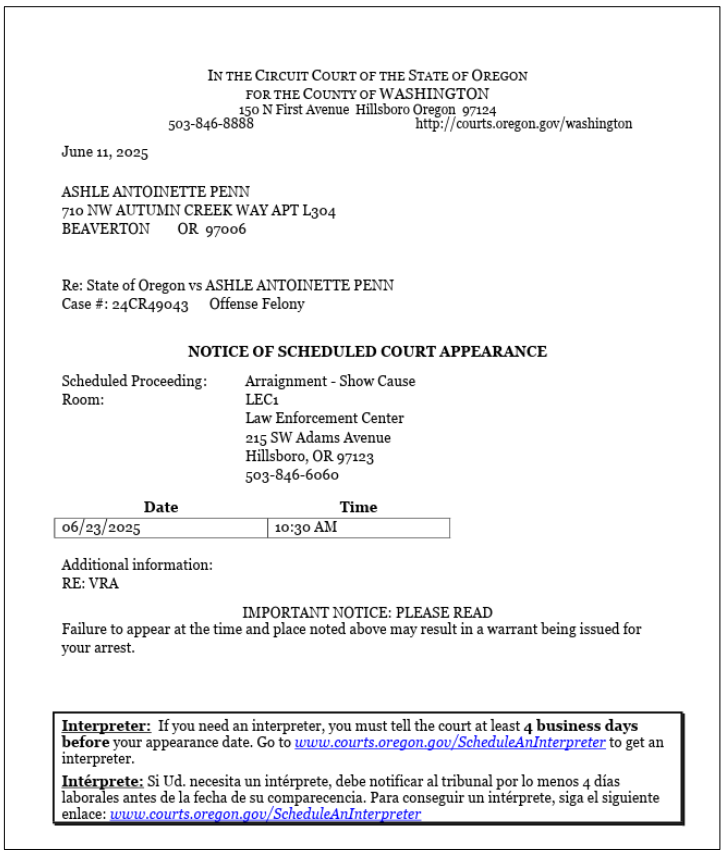
(d) **That Mother "refused to pick this child up from the hospital."** The agency's own Protective Custody Report records that Mother had no transportation, was "sending the uncle instead," and that the uncle was certified as the child's relative placement within twenty-four hours.

(e) **That Mother "refused a safety plan."** The first safety plan was not transmitted until October 1, 2025 — twenty-five days after removal. A parent cannot refuse what was never offered. Additionally, without any identified safety threat that is current, non-speculative and likely to be realized that threatened a serious threat of loss or injury - the agency has no grounds to require a safety plan before releasing my child to my care, custody and control.

(f) **That Mother "coached" the child to recant.** No record contains any evidence of coaching. The agency logged the coaching "concern" at 2:30 PM on September 6, 2025 — before Mother's first contact with the child at approximately 5:00 PM. A concern that predates the only conduct that could have caused it is fabrication.

(g) **That "zero visits" had occurred.** The agency's own visit notes record consistent visitation, and the same report elsewhere states "Mom has visited with Almira twice." No visitation plan was ever provided to Mother. The agency omitted that Al-mira's placement was more than 30 miles away (more than 2.5 hours of bus travel) and that the agency failed to provide any assistance to Mother to assist her in achieving those visits. What's more, the agency has taken the position that visits are required to be supervised without identifying why visits are required to be under another's supervision. David Milne, on August 10, 2026 informed mother that he doesn't believe Mother has deficits that require amelioration, only that Mother is required to engage the agency's safety plan before Al-mira is given to Mother. This is wholly unlawful.

(h) **That there was "no warrant issued in my understanding for that case likely because there was the warrant for the possession of meth and theft".** A single felony failure-to-appear warrant issued case 24CR49043 was issued due to the court having sent the notice for the hearing to a more than 10 year old invalid address. Marquand testified from paperwork she had not accurately reviewed. OEC 602.



IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 http://courts.oregon.gov/washington

June 11, 2025

ASHLE ANTOINETTE PENN
710 NW AUTUMN CREEK WAY APT L304
BEAVERTON OR 97006

Re: State of Oregon vs ASHLE ANTOINETTE PENN
Case #: 24CR49043 Offense Felony

NOTICE OF SCHEDULED COURT APPEARANCE

Scheduled Proceeding: Arraignment - Show Cause
Room: LEC1
Law Enforcement Center
215 SW Adams Avenue
Hillsboro, OR 97123
503-846-6060

Date	Time
06/23/2025	10:30 AM

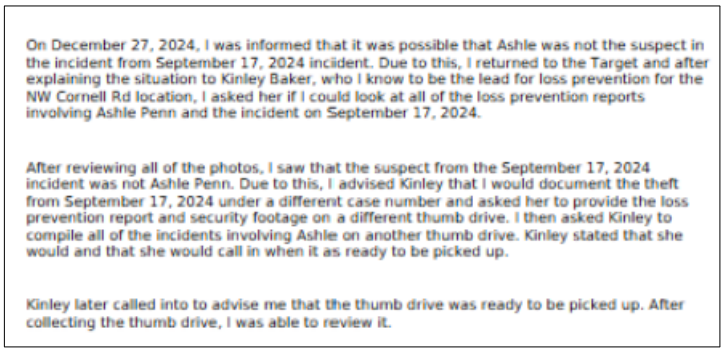
Additional information:
RE: VRA

IMPORTANT NOTICE: PLEASE READ
Failure to appear at the time and place noted above may result in a warning being issued for your arrest.

Interpreter: If you need an interpreter, you must tell the court at least **4 business days before** your appearance date. Go to *www.courts.oregon.gov/ScheduleAnInterpreter* to get an interpreter.

Intérprete: Si Ud. necesita un intérprete, debe notificar al tribunal por lo menos 4 días laborales antes de la fecha de su comparecencia. Para conseguir un intérprete, siga el siguiente enlace: *www.courts.oregon.gov/ScheduleAnInterpreter*

The court mailed notice for a show cause hearing to an incorrect address and Mother was never notified of this hearing. This is after Washington County Sheriff entered Mother's home unlawfully, without a warrant, and is attempting to use the fruits of the poisonous tree evidence to revoke her bail status for a release order that categorized her as a co-defendant with someone who is not her co-defendant, after she was misidentified and wrongfully arrested for the underlying charge.



On December 27, 2024, I was informed that it was possible that Ashle was not the suspect in the incident from September 17, 2024 incident. Due to this, I returned to the Target and after explaining the situation to Kinley Baker, who I know to be the lead for loss prevention for the NW Cornell Rd location, I asked her if I could look at all of the loss prevention reports involving Ashle Penn and the incident on September 17, 2024.

After reviewing all of the photos, I saw that the suspect from the September 17, 2024 incident was not Ashle Penn. Due to this, I advised Kinley that I would document the theft from September 17, 2024 under a different case number and asked her to provide the loss prevention report and security footage on a different thumb drive. I then asked Kinley to compile all of the incidents involving Ashlie on another thumb drive. Kinley stated that she would and that she would call in when it as ready to be picked up.

Kinley later called into to advise me that the thumb drive was ready to be picked up. After collecting the thumb drive, I was able to review it.

Deputy Rambin admitted to misidentifying Mother in the underlying case and yet the prosecution has elected to suppress this admission and proceed with prosecution of Mother, for which she presently is navigating while the State of Oregon has failed to provide her an attorney for.

(i) **That twenty hotline calls and ten assessments on Father's case since 2021 reflected Mother's failure to protect.** ODHS opened no dependency case on Father until the September 6, 2025 assault. The agency's own inaction is not Mother's deficiency.

(j) **That Mother failed to modify a custody order to protect the child.** Mother sought modification; the Washington County court declined jurisdiction on grounds unrelated to Mother, barring the very remedy Marquand faulted her for not obtaining.

(k) **That the child "does not want to go to mom — just wants to be with dad."** Marquand's own testimony was that the child "will go live with her mother" and "want[s] to engage" in family counseling first, and the Protective Custody Report records that "if she couldn't go home to her dad she wanted to go home with her mom."

(l) **That the agency had "motioned to dismiss the case."** An agency does not move to dismiss where a parent has completed nothing. At the final hearing in this matter, the AAG informed the court that the state had no basis to maintain custody of Feliciano as Mother had **completed her case plan.** Marquand's testimony is a direct contradiction to the factual matter of that case which is that Mother more than participated and engaged services - she completed her case plan. The assertion that the state's motion to dismiss, while omitting the true basis as to why, is incompatible with the "no

engagement" testimony offered in the same hearing. This is a misrepresentation, omission of the truth and a mischaracterization of the record to mislead the court. This violates Marquand's ethical duties as an employee of the state and forseeably would cause injury as this type of fraud upon the court was recklessly stated even with knowledge of the truth.

These are not the discrepancies of memory that honest witnesses produce. They run in one direction, each was contradicted by a document in the agency's own possession when it was made, and together they supplied the entirety of a jurisdictional case that has never been adjudicated on its merits. Deliberately fabricating evidence in a civil child-welfare proceeding — including presenting testimony and reports known to be false — violates the Fourteenth Amendment and is shielded by neither absolute nor qualified immunity. *Devereaux v. Abbey*, 263 F.3d 1070, 1074–75 (9th Cir. 2001) (en banc); *Costanich v. Dep't of Soc. & Health Servs.*, 627 F.3d 1101, 1108 (9th Cir. 2010); *Hardwick v. Vreeken*, 844 F.3d 1112, 1116–21 (9th Cir. 2017); *Spencer v. Peters*, 857 F.3d 789 (9th Cir. 2017). The Assistant Attorney General who presented that testimony, and who has continued to rely on it after its defects were known, is bound by the duty of candor to the tribunal. Oregon RPC 3.3.

3. Emergency Protective Custody Was Taken on a Basis the Agency Never Authorized, Never Pleaded, and Never Placed Before Any Court

The standard governing an emergency removal without a court order is not merely whether a child's circumstances appear concerning. Before January 1, 2020, ORS 419B.150 permitted removal when a child's "condition or surroundings reasonably appear to be such as to jeopardize the child's welfare." The Oregon Judicial Department recognized that this earlier standard was insufficient under federal and state constitutional law because the Fourth and Fourteenth Amendments require both exigency and severe harm before the State may separate a child from a parent without prior judicial authorization.

Effective January 1, 2020, House Bill 2849 removed that welfare-jeopardy language. ORS 419B.150 now permits protective custody without a court order only when there is reasonable cause to believe that: (1) the child faces an imminent threat of severe harm; (2) the child poses an imminent threat of severe harm to self or others; or (3) the parent or guardian will imminently cause the child to be beyond the juvenile court's reach before a court order can be obtained. ORS 419B.150(4)(a). "Severe harm" means life-threatening damage or a significant or acute injury to a person's physical, sexual, or psychological functioning. ORS 419B.150(3)(c).

ODHS therefore had to identify which statutory emergency predicate authorized taking Al-mira without a court order, the specific facts supporting that predicate, and why immediate custody—rather than release to Mother, a safety plan, medical treatment, relative support, transportation assistance, or another less restrictive measure—was necessary to prevent the identified imminent severe harm. The agency did none of those things.

The protective-custody report describes the immediate event as an alleged violent incident between Al-mira and her father, his arrest, and the child's hospital evaluation. As to Mother, the report largely moves from statements such as "not open to engaging," inability to "fully assess," and generalized historical concerns to conclusory assertions that Mother lacked skills, would not protect Al-mira, and had criminal activity interfering with parenting. That distinction is crucial:

What ODHS needed to establish	What the record does not establish
A present safety threat specifically tied to Mother	Specific conduct by Mother creating a current, non-speculative danger to Almira.
Why removal from Mother's care was necessary	A factual explanation of why Almira could not safely be released to Mother, with protective conditions or safeguards if needed.
Why less restrictive alternatives would not protect Almira	An analysis of placement with Mother, supervision, transportation assistance, safety planning, relative support, or other protective measures.
A meaningful opportunity for Mother to contest the allegations	Valid service; access to the petition, reports, and evidence; and a meaningful opportunity to appear, prepare, respond, and present evidence.

A. The Agency Told Mother the Reason for Custody, in Writing, at the Moment It Decided: the Child's Self-Harm Statement — Nothing About Mother's Conduct.

At 5:40 PM on September 6, 2025, ODHS Supervisor Heather Kitto texted Mother: "we can release custody to you." Nineteen minutes later, at 5:59 PM, Kitto reversed that decision in writing: "We've received new

information that your child has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody while we assess these concerns." Kitto's contemporaneous email states the same basis, and worker Bennett's note identifies "the high risk note for suicidal ideation" as the reason "the agency would maintain Protective Custody and request a Shelter Hearing." The stated basis was the child's self-harm risk — not Mother's conduct, and not any deficit in Mother's parenting capacity.[3]

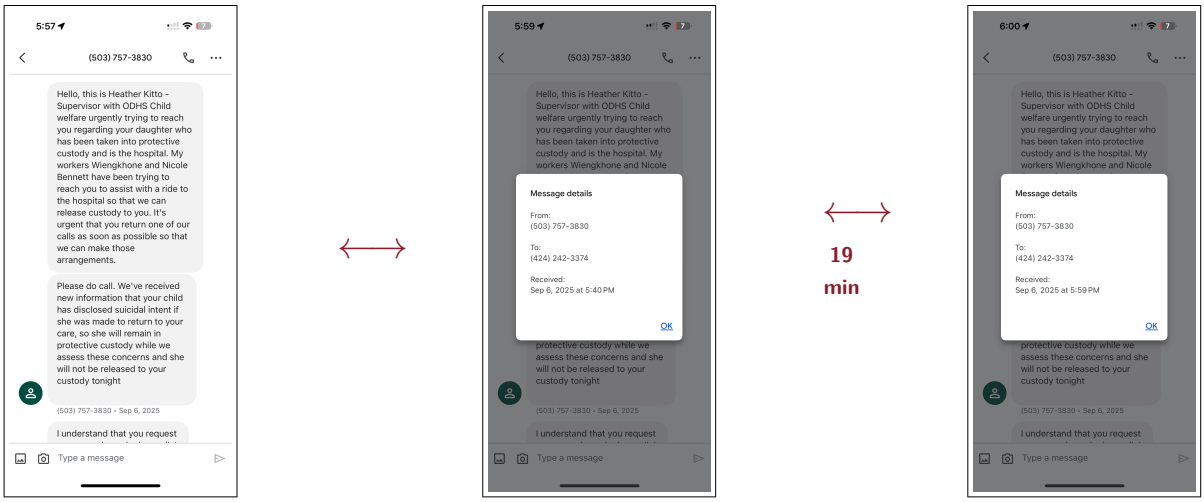
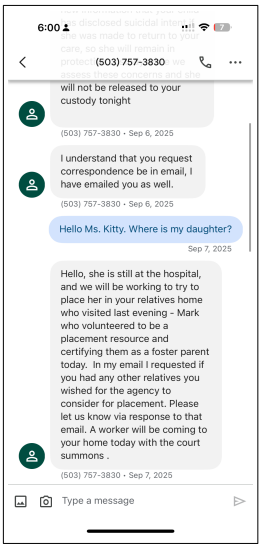


Figure 2. The nineteen-minute reversal, and the accompany metadata. **Left:** the full text thread. **Center:** 5:40 PM, September 6, 2025 — "we can release custody to you." **Right:** 5:59 PM — the child "has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody." The reason ODHS gave Mother, in writing, is the child's self-harm disclosure; the agency states no deficit in Mother's parenting and identifies no dangerous act by Mother. *(Source: Kitto text messages; carrier message-details timestamps.)*

B. The Agency Told Mother a Summons Would Be Delivered — It Never Told Her the Hearing's Date or Time.

Across the emails and calls ODHS exchanged with Mother on September 6, 7, and 8, 2025, no worker gave Mother the date or the time of the shelter hearing. Kitto's written notice states only that "a worker will be coming to your home today with the court summons." Mother received no hearing date, no time, and no appearance instruction. The promised summons is the sole reference to court process in the agency's contemporaneous communications, and the record does not establish that any summons was in fact delivered to Mother before the September 8 hearing. A parent cannot be treated as having declined to appear at a hearing whose date and time the agency never disclosed.[4]



[3] *Record cite:* Notice of Tort Claim p. 4 (Kitto texts); 2025-10-07 ODHS Report p. 2 (Kitto email); 2025-09-08 Protective Custody Report pp. 5, 7.

[4] *Record cite:* Kitto text message, September 7, 2025; see also the service defects catalogued below.

Figure 3. The only message in the record touching court process: "a worker will be coming to your home today with the court summons." No hearing date or time is given. The same message confirms ODHS was placing the child with the maternal relative ("Mark") and certifying him as a foster parent. *(Source: Kitto text message, September 7, 2025.)*

C. The Agency's Own ORS 419B.171 Form Has a Box for Exactly That Basis — and the Agency Did Not Check It.

The Protective Custody Report form directs the agency to mark the statutory predicate: (A) protect from abuse; (B) prevent the child from inflicting harm on self or others; (C) keep the child within reach of the court; (D) ICWA; (E) medical assessment of suspicious injuries. Option B is the self-harm predicate — the exact circumstance Kitto described. **The agency did not select it.** The Shelter Order entered September 8, 2025 instead marks that the child could not be safely returned without danger of "suffering physical injury or emotional harm" and "not remaining within the reach of the court." The agency removed on a self-harm rationale and then recorded the removal on grounds of *parental* harm and flight risk. The predicate it told Mother about is not the predicate it certified to the court.[5]

D. The Self-Harm Basis Was Never Pleaded as a Jurisdictional Allegation.

The three allegations found proven against Mother on October 31, 2025 are (A) lack of understanding/skills, (B) failure to protect from Father, and (C) criminal activity. None is the reason the agency gave Mother for taking her daughter. The self-harm statement — the operative emergency predicate, communicated in writing at 5:59 PM on September 6 — was never pleaded as a jurisdictional basis at all. It was never subjected to adversarial testing because it was never pleaded.[6]

E. The Statement Was Recanted, and the Agency Knew It Before the Shelter Hearing.

The attributed statement was that the child "would attempt suicide if she went home with her mom." Hospital social worker Leah Sathrum — the source of that attribution — documented that the account "was definitely not what child said initially" and that she was "worried the change in statements was due to parents' reaction." The child recanted to Sathrum and to Mother directly; both Sathrum and ODHS worker Bennett recorded the recantation. It appears *nowhere* in the September 8 shelter petition, the Shelter Order, or the diligent-efforts submissions. The agency held the exculpatory fact and withheld it from the court deciding whether to continue custody.[7]

F. You Have Already Acknowledged the Defect, on a Recorded Call.

On our January 28, 2026 recorded call you acknowledged the recantation (19:18: "once there was a recantation for that to be considered"). That admission from you, as the D16 Manager, establishes that the agency never assessed the predicate it certified to the court and identifies no instance of dangerous conduct by Mother to support the "physical injury or emotional harm" ground it marked.[8]

G. Nineteen Minutes.

Between the release decision at 5:40 PM and its reversal at 5:59 PM, the agency did not: assess Mother's protective capacity; consult a clinical professional about the attributed statement; determine present danger under OAR 413-015-0425; obtain the supervisor consultation OAR 413-015-0415 requires; weigh Mother's Certification in Suicide Prevention; offer or consider a safety plan; evaluate the maternal uncles physically present at the hospital (whom ODHS approved as the child's placement the next day); or contact Mother for an opportunity to respond. It reversed a release determination in nineteen minutes on an unverified conditional statement, took the child, and recorded the action on statutory grounds it had not assessed and could not support.[9]

H. The Consequence.

The original emergency protective custody has never been authorized. The predicate communicated to Mother corresponds to Option B, which the agency did not mark; the predicates it did mark were never assessed as to Mother; and you, Ms. Faulkner, as its own D16 Manager, have acknowledged on a recorded call that Al-mira denies making any statement of self-harm and that the statement was no longer being relied on for familial separation. You further stated that David Milne, the permanency worker, should be able to identify the conduct on which the allegations against Mother were based. When Mother requested that information, he referred her back to you — a closed loop confirming that the agency is unaware of the basis on which

[5] *Record cite:* 2025-09-08 Protective Custody Report p. 2; 2025-09-08 Shelter Order p. 3, §6.
[6] *Record cite:* 2025-09-08 Protective Custody Report pp. 3, 9; Notice of Tort Claim p. 8.
[7] *Record cite:* 2025-10-23 ODHS Report pp. 12, 22–23; Notice of Tort Claim p. 4.
[8] *Record cite:* 1_28_26 Sonya Faulkner Call (19:18, 20:08).
[9] *Record cite:* Notice of Tort Claim p. 4.

it claims authority to keep Al-mira from her family, which continues today. Most critically, the agency was aware that the basis on which it claimed authority to exercise emergency protective custody — the self-harm statement that actually drove the removal — was recanted before the hearing, withheld from the court, and never pleaded. The agency cannot cure that defect by pointing to findings entered after the fact on grounds it never assessed.

I. The Agency's Own Stated Basis for Emergency Custody Is Not a Lawful Ground to Remove a Child.

A child may be taken or held in protective custody without a court order only where there is probable cause to believe the child is in *immediate* danger of serious loss or injury and that custody is necessary to prevent it. ORS 419B.150. The agency's Protective Custody Report states the basis on which it held Al-mira: "the concerns about the child's expressed suicidal ideation, the mother's lack of cooperation to address the safety concerns, and ongoing historical concerns about the family condition." None of the three is a lawful ground to remove a child from a parent. The child's self-harm disclosure — recanted the same day — concerned the child's mental health and called for a medical response, not removal from a non-offending parent. Mother's insistence on written communication with a supervisor is the exercise of a right, not immediate danger. And "ongoing historical concerns" are, by definition, not the present, immediate danger the statute requires. The agency removed on grounds that, taken together, describe a parent asserting her rights against a backdrop of old history — not a child in immediate danger in that parent's care.

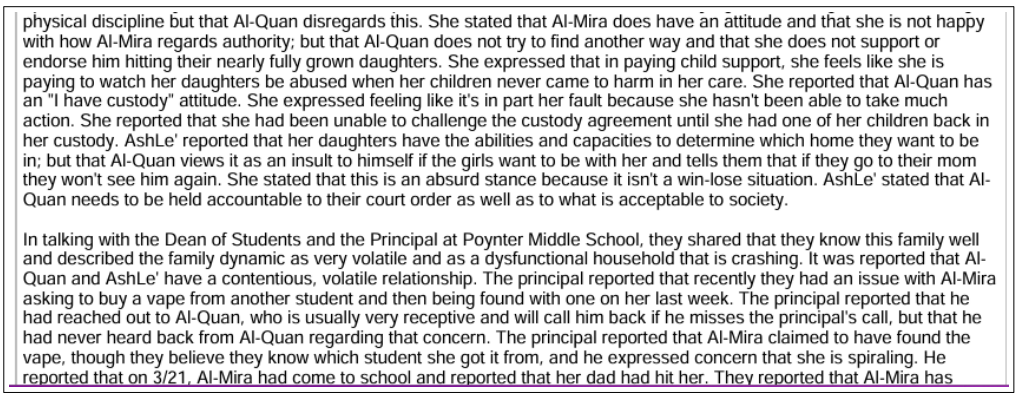
J. The Impending Danger Safety Threat Assessment, Confronted Line by Line

The Impending Danger Safety Threat Assessment is an official ODHS record used to characterize Mother as a safety threat and to support continued state custody. It is not a neutral narrative. The assessment contains factual allegations that are contradicted by ODHS's own records, unsupported conclusions presented as facts, unattributed reports, selective omissions, and assertions that convert Father's violence into alleged danger created by Mother. Because ODHS used this assessment to affect Mother's relationship with her children, each asserted threat required an identifiable source, an observable fact, and a documented connection to a current safety threat. The assessment repeatedly supplies none.

The records and images cited below are not collateral disputes. They are contemporaneous ODHS records, court records, agency communications, and assessment materials that directly contradict the written allegations. They show that the assessment converted Father's violence, unverified reports, and Mother's assertion of rights into a narrative that Mother herself was the danger.
The assessment names Almira the "vulnerable child," finds her "unsafe," and finds Amaiya and Feliciano — the children who live in Mother's home — "safe." Al-mira was with her father when she was strangled. Every threat the assessment attributes to Mother restates a danger the father created, states a conclusion without an observable fact, or contradicts the agency's own records. Each statement follows, accompanied by the agency's own records.

a. The threat category.

(a) **"One or both parents or caregivers lack parenting knowledge, skills, and motivation necessary to assure a child's safety."** Dr. Tongue's court-ordered evaluation found "adequate understanding of child development and parenting practices" and that Mother "does not merit referral for parent training" (Exhibit A). The one caseworker who assessed Mother's home found "no worries about [Almira] being with her mom" (above). The threat category the agency checked is the one its own experts disprove.



physical discipline but that Al-Quan disregards this. She stated that Al-Mira does have an attitude and that she is not happy with how Al-Mira regards authority; but that Al-Quan does not try to find another way and that she does not support or endorse him hitting their nearly fully grown daughters. She expressed that in paying child support, she feels like she is paying to watch her daughters be abused when her children never came to harm in her care. She reported that Al-Quan has an "I have custody" attitude. She expressed feeling like it's in part her fault because she hasn't been able to take much action. She reported that she had been unable to challenge the custody agreement until she had one of her children back in her custody. AshLe' reported that her daughters have the abilities and capacities to determine which home they want to be in; but that Al-Quan views it as an insult to himself if the girls want to be with her and tells them that if they go to their mom they won't see him again. She stated that this is an absurd stance because it isn't a win-lose situation. AshLe' stated that Al-Quan needs to be held accountable to their court order as well as to what is acceptable to society.

In talking with the Dean of Students and the Principal at Poynter Middle School, they shared that they know this family well and described the family dynamic as very volatile and as a dysfunctional household that is crashing. It was reported that Al-Quan and AshLe' have a contentious, volatile relationship. The principal reported that recently they had an issue with Al-Mira asking to buy a vape from another student and then being found with one on her last week. The principal reported that he had reached out to Al-Quan, who is usually very receptive and will call him back if he misses the principal's call, but that he had never heard back from Al-Quan regarding that concern. The principal reported that Al-Mira claimed to have found the vape, though they believe they know which student she got it from, and he expressed concern that she is spiraling. He reported that on 3/21, Al-Mira had come to school and reported that her dad had hit her. They reported that Al-Mira has

Figure 4. Dr. Tongue's court-ordered evaluation found adequate understanding of child development and parenting practices, no evidence that Mother was at risk of harming her child, and no need for a parent-training referral. This directly contradicts the assessment's assertion that Mother lacked parenting knowledge, skills, or motivation necessary to assure child safety. *(Exhibit A.)*

b. "Severe."

(a) **"Mother used Alquan's home as a punishment for the child."** Father's own letter of January 15, 2023 (Exhibit B) invites and regulates Mother's presence at his home and asks her to "come over and teach them how to cook." The agency has never presented that letter to the court. The "punishment" characterization also collapses against the agency's own next sentence (below).

(b) **"The child was noted to be unsafe in father's presence."** This states the danger is the father. It supports removal from the father, not from Mother.

(c) **"Ended up in hospital due to physical violence perpetrated by father."** The perpetrator the agency names is the father. Alquan was arrested and charged with felony strangulation of A.D. The harm the agency documents is the father's act.

c. "Out of Control."

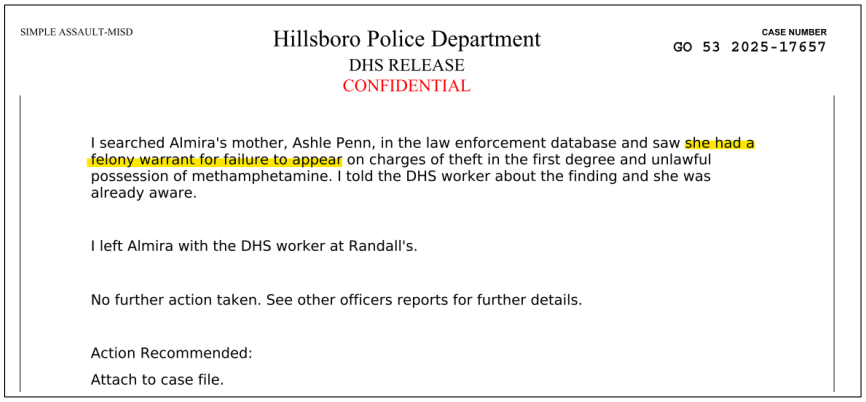
(a) **"There is no adult in the home available to ensure the child's safety."** Mother is the adult in the home. The agency's own Child Safety Decision found Amaiya safe in that home (below). The assessment separately identifies Amaiya, who resided with Mother at 17548 NW Springville Road, as safe. The agency must reconcile that finding with an assertion that no adult was available in Mother's home to ensure a child's safety. *(ODHS Assessment Summary, October 23, 2025, contact and child-location information; Child Safety Decision, p. [insert page].)*

(b) **"Father is incarcerated."** The father's incarceration neutralizes the father's danger. It states no threat posed by Mother.

(c) **"Both mother and Barry Washington were charged with theft and possession of Methamphetamines in November of 2024."** Mother denies that such a charge, until conviction especially, bears no weight as to her ability to parent. There is no allegation that any of her children have to come to any harm with regard to the nature of this arrest nor were her children present upon her arrest. ODHS is required to identify a *nexus* between a parent's risk causing behavior and harm to a child. The agency's own CF307A intake record logs no substance-abuse allegation as required to use this to maintain evidence that there is harm that has come to Al-mira based on this allegation or against Mother across the case history (above), and Dr. Tongue recommended no substance-abuse treatment, finding no evidence of a substance disorder (Exhibit A).

(d) **"Barry went to court and was incarcerated but *left* the jail and went straight back to Ashle's home."** The assessment identifies no source. It also contradicts the assessment's own next assertion that Barry holds a no-contact order barring him from Mother (below) due to domestic violence. There is absolutely no existing court order related to domestic violence in place between Barry Washington and Mother.

(e) **"Ashle did not show up for court and now both Ashle and Barry have warrants for their arrest."** The assessment uses Mother's warrant as evidence that she was unavailable to parent. But Mother's failure-to-appear warrant flowed from a criminal-court notice mailed to an address that was not Mother's residence—710 NW Autumn Creek Way in Beaverton—while ODHS's own records and law-enforcement materials carried Mother's correct address at 17548 NW Springville Road. A warrant resulting from misdirected notice is not evidence that Mother deliberately avoided court, was unavailable to parent, or posed a safety threat to Al-mira.



SIMPLE ASSAULT-MISD

Hillsboro Police Department

DHS RELEASE

CONFIDENTIAL

CASE NUMBER
GO 53 2025-17657

I searched Almira's mother, Ashle Penn, in the law enforcement database and saw she had a felony warrant for failure to appear on charges of theft in the first degree and unlawful possession of methamphetamine. I told the DHS worker about the finding and she was already aware.

I left Almira with the DHS worker at Randall's.

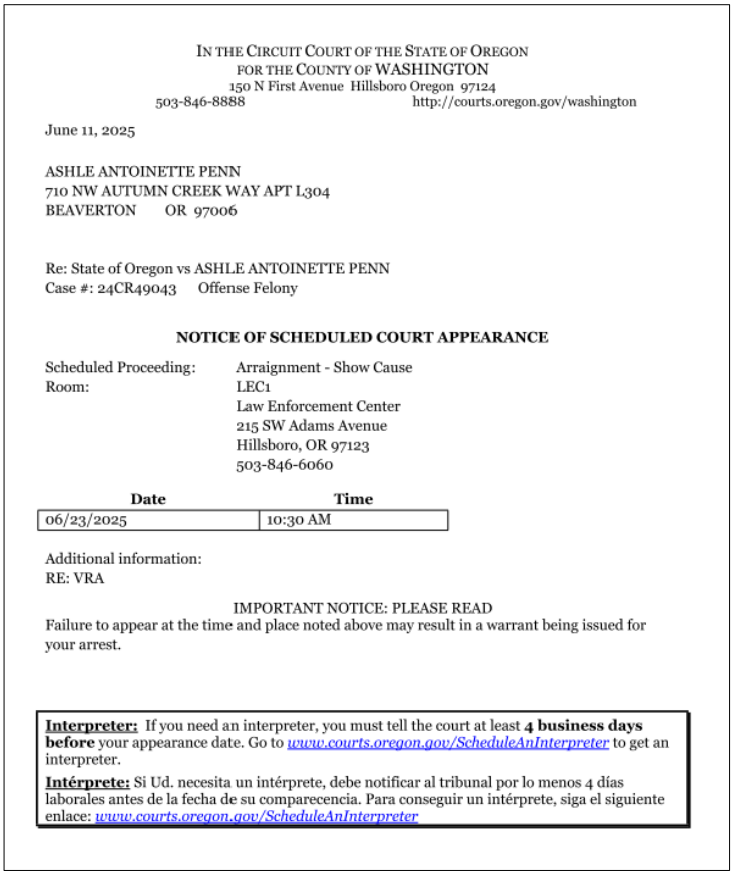
No further action taken. See other officers reports for further details.

Action Recommended:

Attach to case file.

Figure 5. The Hillsboro Police report confirms that ODHS *knew* of Mother's **failure-to-appear warrant** on September 6, 2025.

A warrant produced by defective notice cannot be repackaged as proof that Mother was unavailable or unsafe.



IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 http://courts.oregon.gov/washington

June 11, 2025

ASHLE ANTOINETTE PENN
710 NW AUTUMN CREEK WAY APT L304
BEAVERTON OR 97006

Re: State of Oregon vs ASHLE ANTOINETTE PENN
Case #: 24CR49043 Offense Felony

NOTICE OF SCHEDULED COURT APPEARANCE

Scheduled Proceeding: Arraignment - Show Cause
Room: LEC1
Law Enforcement Center
215 SW Adams Avenue
Hillsboro, OR 97123
503-846-6060

Date	Time
06/23/2025	10:30 AM

Additional information:
RE: VRA

IMPORTANT NOTICE: PLEASE READ
Failure to appear at the time and place noted above may result in a warrant being issued for your arrest.

Interpreter: If you need an interpreter, you must tell the court at least **4 business days before** your appearance date. Go to www.courts.oregon.gov/ScheduleAnInterpreter to get an interpreter.

Intérprete: Si Ud. necesita un intérprete, debe notificar al tribunal por lo menos 4 días laborales antes de la fecha de su comparecencia. Para conseguir un intérprete, siga el siguiente enlace: www.courts.oregon.gov/ScheduleAnInterpreter

Figure 6. The warrant must be evaluated in light of the criminal-court notice records showing that the relevant hearing notice was mailed to an address that was not Mother's residence.

(f) **"And will not be available to parent once located by LEA."** This predicts Mother's unavailability from a warrant the agency's own error produced. It presumes the outcome of an arrest that has not occurred.

(g) **"Barry has a no contact order with Ashle due to domestic violence."** The assessment does not identify the case number, issuing court, date, terms, duration, protected party, or source for this assertion. It also does not identify any act by Mother showing that she violated, encouraged violation of, or used any alleged order in a manner that created a present threat to Al-mira. If ODHS relied on this allegation to establish danger, it was required to identify the order and explain the factual connection between the alleged order and a current safety threat to Al-mira. The assessment supplies neither.

d. "Observable."

(a) **"Mother has shown a history of neglecting the child."** The record contains no founded neglect finding against Mother. The sole founded finding is the 2019 failure-to-protect from Barry Washington's violence. Dr. Tongue and caseworker Gonnuscio contradict the assertion (above).

(b) **"It was reported that the child is often left to fend for herself."** "It was reported" attributes the statement to no one. The assessment supplies no reporter, no date, and no observable fact. A conclusion recited from an unnamed source is not an observation.

(c) **"They are responsible for feeding and caring for themselves often."** Father's January 15, 2023 letter directed Mother not to "bring food when the kids tell you they are hungry" but to "come over and teach them how to cook" (Exhibit B) — documenting that Mother fed and taught the children. ODHS's own visitation note records that "Mom did a great job of interacting with all three of her children in a nurturing, affectionate, age appropriate and playful manner."

(d) **"Mother is using father's home as a punishment for disobeying and tells them that if their father doesn't allow them to do what they want they can run back to her home."** The two halves cannot both be true. A home offered as the place the children "can run back to" is a refuge, not a punishment. The assessment states both in one sentence.

(e) **"Mother also has a warrant for her arrest."** This repeats the failure-to-appear warrant the agency's wrong-address notice produced (above).

(f) **"Has refused to come to hospital, court or to make appropriate plans for her child's safety."** Mother had no transportation and was hours away; she arranged for the maternal great-uncle to go to the hospital at her request, and he was certified as a placement within twenty-four hours.[10] Arranging a certified relative placement is an appropriate plan. Absence compelled by lack of transport is not refusal, and the "court" absence traces to the wrong-address notice (above).

e. "Vulnerable."

(a) **"Continuously exposed to unsafe people, situations and behaviors which has been normalized."** The unsafe person the record identifies is the father, whom the agency itself endorsed as a safe placement five months before he strangled A.D. (above). The exposure the agency now cites is exposure the agency arranged.

(b) **"The child is extremely protective of their parents and continue to conceal the truth of their home and family situation."** This recharacterizes the child's statements favorable to Mother as concealment, so that evidence against the threat finding is treated as proof of it. An assessment that counts contradicting evidence as confirmation cannot be tested, and establishes nothing.

f. "Imminence."

(a) **"Imminent and is likely to occur again in the near future."** The event the assessment fears recurring is the father's strangulation of A.D. The father is incarcerated. The assessment identifies no imminent act by Mother.

(b) **"Mother has shown a pattern of neglect."** No founded neglect finding exists in the record (above). The word "pattern" repeats a conclusion the record does not support.

(c) **"There are concerns of substance use in the home."** The agency's own CF307A intake record logs no substance-abuse allegation against Mother, and Dr. Tongue found no evidence of a substance disorder (above). "Concerns" name no fact.

(d) **"And domestic violence."** The domestic violence in this record was perpetrated by Barry Washington in 2019 and by Alquan in 2025. Mother is the protective party, not the aggressor. The agency attributes the men's violence to the mother.

(e) **"Ashle has not shown an interest or ability in providing a safe and appropriate situation for her child."** Dr. Tongue found no evidence Mother "would be unable to put the needs of her children ahead of her own" (Exhibit A); Gonnuscio found "no worries"; the visitation record documents nurturing, appropriate parenting; and Mother secured a certified relative placement within twenty-four hours (above).

g. The Child Safety Decision.

(a) **Amaiya "Safe"; Almira "Unsafe."** The agency found Amaiya A. Davis (DOB 11/18/2009), who lives in Mother's home, "Safe," and found Al'Mira A. Davis (DOB 06/23/2011), who was with her father, "Unsafe." The child who lives in Mother's home is the child the agency found safe. A home the agency certifies as safe for the child who lives in it does not support that same agency's narrative of neglect, an unsafe home, and substance use in the home.

h. The Basis for the Decision.

(a) **"Al'Mira was attacked by her father Alquan who was subsequently arrested and charged with felony strangulation."** The agency's stated basis for the unsafe finding is the father's violence, in the father's care. It is not Mother's conduct.

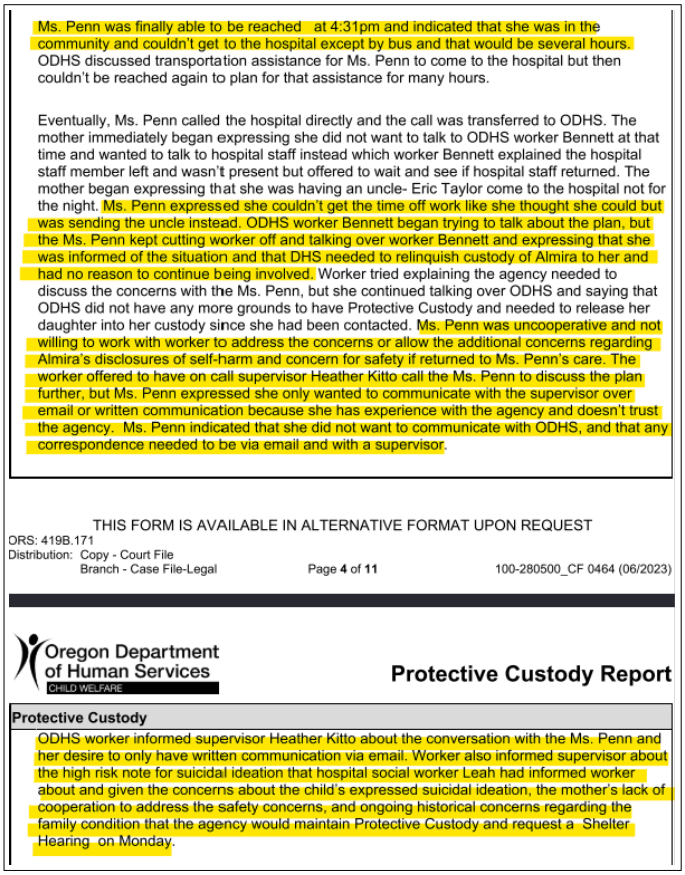
(b) **"Ashle' would not come to the hospital to discuss the safety of her child and has continued to refuse conversation or meeting in person."** The maternal great-uncle's affidavit establishes Mother arranged relative attendance at the hospital and secured certification within twenty-four hours (above). Lack of transport is not refusal.

(c) **"There are concerns regarding mother's ability and willingness to address mental health concerns."** Dr. Tongue found no mental disorder, recommended no counseling, and recorded that "item endorsement did not indicate that Ms. Penn is at risk of harming her child" (Exhibit A).

(d) **"And the safety of her child."** The child in Mother's home is the child the agency found safe (above).

(Source: ODHS Impending Danger Safety Threat / Safety Assessment. Mother to confirm the document's date, author, and exhibit designation.)

[10] Affidavit of William "Markus" Taylor (maternal great-uncle), attached.



Ms. Penn was finally able to be reached at 4:31pm and indicated that she was in the community and couldn't get to the hospital except by bus and that would be several hours. ODHS discussed transportation assistance for Ms. Penn to come to the hospital but then couldn't be reached again to plan for that assistance for many hours.

Eventually, Ms. Penn called the hospital directly and the call was transferred to ODHS. The mother immediately began expressing she did not want to talk to ODHS worker Bennett at that time and wanted to talk to hospital staff instead which worker Bennett explained the hospital staff member left and wasn't present but offered to wait and see if hospital staff returned. The mother began expressing that she was having an uncle- Eric Taylor come to the hospital not for the night. Ms. Penn expressed she couldn't get the time off work like she thought she could but was sending the uncle instead. ODHS worker Bennett began trying to talk about the plan, but the Ms. Penn kept cutting worker off and talking over worker Bennett and expressing that she was informed of the situation and that DHS needed to relinquish custody of Almira to her and had no reason to continue being involved. Worker tried explaining the agency needed to discuss the concerns with the Ms. Penn, but she continued talking over ODHS and saying that ODHS did not have any more grounds to have Protective Custody and needed to release her daughter into her custody since she had been contacted. Ms. Penn was uncooperative and not willing to work with worker to address the concerns or allow the additional concerns regarding Almira's disclosures of self-harm and concern for safety if returned to Ms. Penn's care. The worker offered to have on call supervisor Heather Kitto call the Ms. Penn to discuss the plan further, but Ms. Penn expressed she only wanted to communicate with the supervisor over email or written communication because she has experience with the agency and doesn't trust the agency. Ms. Penn indicated that she did not want to communicate with ODHS, and that any correspondence needed to be via email and with a supervisor.

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

ORS: 419B.171
Distribution: Copy - Court File
Branch - Case File-Legal

Page 4 of 11

100-280500_CF 0464 (06/2023)

Oregon Department of Human Services
CHILD WELFARE

Protective Custody Report

Protective Custody

ODHS worker informed supervisor Heather Kitto about the conversation with the Ms. Penn and her desire to only have written communication via email. Worker also informed supervisor about the high risk note for suicidal ideation that hospital social worker Leah had informed worker about and given the concerns about the child's expressed suicidal ideation, the mother's lack of cooperation to address the safety concerns, and ongoing historical concerns regarding the family condition that the agency would maintain Protective Custody and request a Shelter Hearing on Monday.

Figure 7. The Protective Custody Report in the agency's own words: it maintained custody based on the child's (recanted) suicidal ideation, "the mother's lack of cooperation," and "ongoing historical concerns about the family condition." The same page records that Mother could not reach the hospital except by bus and "was sending the uncle instead." *(Source: 2025-09-08 Protective Custody Report, p. 4.)*

4. The Court Entered Jurisdiction Without Service — on a "Whereabouts Unknown" Default the Agency's Own Sworn Filings Disprove

A juvenile court may establish jurisdiction "only after service of summons." ORS 419B.815(1). Mother was never served. The agency knew it, and asked the court to proceed anyway under a statute that applies only when a parent cannot be found — while the agency's own sworn filings establish that it knew where Mother was, spoke with her by telephone, exchanged email with her, and tracked her daily movements.

A. Service of Summons Is the Statutory Precondition to Jurisdiction

ORS 419B.815(1) provides that a court "may make an order establishing jurisdiction under ORS 419B.100 only after service of summons and a true copy of the petition as provided in *** [ORS] 419B.823 [and] 419B.824." *Dept. of Human Services v. K. L.*, 272 Or App 216, 220 (2015). ORS 419B.823 requires that the summons "be served … in a manner reasonably calculated under all the circumstances to apprise the person served of the existence and pendency of the juvenile proceeding and to afford the person a reasonable opportunity to appear." *Id.* at 220–21. The enumerated methods — personal, substituted, office, mail, and court-ordered alternative service — are illustrative rather than exclusive; what is mandatory is that whatever method is used satisfy the reasonable-notice standard. *Id.* at 222–23 (applying *Baker v. Foy*, 310 Or 221, 224–26 (1990), to ORS 419B.823 and 419B.824 because those statutes were modeled on ORCP 7 D). That standard defeats this agency rather than assisting it.

a. K. L. is the agency's own authority, and it is a contrast, not a precedent.

In *K. L.* the Court of Appeals sustained service only because DHS *actually* posted the summons and petition on the parents' door, *actually* mailed them to the home, and *actually* e-mailed them to an address at which the caseworker had recently corresponded with the father — and the court held that "taken together" those methods were reasonably calculated to apprise. 272 Or App at 224–25. The e-mail mattered: sending the summons to a known working address "measurably increased the likelihood that parents would receive" notice. *Id.* at 225. Here the agency did the opposite of each step. It mailed to 17458 NW Springville Rd., a

transposition of my address, which its own CLEAR, Accurint, Medicaid, and TANF records returned correctly and which my family coach confirmed on October 13, 2025. It possessed my e-mail address, had used it, and served every other party — father's counsel, the child's counsel, and CASA — by e-mail, while serving me alone by mail to the wrong address. It posted nothing. Methods deliberately withheld from the parent cannot be "reasonably calculated … to apprise" that parent.

b. Mail service was not merely misdirected; it was never complete.

ORS 419B.824(4) provides that service by mail in a dependency case "is not complete unless the person to be served signs a receipt for the mail." *K. L.*, 272 Or App at 225. No receipt bearing my signature exists, because the mailing went to an address that is not mine.

c. The agency identified the one lawful route and declined it.

Miller swore that service could not be made "by any method of personal or substituted service, nor by office service or service by mail as permitted under ORCP 7." That sworn statement is the statutory predicate for court-ordered alternative service under ORS 419B.824(5). The agency never moved for it, and the court never ordered it.

B. The Court's Authority to Set the Default Aside Is Broad, and Its Exercise Is Required Where the Default Rested on Legal Error

ORS 419B.923(1) provides that "the court may modify or set aside any order or judgment made by it," and that the "[r]easons for modifying or setting aside an order or judgment include, but are not limited to" the three examples listed. In *A. D. G.*, the Court of Appeals held that the phrase "include, but are not limited to" means what it says, that the examples "do not circumscribe the broad discretion that the subsection otherwise bestows on a juvenile court," and that the legislature deliberately "rejected the limitation imposed by ORCP 71 A and B on available grounds for relief." 260 Or App at 536–39. The standard of review supplies the rest. A denial under ORS 419B.923 is reviewed for abuse of discretion, and a ruling resting on legal error "was not within a range of legally correct choices and constitutes an abuse of discretion." *A. D. G.*, 260 Or App at 547. The default here rested on the legal premise that diligent efforts had failed to reveal my whereabouts. The agency's own sworn filings disprove that premise. A default entered on a predicate the record negates cannot stand once the negation is placed before the court. The Court of Appeals has reversed on materially similar footing before, setting aside a dependency jurisdictional judgment where a parent lacked notice that her non-attendance would result in a prima facie hearing in her absence, "given the lack of statutorily required notice and due process and given the gravity of the error affecting parental rights." *A. D. G.*, 260 Or App at 540 (discussing *State ex rel Juv. Dept. v. Burris*, 163 Or App 489, 494–96 (1999)).

a. Due process is not an overlay on this chapter; it is built into it.

ORS 419B.090(4) "makes clear that the due process rights of parents are always implicated in the construction and application of the provisions of ORS chapter 419B." *A. D. G.*, 260 Or App at 541 (quoting *Dept. of Human Services v. J. R. F.*, 351 Or 570, 579 (2012)).

b. Fraud upon the court is separately preserved.

ORS 419B.923(8) provides that the section "does not limit the inherent power of a court to modify an order or judgment within a reasonable time or the power of a court to set aside an order or judgment for fraud upon the court." *A. D. G.*, 260 Or App at 536. Sworn submissions that omitted five known channels of contemporaneous contact, while telling the court the parent could not be found, are the paradigm case for that provision. ODHS cannot invoke that inherent power; only the court can. But the court cannot exercise what it has not been told. That is what item 3 above asks you to supply.

c. No procedural objection is available to the agency.

When DHS argued in *K. L.* that a service challenge was unpreserved because the parents had not first moved under ORS 419B.923, the Court of Appeals "reject[ed] that argument without written discussion." 272 Or App at 221–22.

C. The Agency Concedes Mother Was Never Served.

The agency does not claim it served Mother. Its Declaration of Diligent Efforts and its Affidavit Regarding Efforts to Serve Parent state the opposite: that "service cannot be made by any method of personal or substituted service, nor by office service or service by mail"[11]. The single attempt at personal service — by Barrister Support Service, at a unit in Mother's complex, September 30 through October 2, 2025 — failed.

D. The Default Rests on a Predicate the Agency's Own Affidavits Disprove.

[11] Miller Affidavit §3.

The juvenile court's decision to maintain Almira away from Mother rested on two failures that reinforced each other:

i. First, ODHS did not use methods reasonably calculated to notify Mother and allow her to defend. It bypassed her known, responsive email channel; used an erroneous address despite records reflecting the correct address; did not pursue alternative service methods reasonably likely to reach her; and then characterized its own unsuccessful efforts as diligent.

ii. Second, the agency did not establish a concrete, present danger posed by Mother or identify the type, nature, and duration of harm that removal from Mother's care was necessary to prevent. Instead, it substituted conclusory allegations, an asserted inability to assess Mother, and a default produced through defective notice. The court later recognized the address defect for the motion-to-dismiss hearing but never revisited the earlier diligent-efforts/default determination that depended on the same defective premise.

At the October 31, 2025 trial, AAG Wadia moved that Mother "be found in default, pursuant to ORS 419B.914," and Judge Rini found "the state has made diligent efforts under 419B.914, and therefore will find mother in default." ORS 419B.914 permits a court to proceed without service only where diligent efforts "have failed to reveal the identity or whereabouts" of the parent. The agency's sworn filings reveal Mother's whereabouts repeatedly: the CLEAR, Accurint, Medicaid, and open TANF records each returned Mother's current address at 17548 NW Springville Rd., #9; Mother's assigned state family coach supplied that address on October 13, 2025; caseworkers spoke with Mother by telephone on September 6, 2025 at approximately 4:30 and 5:30 PM; caseworker Kayla Miller emailed Mother on October 6, 2025 and Mother replied from her known email address; caseworker David Milne spoke with Mother by telephone on October 14, 2025; and the agency tracked Mother's daily debit purchases by store and time. A parent whose email is answered, whose telephone is picked up, whose address four agency databases and her own caseworker supply, and whose daily movements the agency tracks, is not a parent whose whereabouts "cannot be reasonably ascertained."[12]

E. The Agency's Two Theories Cannot Both Be True.

To default Mother under ORS 419B.914, the agency needed her to be an unlocatable, absent parent. To defeat Mother's objection to jurisdiction, the agency told the court that Mother "has constructive notice of these proceedings, that she has been attempting to file in the dependency case," and the court found that Mother "clearly knows of the proceedings as she keeps filing." A parent cannot be at once absent under ORS 419B.914 and a known participant with notice who is actively filing. If Mother was locatable enough to have notice and to file, the agency was required to complete service or obtain a court order for alternative service; if Mother was unlocatable, she did not have the notice the court imputed to her to justify proceeding. The agency and the court adopted whichever position defeated Mother at each step.

F. "Constructive Notice" Is Not Service, and the State's Two Arms Advanced Two Incompatible Theories.

AAG Wadia argued Mother had "constructive notice." The child's counsel, in a July 28, 2026 letter, argued the opposite — that Mother had "actual notice" and that "constructive notice is not a thing" — resting that theory on Mother's own filings. Neither theory is service of summons. And Mother's filings were special appearances contesting jurisdiction and service; a special appearance to challenge service does not waive the defect or confer jurisdiction. No provision of the Juvenile Code authorizes jurisdiction on constructive notice or on a parent's awareness of a case she is objecting to.

G. The Agency Identified the One Lawful Path to Proceed Without Personal Service — and Did Not Take It.

Miller swore that service could not be made "by any method of personal or substituted service, nor by office service or service by mail as permitted under ORCP 7." That is the statutory predicate for *court-ordered alternative service* under ORS 419B.824(5). The agency never moved for alternative service, and the court never ordered it. The court named posting and publication as available methods; the agency requested none, and none was authorized. The agency laid the foundation for the only lawful route to proceed without personal service, then bypassed it and asked for default.

H. The Agency Circulated the Wrong Address and Served Mother, Alone, by Mail Rather Than Email.

The agency's Absent Parent Search circulated Mother's address as 17458 NW Springville Rd. — a transposition of Mother's actual address, 17548 NW Springville Rd., #9, which the agency's own CLEAR, Accurint, Medicaid, and TANF records each returned correctly and which Mother's family coach confirmed on October 13, 2025.

[12] *Record cite:* 2025-10-21 Declaration of Diligent Efforts (Duffy) ¶¶ 6, 10; 2025-10-28 Affidavit Regarding Efforts to Serve Parent (Miller), entries of 09/06, 09/30, 10/06, 10/13, 10/14, 2025; 10/31/2025 Jurisdictional Trial Transcript.

The Postmaster reported that mail to the incorrect 17458 was "delivered to address given," and identified the correct 17548 address as Mother's. The agency then served its Declaration of Diligent Efforts on Mother by mail to the incorrect 17458 address — while serving father's counsel, the child's counsel, and CASA by email. The agency possessed Mother's email address, which Mother had answered on October 6, and used it for every party except the parent whose child was at issue.

I. The Wrong-Address Error Recurs Across Mother's Cases — and It Manufactured the "Warrant" and "Evasion" the Agency Used to Default Her.

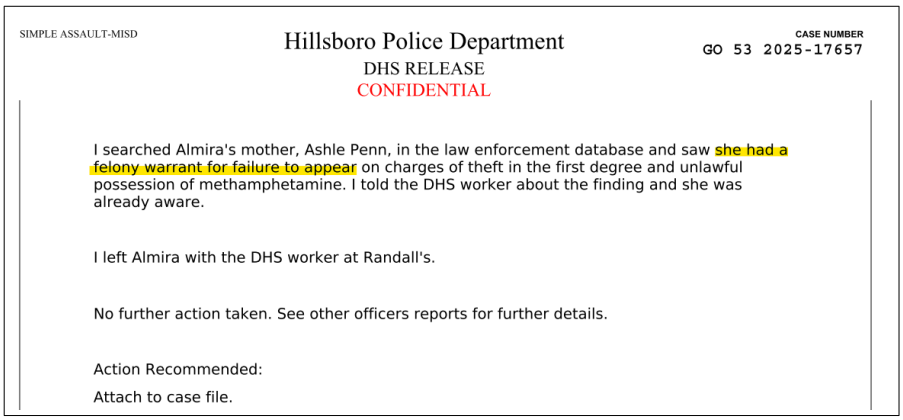
Mother has resided at 17548 NW Springville Rd., #9, Portland for more than three years and has not once changed residence. Every arm of the State that had reason to know her address had it correct. The Washington County Sheriff's own arrest-warrant affidavit records the incident residence as "17548 N Springville Rd, Apt 9, Portland" and lists Mother's "Last Known Address" as "17548 NW Springville Rd, Apt 9, Portland, OR 97229." The agency's diligent-efforts file returned the same address from CLEAR, Accurint, Medicaid, and Mother's open TANF case. Yet across three proceedings the State repeatedly sent notice somewhere else:

i. **This dependency case (No. 25JU04261):** the Absent Parent Search and the certificate of service used 17458 NW Springville Rd. — not Mother's 17548.

ii. **The criminal matter (*State v. Penn*, No. 24CR49043):** the court's June 11, 2025 Notice of Scheduled Court Appearance for the June 23, 2025 arraignment/show-cause was mailed not to Mother's residence but to 710 NW Autumn Creek Way, Apt. L304, Beaverton — an entirely different address in a different city.

iii. **The contempt matter (No. 25CN05790):** the Sheriff's December 2025 affidavit, by contrast, listed Mother's address correctly as 17548 NW Springville Rd., Apt 9 — confirming the State held the correct address the entire time.

Mother did not move; the State sent her court notices to addresses that were not hers while her correct address sat in the same files. And the error did not merely fail to reach her — it manufactured the predicate later used against her. The June 11, 2025 notice, mailed to the Beaverton address, did not reach Mother; her non-appearance on June 23, 2025 produced the arrest warrant in No. 24CR49043; and that same warrant is the "active warrant" AAG Wadia and Judge Rini invoked at the October 31, 2025 dependency trial to cast Mother as "evading service" and to justify proceeding in her absence.[13] A misdirected notice in the criminal case supplied the "evasion" the agency used to take Mother's child in the dependency case. The agency knew of the warrant from the outset. On September 6, 2025 — the day it took Al-mira — a Hillsboro Police officer searched Mother in the law-enforcement database, found the felony failure-to-appear warrant, and, in the officer's words, "told the DHS worker about the finding and she was already aware." The agency thus advanced as proof of "evasion" a warrant it knew arose from a failure to appear at a hearing the court had noticed to the wrong address.



SIMPLE ASSAULT-MISD

Hillsboro Police Department

DHS RELEASE

CONFIDENTIAL

CASE NUMBER

GO 53 2025-17657

I searched Almira's mother, Ashle Penn, in the law enforcement database and saw she had a felony warrant for failure to appear on charges of theft in the first degree and unlawful possession of methamphetamine. I told the DHS worker about the finding and she was already aware.

I left Almira with the DHS worker at Randall's.

No further action taken. See other officers reports for further details.

Action Recommended:

Attach to case file.

Figure 8. Hillsboro Police report, September 6, 2025: the officer found Mother's felony failure-to-appear warrant and "told the DHS worker about the finding and she was already aware." The warrant traces to the June 11, 2025 hearing notice the court mailed to 710 NW Autumn Creek Way — not Mother's address. *(Source: Hillsboro Police Dept. GO 2025-17657.)*

That cascade refutes the agency's sworn representation. Asked whether any reason for Mother's non-appearance was "out of her control," caseworker Marquand answered, "No." A parent who does not appear because the

[13] *Record:* Notice of Scheduled Court Appearance, *State v. Penn*, No. 24CR49043 (mailed June 11, 2025 to 710 NW Autumn Creek Way, Apt. L304, Beaverton, OR 97006); Affidavit in Support of Arrest Warrant, No. 25CN05790 (Dep. David Rambin, Dec. 29, 2025) (listing Mother's address as 17548 NW Springville Rd., Apt 9); 2025-10-28 Affidavit Regarding Efforts to Serve Parent (Miller) (CLEAR, Accurint, Medicaid, and TANF records returning 17548 NW Springville Rd., #9).

State mailed notice to an address its own records show is not hers is absent through something entirely outside her control.

J. The "Evasion" Finding Rested on a Racialized Assumption, Not Evidence.

The court's conclusion that Mother was "actively avoiding service" rested in part on the man who answered the door at an address that was not Mother's residence. The process server described that person only as "a 50 year old, male, African American, 6 foot, 240 pounds, bald," who stated that no Ashle Penn lived there. On that description alone, the court surmised that the man "matches the description of the daddy of her child" and Mother's "co-defendant," and imported a criminal-association narrative into a service determination. The record supplies no basis for that identification beyond the man's race, and the physical description does not match the individual the court named. Throughout the record the parents are identified as "mother" and "father"; the court applied the term "daddy" to no one else. Identifying an unidentified Black man by his race and presuming he is "the daddy of [Mother's] child" is stereotype, not evidence, and stereotype cannot supply the factual basis a jurisdictional finding requires. Mother is entitled to an impartial tribunal and to findings grounded in the record rather than in racialized assumption. U.S. Const. amend. XIV.

K. The Default Was Defective When Entered, and the Court Has Never Revisited It.

The defect was apparent on the face of the record the court relied upon: the agency's own diligent-efforts filings contained Mother's correct address while notice went elsewhere. A juvenile court may set aside its orders. ORS 419B.923. When the predicate for a default — that diligent efforts failed to reveal the parent's whereabouts, and that the parent had notice and evaded — is shown to be false, the court cannot let the default stand; a judgment premised on defective notice does not survive disclosure of the defect. The court later acknowledged that notice to Mother had been directed to the wrong address.[14] No order revisiting the October 31, 2025 default has issued, and every subsequent order — the review judgment and the permanency judgment — continues to rest on it. Continued reliance on a default the court has been shown rested on misdirected notice is not discretion; it is the maintenance of a judgment stripped of its predicate.

L. The Consequence.

The court found Mother in default under a statute that applies only to a parent who cannot be found, on a record establishing that the agency found her repeatedly; entered jurisdiction without the service ORS 419B.815(1) makes a precondition; and treated Mother's filings as proof of notice for one purpose while dismissing them as "computer generated" for another. Every order that followed — the October 31, 2025 jurisdictional judgment, the dispositional orders, and the subsequent review and permanency judgments — rests on a default that no lawful predicate supports.

M. The Agency's Continued Reliance on the Default After the Court Acknowledged the Wrong Address Is Fraud Upon the Court, and It Is Sanctionable as to the AAG

The diligent-efforts submissions swore that the agency could not locate Mother, and each rested on the transposed 17458 address. The court later acknowledged, on the record, that notice to Mother had been directed to the wrong address. From that point the sworn predicate for the ORS 419B.914 default — that diligent efforts had failed to reveal Mother's whereabouts — was known to be false. The agency did not move to set the default aside. It allowed the jurisdictional, dispositional, review, and permanency judgments to continue resting on it. A party that learns its sworn filing was false and permits a judgment to stand upon that filing commits fraud upon the court, which the court retains the inherent power to remedy. ORS 419B.923(8). AAG Wadia invoked the "active warrant" and Mother's asserted "evasion" to obtain the default; a lawyer who comes to know that material evidence she offered is false must take reasonable remedial measures, including disclosure to the tribunal. Oregon RPC 3.3(a), (b). No correction has been made. The separation of Al-mira from Mother has continued on that uncorrected default, and it has never been adjudicated on the merits.

5. The Prima Facie Case Rests on Unsworn Reports Recited by a Witness With No Firsthand Knowledge

No ODHS employee has sworn, in any written report, under penalty of perjury, to the truth of the factual assertions on which jurisdiction was founded. The Fact Finding and Protective Custody Reports are unsworn. The only oath in the record attaches to (1) the live testimony of caseworker Emilie Marquand and (2) the diligent-efforts Declaration and Affidavit of Rylan Duffy and Kayla Miller.

[14] *Record cite to confirm:* the hearing transcript in which the court acknowledged that notice to Mother had been sent to an incorrect address.

A. Relaxed Shelter-Hearing Evidentiary Rules Do Not Immunize the Creation or Submission of Fabricated Evidence.

ODHS may argue that the Oregon Evidence Code does not apply in full at an initial shelter hearing and that the Court was therefore permitted to receive the Fact Findings Report and Protective Custody Report. That argument confuses the Court's authority to receive a report with the truth, reliability, or legal sufficiency of the factual assertions contained in it. Oregon law permits the Court, at a shelter hearing, to receive relevant reports and other evidence under a relaxed evidentiary standard. ORS 419B.185(1)(g). The statute does not authorize ODHS to fabricate facts, misrepresent known information, or present materially false assertions to the Court.

Nor does ORS 419B.325(2) cure the defect. That provision concerns the receipt of reports and other material for purposes of determining the proper disposition of a ward. It does not eliminate the evidentiary requirements applicable to a jurisdictional determination. In *Department of Human Services v. J.B.V.*, the Oregon Court of Appeals recognized that the exception for receiving otherwise incompetent or irrelevant material does not apply to the jurisdictional determination. Accordingly, the agency cannot convert false or unsupported allegations into competent jurisdictional evidence merely by placing them in an agency report.

The same distinction applies to the testimony of Emilie Marquand. To the extent Marquand lacked firsthand knowledge of the operative facts and merely recited information contained in reports authored by others, her testimony did not independently verify those facts. ORS 40.315 provides that a witness may not testify to a matter unless evidence supports a finding that the witness had personal knowledge of it. The agency therefore cannot rely on Marquand's repetition of unsworn reports as though it were firsthand proof of present danger.

Testimonial immunity protects, at most, the act of giving testimony in the protected testimonial capacity. It does not immunize investigative fabrication or the deliberate creation of false evidence before the proceeding. *Devereaux v. Abbey*, 263 F.3d 1070, 1074–75 (9th Cir. 2001) (en banc); *Beltran v. Santa Clara County*, 514 F.3d 906, 908–09, 908 n.2 (9th Cir. 2008). Likewise, the AAG's role as advocate does not automatically immunize the underlying investigative conduct of ODHS personnel or the knowing submission of materially false information by a person acting outside the protected advocacy function.

Marquand had no firsthand knowledge of any operative fact; she recited the contents of reports authored by others. A witness may testify only to matters within her personal knowledge, OEC 602. An agency that proves a jurisdictional case through a no-knowledge witness reading unsworn hearsay has not supplied competent evidence of present danger; it has supplied the *appearance* of evidence. Witness immunity does not shield this conduct from correction. Absolute immunity for testimony, *Briscoe v. LaHue*, 460 U.S. 325, 341–46 (1983), limits *civil damages* against a witness for the act of testifying; it does not reach the fabrication of the written reports on which the testimony rested, or the investigative conduct that produced them. *Beltran*, 514 F.3d at 908. Nor does witness immunity bar the corrections this letter requires: it does not immunize a caseworker from referral for Perjury or False Swearing, ORS 162.065; ORS 162.075; it does not bar professional discipline; and it does not preserve a judgment procured by false testimony, which the court retains authority to set aside. The two documents the agency *did* swear — the Duffy Declaration and the Miller Affidavit — are the false-swearing exposure catalogued below.

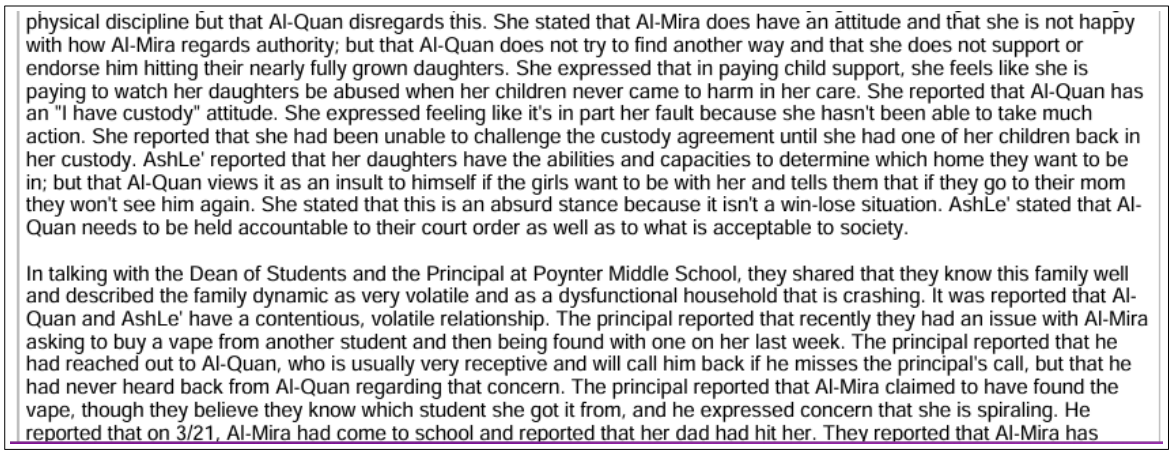
Because you claimed that the records required to review this information had not been made available to you, I am now providing the substance and direct proof of those records in accordance with your commitment. **The Citizen Review Board review in Case No. 25JU04261 remains pending.** I ask that you honor the commitment you made and act on this record *so that the review provided meaningfully engages agency and parental action.* Examining the fabricated record that misled the court, ensuring your agency's ethical and legal duties are met, and mitigating the constitutional and statutory violations catalogued below are not discretionary.

Under *Corales v. Bennett*, 567 F.3d 554, 570 (9th Cir. 2009), a supervisor is liable for the acts of her subordinates if she participated in or directed the violations, *or* knew of the violations of subordinates and failed to act to prevent them. As of your receipt of this letter, you have that knowledge. What you do next determines whether your inaction converts your subordinates' conduct into your own.

Despite your having knowledge of my claims and rather than consulting the record which I present to you today, you communicated that you *"did not find that the concerns related to the employee's work conduct and decision making were substantiated,"* and later reframed my insistence that the agency's actions were unlawful as:

> *[a] lack of engagement in the process… limiting the ability to make progress toward reunification of your child into your home. Your decision to decline access to yourself and your home, along with your refusal to participate fully in the court process, limits ODHS's ability to assess your functioning, protective capacities, and whether your home is now safe for your child.*

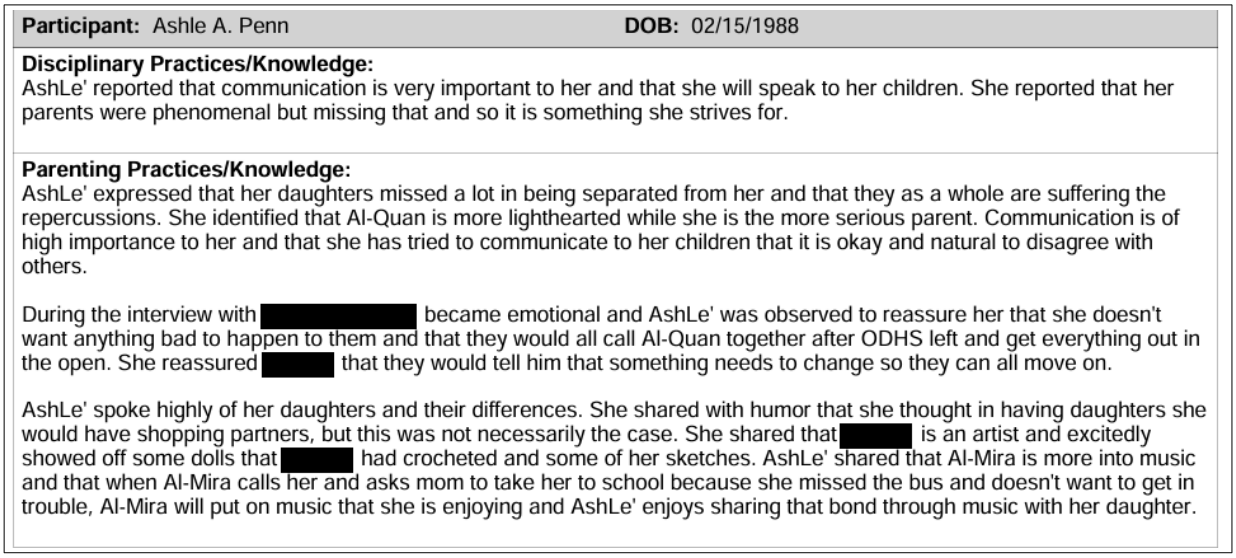
Ms. Faulkner, your own words cannot both be true. You state that my conduct "limits ODHS's ability to assess [my] functioning, protective capacities, and whether [my] home is now safe." That is a concession that the agency has *not* assessed me. An agency that admits it has not conducted the requisite assessment of parental capacity by that very admission cannot ethically and lawfully assert that I lack the capacity to parent and that I have acted dangerously subjecting my daughter to a non-speculative, serious threat of harm likely to be realized. ODHS would, if what you're saying is true and without identifying any specific conduct of mine to the contrary, have no factual basis to conclude that I present a danger to Al-mira. The agency bears the burden of reconciling its statement that an inability to assess amounts to evidence of risk with the evidence to the contrary.



physical discipline but that Al-Quan disregards this. She stated that Al-Mira does have an attitude and that she is not happy with how Al-Mira regards authority; but that Al-Quan does not try to find another way and that she does not support or endorse him hitting their nearly fully grown daughters. She expressed that in paying child support, she feels like she is paying to watch her daughters be abused when her children never came to harm in her care. She reported that Al-Quan has an "I have custody" attitude. She expressed feeling like it's in part her fault because she hasn't been able to take much action. She reported that she had been unable to challenge the custody agreement until she had one of her children back in her custody. AshLe' reported that her daughters have the abilities and capacities to determine which home they want to be in; but that Al-Quan views it as an insult to himself if the girls want to be with her and tells them that if they go to their mom they won't see him again. She stated that this is an absurd stance because it isn't a win-lose situation. AshLe' stated that Al-Quan needs to be held accountable to their court order as well as to what is acceptable to society.

In talking with the Dean of Students and the Principal at Poynter Middle School, they shared that they know this family well and described the family dynamic as very volatile and as a dysfunctional household that is crashing. It was reported that Al-Quan and AshLe' have a contentious, volatile relationship. The principal reported that recently they had an issue with Al-Mira asking to buy a vape from another student and then being found with one on her last week. The principal reported that he had reached out to Al-Quan, who is usually very receptive and will call him back if he misses the principal's call, but that he had never heard back from Al-Quan regarding that concern. The principal reported that Al-Mira claimed to have found the vape, though they believe they know which student she got it from, and he expressed concern that she is spiraling. He reported that on 3/21, Al-Mira had come to school and reported that her dad had hit her. They reported that Al-Mira has

Figure 9. A demonstration of just one of the instances your agency documented spanning the several years ODHS has had an opportunity to *assess* my abilities as a parent. Please note the accountability that was taken by Mother contradicting the agency's supposition that Mother is unable to recognize the part she played in her children's being taken into state custody. Also please note Mother's intention and plans to modify the custody order once Feliciano was returned to her care. In a prior order with Washington County Circuit Court- Judge Pagan ordered that no physical discipline of the girls was permitted and the agency has overlooked this fact - allowing multiple instances of physical abuse to occur despite this court order. The agency has then advocated for contact between father and daughters and despite Mother's attempts to file for a modification in custody has asserted that father is not a danger with regard to Amaiya and Al-mira being placed with him, but *is a danger* with regard to whether Mother can protect the girls from father.



Participant: Ashle A. Penn **DOB:** 02/15/1988

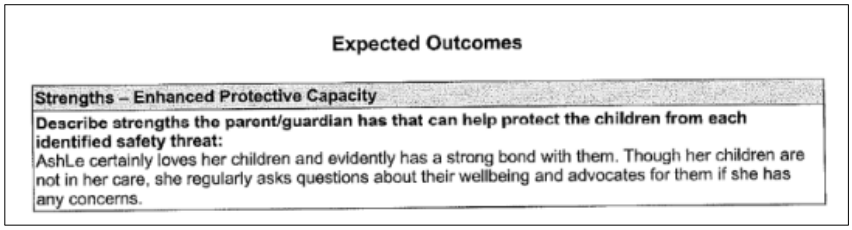
Disciplinary Practices/Knowledge:
AshLe' reported that communication is very important to her and that she will speak to her children. She reported that her parents were phenomenal but missing that and so it is something she strives for.

Parenting Practices/Knowledge:
AshLe' expressed that her daughters missed a lot in being separated from her and that they as a whole are suffering the repercussions. She identified that Al-Quan is more lighthearted while she is the more serious parent. Communication is of high importance to her and that she has tried to communicate to her children that it is okay and natural to disagree with others.

During the interview with [redacted] became emotional and AshLe' was observed to reassure her that she doesn't want anything bad to happen to them and that they would all call Al-Quan together after ODHS left and get everything out in the open. She reassured [redacted] that they would tell him that something needs to change so they can all move on.

AshLe' spoke highly of her daughters and their differences. She shared with humor that she thought in having daughters she would have shopping partners, but this was not necessarily the case. She shared that [redacted] is an artist and excitedly showed off some dolls that [redacted] had crocheted and some of her sketches. AshLe' shared that Al-Mira is more into music and that when Al-Mira calls her and asks mom to take her to school because she missed the bus and doesn't want to get in trouble, Al-Mira will put on music that she is enjoying and AshLe' enjoys sharing that bond through music with her daughter.

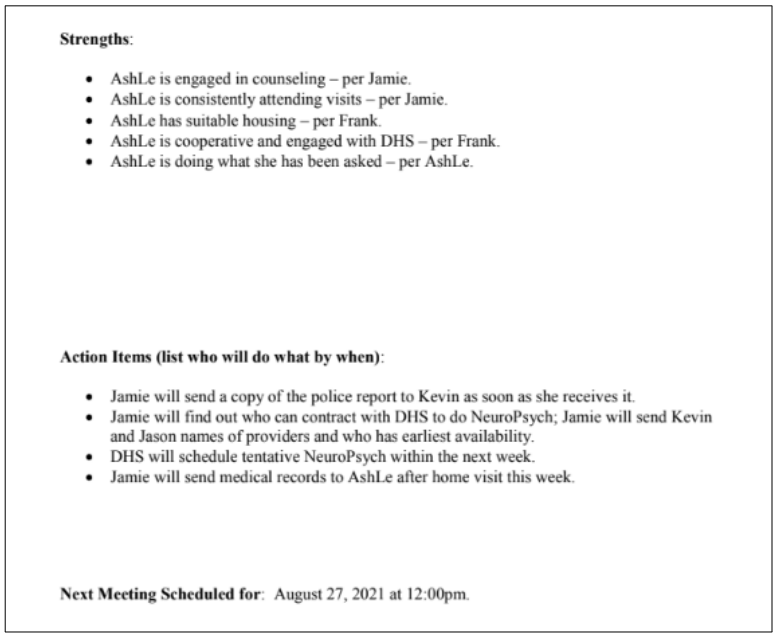
Figure 10. During the interview...AshLe' was observed to reassure her that she doesn't want anything bad to happen to them and that they would all call Al-Quan together after ODHS left and got everything out in the open. She reassured...they would tell him that something needs to change so they can all move on.



Expected Outcomes

Strengths – Enhanced Protective Capacity
Describe strengths the parent/guardian has that can help protect the children from each identified safety threat: AshLe certainly loves her children and evidently has a strong bond with them. Though her children are not in her care, she regularly asks questions about their wellbeing and advocates for them if she has any concerns.

Figure 11. ODHS's own note acknowledging that Mother loves her children—the bond the agency's allegations deny. *(Source: ODHS case notes.)*



Strengths:

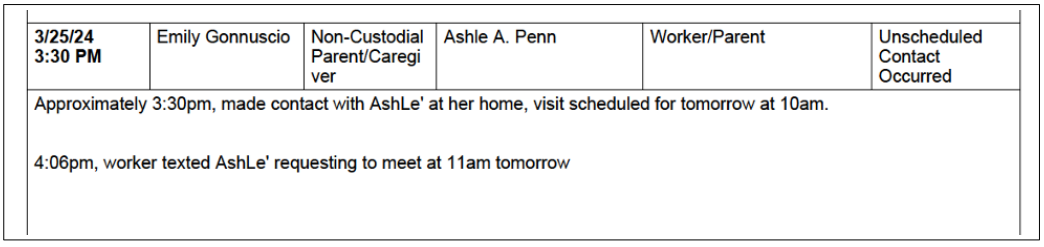
- AshLe is engaged in counseling – per Jamie.
- AshLe is consistently attending visits – per Jamie.
- AshLe has suitable housing – per Frank.
- AshLe is cooperative and engaged with DHS – per Frank.
- AshLe is doing what she has been asked – per AshLe.

Action Items (list who will do what by when):

- Jamie will send a copy of the police report to Kevin as soon as she receives it.
- Jamie will find out who can contract with DHS to do NeuroPsych; Jamie will send Kevin and Jason names of providers and who has earliest availability.
- DHS will schedule tentative NeuroPsych within the next week.
- Jamie will send medical records to AshLe after home visit this week.

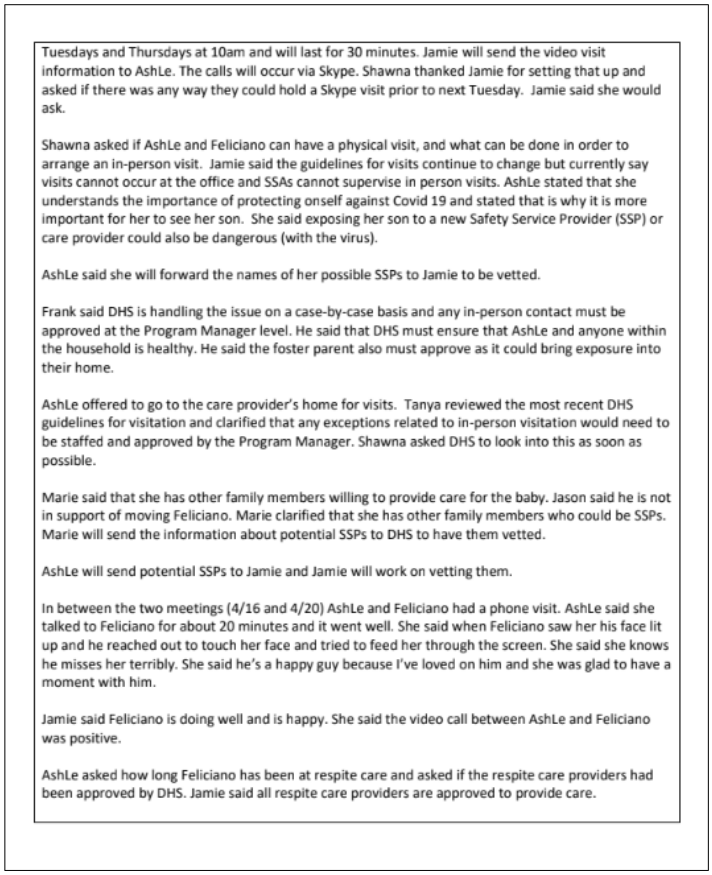
Next Meeting Scheduled for: August 27, 2021 at 12:00pm.

Figure 12. ODHS has documented mother's consistent engagement with the agency, records that testifying witness Marquand should have had knowledge of as it is a requirement to review a family's prior involvement with ODHS during a child welfare assessment for abuse/neglect. *(Source: ODHS case notes.)*



3/25/24 3:30 PM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Unscheduled Contact Occurred
Approximately 3:30pm, made contact with AshLe' at her home, visit scheduled for tomorrow at 10am. 4:06pm, worker texted AshLe' requesting to meet at 11am tomorrow					

Figure 13. ODHS's own record scheduling the in-home interview at Mother's residence—the agency arranged, and Mother permitted, the very home assessment it now claims it "cannot" conduct. *(Source: 2025-09-08 Fact Findings Report.)*



Tuesdays and Thursdays at 10am and will last for 30 minutes. Jamie will send the video visit information to AshLe. The calls will occur via Skype. Shawna thanked Jamie for setting that up and asked if there was any way they could hold a Skype visit prior to next Tuesday. Jamie said she would ask.

Shawna asked if AshLe and Feliciano can have a physical visit, and what can be done in order to arrange an in-person visit. Jamie said the guidelines for visits continue to change but currently say visits cannot occur at the office and SSAs cannot supervise in person visits. AshLe stated that she understands the importance of protecting onself against Covid 19 and stated that is why it is more important for her to see her son. She said exposing her son to a new Safety Service Provider (SSP) or care provider could also be dangerous (with the virus).

AshLe said she will forward the names of her possible SSPs to Jamie to be vetted.

Frank said DHS is handling the issue on a case-by-case basis and any in-person contact must be approved at the Program Manager level. He said that DHS must ensure that AshLe and anyone within the household is healthy. He said the foster parent also must approve as it could bring exposure into their home.

AshLe offered to go to the care provider's home for visits. Tanya reviewed the most recent DHS guidelines for visitation and clarified that any exceptions related to in-person visitation would need to be staffed and approved by the Program Manager. Shawna asked DHS to look into this as soon as possible.

Marie said that she has other family members willing to provide care for the baby. Jason said he is not in support of moving Feliciano. Marie clarified that she has other family members who could be SSPs. Marie will send the information about potential SSPs to DHS to have them vetted.

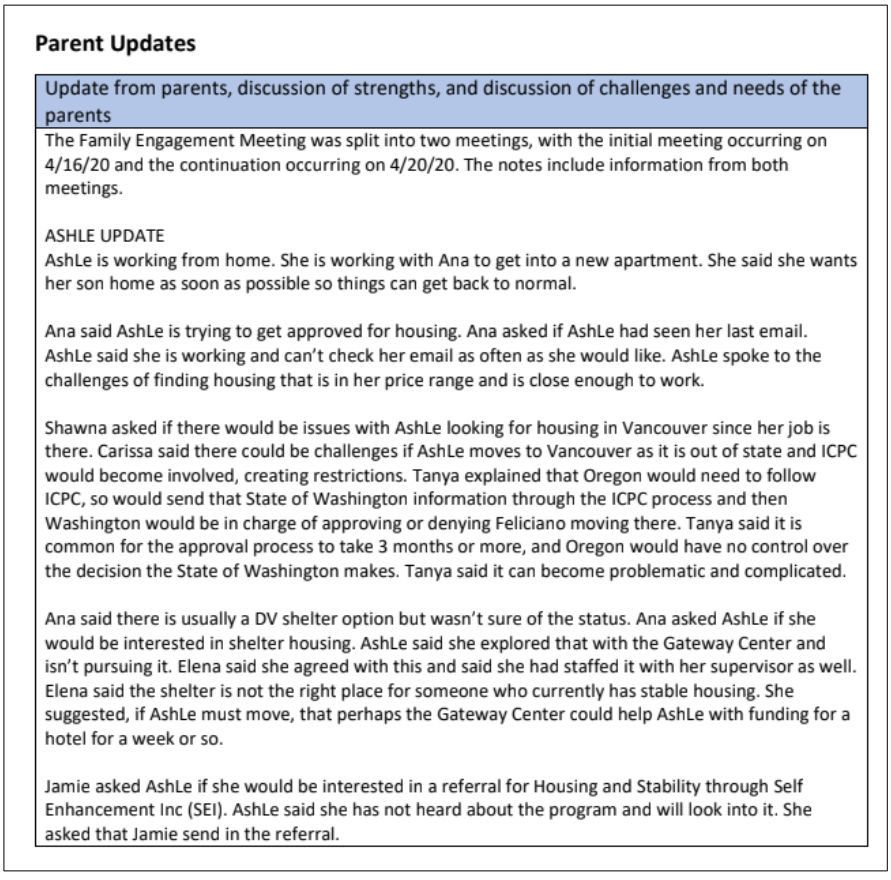
AshLe will send potential SSPs to Jamie and Jamie will work on vetting them.

In between the two meetings (4/16 and 4/20) AshLe and Feliciano had a phone visit. AshLe said she talked to Feliciano for about 20 minutes and it went well. She said when Feliciano saw her his face lit up and he reached out to touch her face and tried to feed her through the screen. She said she knows he misses her terribly. She said he's a happy guy because I've loved on him and she was glad to have a moment with him.

Jamie said Feliciano is doing well and is happy. She said the video call between AshLe and Feliciano was positive.

AshLe asked how long Feliciano has been at respite care and asked if the respite care providers had been approved by DHS. Jamie said all respite care providers are approved to provide care.

Figure 14. ODHS's own record of scheduled video visits—further contradicting the "zero visits / no contact" narrative. *(Source: ODHS visit notes.)*

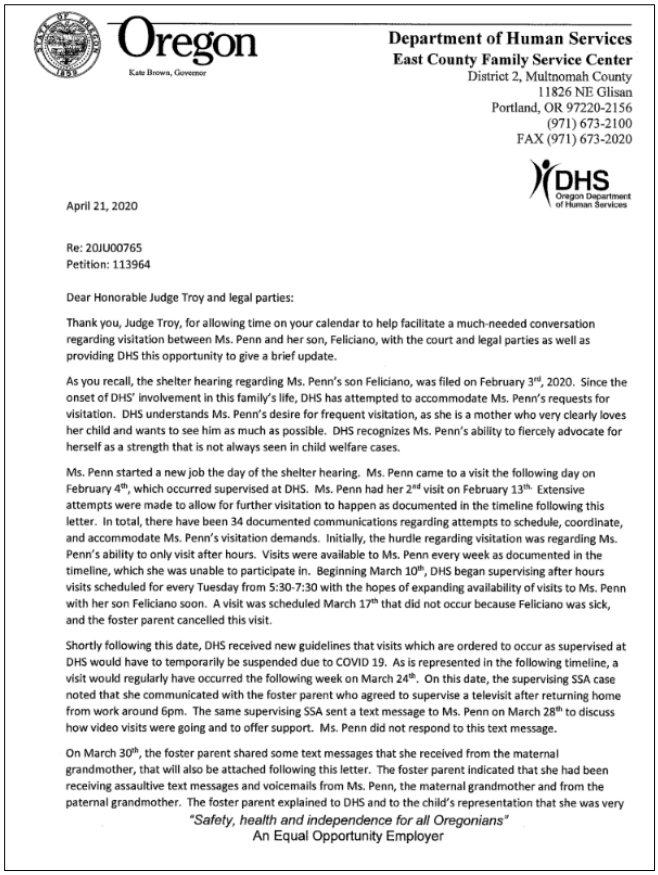


Parent Updates

Update from parents, discussion of strengths, and discussion of challenges and needs of the parents
The Family Engagement Meeting was split into two meetings, with the initial meeting occurring on 4/16/20 and the continuation occurring on 4/20/20. The notes include information from both meetings. ASHLE UPDATE AshLe is working from home. She is working with Ana to get into a new apartment. She said she wants her son home as soon as possible so things can get back to normal. Ana said AshLe is trying to get approved for housing. Ana asked if AshLe had seen her last email. AshLe said she is working and can't check her email as often as she would like. AshLe spoke to the challenges of finding housing that is in her price range and is close enough to work. Shawna asked if there would be issues with AshLe looking for housing in Vancouver since her job is there. Carissa said there could be challenges if AshLe moves to Vancouver as it is out of state and ICPC would become involved, creating restrictions. Tanya explained that Oregon would need to follow ICPC, so would send that State of Washington information through the ICPC process and then Washington would be in charge of approving or denying Feliciano moving there. Tanya said it is common for the approval process to take 3 months or more, and Oregon would have no control over the decision the State of Washington makes. Tanya said it can become problematic and complicated. Ana said there is usually a DV shelter option but wasn't sure of the status. Ana asked AshLe if she would be interested in shelter housing. AshLe said she explored that with the Gateway Center and isn't pursuing it. Elena said she agreed with this and said she had staffed it with her supervisor as well. Elena said the shelter is not the right place for someone who currently has stable housing. She suggested, if AshLe must move, that perhaps the Gateway Center could help AshLe with funding for a hotel for a week or so. Jamie asked AshLe if she would be interested in a referral for Housing and Stability through Self Enhancement Inc (SEI). AshLe said she has not heard about the program and will look into it. She asked that Jamie send in the referral.

Figure 15. Evidence of a pattern of fabrication and reckless disregard for the truth. Corissa Ponting participated in a family planning meeting with mother in which Mother's use of shelters was addressed directly. Mother pursued the resource and was

told by her advocate that she is not a candidate for such subsidy. *(Source: FDM planning notes April 16, 2020 and April 20, 2020.)*



Oregon
Kate Brown, Governor

Department of Human Services
East County Family Service Center
District 2, Multnomah County
11826 NE Glisan
Portland, OR 97220-2156
(971) 673-2100
FAX (971) 673-2020

DHS
Oregon Department of Human Services

April 21, 2020

Re: 20JU00765
Petition: 113964

Dear Honorable Judge Troy and legal parties:

Thank you, Judge Troy, for allowing time on your calendar to help facilitate a much-needed conversation regarding visitation between Ms. Penn and her son, Feliciano, with the court and legal parties as well as providing DHS this opportunity to give a brief update.

As you recall, the shelter hearing regarding Ms. Penn's son Feliciano, was filed on February 3rd, 2020. Since the onset of DHS' involvement in this family's life, DHS has attempted to accommodate Ms. Penn's requests for visitation. DHS understands Ms. Penn's desire for frequent visitation, as she is a mother who very clearly loves her child and wants to see him as much as possible. DHS recognizes Ms. Penn's ability to fiercely advocate for herself as a strength that is not always seen in child welfare cases.

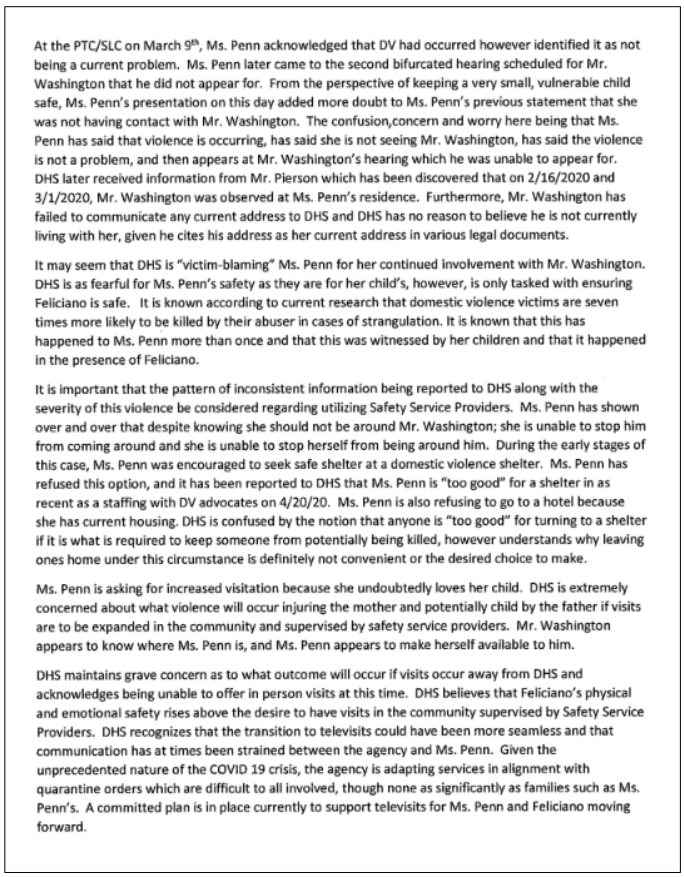
Ms. Penn started a new job the day of the shelter hearing. Ms. Penn came to a visit the following day on February 4th, which occurred supervised at DHS. Ms. Penn had her 2nd visit on February 13th. Extensive attempts were made to allow for further visitation to happen as documented in the timeline following this letter. In total, there have been 34 documented communications regarding attempts to schedule, coordinate, and accommodate Ms. Penn's visitation demands. Initially, the hurdle regarding visitation was regarding Ms. Penn's ability to only visit after hours. Visits were available to Ms. Penn every week as documented in the timeline, which she was unable to participate in. Beginning March 10th, DHS began supervising after hours visits scheduled for every Tuesday from 5:30-7:30 with the hopes of expanding availability of visits to Ms. Penn with her son Feliciano soon. A visit was scheduled March 17th that did not occur because Feliciano was sick, and the foster parent cancelled this visit.

Shortly following this date, DHS received new guidelines that visits which are ordered to occur as supervised at DHS would have to temporarily be suspended due to COVID 19. As is represented in the following timeline, a visit would regularly have occurred the following week on March 24th. On this date, the supervising SSA case noted that she communicated with the foster parent who agreed to supervise a televisit after returning home from work around 6pm. The same supervising SSA sent a text message to Ms. Penn on March 28th to discuss how video visits were going and to offer support. Ms. Penn did not respond to this text message.

On March 30th, the foster parent shared some text messages that she received from the maternal grandmother, that will also be attached following this letter. The foster parent indicated that she had been receiving assaultive text messages and voicemails from Ms. Penn, the maternal grandmother and from the paternal grandmother. The foster parent explained to DHS and to the child's representation that she was very

"Safety, health and independence for all Oregonians"
An Equal Opportunity Employer

Figure 16. The April 21, 2020 DHS letter to the court (Re: 20JU00765) — the full document from which the "too good for a shelter" characterization is drawn. The same letter records that "DHS understands Ms. Penn's desire for frequent visitation, as she is a mother who very clearly loves her child," and documents thirty-four contacts and consistent visitation efforts during the very period the agency later recast as non-engagement. *(Source: April 21, 2020 ODHS letter to the court.)*



At the PTC/SLC on March 9th, Ms. Penn acknowledged that DV had occurred however identified it as not being a current problem. Ms. Penn later came to the second bifurcated hearing scheduled for Mr. Washington that he did not appear for. From the perspective of keeping a very small, vulnerable child safe, Ms. Penn's presentation on this day added more doubt to Ms. Penn's previous statement that she was not having contact with Mr. Washington. The confusion,concern and worry here being that Ms. Penn has said that violence is occurring, has said she is not seeing Mr. Washington, has said the violence is not a problem, and then appears at Mr. Washington's hearing which he was unable to appear for. DHS later received information from Mr. Pierson which has been discovered that on 2/16/2020 and 3/1/2020, Mr. Washington was observed at Ms. Penn's residence. Furthermore, Mr. Washington has failed to communicate any current address to DHS and DHS has no reason to believe he is not currently living with her, given he cites his address as her current address in various legal documents.

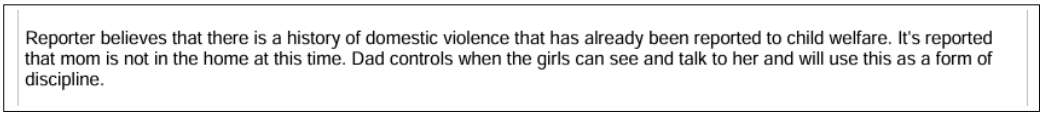
It may seem that DHS is "victim-blaming" Ms. Penn for her continued involvement with Mr. Washington. DHS is as fearful for Ms. Penn's safety as they are for her child's, however, is only tasked with ensuring Feliciano is safe. It is known according to current research that domestic violence victims are seven times more likely to be killed by their abuser in cases of strangulation. It is known that this has happened to Ms. Penn more than once and that this was witnessed by her children and that it happened in the presence of Feliciano.

It is important that the pattern of inconsistent information being reported to DHS along with the severity of this violence be considered regarding utilizing Safety Service Providers. Ms. Penn has shown over and over that despite knowing she should not be around Mr. Washington; she is unable to stop him from coming around and she is unable to stop herself from being around him. During the early stages of this case, Ms. Penn was encouraged to seek safe shelter at a domestic violence shelter. Ms. Penn has refused this option, and it has been reported to DHS that Ms. Penn is "too good" for a shelter in as recent as a staffing with DV advocates on 4/20/20. Ms. Penn is also refusing to go to a hotel because she has current housing. DHS is confused by the notion that anyone is "too good" for turning to a shelter if it is what is required to keep someone from potentially being killed, however understands why leaving ones home under this circumstance is definitely not convenient or the desired choice to make.

Ms. Penn is asking for increased visitation because she undoubtedly loves her child. DHS is extremely concerned about what violence will occur injuring the mother and potentially child by the father if visits are to be expanded in the community and supervised by safety service providers. Mr. Washington appears to know where Ms. Penn is, and Ms. Penn appears to make herself available to him.

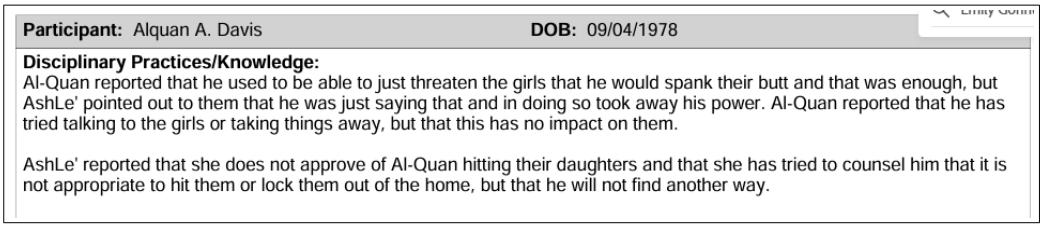
DHS maintains grave concern as to what outcome will occur if visits occur away from DHS and acknowledges being unable to offer in person visits at this time. DHS believes that Feliciano's physical and emotional safety rises above the desire to have visits in the community supervised by Safety Service Providers. DHS recognizes that the transition to televisits could have been more seamless and that communication has at times been strained between the agency and Ms. Penn. Given the unprecedented nature of the COVID 19 crisis, the agency is adapting services in alignment with quarantine orders which are difficult to all involved, though none as significantly as families such as Ms. Penn's. A committed plan is in place currently to support televisits for Ms. Penn and Feliciano moving forward.

Figure 17. The very next day after the family planning meeting occurred, Corissa Ponting submits a letter to the court stating that Mother believed she was "too good" to be housed in a shelter. This representation was made in an attempt to fabricate mother's attitude toward the agency and participation with the agency. Mother *had pursued the resource* and it was said to be unavailable to her. This evidence is offered, again, to demonstrate the pattern of misrepresentation, fabrication and prejudice the agency fosters when there is a reckless disregard for the truth. *(April 21, 2020 letter to the court from ODHS)*



Reporter believes that there is a history of domestic violence that has already been reported to child welfare. It's reported that mom is not in the home at this time. Dad controls when the girls can see and talk to her and will use this as a form of discipline.

Figure 18. ODHS's own record that Father used Mother's home as discipline—contradicting the portrayal of Mother "showing up" without permission. *(Source: Fact Findings Report, p. 28.)*

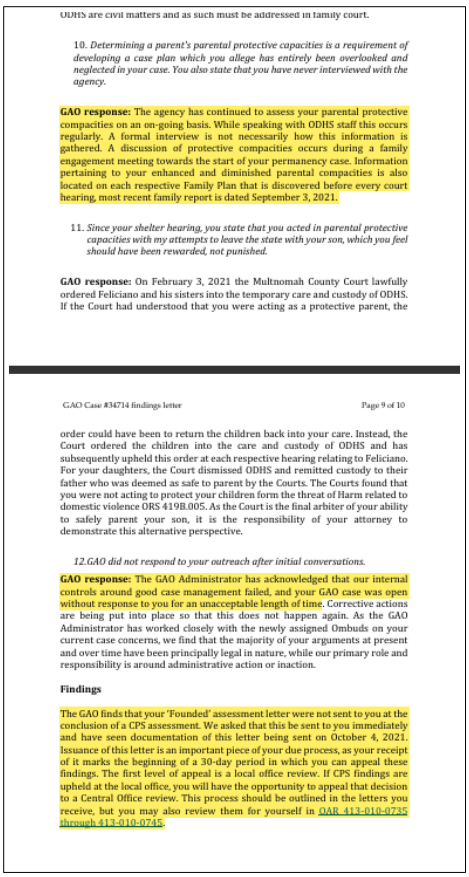


Participant: Alquan A. Davis **DOB:** 09/04/1978

Disciplinary Practices/Knowledge:
Al-Quan reported that he used to be able to just threaten the girls that he would spank their butt and that was enough, but AshLe' pointed out to them that he was just saying that and in doing so took away his power. Al-Quan reported that he has tried talking to the girls or taking things away, but that this has no impact on them.

AshLe' reported that she does not approve of Al-Quan hitting their daughters and that she has tried to counsel him that it is not appropriate to hit them or lock them out of the home, but that he will not find another way.

Figure 19. ODHS's own record that Mother disapproved of Father's physical discipline of the children—contradicting Allegation B that Mother "fails to recognize" Father's threat. *(Source: ODHS case notes.)*



ODHS are civil matters and as such must be addressed in family court.

10. *Determining a parent's parental protective capacities is a requirement of developing a case plan which you allege has entirely been overlooked and neglected in your case. You also state that you have never interviewed with the agency.*

GAO response: The agency has continued to assess your parental protective compacities on an on-going basis. While speaking with ODHS staff this occurs regularly. A formal interview is not necessarily how this information is gathered. A discussion of protective compacities occurs during a family engagement meeting towards the start of your permanency case. Information pertaining to your enhanced and diminished parental compacities is also located on each respective Family Plan that is discovered before every court hearing, most recent family report is dated September 3, 2021.

11. *Since your shelter hearing, you state that you acted in parental protective capacities with my attempts to leave the state with your son, which you feel should have been rewarded, not punished.*

GAO response: On February 3, 2021 the Multnomah County Court lawfully ordered Feliciano and his sisters into the temporary care and custody of ODHS. If the Court had understood that you were acting as a protective parent, the

GAO Case #34714 findings letter Page 9 of 10

order could have been to return the children back into your care. Instead, the Court ordered the children into the care and custody of ODHS and has subsequently upheld this order at each respective hearing relating to Feliciano. For your daughters, the Court dismissed ODHS and remitted custody to their father who was deemed as safe to parent by the Courts. The Courts found that you were not acting to protect your children form the threat of Harm related to domestic violence ORS 419B.005. As the Court is the final arbiter of your ability to safely parent your son, it is the responsibility of your attorney to demonstrate this alternative perspective.

12.GAO did not respond to your outreach after initial conversations.

GAO response: The GAO Administrator has acknowledged that our internal controls around good case management failed, and your GAO case was open without response to you for an unacceptable length of time. Corrective actions are being put into place so that this does not happen again. As the GAO Administrator has worked closely with the newly assigned Ombuds on your current case concerns, we find that the majority of your arguments at present and over time have been principally legal in nature, while our primary role and responsibility is around administrative action or inaction.

Findings

The GAO finds that your 'Founded' assessment letter were not sent to you at the conclusion of a CPS assessment. We asked that this be sent to you immediately and have seen documentation of this letter being sent on October 4, 2021. Issuance of this letter is an important piece of your due process, as your receipt of it marks the beginning of a 30-day period in which you can appeal these findings. The first level of appeal is a local office review. If CPS findings are upheld at the local office, you will have the opportunity to appeal that decision to a Central Office review. This process should be outlined in the letters you receive, but you may also review them for yourself in OAR 413-010-0735 through 413-010-0745.

Figure 20. Confirmation that no founded-disposition letter ever issued against Mother—the only founded finding in the record is the 2019 threat-of-harm tied to Barry Washington in which Mother was not afforded due process in being notified of the founded allegation so that she had an opportunity to be heard and challenge this administrative finding. *(Source: GAO #34714.)*

The inability to assess parental capacity is the *absence* of evidence and does not meet the standard that when a parent's alleged risk-causing conduct is at issue, DHS has the burden of demonstrating a nexus between the parent's conduct and the threatened harm to the child. *Dept. of Human Services v. L.E.F.*, 307 Or App 254, 258, 476 P3d 119 (2020). ODHS' burden to establish a present, non-speculative threat of serious harm rests with the agency—and both historically documented conduct as well as an admitted evidentiary void cannot carry it. At the same time, the reasonable-efforts inquiry focuses on DHS's conduct, and a parent's resistance to DHS's efforts does not categorically excuse DHS from making meaningful efforts toward that parent. *Dept. of Human Services v. R. W.* , 277 Or.App. 37, 44, 370 P.3d 543 (2016). Even when child is ward of court, preference for placement with natural parents is still recognized, therefore standard is compelling circumstances for removal rather than best interest of child. *State ex rel Juv. Dept. v. Lauffenberger*, 308 Or 159, 777 P2d 954 (1989).

Moreover, when evaluating whether a parent's alleged behavior may cause harm to the child sufficient to support dependency jurisdiction, we must consider that "[t]he fact that a parent engages in behavior that could negatively affect his or her parenting does not necessarily mean that the behavior can serve as a basis for juvenile court jurisdiction over a child." *Dept. of Human Services v. A. F.*, 243 Or App 379, 387, 259 P3d 957 (2011). We examine the totality of the circumstances to determine if there is a reasonable likelihood of harm to the child's welfare. *C.J.T.*, 258 Or.App. at 61–62, 308 P.3d 307 (citing *Dept. of Human Services v. C.Z.*, 236 Or.App. 436, 440, 236 P.3d 791 (2010)).

You *cannot* remove and withhold my child on a finding of danger while simultaneously conceding that the requisite assessment has not been accomplished where such a finding would require. To establish jurisdiction, DHS must present evidence "sufficient to support a conclusion that the child's condition or circumstances expose the child to a current threat of serious loss or injury that is likely to be realized." *Dept. of Human Services v. A. W.* , 276 Or.App. 276, 278, 367 P.3d 556 (2016). DHS must establish the "type, degree, and duration" of the harm at issue. *Dept. of Human Services v. S. D. I.* , 259 Or.App. 116, 121, 312 P.3d 608 (2013). It must establish "a nexus between the allegedly risk-causing conduct and the harm to the child." *Dept. of Human Services v. C. J. T.*, 258 Or.App. 57, 62, 308 P.3d 307 (2013). It also must prove that the risk of harm is "nonspeculative"; that is, there must be "a reasonable likelihood that the threat will be realized." *Dept. of Human Services v. A. L.* , 268 Or.App. 391, 397, 342 P.3d 174 (2015) (internal

quotation marks omitted).

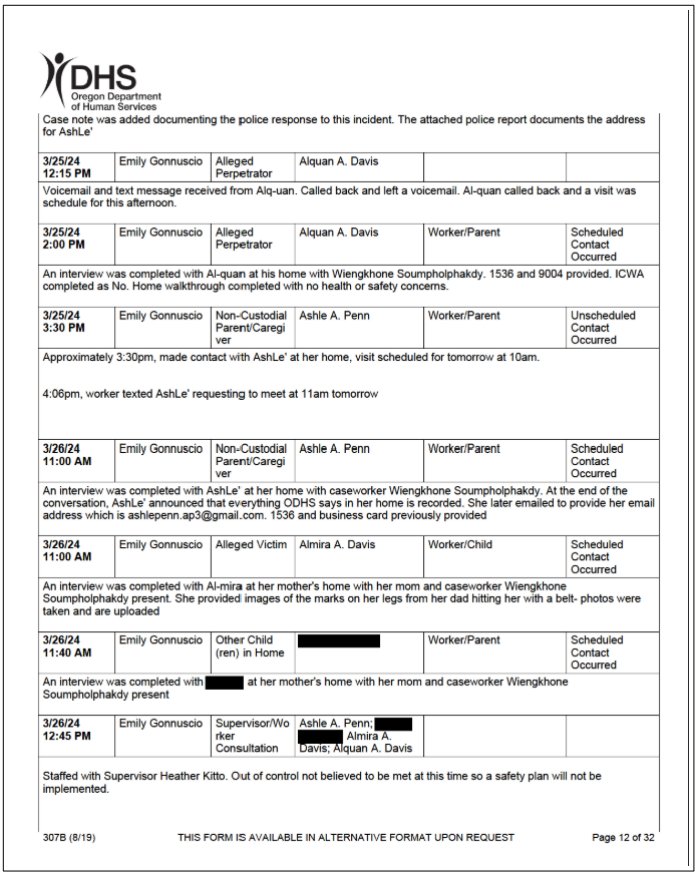
An assertion of Fourth Amendment rights is legally neutral. It is the absence of evidence, not evidence of risk. The agency cannot condition the return of a child on a prospective waiver of constitutional protections unless it has first established a current, non-speculative threat through independent, competent evidence. By converting Mother's assertion of a constitutional right into the sole justification for maintaining custody, ODHS is engaging in unconstitutional conditions and retaliation.

6. The "Cannot Assess" Contradiction

The agency's "cannot assess" position is internally incoherent in four ways, each documented in its own file. First, ODHS previously assessed my home and caregiving—in connection with Al-Mira's very placement with me—and found it satisfactory. Second, it now asserts it was unable to assess my home. Third, it treats that alleged inability as evidence that I am dangerous and lack capacity. Fourth, it treats the prior satisfactory assessment as though it does not exist, without identifying any intervening fact that changed it. Those positions do not reinforce one another; they negate one another.

3/26/24 11:00 AM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Scheduled Contact Occurred
An interview was completed with AshLe' at her home with caseworker Wiengkhone Soumpholphakdy. At the end of the conversation, AshLe' announced that everything ODHS says in her home is recorded. She later emailed to provide her email address which is ashlepenn.ap3@gmail.com. 1536 and business card previously provided					

Figure 21. Evidence that the agency has knowledge that I have not categorically barred the agency from accessing my home. I informed the agency the girls would be willing to go to CARES and coordinated a multi-hour interview in my home of which the agency fails to acknowledge took place - and, directly after Al-mira was removed from her father the first time he was arrested and placed with me. She was enrolled in school, happy and thriving - until the agency removed the no-contact order allowing her to return.



ODHS Oregon Department of Human Services

Case note was added documenting the police response to this incident. The attached police report documents the address for AshLe'

3/25/24 12:15 PM	Emily Gonnuscio	Alleged Perpetrator	Alquan A. Davis		
Voicemail and text message received from Alq-uan. Called back and left a voicemail. Al-quan called back and a visit was schedule for this afternoon.					
3/25/24 2:00 PM	Emily Gonnuscio	Alleged Perpetrator	Alquan A. Davis	Worker/Parent	Scheduled Contact Occurred
An interview was completed with Al-quan at his home with Wiengkhone Soumpholphakdy. 1536 and 9004 provided. ICWA completed as No. Home walkthrough completed with no health or safety concerns.					
3/25/24 3:30 PM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Unscheduled Contact Occurred
Approximately 3:30pm, made contact with AshLe' at her home, visit scheduled for tomorrow at 10am. 4:06pm, worker texted AshLe' requesting to meet at 11am tomorrow					
3/26/24 11:00 AM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Scheduled Contact Occurred
An interview was completed with AshLe' at her home with caseworker Wiengkhone Soumpholphakdy. At the end of the conversation, AshLe' announced that everything ODHS says in her home is recorded. She later emailed to provide her email address which is ashlepenn.ap3@gmail.com. 1536 and business card previously provided					
3/26/24 11:00 AM	Emily Gonnuscio	Alleged Victim	Almira A. Davis	Worker/Child	Scheduled Contact Occurred
An interview was completed with Al-mira at her mother's home with her mom and caseworker Wiengkhone Soumpholphakdy present. She provided images of the marks on her legs from her dad hitting her with a belt- photos were taken and are uploaded					
3/26/24 11:40 AM	Emily Gonnuscio	Other Child (ren) in Home	[redacted]	Worker/Parent	Scheduled Contact Occurred
An interview was completed with [redacted] at her mother's home with her mom and caseworker Wiengkhone Soumpholphakdy present					
3/26/24 12:45 PM	Emily Gonnuscio	Supervisor/Worker Consultation	Ashle A. Penn; [redacted] Almira A. Davis; Alquan A. Davis		
Staffed with Supervisor Heather Kitto. Out of control not believed to be met at this time so a safety plan will not be implemented.					

307B (8/19) THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST Page 12 of 32

Figure 22. ODHS worker Emilie Gonnuscio's own 307B case-note form documenting the March 26, 2024 in-home interview: the interview was "completed with AshLe' at her home," Mother present and cooperating, and Supervisor Heather Kitto's

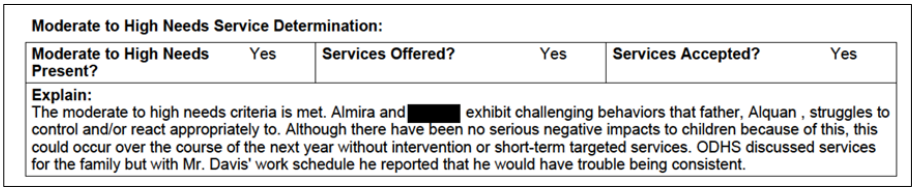
contemporaneous consultation recorded "Out of control not believed to be met at this time so a safety plan will not be implemented." The agency entered and assessed Mother's home and found no safety threat warranting a plan. *(Source: 2024-03-26 ODHS 307B case note, p. 12 of 32.)*

An agency cannot rely on the prior assessment when it helps its narrative, disregard it when it does not, and then treat the manufactured absence of that assessment as proof of danger. If ODHS contends conditions changed, it must identify and prove the intervening facts; it cannot replace that missing proof with the prior assessment's unexplained disappearance from its narrative. Inability to assess is the *absence* of evidence, not evidence of risk.

The burden to establish a present, non-speculative threat of serious harm, and a nexus between my conduct and that harm, rests with the agency. *Dept. of Human Services v. L. E. F.*, 307 Or App 254, 258 (2020); *A. W.*, 276 Or App 276, 278 (2016). Oregon law also favors placement with a fit parent and relatives, ORS 419B.192(2), a preference an alleged evidentiary void cannot displace where the record contains a satisfactory assessment. You cannot remove and withhold my child on a finding of danger while conceding the assessment such a finding requires was never made - even after it has been conducted. For years your agency has had countless opportunities to assess my ability to mother my children and consistently stated that I am a capable mother.

7. Affirmative State-Inflicted Harm and Manufactured Dependency

The agency's allegation under Allegation B asserts that Mother is 'unwilling or unable to protect the child from father's unsafe behaviors.' This allegation is an inversion of a risk history manufactured entirely by the State's own contradictory actions and cross-county procedural failures.



Moderate to High Needs Service Determination:

Moderate to High Needs Present?	Yes	Services Offered?	Yes	Services Accepted?	Yes
Explain: The moderate to high needs criteria is met. Almira and [redacted] exhibit challenging behaviors that father, Alquan , struggles to control and/or react appropriately to. Although there have been no serious negative impacts to children because of this, this could occur over the course of the next year without intervention or short-term targeted services. ODHS discussed services for the family but with Mr. Davis' work schedule he reported that he would have trouble being consistent.					

Figure 23. Even prior to removing the no contact order after Father's initial arrest in May 2025, the agency documented its awareness of the situation and its escalation. Presently, though, the agency purports that mother fails to protect Al-mira from her father, while also advocating for her placement with him. Father is only dangerous, according to the agency, with regard to Mother's failure to protect, otherwise father has been identified as the safer placement choice despite Mother having nothing to do with the incidents which brought Al-mira into care presently.

A. The State Reintroduced the Danger

In April 2024, it was ODHS that actively moved to lift the no-contact order between Father and A.D., endorsing Father as a 'safe placement.' The physical danger that manifested on September 6, 2025, was a direct, foreseeable result of the State's affirmative endorsement. The State cannot legally bootstrap a danger it reintroduced into the child's life into an allegation of parental unfitness against the non-offending mother.

B. Procedural Extinguishment of Mother's Remedies

When Mother proactively sought to modify the custody order in Washington County in January 2025 to establish permanent protective boundaries, the Washington County Circuit Court declined jurisdiction. The court explicitly asserted that exclusive jurisdiction remained transferred to Multnomah County. Mother was jurisdictionally barred from obtaining a family court remedy due to the state's fractured record.

C. Unlawful Assumption of Jurisdiction

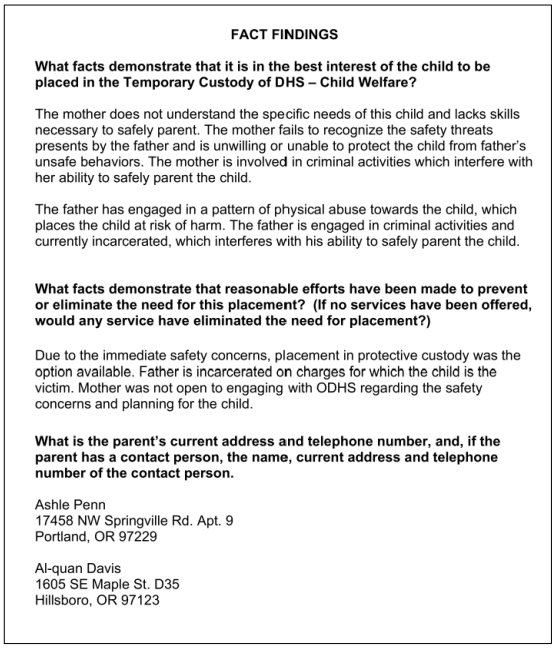
Despite asserting in January 2025 that it lacked power over the matter, Washington County assumed jurisdiction in September 2025 without a lawful, recorded transfer of venue back from Multnomah County. The state blocked Mother's protective efforts in January under a claim of no jurisdiction, then seized the child in September in the same county without curing the defect. The resulting dependency is entirely state-inflicted.

8. The Fabrication Record

Each item states the ODHS statement or agency conduct at issue, identifies the source document with pin cite, and identifies the contemporaneous ODHS record, expert report, or Father's own writing that contradicts it. Timecodes reference the October 31, 2025 trial transcript.

A. Fabrication of Reasonable Efforts — The False Statement of Fact by AAG

At the shelter hearing on September 8, 2025, Assistant Attorney General Nicholas Rischiotto represented to the court in his opening statement: Reasonable efforts have been made to prevent the need for removal.



FACT FINDINGS

What facts demonstrate that it is in the best interest of the child to be placed in the Temporary Custody of DHS – Child Welfare?

The mother does not understand the specific needs of this child and lacks skills necessary to safely parent. The mother fails to recognize the safety threats presents by the father and is unwilling or unable to protect the child from father's unsafe behaviors. The mother is involved in criminal activities which interfere with her ability to safely parent the child.

The father has engaged in a pattern of physical abuse towards the child, which places the child at risk of harm. The father is engaged in criminal activities and currently incarcerated, which interferes with his ability to safely parent the child.

What facts demonstrate that reasonable efforts have been made to prevent or eliminate the need for this placement? (If no services have been offered, would any service have eliminated the need for placement?)

Due to the immediate safety concerns, placement in protective custody was the option available. Father is incarcerated on charges for which the child is the victim. Mother was not open to engaging with ODHS regarding the safety concerns and planning for the child.

What is the parent's current address and telephone number, and, if the parent has a contact person, the name, current address and telephone number of the contact person.

Ashle Penn
17458 NW Springville Rd. Apt. 9
Portland, OR 97229

Al-quan Davis
1605 SE Maple St. D35
Hillsboro, OR 97123

Figure 1.

> *Reasonable efforts have **not** been made to prevent the need for removal contrary to what both AAGs have offered the court as factual assertions as well as what matches what the agency, itself, claimed in its Fact Finding Report.*

AAG Nicholas Rischiotto did not say there were any recognized exceptions to the agency's ministerial duty to prevent removal, thereby rendering any preventative efforts as being *excused*. He did not say any emergency relieved the agency of that same duty. He said efforts were made. That is a factual assertion about what the agency did, and it is false on the face of the agency's own exhibit. AAG Wadia would later, in her opening statement, offer the same factual assertion that the agency fulfilled preventative efforts obligations.

Contradiction: The Oregon Department of Human Services Protective Custody Report — submitted as State's Exhibit 1 at the shelter hearing — answers the form field titled **"What facts demonstrate that reasonable efforts have been made to prevent or eliminate the need for this placement? (If no services have been offered, would any service have eliminated the need for placement?)**" with three sentences, in full:[15]

> *Due to the immediate safety concerns, placement in protective custody was the option available. Father is incarcerated on charges for which the child is the victim. Mother was not open to engaging with ODHS regarding the safety concerns and planning for the child.*

Parental non-engagement is not an enumerated basis permitting statutory bypass. Under ORS 419B.171 and the federal counterpart at 42 U.S.C. § 671(a)(15), the agency's duty to make reasonable efforts to prevent removal is relieved only in two circumstances:

(a) Case-specific futility finding under ORS 419B.171(3)(b) — the agency must show that "no services would have eliminated the need for protective custody." This is a fact-driven determination about services, not

[15] See 2025-09-08 – ODHS Protective Custody Report, p. 9, section duplicated in 2025-09-08 – ODHS Fact Findings Report, p. 1.

a character judgment about the parent. It requires the agency to show that no available service, plan, or support — including family placement — could have prevented removal.

(b) Aggravated-circumstances bypass — narrow enumerated grounds codified in Oregon at ORS 419B.340(5) and federally at 42 U.S.C. § 671(a)(15)(D). These are extreme, categorical predicates such as aggravated abuse, prior termination of parental rights, murder or manslaughter of another child of the parent, and felony assault causing serious bodily injury to the child or a sibling. Each category is a specific factual predicate that must be found and supported.

"Mother was not open to engaging" fits neither. It is not a service, it is not a futility finding, and it is not an aggravated circumstance. It is a description of the agency's failure to make the very engagement effort the statute requires.

The agency did not list a single service offered, attempted, or considered.[16] The narrative does not identify any reasonable efforts contemplated or exhausted. This report identified the absence of any efforts and states a reason for the absence — immediate danger (it does not acknowledge the mitigating family resource present and available whom they would certify within 24 hours as her foster placement; evidencing that the agency didn't even contemplate any alternatives to removal). The agency also did not make the court aware of the statement of self-harm being the basis for *emergency protective custody* that it was required to substantiate before moving into any further basis for its petition that the state assert jurisdiction over Al-mira. The initial protective custody of Al-mira was executed based on a statement the agency does not assert to the court is at issue at the shelter hearing, and so never received judicial endorsement for Al-mira's initial emergency removal — which, again, was mitigated by family who was present as provided by Mother.

a. Any Defense From the Agency That an Emergency Excused Any Preventative Efforts - Fails on Its Own Terms.

As stated in ODHS' fact finding report, the agency will argue the emergency at removal excused any duty to make efforts. That argument does not reach the misrepresentation, and it does not survive the record.

First, the argument does not reach the misrepresentation. AAG Wadia did not tell the court efforts were excused. She told the court efforts were made. A representation that "reasonable efforts have been made" is not made truthful by a later argument that no efforts were required. The two propositions are legally distinct findings under ORS 419B.171(3)(a) and (3)(b). The false statement is the one counsel actually delivered. RPC 3.3(a)(1) is not neutralized by a defense counsel could have argued but did not.

Second, the emergency was the father's conduct, not the mother's. The precipitating incident on September 6, 2025 was an assault by Alquan Davis against Al-mira. Mr. Davis was arrested and incarcerated on charges for which the child is the victim. That emergency was neutralized by law enforcement before the agency exercised protective custody. An emergency created by father's conduct does not excuse the agency from making reasonable efforts to place the child with the fit, non-offending mother. Nothing in ORS 419B.171(3)(b) authorizes preventative efforts bypass on the theory that one parent has committed a crime against the child. The bypass looks at whether any service could have prevented removal — not at whether one parent is unavailable. Father's unavailability made mother the placement question. It did not make protective custody the answer.

b. The Case-Dispositive Fact — the Maternal Great-Uncle Was Physically Present the Night of Removal.

The agency cannot honestly say no service could have prevented removal, because the service that would have prevented removal was already present at the hospital due to mother's coordination **prior to** the agency's execution of protective custody as demonstrated by agency worker Nicole Bennett's contemporaneous report:

At approximately 6:30–7:00 PM on September 6, 2025, maternal great-uncle Eric Taylor arrived at the hospital at mother's request; a second maternal great-uncle, William "Markus" Taylor, was also present. Mother had told the worker she could not get time off work and was sending her uncle in her place. The fabrication incorporated by the caseworker here is the certification in writing that Mother was "not open to engaging" while simultaneously hiding the fact that Mother had sent certified relative resources to the hospital to take the child. The AAGs' statements that reasonable efforts had been made to prevent the removal were breaches of their individual Duties of Candor to the Tribunal (Oregon RPC 3.3) for falsely citing the caseworker's investigative fabrication and misrepresenting the agency's actions to the court.

[16] See Shelter hearing, 9/8/2025, opening statement of AAG Nicholas Rischiotto.

Eventually, Ms. Penn called the hospital directly and the call was transferred to ODHS. The mother immediately began expressing she did not want to talk to ODHS worker Bennett at that time and wanted to talk to hospital staff instead which worker Bennett explained the hospital staff member left and wasn't present but offered to wait and see if hospital staff returned. The mother began expressing that she was having an uncle- Eric Taylor come to the hospital not for the night. Ms. Penn expressed she couldn't get the time off work like she thought she could but was sending the uncle instead. ODHS worker Bennett began trying to talk about the plan, but the Ms. Penn kept cutting worker off and talking over worker Bennett and expressing that she was informed of the situation and that DHS needed to relinquish custody of Almira to her and had no reason to continue being involved. Worker tried explaining the agency needed to discuss the concerns with the Ms. Penn, but she continued talking over ODHS and saying that ODHS did not have any more grounds to have Protective Custody and needed to release her daughter into her custody since she had been contacted. Ms. Penn was uncooperative and not willing to work with worker to address the concerns or allow the additional concerns regarding Almira's disclosures of self-harm and concern for safety if returned to Ms. Penn's care. The worker offered to have on call supervisor Heather Kitto call the Ms. Penn to discuss the plan further, but Ms. Penn expressed she only wanted to communicate with the supervisor over email or written communication because she has experience with the agency and doesn't trust the agency. Ms. Penn indicated that she did not want to communicate with ODHS, and that any correspondence needed to be via email and with a supervisor.

Figure 24. Worker Bennett's contemporaneous narrative: Mother, reached hours later, sent her uncles in her place. Before this call the agency had no basis to assert "unwillingness." Because the agency could not, prior to this call, assert any unwillingness, it cannot also assert that protective custody was lawfully executed as to maintaining Al-mira from Mother before Mother had already positioned family to assist in Al-mira's release to her. The agency was therefore obligated to release custody to Mother through the family she sent, who would be certified as placement within 24 hours.

17

The agency then designated the placement type as "Relative Resource Care" with the recorded rationale that "placement with a relative is the least intrusive option available." The placement date on the report is 09/06/2025 — the same night the maternal relatives were present at the hospital.[18]

The agency cannot maintain both positions. It cannot represent that no service could have prevented removal and simultaneously certify that a relative resource caregiver was suitable for placement on the same date. If a relative was certifiable that night for foster placement, a relative was available that night as a family-plan support to prevent removal.

B. Fabrications About Mother's Engagement With the Agency and With Services

NOTES	☑ Case	☐ Provider	**Name:**	PENN, ASHLE		**Number:**	798764
						Correction Note: ☐	
Date & Time Occurred:		04/06/2022 01:40 PM		**Worker Making Contact:**		Jamie Ruiz	
Category:	Case Management			**Type:**	Plans and Services		
Case Participants & Relationship (if applicable):							
ASHLE A. PENN (Self)							
Face to Face Type (if applicable):				**Face to Face Result:**			
For Assessment Notes Only:							
Contact Name & Title:							

Note Text

I received a copy of a certificate of completion stating:

AshLe Penn has completed ARAI: Assessing Relationships: Information and Abuse
4 hours of Domestic Violence Training

From: Adams Janell <Janell.Adams@dhsoha.state.or.us>
Sent: Wednesday, April 6, 2022 1:41 PM
To: Ruiz Jamie L <Jamie.L.Ruiz@dhsoha.state.or.us>; ashlepenn.ap2@gmail.com
Subject: ARIA Cert

AshLe,

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

CF6790_Notes
05/06/2020
09/15/2022

Page 26 of 8

001038

DHS
Oregon Department of Human Services

Congratulations on completing ARIA. Please see the attached certificate. I look forward to witnessing your progress and wish you a joyful future. Please feel free to contact me if you need support.
Take care

Janelle Adams
Senior DV/SA Advocate
DHS Co-Located DV/SA Advocate

[17] See 2025-09-08 Protective Custody Report, pp. 4–5.
[18] Record cite: 2025-09-08 – ODHS Protective Custody Report, pp. 9–10, § 11.

Figure 25. Mother's completion of DV Services as ordered by the court and required by the agency.



WOLF PACK CONSULTING AND THERAPEUTIC SERVICES, LLC

PROGRESS NOTES

Client: AshLe Penn (AP02980) Birth Date: 02/15/1988
Service Date: 05/03/2021 01:00 PM - 01:45 PM Duration: 45 minutes
Provider(s): Clinical Director Terry Ellis, LCSW (NPI: 1992844096); Mental Health Intern Klarissa Gaskell, QMHA (NPI: 1710585005); Admin Admin Staff
Insurer(s): Health Share Care Oregon
Place Of Service: Home CPT Code: H0004 Case #

Focus of Session:
T/w met with AshLe in her home for individual therapy session.

Therapeutic Intervention:
Treatment focus was on utilizing narrative therapy techniques to engage with therapy and bring to light the struggles that AshLe has experienced over the past few years. AshLe expressed feelings of disempowerment and frustration while working within the system as a survivor of intimate partner violence. AshLe expressed a strong connection with her children and an understanding of the need to provide them with a safe and loving home. AshLe was engaged, focused, and determined during the session.

Planned Intervention:
T/w will meet with AshLe on 5/10/21 in her home for individual therapy.

Return Appointment: 05/10/2021 01:00 PM

Figure 26. Proof that testimony asserting that Mother had not completed/engaged in *any* services was made with reckless disregard for the truth.



WOLF PACK CONSULTING AND THERAPEUTIC SERVICES, LLC

PROGRESS NOTES

Client: AshLe Penn (AP02980) Birth Date: 02/15/1988
Service Date: 05/10/2021 01:00 PM - 01:45 PM Duration: 45 minutes
Provider(s): Clinical Director Terry Ellis, LCSW (NPI: 1992844096); Mental Health Intern Klarissa Gaskell, QMHA (NPI: 1710585005); Admin Admin Staff
Insurer(s): Health Share Care Oregon
Place Of Service: Home CPT Code: H0004 Case #

Focus of Session:
T/w met with AshLe in her home for individual therapy session.

Therapeutic Intervention:
Treatment focus was on continuing to engage in narrative therapy to establish AshLe's concerns and understanding of her well-being following several traumatic incidents from her previous partner and the child welfare system. T/w and AshLe talked through her past experiences and what lead up to DHS involvement, creating and understanding AshLe's values and concerns for her family. AshLe expressed an understanding of the weight the IPV incidences carry and have put on her and her family. She continues to educate herself on IPV, reading peer reviewed articles that we discussed in session.

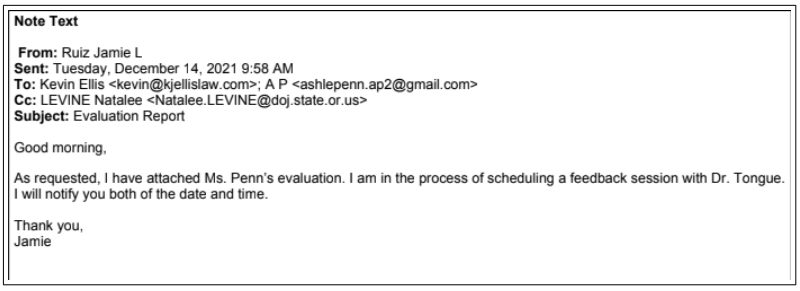
Planned Intervention:
T/w will meet with AshLe on 5/17/21 in her home for individual therapy.

Return Appointment: 05/17/2021 01:00 PM

Figure 27. Wolfpack services was only one of two mental health services Mother engaged with overlapping timeframes - seeing both Cemented Rose and Wolfpack simultaneously and also completing ARIA services as above.

a. Marquand sworn testimony (10/31/2025 Trial):

"Caseworker Marquand testified and included in the written report that Mother did not 'engage in any services and actually failed to do any of the services. Those services that were ordered were parenting classes, stable housing, visitation, a neuropsychological, maintaining contact with the agency, engaging in DV counseling, victim services or survivor services, signing releases of information and engaging in the children's services.' "



Note Text

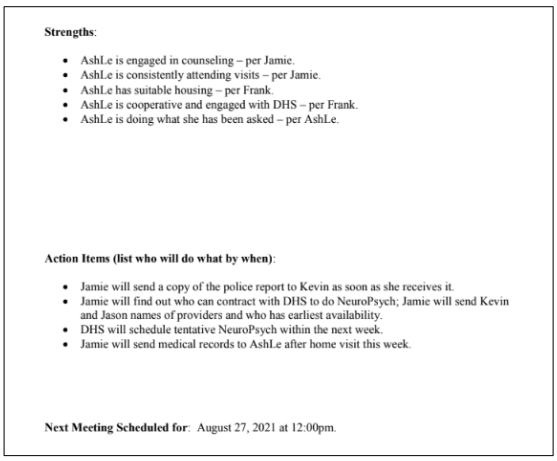
From: Ruiz Jamie L
Sent: Tuesday, December 14, 2021 9:58 AM
To: Kevin Ellis <kevin@kjellislaw.com>; A P <ashlepenn.ap2@gmail.com>
Cc: LEVINE Natalee <Natalee.LEVINE@doj.state.or.us>
Subject: Evaluation Report

Good morning,

As requested, I have attached Ms. Penn's evaluation. I am in the process of scheduling a feedback session with Dr. Tongue. I will notify you both of the date and time.

Thank you,
Jamie

Figure 28. ODHS's own record confirming the agency knew the court-ordered neuropsychological evaluation was complete—contradicting sworn testimony that Mother "did not do" the neuropsychological. *(Source: ODHS case notes.)*



Strengths:

- AshLe is engaged in counseling – per Jamie.
- AshLe is consistently attending visits – per Jamie.
- AshLe has suitable housing – per Frank.
- AshLe is cooperative and engaged with DHS – per Frank.
- AshLe is doing what she has been asked – per AshLe.

Action Items (list who will do what by when):

- Jamie will send a copy of the police report to Kevin as soon as she receives it.
- Jamie will find out who can contract with DHS to do NeuroPsych; Jamie will send Kevin and Jason names of providers and who has earliest availability.
- DHS will schedule tentative NeuroPsych within the next week.
- Jamie will send medical records to AshLe after home visit this week.

Next Meeting Scheduled for: August 27, 2021 at 12:00pm.

Figure 29. ODHS's own note demonstrating that the "no services" testimony is contradicted by the agency's file that Mother actively engaged in counseling. *(Source: 2025-09-08 Fact Findings Report.)*

Contradiction: Dr. Tongue's court-ordered evaluation (Exhibit B) completed 10/30/2021 — a neuropsychological Mother did complete; year-long Lifeworks parenting class in 2018; 17 sessions of DV counseling with Sherri Lynn Blanton, QMHP; DV grant Mother initiated on her own (Milne First Call transcript, p. 2–3); signed ROIs for Morrison and WolfPack (2025-09-08 Fact Findings Report, p. 14); 900+ documented agency contacts across the case history.

b. Fact Findings Report:

"Ashle did not engage in the assessment and has a pattern and history of not engaging with the agency. The following information is taken from past assessment/ agency knowledge and collaterals." [19]

Contradiction: The same report, at p. 13, records the March 26, 2024 in-home interview with Mother present, cooperative, and permitting the assessment. The report therefore contradicts itself by claiming a pattern of non-engagement while simultaneously documenting Mother's participation in an agency interview.

More importantly, the agency's framing unlawfully equates Mother's refusal to participate in non-court-ordered services, safety planning, or agency questioning with parental deficiency. Mother's decision not to assist the agency's investigation is not merely an exercise of judgment; it is the exercise of her constitutional right to direct the care, custody, and control of her child. Under *Troxel v. Granville*, a fit parent is presumed to act in the child's best interests, and the State may not invert that presumption by treating the parent's refusal to submit to agency intrusion as evidence of unfitness.

The agency's own admission that the information is drawn from "past assessment/ agency knowledge and collaterals" defeats any claim that the statement is harmless because it predated the March 26, 2024 interview. Once the agency repackaged that historical statement in the 2025 Fact Findings Report and presented it to the court as current evidence of a pattern, the agency was no longer merely preserving history; it was using historical material as an adverse factual allegation. And even if a refusal to engage could ever be treated as relevant to danger, it still would not establish a current danger at the time of the 2025 filing. The agency's theory depends on stale information being treated as present risk, which is exactly the kind of temporal distortion the record does not support.

c. 2025-10-23 ODHS Report (Crafton/Giles):

"CW's were not able to make meaningful contact with Ashle' ...She has overtly avoided contact with the agency."

Contradiction: Supervisor Heather Kitto reached Mother by text and phone on September 6, 2025 at 5:39–5:40 PM (Exhibit D); Kitto's release text at 5:40 PM: "we can release custody to you" (Exhibit N).

d. Fact Findings Report:

"An attempt was made to contact Ashle via telephone for interview but her current listed number was not operational." (pp. 69, 100.)

Contradiction: Same phone line used successfully by Supervisor Kitto on 9/6/2025 at 5:40 PM and 5:59 PM. Crafton emailed Mother at the same email address on 9/8, 9/9, and 10/1/2025.

e. 2026-02-12 ODHS Report:

[19] *Source:* 2025-09-08 Fact Findings Report, pp. 44, 45, 96.

"Mother is choosing not to have any contact with the Agency" (repeated at every field in pp. 9–10).

Contradiction: Your own admissions on the January 28, 2026 and April 28, 2026 recorded calls: "visits have been extremely limited" and "I did ask him to move forward with setting up regular meeting times with you and also regular visitation." The February 2026 Report itself contradicts p. 10 by reporting "Number of Face-to-Face Contacts with Caseworker (last 6 months): 1" at p. 9. The assertion that Mother is choosing not to have any contact with the agency is vastly contradicted by the several calls conducted between Mother and yourself, Laurie Hernandez, and David Milne, and by Mother's participation through written filings in court. It is indefensible to assert that I have not engaged the agency; more accurately, I have not engaged the agency in a manner the agency prefers, but I have engaged your agency. I have requested, through numerous written emails and recorded calls, that your agency substantiate the initial emergency protective custody and name the conduct of mine at issue that warranted the agency's interference into my home.

C. Fabrications About the Safety Plan

a. Shelter Hearing testimony (9/8/2025):

DHS represented that Mother had "refused a safety plan."

Contradiction: Caseworker Milne confirmed in writing that the first safety plan was transmitted October 1, 2025 — twenty-five days after removal. **A parent cannot refuse what has not been offered.**

b. Safety Plan / C4R (5/6/2026).

Multiple "Not Met" conditions for return based on "Mother's refusal to engage with ODHS."

c. Contradiction:

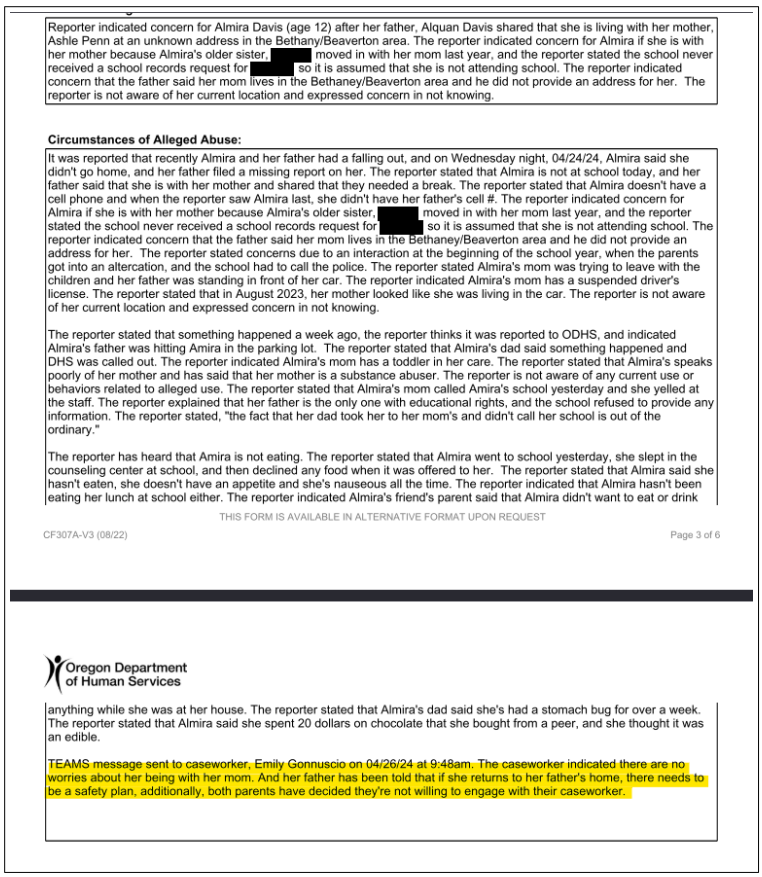
Before September 6, 2025, ODHS conducted a two-hour in-home interview of Mother's children with Mother present and cooperating (Fact Findings Report, p. 13; Exhibit P). Under Oregon law, a parent cannot be compelled to participate in services absent a court order. *SOSCF v. J.C.*, 258 Or App 328, 337 (2013).

D. Fabrications About Mother's Parenting Capacity

a. Jurisdictional Allegation A (proven 10/31/2025):

"The mother does not understand the specific needs of this child and lacks skills necessary to safely parent."

Contradiction — Dr. Tongue's court-ordered evaluation (Exhibit A): "does not merit referral for parent training"; "adequate understanding of child development and parenting practices"; "I do not see any evidence in the profile or in diagnostic interview that Ms. Penn has any difficulty recognizing ordinary stages of child development or that she has any unusual attitudes toward parenting practices and discipline." Under OEC 702–703, a lay caseworker opinion on a clinical question does not overcome a licensed psychologist's controlled psychometric findings.



Reporter indicated concern for Almira Davis (age 12) after her father, Alquan Davis shared that she is living with her mother, Ashle Penn at an unknown address in the Bethany/Beaverton area. The reporter indicated concern for Almira if she is with her mother because Almira's older sister, [redacted] moved in with her mom last year, and the reporter stated the school never received a school records request for [redacted] so it is assumed that she is not attending school. The reporter indicated concern that the father said her mom lives in the Bethaney/Beaverton area and he did not provide an address for her. The reporter is not aware of her current location and expressed concern in not knowing.

Circumstances of Alleged Abuse:

It was reported that recently Almira and her father had a falling out, and on Wednesday night, 04/24/24, Almira said she didn't go home, and her father filed a missing report on her. The reporter stated that Almira is not at school today, and her father said that she is with her mother and shared that they needed a break. The reporter stated that Almira doesn't have a cell phone and when the reporter saw Almira last, she didn't have her father's cell #. The reporter indicated concern for Almira if she is with her mother because Almira's older sister, [redacted] moved in with her mom last year, and the reporter stated the school never received a school records request for [redacted] so it is assumed that she is not attending school. The reporter indicated concern that the father said her mom lives in the Bethaney/Beaverton area and he did not provide an address for her. The reporter stated concerns due to an interaction at the beginning of the school year, when the parents got into an altercation, and the school had to call the police. The reporter stated Almira's mom was trying to leave with the children and her father was standing in front of her car. The reporter indicated Almira's mom has a suspended driver's license. The reporter stated that in August 2023, her mother looked like she was living in the car. The reporter is not aware of her current location and expressed concern in not knowing.

The reporter stated that something happened a week ago, the reporter thinks it was reported to ODHS, and indicated Almira's father was hitting Amira in the parking lot. The reporter stated that Almira's dad said something happened and DHS was called out. The reporter indicated Almira's mom has a toddler in her care. The reporter stated that Almira's speaks poorly of her mother and has said that her mother is a substance abuser. The reporter is not aware of any current use or behaviors related to alleged use. The reporter stated that Almira's mom called Amira's school yesterday and she yelled at the staff. The reporter explained that her father is the only one with educational rights, and the school refused to provide any information. The reporter stated, "the fact that her dad took her to her mom's and didn't call her school is out of the ordinary."

The reporter has heard that Amira is not eating. The reporter stated that Almira went to school yesterday, she slept in the counseling center at school, and then declined any food when it was offered to her. The reporter stated that Almira said she hasn't eaten, she doesn't have an appetite and she's nauseous all the time. The reporter indicated that Almira hasn't been eating her lunch at school either. The reporter indicated Almira's friend's parent said that Almira didn't want to eat or drink

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

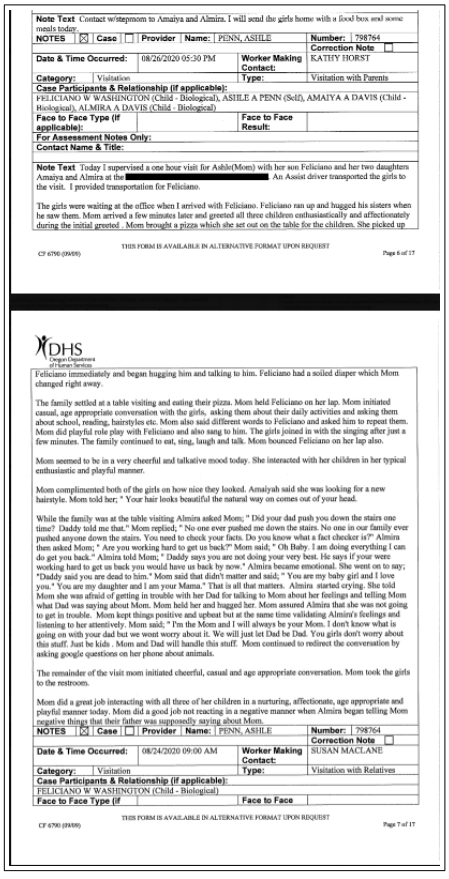
CF307A-V3 (08/22) Page 3 of 6

Oregon Department of Human Services

anything while she was at her house. The reporter stated that Almira's dad said she's had a stomach bug for over a week. The reporter stated that Almira said she spent 20 dollars on chocolate that she bought from a peer, and she thought it was an edible.

TEAMS message sent to caseworker, Emily Gonnuscio on 04/26/24 at 9:48am. The caseworker indicated there are no worries about her being with her mom. And her father has been told that if she returns to her father's home, there needs to be a safety plan, additionally, both parents have decided they're not willing to engage with their caseworker.

Figure 30. The one caseworker who assessed Mother's home, Emilie Gonnuscio, documented on April 26, 2024 that "there are no worries about [Almira] being with her mom," and that it was Father's home that "needs to be a safety plan." The "substance abuser" assertion appears only as Father's uncorroborated report to an intake screener — consistent with the intake history, which contains no substance-abuse allegation against Mother. *(Source: 2025-09-08 Fact Findings Report.)*



Note Text Contact w/stepmom to Amaiya and Almira. I will send the girls home with a food box and some meals today.

NOTES	☒ Case	☐ Provider	Name:	PENN, ASHLE	Number:	798764
					Correction Note	☐
Date & Time Occurred:	08/26/2020 05:30 PM				Worker Making Contact:	KATHY HORST
Category:	Visitation				Type:	Visitation with Parents

Case Participants & Relationship (if applicable):
FELICIANO W WASHINGTON (Child - Biological), ASHLE A PENN (Self), AMAIYA A DAVIS (Child - Biological), ALMIRA A DAVIS (Child - Biological)

Face to Face Type (if applicable):		Face to Face Result:	

For Assessment Notes Only:
Contact Name & Title:

Note Text Today I supervised a one hour visit for Ashle(Mom) with her son Feliciano and her two daughters Amaiya and Almira at the [redacted]. An Assist driver transported the girls to the visit. I provided transportation for Feliciano.

The girls were waiting at the office when I arrived with Feliciano. Feliciano ran up and hugged his sisters when he saw them. Mom arrived a few minutes later and greeted all three children enthusiastically and affectionately during the initial greeted . Mom brought a pizza which she set out on the table for the children. She picked up

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

CF 6790 (09/09) Page 6 of 17

DHS Oregon Department of Human Services

Feliciano immediately and began hugging him and talking to him. Feliciano had a soiled diaper which Mom changed right away.

The family settled at a table visiting and eating their pizza. Mom held Feliciano on her lap. Mom initiated casual, age appropriate conversation with the girls, asking them about their daily activities and asking them about school, reading, hairstyles etc. Mom also said different words to Feliciano and asked him to repeat them. Mom did playful role play with Feliciano and also sang to him. The girls joined in with the singing after just a few minutes. The family continued to eat, sing, laugh and talk. Mom bounced Feliciano on her lap also.

Mom seemed to be in a very cheerful and talkative mood today. She interacted with her children in her typical enthusiastic and playful manner.

Mom complimented both of the girls on how nice they looked. Amaiyah said she was looking for a new hairstyle. Mom told her; " Your hair looks beautiful the natural way on comes out of your head.

While the family was at the table visiting Almira asked Mom; " Did your dad push you down the stairs one time? Daddy told me that." Mom replied; " No one ever pushed me down the stairs. No one in our family ever pushed anyone down the stairs. You need to check your facts. Do you know what a fact checker is?" Almira then asked Mom; " Are you working hard to get us back?" Mom said; " Oh Baby. I am doing everything I can do get you back." Almira told Mom; " Daddy says you are not doing your very best. He says if your were working hard to get us back you would have us back by now." Almira became emotional. She went on to say; "Daddy said you are dead to him." Mom said that didn't matter and said; " You are my baby girl and I love you." You are my daughter and I am your Mama." That is all that matters. Almira started crying. She told Mom she was afraid of getting in trouble with her Dad for talking to Mom about her feelings and telling Mom what Dad was saying about Mom. Mom held her and hugged her. Mom assured Almira that she was not going to get in trouble. Mom kept things positive and upbeat but at the same time validating Almira's feelings and listening to her attentively. Mom said; " I'm the Mom and I will always be your Mom. I don't know what is going on with your dad but we wont worry about it. We will just let Dad be Dad. You girls don't worry about this stuff. Just be kids . Mom and Dad will handle this stuff. Mom continued to redirect the conversation by asking google questions on her phone about animals.

The remainder of the visit mom initiated cheerful, casual and age appropriate conversation. Mom took the girls to the restroom.

Mom did a great job interacting with all three of her children in a nurturing, affectionate, age appropriate and playful manner today. Mom did a good job not reacting in a negative manner when Almira began telling Mom negative things that their father was supposedly saying about Mom.

NOTES	☒ Case	☐ Provider	Name:	PENN, ASHLE	Number:	798764
					Correction Note	☐
Date & Time Occurred:	08/24/2020 09:00 AM				Worker Making Contact:	SUSAN MACLANE
Category:	Visitation				Type:	Visitation with Relatives

Case Participants & Relationship (if applicable):
FELICIANO W WASHINGTON (Child - Biological)

Face to Face Type (if		Face to Face	

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

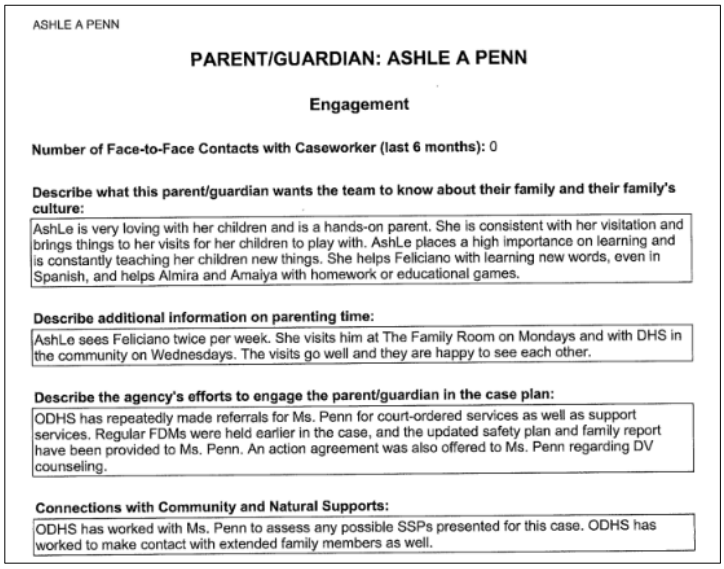
CF 6790 (09/09) Page 7 of 17

Figure 31. 'Mom initiated cheerful, casual, and age appropriate conversation...Mom did a great job of interacting with all three of her children in a nurturing, affectionate, age appropriate and playful manner today. Mom did a good job of not reacting in a negative manner when Almira began telling Mom negative things that their father was supposedly saying about Mom.

b. Selective quotation and material misquotation of the Tongue evaluation.

[20] DHS misled the court when it elected to quote only a single interpretive paragraph from Dr. Tongue's MCMI-IV section, taking it out of its context and changing its meaning.

Omitted findings: Full Scale IQ 116 (86th percentile); Processing Speed Index 140 (99.6th percentile — very superior); Verbal Comprehension 110; Working Memory 111; "no deficit in fine motor control, motor speed, language, attention, learning, memory, executive functioning, mental flexibility, set shifting, or planning"; DSM-5 diagnoses limited to sub-clinical "Features of compulsive and paranoid personality"; "I do not recommend participation in substance abuse treatment or mental health counseling, given the lack of evidence for mental disorder"; "I do not see strong evidence that she would be unable to put the needs of her children ahead of her own."



ASHLE A PENN

PARENT/GUARDIAN: ASHLE A PENN

Engagement

Number of Face-to-Face Contacts with Caseworker (last 6 months): 0

Describe what this parent/guardian wants the team to know about their family and their family's culture:

AshLe is very loving with her children and is a hands-on parent. She is consistent with her visitation and brings things to her visits for her children to play with. AshLe places a high importance on learning and is constantly teaching her children new things. She helps Feliciano with learning new words, even in Spanish, and helps Almira and Amaiya with homework or educational games.

Describe additional information on parenting time:

AshLe sees Feliciano twice per week. She visits him at The Family Room on Mondays and with DHS in the community on Wednesdays. The visits go well and they are happy to see each other.

Describe the agency's efforts to engage the parent/guardian in the case plan:

ODHS has repeatedly made referrals for Ms. Penn for court-ordered services as well as support services. Regular FDMs were held earlier in the case, and the updated safety plan and family report have been provided to Ms. Penn. An action agreement was also offered to Ms. Penn regarding DV counseling.

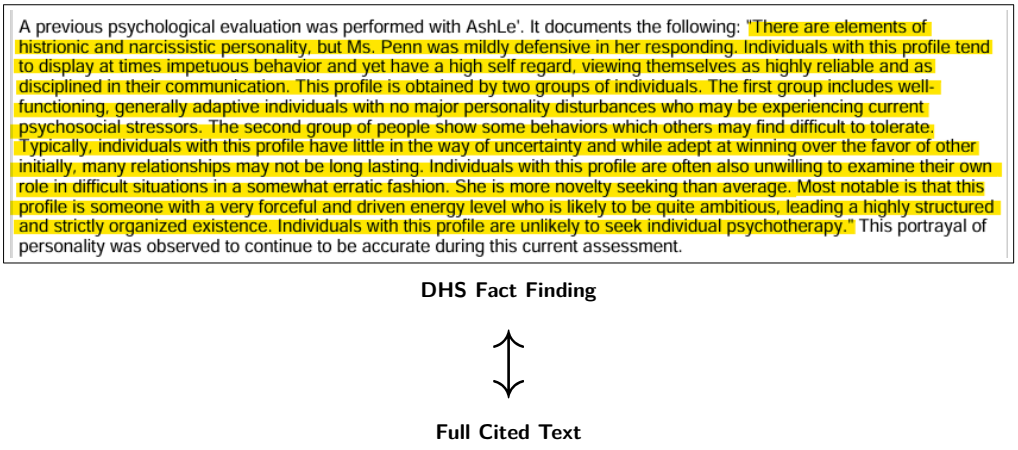
Connections with Community and Natural Supports:

ODHS has worked with Ms. Penn to assess any possible SSPs presented for this case. ODHS has worked to make contact with extended family members as well.

Figure 32. ODHS's own record describing Mother as loving and attentive, contradicting Allegation A. *(Source: ODHS case notes.)*

E. Material Misquotation:

ODHS quotes "unwilling to examine their own role in difficult situations in a somewhat erratic fashion." Dr. Tongue's actual words: "unwilling to examine their own role in difficult situations *that they find themselves in which involve prolonged distress and may respond by behaving in* a somewhat erratic fashion." The excised phrase changes the meaning.



A previous psychological evaluation was performed with AshLe'. It documents the following: "There are elements of histrionic and narcissistic personality, but Ms. Penn was mildly defensive in her responding. Individuals with this profile tend to display at times impetuous behavior and yet have a high self regard, viewing themselves as highly reliable and as disciplined in their communication. This profile is obtained by two groups of individuals. The first group includes well-functioning, generally adaptive individuals with no major personality disturbances who may be experiencing current psychosocial stressors. The second group of people show some behaviors which others may find difficult to tolerate. Typically, individuals with this profile have little in the way of uncertainty and while adept at winning over the favor of other initially, many relationships may not be long lasting. Individuals with this profile are often also unwilling to examine their own role in difficult situations in a somewhat erratic fashion. She is more novelty seeking than average. Most notable is that this profile is someone with a very forceful and driven energy level who is likely to be quite ambitious, leading a highly structured and strictly organized existence. Individuals with this profile are unlikely to seek individual psychotherapy." This portrayal of personality was observed to continue to be accurate during this current assessment.

DHS Fact Finding

↕

Full Cited Text

[20] 2025-09-08 Fact Findings Report, p. 22, and 2025-10-23 ODHS Report, p. 19.

Ms. Penn denies any current mental health symptoms, although she reports distress about missing her children. She denies any trauma history and describes normal sleep and appetite. Ms. Penn presented with a normal rate and rhythm of speech and no abnormal motor behavior. She shows good self-care, grooming, and personal hygiene, and a normal range of affect. She displayed some carelessness in her approach to the evaluation at times, taking a longer lunch than was anticipated and arrived somewhat late as a result of traffic. Ms. Penn's measured overall intellect falls in high average range. She shows no deficit in fine motor control or motor speed and high average to superior range functioning in the domain of language. There is no evidence of any deficit in attention span, and she shows no impairment in sequential reasoning. Visual spatial ability also falls well within normal limits. She shows a solidly average range capacity for abstract reasoning and a high average range fund of information. Tests of learning and memory for both visual and verbal material show no deficit. Tests of executive functioning were similar, insofar as there is no evidence of any deficit in her capacity for processing speed, mental flexibility, set shifting, or planning and organization. A measure of personality functioning was answered in a mildly defensive fashion but did not indicate the presence of any clinical diagnoses. She has a personality style characterized by compulsive and paranoid personality traits and is highly mistrustful of others. She appears to display a degree of inflated self-regard. Individuals with her profile are sometimes unwilling to examine their own role in complicated or adverse circumstances in which they find themselves. The narrative of her involvement with Child Welfare was somewhat hard to follow but she has now dismissed several attorneys representing her and has had a fraught relationship with a variety of caseworkers and social service providers. She describes her relationship with her youngest child's father as estranged, at odds with reports from Child Welfare, and claims no intent to reconcile with him but believes they could coparent responsibly as separated individuals. A self-report measure related to parenting and the overall risk of abusive behavior did not yield a valid profile, but specific perusal of item endorsement did not indicate that Ms. Penn is at risk of harming her child.

The record — Neuropsychological Evaluation

The agency's version (top) versus the record (bottom). *At the October 31, 2025 trial, ODHS testified under oath that I "did not engage in **any**" of the services the court ordered. Yet its own Fact Finding (top) quotes the neuropsychological evaluation I completed (bottom)—which it possessed, relied upon, and then denied under oath— while omitting that same evaluation's findings of no deficits, no clinical diagnosis, no need for parenting classes or mental-health treatment, and that "item endorsement did not indicate that Ms. Penn is at risk of harming her child."*[21]

a. Selective Use of the Same Evidence — Mother Framed as Both Irrelevant and Controlling.

ODHS characterized Mother as "not playing an active parenting role" and therefore not disciplining the children.[22] Yet the same report records that "[t]he girls are doing exactly what she tells them to do" and that they "undermine Alquan's authority as a parent." *Id.* p. 48. These statements are not necessarily mutually exclusive; a parent may exercise influence without being the day-to-day custodial parent. The problem is that ODHS used the two narratives opportunistically. When minimizing Mother's relationship and parenting capacity, ODHS characterized her as inactive and irrelevant. When attributing conflict, influence, or alleged manipulation to Mother, ODHS characterized her as sufficiently powerful that the children followed her directions over Father's authority. The agency never identified the actual conduct Mother allegedly directed, the context in which it occurred, the source of that assertion, or how that conduct created a current, non-speculative danger to Almira. The report uses Mother's alleged influence as adverse evidence while refusing to recognize it as evidence of an active parental bond, parental capacity, or a relationship requiring preservation.

F. Fabricated Third-Party Statements

(a) **Fabricated statement attributed to the maternal grandmother.**[23]
Mother's Mother, Marie Penn, has now attested under the penalty of perjury that no such statement was made by her to ODHS.

CW Crafton spoke with Ashle's mother on the phone who was very upset with the agency. She stated that she had been trying to get custody of Ashle's children for years because she is not fit to be a mother but was denied custody by the agency. During a previous assessment the children were the custody of ODHS. The two girls were placed with their father and the case was closed for them. Ashle' had another child in care until 2023 that is unrelated to this case.

AshLe's Mother, Marie Penn, has signed a sworn statement that there have been, so far, two statements attributed to her about AshLe's mental health and ability to parent that were *never* offered as a statement or made to anyone with any connection to ODHS whatsoever.

Contradiction: The maternal grandmother denies making this statement and so attests by signed affidavit.[24] Attributing to a named witness a statement she attests that she did not make is the *Beltran/Spencer* fabrication vector explicitly — invented witness evidence presented to support removal. This carries no legal protections for ODHS personnel and is a violation the agency is, or should have been well-aware of under the 4th and 14th amendment.

[21] A historical unwillingness to engage is not sufficient to establish a *current*, non-speculative, serious threat of harm likely to be realized.
[22] Fact Findings Report, pp. 71, 102.
[23] 2025-11-12 - ODHS Report, p. 23
[24] Affidavit of Marie A. Penn (maternal grandmother) available upon request.

G. Fabrications and Internal Contradictions About Mother's Home

(a) **"Amusement park fun" *vs.* "prison."** Father reports (Fact Findings Report, p. 70): "amusement park fun." Same document, p. 17: A.D. returned to father's home because she felt Mother's house was a "prison."

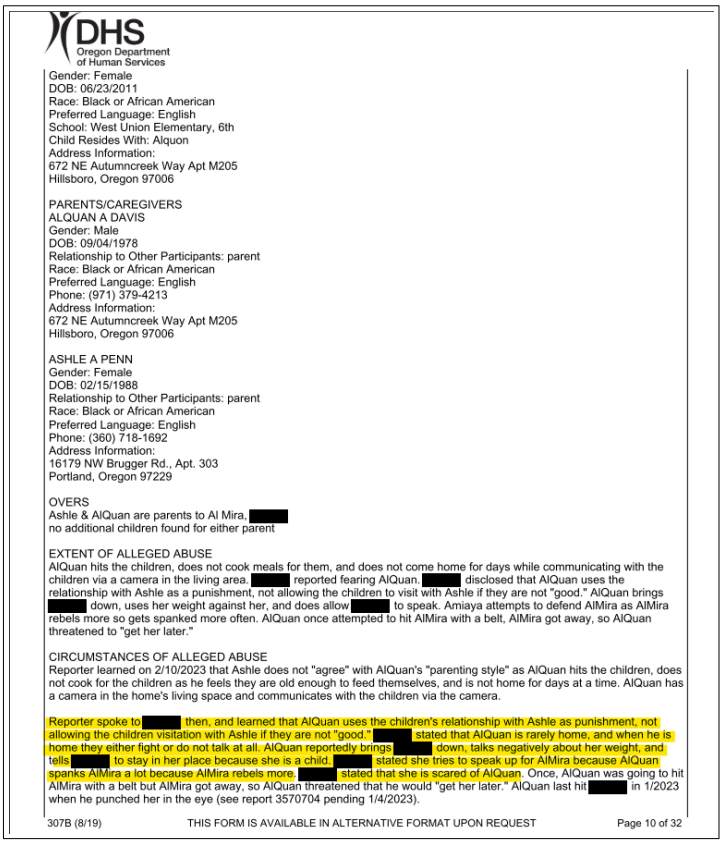
(b) **"Homeless" *vs.* stable address.** Fact Findings Report, p. 96 ("homeless"); p. 133 (address of record 17548 NW Springville Rd Apt 9); p. 58 ("resides close to the family").

(c) **"In hiding" *vs.* "constantly showing up."** Fact Findings Report, pp. 24, 142 (in hiding); p. 143 (constantly showing up).

(d) **"Little to no discipline" *vs.* directive.** Fact Findings Report, p. 45 (permissive) *vs.* p. 48 ("girls are doing exactly what she tells them to do").

H. Fabrications About Mother's Presence at Father's Home

(a) **Fact Findings Report, pp. 47, 72, 74:** Mother "shows up sporadically" and "taking the children without permission." 2025-10-23 ODHS Report, p. 28: "Mother is using their father's home as a punishment."



DHS
Oregon Department of Human Services

Gender: Female
DOB: 06/23/2011
Race: Black or African American
Preferred Language: English
School: West Union Elementary, 6th
Child Resides With: Alquon
Address Information:
672 NE Autumncreek Way Apt M205
Hillsboro, Oregon 97006

PARENTS/CAREGIVERS
ALQUAN A DAVIS
Gender: Male
DOB: 09/04/1978
Relationship to Other Participants: parent
Race: Black or African American
Preferred Language: English
Phone: (971) 379-4213
Address Information:
672 NE Autumncreek Way Apt M205
Hillsboro, Oregon 97006

ASHLE A PENN
Gender: Female
DOB: 02/15/1988
Relationship to Other Participants: parent
Race: Black or African American
Preferred Language: English
Phone: (360) 718-1692
Address Information:
16179 NW Brugger Rd., Apt. 303
Portland, Oregon 97229

OVERS
Ashle & AlQuan are parents to Al Mira, [redacted]
no additional children found for either parent

EXTENT OF ALLEGED ABUSE
AlQuan hits the children, does not cook meals for them, and does not come home for days while communicating with the children via a camera in the living area. [redacted] reported fearing AlQuan. [redacted] disclosed that AlQuan uses the relationship with Ashle as a punishment, not allowing the children to visit with Ashle if they are not "good." AlQuan brings [redacted] down, uses her weight against her, and does allow [redacted] to speak. Amiaya attempts to defend AlMira as AlMira rebels more so gets spanked more often. AlQuan once attempted to hit AlMira with a belt, AlMira got away, so AlQuan threatened to "get her later."

CIRCUMSTANCES OF ALLEGED ABUSE
Reporter learned on 2/10/2023 that Ashle does not "agree" with AlQuan's "parenting style" as AlQuan hits the children, does not cook for the children as he feels they are old enough to feed themselves, and is not home for days at a time. AlQuan has a camera in the home's living space and communicates with the children via the camera.

Reporter spoke to [redacted] then, and learned that AlQuan uses the children's relationship with Ashle as punishment, not allowing the children visitation with Ashle if they are not "good." [redacted] stated that AlQuan is rarely home, and when he is home they either fight or do not talk at all. AlQuan reportedly brings [redacted] down, talks negatively about her weight, and tells [redacted] to stay in her place because she is a child. [redacted] stated she tries to speak up for AlMira because AlQuan spanks AlMira a lot because AlMira rebels more. [redacted] stated that she is scared of AlQuan. Once, AlQuan was going to hit AlMira with a belt but AlMira got away, so AlQuan threatened that he would "get her later." AlQuan last hit [redacted] in 1/2023 when he punched her in the eye (see report 3570704 pending 1/4/2023).

307B (8/19) THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST Page 10 of 32

Figure 33. ODHS' own reports contradict the narrative that Mother uses father's home as punishment. Factually, the converse is true - that Father uses Mother's relationship as punishment for the girls. *(Source: ODHS case notes.)*

Contradiction — Father's own letter to Mother, January 15, 2023 (Exhibit B): "Goal with this meeting is for the two of us to work together and co-parent." Father set behavioral guidelines for Mother's visits: "Be respectful of my apartment. Clean up after yourself"; "Don't bring food when the kids tell you they are hungry… I would prefer that you come over and teach them how to cook"; "Stick to your word…"; "Per our agreement I need you to get the girls on the weekend, NO excuses"; "DO NOT overstay your welcome. Unless you have spoken with me about spending the night, when I tell you it is time to go, please respect that and leave."

The letter *invites* and *regulates* Mother's presence at Father's home. It does not prohibit it. The agency has never presented this letter to the court.

(b) **Internal contradiction:** Father simultaneously described as wanting more contact and as the victim of unauthorized contact. Fact Findings Report, p. 47 ("he wants the girls to see their mom more often because 'she's their mom' ") *vs.* p. 47 ("Ashle will sometimes 'just show up' ").

(c) **Independent screener and law-enforcement contradiction.** Fact Findings Report, p. 197: "reporter is not aware of any no contact order etc that would suggest there would be a legal issue with allowing

Ashle inside of the home." Same document, p. 181: "police would not forcibly remove the children from her."

I. Fabrication of "Unwilling or Unable to Protect" from Father

(a) **Jurisdictional Allegation B (proven 10/31/2025):** "The mother fails to recognize the safety threats presents by the father and is unwilling or unable to protect the child from father's unsafe behaviors."

Direct causation contradiction: In April 2024, an ODHS worker transported A.D. from grand jury proceedings directly to Mother's home. ODHS itself then took the position that Al-Quan "was a safe placement" and moved to remove the no-contact order — restoring Father's contact with A.D. Approximately five months later, on September 6, 2025, Father was arrested at his home for Criminal Mischief in the First Degree and Strangulation of A.D. **The Department cannot allege that I am "unwilling or unable" to protect A.D. from a father whom the Department itself endorsed as a safe placement.**

J. Fabrication and Concealment of the September 6, 2025 Recantation

(a) **The 19-minute reversal without disclosure of the same-day recantation.** Kitto text 5:40 PM: "we can release custody to you." Kitto text 5:59 PM: "suicidal intent if she was made to return to your care." Hospital social worker Leah Sathrum documented the statement "was definitely not what child said initially and worried the change in statements was due to parents' reaction" (2025-10-13 ODHS Report). **You yourself acknowledged the recantation on our January 28, 2026 recorded call** at transcript time 19:18 ("once there was a recantation for that to be considered") and 20:08 ("even given the recantation"). You also said: "we didn't actually look at mom's parental capacity" and "we really don't have any instances of her acting dangerously with regard to the safety of this girl." The recantation appears *nowhere* in the September 8, 2025 shelter petition, the September 8, 2025 shelter order, or the diligent-efforts submissions.

K. Fabrications in the Diligent-Efforts Sworn Submissions

(a) **Rylan Duffy *Declaration of Diligent Efforts toward Service* (10/10/2025) and Kayla Miller *Affidavit Regarding Efforts to Serve Parent* (10/28/2025)** omit five known channels of contemporaneous contact:

(a) Mother's September 8, 2025 1:44 PM written filing received by the Washington County juvenile clerk;
(b) Clerk Kimberly A. Beck's September 9, 2025 3:09 PM email acknowledging receipt of the filing;
(c) Mother's September 8, 2025 3:34 PM email to Supervisor Kitto: "I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing";
(d) Mother's telephonic contact with the juvenile court during the shelter hearing ("Apparently, Mom is called into the court, not to the court hearing");
(e) The text and email channels through which ODHS itself had communicated with Mother on September 6, 7, and 8, 2025.

Omission of five known channels of contemporaneous contact from sworn diligent-efforts submissions — while representing to a court that a parent could not be located — is judicial deception under *Hardwick v. County of Orange*, 844 F.3d 1112, 1116–17 (9th Cir. 2017), and warrants review under ORS 162.065 (Perjury) and ORS 162.075 (False Swearing).

L. Fabrications About the Visitation Record

(a) **Zero visits.**[25]

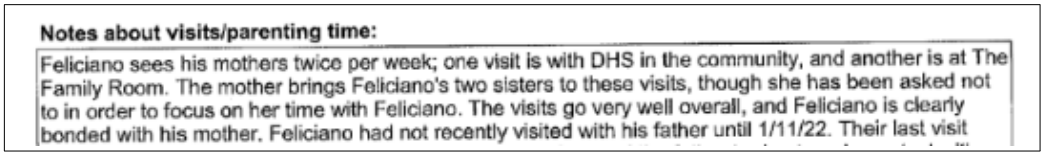

Notes about visits/parenting time:
Feliciano sees his mothers twice per week; one visit is with DHS in the community, and another is at The Family Room. The mother brings Feliciano's two sisters to these visits, though she has been asked not to in order to focus on her time with Feliciano. The visits go very well overall, and Feliciano is clearly bonded with his mother. Feliciano had not recently visited with his father until 1/11/22. Their last visit

Figure 34. ODHS's own record of Mother's consistent visitation—contradicting Marquand's testimony that Mother did not complete "any services". *(Source: ODHS visit notes.)*

[25] 2026-02-23 Review Judgment, p. 3; 2026-06-29 Permanency Judgment, p. 5; 2026-06-18 ODHS Report, p. 8.

Marquand would also testify that zero visits have taken place throughout Al-mira's removal from Mother, but the agency was aware at the time the statement was made that this was not true *and* that permanency worker had made statements to the contrary regarding Mother having "done Al-mira's hair" and without any assistance from the agency in reaching her AL-mira thirty miles away.

Contradiction 1 — no visitation plan ever provided: Penn Supplement, p. 4 ("No visitation plan has been provided to Mother. The agency's failure to provide any assistance while claiming "zero visits have occurred in ten months" and then attributing the lack of visitation on Mother while the agency is required to provide such service is far from reasonable with regard to the agency's efforts). *Contradiction 2 — contact restricted without court authorization:* Kitto text of September 7, 2025 at 10:50 AM imposed a contact restriction before any court order authorized restriction. No detriment finding under ORS 419B.090(3) has been made. *Contradiction 3:* 2026-06-18 ODHS Report simultaneously states "0" family time visits with Ashle Penn on p. 5 *and* "Mom has visited with Almira twice" on p. 5.

M. Fabrication About the Child's Preference

(a) **2026-02-12 ODHS Report, p. 30 (Hopkins 90-day staffing note, 1/26/2026):** "Almira does not want to go to mom — just wants to be with dad."

Contradiction — Marquand's own sworn testimony 10/31/2025: Timecode 20:14–20:36: "she has also said that she will go live with her mother but wants to do family counseling first before that... but the child is willing and wanting to engage in that service." *Contradiction — A.D. directly:* 2025-09-08 Protective Custody Report, p. 6: "if she couldn't go home to her dad she wanted to go home with her mom."

N. Fabrication About the "Criminal Activities" Allegation

(a) **Jurisdictional Allegation C (proven 10/31/2025):** "The mother is involved in criminal activities which interfere with her ability to safely parent the child."

Marquand's own sworn admission (Timecode 13:35–13:44): "the agency has not had meaningful contact with the mother to fully assess her and get information about her substance use." **The Department obtained jurisdiction on an unassessed inference.** This fails the standard of *Dep't of Human Servs. v. A.W.*, 276 Or App 276, 278 (2016), requiring a "current, non-speculative threat of serious loss or injury that is likely to be realized."

O. Fabrication About the "Refused DV Grant"

(a) **Historical assertion carried into current risk narrative:** Mother refused a DV grant.

Contradiction: Milne First Call transcript, p. 2–3: "I went and initiated that DV grant on my own... It was never offered to me, nor did I refuse it." ODHS records confirm: "Al Quan will not be receiving the DV grant as Ashle has applied for and received one recently" (2025-10-07 ODHS Report, p. 131).

P. Fabrication Regarding Mother's Access to the Case File

(a) **Implicit representation that ODHS has adequately served Mother with case information.**

Contradiction: I submitted a formal records request in May 2025 — five months before removal (2025-10-07 ODHS Report, p. 14). It has not been fulfilled. Judge Rini conditioned my inspection on physical appearance at the Washington County courthouse — exposing me to arrest on an unrelated warrant I am constitutionally contesting. I obtained the case record only when Al-mira's attorney provided her a zip drive that she delivered to me. I learned the pleaded allegations only when you read them to me on a recorded call.

Q. Fabrications About the September 8, 2025 Clerk Rejection and Service

(a) **Fabrication that my failure to appear at the shelter hearing was voluntary and appropriately treated as default.**

Contradiction: I filed a timely written special appearance at 1:44 PM on September 8, 2025 — before the shelter hearing concluded. The filing was received by the clerk, not docketed, and rejected the next day by Clerk Beck without citation to any statute or rule. The clerk's office subsequently accepted a substantively identical filing (Initial Rejected Filing, pp. 13, 29). I telephonically contacted the court

during the shelter hearing itself, as the transcript records: "Apparently, Mom is called into the court, not to the court hearing." No Webex link was provided to me despite Washington County Presiding Judge Order No. 343 mandating Webex generation for all hearings.

(b) **Jurisdiction was taken without service of summons.** "A court may make an order establishing jurisdiction *** only after service of summons." ORS 419B.815(1). The first attempt to serve Mother occurred October 14, 2025 — after the September 8 shelter hearing — and on that same date Judge Rini stated on the record that "mom still has not been served," which AAG Wadia confirmed. Milne acknowledged the service defect on recorded calls of December 8 and December 25, 2025 ("I want to accept service. I have never evaded service.").

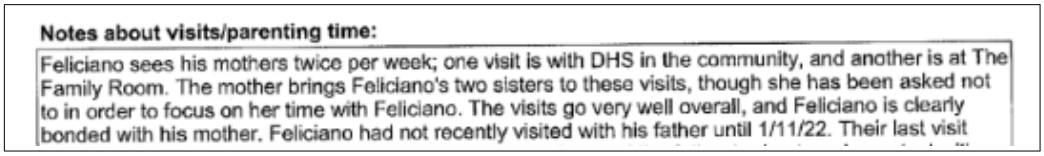
R. Emilie Marquand's Sworn Testimony (October 31, 2025 Trial)

(a) **Sworn witness-tampering allegation delivered without foundation.** *Marquand, Timecodes 6:56–7:05 and 9:56–10:04:* "There is significant concern that the mother did coach the child to recant these statements after the conversation that the mother had with the child via phone… The agency does have concerns that the mother has coached this child. There has been ongoing concerns over the years related to that."

Contradiction: No agency record contains any evidence — no witness statement, no recording, no independent observation — that Mother coached A.D. Hospital social worker Sathrum's own case note documents the recantation as her contemporaneous observation; her speculative note about "parents' reaction" is not a finding of coaching. Marquand's sworn assertion delivered under oath without foundation, and repeated as "ongoing concerns over the years" without supporting record, is the *Beltran* fabrication vector: a social worker delivering unsupported speculation as sworn fact. The coaching theory is impossible on the agency's own timeline. ODHS recorded at 2:30 PM on September 6, 2025 that hospital staff had raised a concern about Al-mira recanting based on what Mother would say — yet Mother's first contact with the child did not occur until approximately 5:00 PM that day, roughly two and one-half hours later. The agency documented a coaching concern before any communication existed through which Mother could have coached. A concern that predates the only conduct that could have caused it is not evidence of that conduct; it is fabrication.

(b) **Sworn testimony contradicted by the same witness thirty seconds later.** *Marquand, Timecode 7:53–8:05:* "the mother did not engage in any services and actually failed to do any of the services." *Marquand, Timecode 12:37–12:41 (same witness, same trial):* "The mother has engaged in those assessments. The mother has, I will say limitedly, has engaged in those assessments."

(c) **Marquand's testimony that ODHS "motioned to dismiss the case" undermines the "no engagement" claim.** Marquand, Timecode 8:41–8:54: "the agency petitioned or motioned to dismiss the case." Agencies do not move to dismiss where a parent has completed nothing. The agency is the custodian of records which contain substantial evidence to the contrary.



Notes about visits/parenting time:

Feliciano sees his mothers twice per week; one visit is with DHS in the community, and another is at The Family Room. The mother brings Feliciano's two sisters to these visits, though she has been asked not to in order to focus on her time with Feliciano. The visits go very well overall, and Feliciano is clearly bonded with his mother. Feliciano had not recently visited with his father until 1/11/22. Their last visit

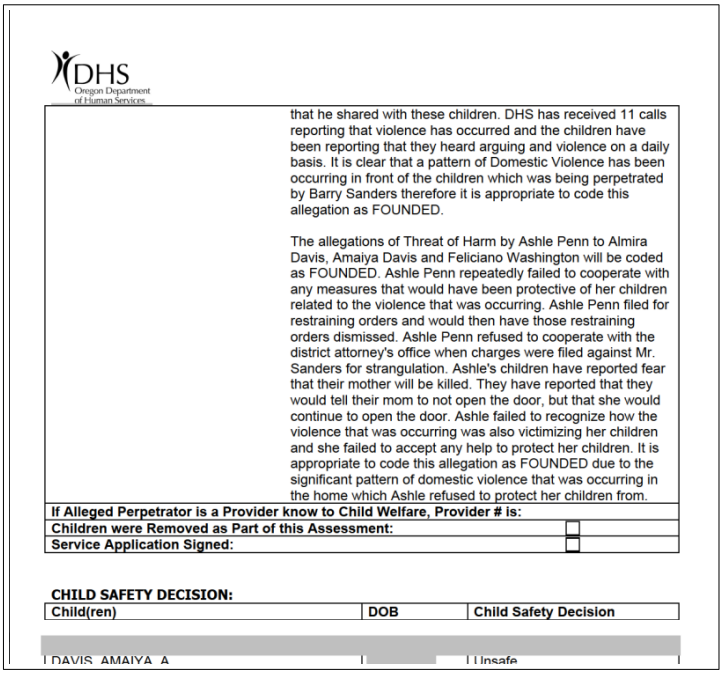
Figure 35. ODHS's own visitation record from the *prior* dependency case, documenting consistent visits — offered to rebut the "did not engage in any services" testimony, not the current-case visitation count. *(Source: ODHS visit notes, prior case.)*

(d) **False "32 calls" testimony offered as proof of parental deficiency.** Marquand — a caseworker of eight and one-half years, required to review a family's prior child-welfare history — testified that "32 calls" were logged under Mother, "19 of those calls being assigned for assessment," and "20 calls" under Father, "10 of which have been assigned," and presented the count as proof that Mother "does not understand" her child's needs and "lacks skills."[26] The count proves no such thing, and the agency's own intake history — which Marquand was obligated to read — establishes that it does not. Of the nineteen reports screened in under Mother's case between 2011 and 2025, the **sole** founded allegation against Mother is a single 2019 Threat of Harm — a *failure to protect* her children from the domestic violence of Barry Washington (whom the agency's own report elsewhere miscalls "Barry Sanders"). That finding is six years old, arose from a third party's violence, and issued without the founded-disposition

[26] Marquand testimony, Timecodes 7:24–7:31, 11:17–11:31.

letter that would have allowed Mother to challenge it. The finding is not evidence of abuse or neglect by Mother in any event: the agency's own narrative founds it because Mother "refused to cooperate with the district attorney's office when charges were filed against" her abuser for strangulation, and because she obtained and then dismissed restraining orders against him. It founds a domestic-violence survivor for her abuser's violence and for declining to assist his prosecution. A survivor's response to her own abuser is not a parenting deficiency, and the agency's failure to send the mandatory founded-disposition notice left even this finding insulated from the challenge Mother was entitled to bring. Every other screened-in report closed *unfounded* or *unable to determine*; the present case is *pending*. No substance-abuse allegation appears anywhere in the history — the "substance abuser" label originated as Father's uncorroborated report. Father's own case carries a nearly identical volume (nineteen reports, nine screened in), confirming the count reflects a high-conflict household and the agency's practice of filing every report under the mother's name, not a deficiency in Mother. A tally of contacts is not a finding, and it cannot establish the present, non-speculative danger jurisdiction requires. *A. W.*, 276 Or App at 278.

Agency intake history (CF307A)	Mother (Penn)	Father (Davis)
Total reports, 2011–2025	32	19
Screened in for assessment	19	9
Closed at screening	13	10
Founded against the parent	1 (2019 failure-to-protect)	—
Substance-abuse allegations	0	—



DHS
Oregon Department of Human Services

that he shared with these children. DHS has received 11 calls reporting that violence has occurred and the children have been reporting that they heard arguing and violence on a daily basis. It is clear that a pattern of Domestic Violence has been occurring in front of the children which was being perpetrated by Barry Sanders therefore it is appropriate to code this allegation as FOUNDED.

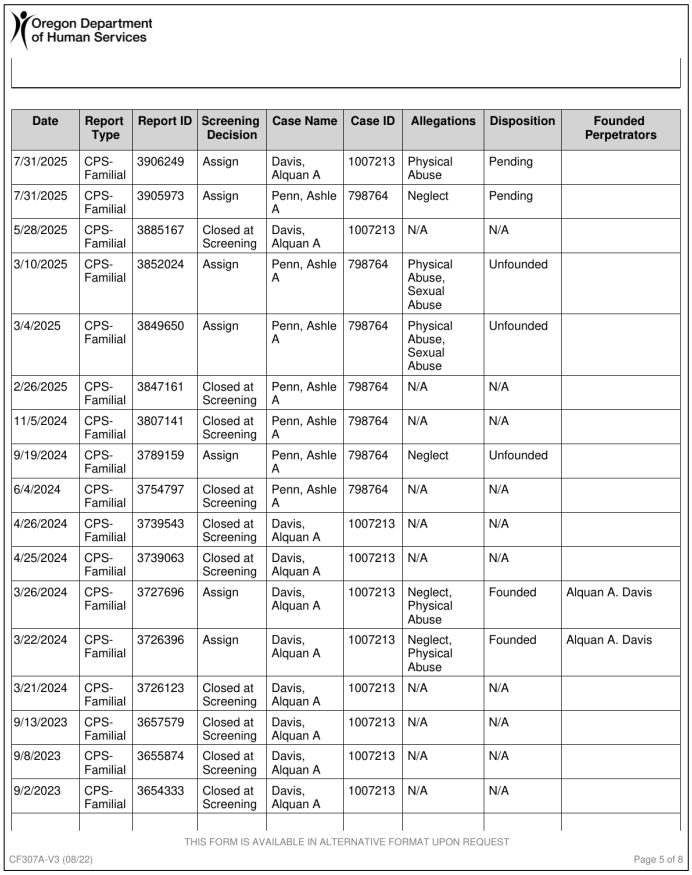
The allegations of Threat of Harm by Ashle Penn to Almira Davis, Amaiya Davis and Feliciano Washington will be coded as FOUNDED. Ashle Penn repeatedly failed to cooperate with any measures that would have been protective of her children related to the violence that was occurring. Ashle Penn filed for restraining orders and would then have those restraining orders dismissed. Ashle Penn refused to cooperate with the district attorney's office when charges were filed against Mr. Sanders for strangulation. Ashle's children have reported fear that their mother will be killed. They have reported that they would tell their mom to not open the door, but that she would continue to open the door. Ashle failed to recognize how the violence that was occurring was also victimizing her children and she failed to accept any help to protect her children. It is appropriate to code this allegation as FOUNDED due to the significant pattern of domestic violence that was occurring in the home which Ashle refused to protect her children from.

If Alleged Perpetrator is a Provider know to Child Welfare, Provider # is:
Children were Removed as Part of this Assessment: ☐
Service Application Signed: ☐

CHILD SAFETY DECISION:

Child(ren)	DOB	Child Safety Decision
DAVIS, AMAIYA A		Unsafe

Figure 36. The agency's own Fact Findings narrative: the sole Threat-of-Harm finding coded against Mother is a *failure to protect* her children from the "significant pattern of domestic violence" perpetrated by Barry Washington — a past finding arising from a third party's violence, not from any act of Mother's. *(Source: 2025-09-08 Fact Findings Report.)*



Oregon Department of Human Services

Date	Report Type	Report ID	Screening Decision	Case Name	Case ID	Allegations	Disposition	Founded Perpetrators
7/31/2025	CPS-Familial	3906249	Assign	Davis, Alquan A	1007213	Physical Abuse	Pending	
7/31/2025	CPS-Familial	3905973	Assign	Penn, Ashle A	798764	Neglect	Pending	
5/28/2025	CPS-Familial	3885167	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
3/10/2025	CPS-Familial	3852024	Assign	Penn, Ashle A	798764	Physical Abuse, Sexual Abuse	Unfounded	
3/4/2025	CPS-Familial	3849650	Assign	Penn, Ashle A	798764	Physical Abuse, Sexual Abuse	Unfounded	
2/26/2025	CPS-Familial	3847161	Closed at Screening	Penn, Ashle A	798764	N/A	N/A	
11/5/2024	CPS-Familial	3807141	Closed at Screening	Penn, Ashle A	798764	N/A	N/A	
9/19/2024	CPS-Familial	3789159	Assign	Penn, Ashle A	798764	Neglect	Unfounded	
6/4/2024	CPS-Familial	3754797	Closed at Screening	Penn, Ashle A	798764	N/A	N/A	
4/26/2024	CPS-Familial	3739543	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
4/25/2024	CPS-Familial	3739063	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
3/26/2024	CPS-Familial	3727696	Assign	Davis, Alquan A	1007213	Neglect, Physical Abuse	Founded	Alquan A. Davis
3/22/2024	CPS-Familial	3726396	Assign	Davis, Alquan A	1007213	Neglect, Physical Abuse	Founded	Alquan A. Davis
3/21/2024	CPS-Familial	3726123	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
9/13/2023	CPS-Familial	3657579	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
9/8/2023	CPS-Familial	3655874	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
9/2/2023	CPS-Familial	3654333	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	

THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

CF307A-V3 (08/22) Page 5 of 8

Figure 37. The agency's own CPS intake table (form CF307A). Each report shows its Screening Decision and Case Name — reports under "Penn, Ashle" are Mother's; those under "Davis, Alquan" are Father's. *(Source: 2025-09-08 Fact Findings Report, CF307A.)*



Oregon Department of Human Services

7/31/2023	CPS-Familial	3643998	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
5/19/2023	CPS-Familial	3621126	Assign	Davis, Alquan A	1007213	Physical Abuse	Unfounded	
4/20/2023	CPS-Familial	3609850	Closed at Screening	Davis, Alquan A	1007213	N/A	N/A	
3/24/2023	CPS-Familial	3600170	Assign	Davis, Alquan A	1007213	Mental Injury, Physical Abuse	Unfounded	
2/21/2023	CPS-Familial	3588660	Assign	Davis, Alquan A	1007213	Mental Injury, Physical Abuse	Unfounded	
2/10/2023	CPS-Familial	3585445	Assign	Davis, Alquan A	1007213	Mental Injury, Physical Abuse	Unfounded	
1/4/2023	CPS-Familial	3570704	Assign	Davis, Alquan A	1007213	Mental Injury, Physical Abuse	Unfounded	
12/15/2022	CPS-Familial	3566430	Assign	Davis, Alquan A	1007213	Mental Injury, Physical Abuse	Unfounded	
11/20/2022	CPS-Familial	3559565	Closed at Screening	Lee, Devita L	375669	N/A	N/A	
1/31/2022	CPS-Familial	3459960	Closed at Screening	Penn, Ashle A	798764	Neglect, Threat of Harm	N/A	
10/19/2021	CPS-Familial	3429773	Assign	Penn, Ashle A	798764	Physical Abuse, Threat of Harm	Unfounded	
10/11/2021	CPS-Familial	3427006	Assign	Penn, Ashle A	798764	Physical Abuse, Threat of Harm	Unfounded	
10/7/2021	CPS-Familial	3426221	Closed at Screening	Davis, Alquan A	1007213	Physical Abuse	N/A	
9/17/2020	CPS-Familial	3313000	Assign	Penn, Ashle A	798764	Neglect	Unfounded	
3/20/2020	CPS-Familial	3268321	Closed at Screening	Lee, Devita L	375669	Threat of Harm	N/A	
1/27/2020	CPS-Familial	3250202	Assign	Penn, Ashle A	798764	Threat of Harm	Founded	Barry Washington, Ashle A. Penn
1/15/2020	CPS-	3245552	Closed at	Penn, Ashle	798764	Threat of	N/A	

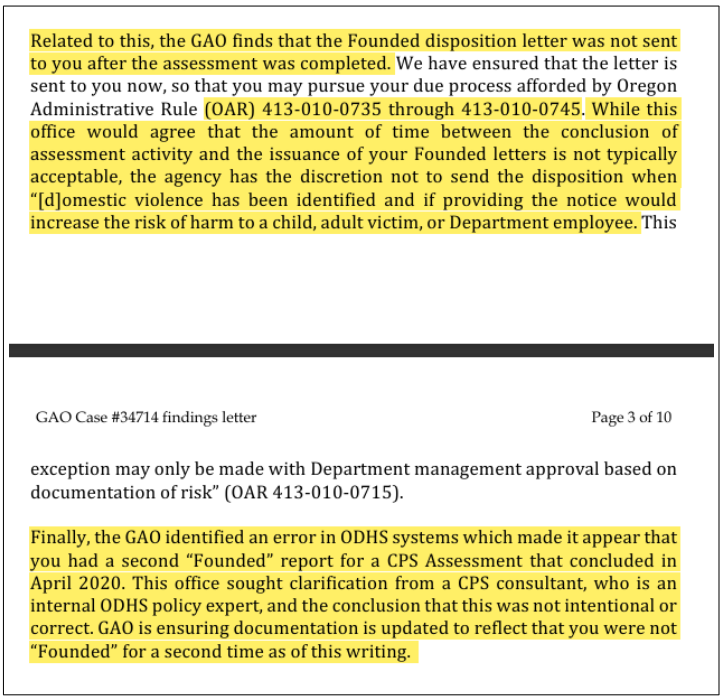
THIS FORM IS AVAILABLE IN ALTERNATIVE FORMAT UPON REQUEST

CF307A-V3 (08/22) Page 6 of 8

Figure 38. Continuation of the CF307A intake table: the founded dispositions cluster in 2019 and name Barry Washington; the remaining assessments close unfounded or unable to determine. *(Source: 2025-09-08 Fact Findings Report, CF307A.)*

(e) **False "refused to pick up the child" testimony.** Marquand testified that Mother "refused to pick this child up from the hospital." The agency's own Protective Custody Report records the opposite: Mother "was finally able to be reached at 4:31pm and indicated that she was in the community and couldn't get to the hospital except by bus and that would be several hours," that she "couldn't get the time off work like she thought she could *but was sending the uncle instead*," and that worker Bennett "attempted to make plans to meet with and transport Ashle to her daughter." The uncle Mother sent was certified by the agency as the child's relative placement within twenty-four hours. Mother did not refuse; she arranged the relative resource the agency then approved. The agency omitted each of these facts from its testimony to the court.

(f) **Inaccurate sworn testimony about Mother's warrants, confirming the absence of firsthand knowledge.** Marquand testified that Mother "failed to appear to her hearing on June 23 of 2025 for the theft of the first degree but there was no warrant issued in my understanding for that case," attributing the active warrant instead to a separate "possession of meth and theft" charge. The law-enforcement record is otherwise: a single felony failure-to-appear warrant issued on the theft-in-the-first-degree and unlawful-possession-of-methamphetamine charges together. Hillsboro Police Dept. GO 2025-17657. Marquand's "in my understanding" qualifier, and her misdescription of the warrants, confirm she testified from second-hand paperwork she had not accurately reviewed — the same absence of personal knowledge, OEC 602, that infects her testimony throughout.



Related to this, the GAO finds that the Founded disposition letter was not sent to you after the assessment was completed. We have ensured that the letter is sent to you now, so that you may pursue your due process afforded by Oregon Administrative Rule (OAR) 413-010-0735 through 413-010-0745. While this office would agree that the amount of time between the conclusion of assessment activity and the issuance of your Founded letters is not typically acceptable, the agency has the discretion not to send the disposition when "[d]omestic violence has been identified and if providing the notice would increase the risk of harm to a child, adult victim, or Department employee. This

GAO Case #34714 findings letter Page 3 of 10

exception may only be made with Department management approval based on documentation of risk" (OAR 413-010-0715).

Finally, the GAO identified an error in ODHS systems which made it appear that you had a second "Founded" report for a CPS Assessment that concluded in April 2020. This office sought clarification from a CPS consultant, who is an internal ODHS policy expert, and the conclusion that this was not intentional or correct. GAO is ensuring documentation is updated to reflect that you were not "Founded" for a second time as of this writing.

Figure 39. Governor's Advocacy Office (#34714): no founded-disposition letter against Mother could be located. Outright proof that the agency had continued to assess my parental capacity, directly contradicting what the agency now asserts in that they are unable to assess my parental capacity.*(Source: GAO correspondence.)*

(g) **Sworn fabrication — the 20 hotline calls / 10 assessments regarding Father's case since 2021.** Marquand, Timecode 11:17–11:31. ODHS did not open a dependency case on Father until the September 6, 2025 assault. The agency's own failure to open a case is not Mother's failure to protect.

(h) **Sworn fabrication — blaming Mother for not modifying a custody order she was jurisdictionally barred from modifying.** Marquand, Timecode 12:59–13:04. Mother did attempt to modify custody after the April 2024 arraignment; the Washington County court declined jurisdiction on jurisdictional grounds unrelated to Mother.

(i) **Sworn fabrication contradicted by A.D.'s own recorded preference.** Marquand, Timecode 20:14–20:36 (see Item above for the direct contradiction).

S. Judge Rini's Ordered Services Contradict Dr. Tongue's Court-Ordered Expert Evaluation

(a) **Dispositional order requiring Mother to "participate in parent education classes."** Judge Rini's disposition order, Timecode 27:29–27:35.
Contradiction — Dr. Tongue's court-ordered evaluation, Recommendation 2: "Ms. Penn, in my opinion, does not merit referral for parent training. She seems to have an adequate understanding of child development and parenting practices which would likely not be improved by attending the typical parenting

class." Ordering redundant, unnecessary services in direct contradiction of the agency's expert violates ORS 419B.343(1)(a), which requires ordered services to be "rationally related to the jurisdictional findings." Under OEC 702–703, a social-worker lay opinion cannot substitute for a psychologist's controlled clinical testing.

T. Judicial Misleading Characterization of Mother's Habeas Filing

(a) **Judge Rini's ruling, Timecode 16:33–16:52:** "Ms. Penn has attempted to file habeas corpus motions to get him out of custody."

Contradiction: The judge cited no source. The actual predicate: Washington County Sheriff's deputies entered Mother's home based on an administrative order signed by a Washington County Community Corrections officer — not a judicial warrant. Deputies did not have consent to enter. The State could not produce the document at the time of arrest. The State produced an "order of arrest" only 73 days later, signed by a person laid off shortly thereafter and whom the State refused to call as a witness. The habeas filing raised the Fourth Amendment violation of Mother's own home. To describe it as an attempt to "get him out of custody" strips the Fourth Amendment predicate and imports an association-based innuendo.

Independent corroboration of the retaliatory posture — Washington County HR (Exhibit K): September 19, 2025 fee-waiver denial letter from Aaron Mendes cites — as Ground (c) — the County's belief that Mother intends to "provide legal assistance to the «convicted» perpetrator of the crimes she is the victim of." That admission on the face of the County's own denial confirms that Mother's constitutionally protected legal activity is being used against her across at least two county departments.

---

9. Neither Absolute Nor Qualified Immunity Shields This Conduct

The Ninth Circuit forecloses *both* forms of immunity for the conduct documented here. **Absolute immunity** does not apply: social workers may enjoy it when performing functions "critical to the judicial process itself," but they are "not entitled to absolute immunity from claims that they fabricated evidence during an investigation or made false statements in a dependency petition," because such acts "aren't similar to discretionary decisions about whether to prosecute." *Beltran v. Santa Clara County*, 514 F.3d 906, 908 (9th Cir. 2008) (en banc).

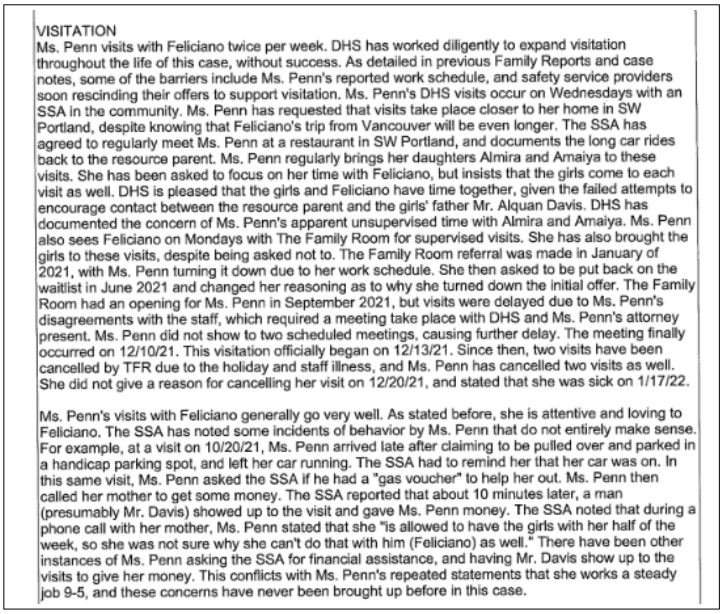
Qualified immunity does not apply either, because the right at issue was clearly established years before this case. Sitting en banc in *Devereaux v. Abbey*, 263 F.3d 1070, 1074–75 (9th Cir. 2001), the court held that "there is a clearly established constitutional due process right not to be subjected to criminal charges on the basis of false evidence that was deliberately fabricated by the government," adding that "[a]nyone who acts on behalf of the government should know that a person has a constitutional right not to be 'framed."' The court extended that rule to the civil child-welfare context in *Costanich v. Department of Social & Health Services*, 627 F.3d 1101, 1108 (9th Cir. 2010), holding that "deliberately fabricating evidence in civil child abuse proceedings violates the Due Process [Clause] of the Fourteenth Amendment," and that the right is "sufficiently obvious" to deny a social worker qualified immunity. Deliberate fabrication may be proven by circumstantial evidence. *Spencer v. Peters*, 857 F.3d 789 (9th Cir. 2017).

The pattern is not confined to ODHS, and it is not a single mistake. Twice, in two counties, the agency has placed a fabricated characterization of Mother before a court while its own contemporaneous records established the truth: in 2020, ODHS told the Multnomah County court that Mother thought herself "too good" for a shelter the day after its own family-planning notes recorded that Mother had pursued that very resource and been told she was ineligible (Figures above); and in 2025, ODHS built the present case on the fabrications and omissions catalogued here. Washington County Human Resources (Exhibit K) and the Washington County District Attorney (Exhibit L) have each adopted the same retaliatory posture, using Mother's constitutionally protected legal activity against her. A local government is liable under 42 U.S.C. § 1983 where a policy, custom, or persistent practice causes the constitutional injury, *Monell v. Dep't of Social Servs.*, 436 U.S. 658, 690–91 (1978), and it enjoys no qualified immunity for such a claim, *Owen v. City of Independence*, 445 U.S. 622 (1980). The cross-county, cross-department pattern documented here is the custom that Monell reaches, and it forecloses any good-faith-mistake defense.

The Pattern Extends Beyond ODHS

The fabrication and retaliation pattern documented above is not confined to ODHS. Washington County Human Resources (Exhibit K) has denied fee waivers on the basis of Mother's constitutionally protected legal activity. Washington County District Attorney (Exhibit L) has, on appeal, adopted the same view. Judge Rini has imported that view onto the record of the dependency proceeding through the habeas mischaracterization above. A supervisor with knowledge of a cross-department retaliation pattern cannot claim, in good faith, that the record reflects a good-faith mistake.

The record above is not a series of isolated errors. The agency's diligent-efforts certification omitted mother's still pending objection to referee jurisdiction. Without the court having identified lawful basis for rejecting Mother's submission, the court clerk had no authority to reject it. The agency's "no relative available" posture at removal is refuted by the agency's own certification of the maternal relative provided by mother, prior to protective custody being taken, as placement within twenty-four hours. The agency's "unwilling to engage" characterization is refuted by the agency's own notes recording mother's arrangement of this family presence and her direction of communication to a supervisor in writing. The agency's coaching allegation is temporally impossible on the agency's own contact log. The agency's finding that mother "does not understand" her child's needs was rendered by a witness who is not clinically credentialed to make that finding and who ignored a licensed neuropsychologist's contrary evaluation of the same capacity while claiming the very record quoted and mischaracterized didn't exist. The agency restricted the child's disclosure to her mother, and suspended mother's contact with her child, without a court order authorizing either restriction. **The agency's shelter presentation substituted 285 pages of historical case material, or material directly related to father's incident which caused Al-mira's entry into care, for the present-danger predicate ORS 419B.180 requires.** Each defect is documented in the file. Amelioration and restorative actions are, at this juncture, not discretionary.



VISITATION
Ms. Penn visits with Feliciano twice per week. DHS has worked diligently to expand visitation throughout the life of this case, without success. As detailed in previous Family Reports and case notes, some of the barriers include Ms. Penn's reported work schedule, and safety service providers soon rescinding their offers to support visitation. Ms. Penn's DHS visits occur on Wednesdays with an SSA in the community. Ms. Penn has requested that visits take place closer to her home in SW Portland, despite knowing that Feliciano's trip from Vancouver will be even longer. The SSA has agreed to regularly meet Ms. Penn at a restaurant in SW Portland, and documents the long car rides back to the resource parent. Ms. Penn regularly brings her daughters Almira and Amaiya to these visits. She has been asked to focus on her time with Feliciano, but insists that the girls come to each visit as well. DHS is pleased that the girls and Feliciano have time together, given the failed attempts to encourage contact between the resource parent and the girls' father Mr. Alquan Davis. DHS has documented the concern of Ms. Penn's apparent unsupervised time with Almira and Amaiya. Ms. Penn also sees Feliciano on Mondays with The Family Room for supervised visits. She has also brought the girls to these visits, despite being asked not to. The Family Room referral was made in January of 2021, with Ms. Penn turning it down due to her work schedule. She then asked to be put back on the waitlist in June 2021 and changed her reasoning as to why she turned down the initial offer. The Family Room had an opening for Ms. Penn in September 2021, but visits were delayed due to Ms. Penn's disagreements with the staff, which required a meeting take place with DHS and Ms. Penn's attorney present. Ms. Penn did not show to two scheduled meetings, causing further delay. The meeting finally occurred on 12/10/21. This visitation officially began on 12/13/21. Since then, two visits have been cancelled by TFR due to the holiday and staff illness, and Ms. Penn has cancelled two visits as well. She did not give a reason for cancelling her visit on 12/20/21, and stated that she was sick on 1/17/22.

Ms. Penn's visits with Feliciano generally go very well. As stated before, she is attentive and loving to Feliciano. The SSA has noted some incidents of behavior by Ms. Penn that do not entirely make sense. For example, at a visit on 10/20/21, Ms. Penn arrived late after claiming to be pulled over and parked in a handicap parking spot, and left her car running. The SSA had to remind her that her car was on. In this same visit, Ms. Penn asked the SSA if he had a "gas voucher" to help her out. Ms. Penn then called her mother to get some money. The SSA reported that about 10 minutes later, a man (presumably Mr. Davis) showed up to the visit and gave Ms. Penn money. The SSA noted that during a phone call with her mother, Ms. Penn stated that she "is allowed to have the girls with her half of the week, so she was not sure why she can't do that with him (Feliciano) as well." There have been other instances of Ms. Penn asking the SSA for financial assistance, and having Mr. Davis show up to the visits to give her money. This conflicts with Ms. Penn's repeated statements that she works a steady job 9-5, and these concerns have never been brought up before in this case.

Figure 40. ODHS's own note that visits went well—contradicting the "zero visits" entries in the judgments.

27

A. Every Further Endorsement of This Record Is a Present Decision, Not an Inherited One

The answer I have received from your agency is that the past cannot be changed. That is not the question. The question is what ODHS files next. Each report the agency submits that repeats a representation its own file contradicts is a new act. Each judgment the agency allows to rest on the October 31, 2025 default is a new reliance on a predicate the agency knows to be false. Each day Al-mira remains out of my home on an assessment the agency itself describes as unable to determine risk is a continuing deprivation. The conduct is not historical. It is current, and it is occurring under your supervision. The Ninth Circuit has already addressed what officials in this position may and may not claim. In *Hardwick v. Vreeken*, 844 F.3d 1112 (9th Cir. 2017), the court held that social workers "are not entitled to absolute immunity from claims that they fabricated evidence during an investigation or made false statements in a dependency petition affidavit that they signed under penalty of perjury, because such actions aren't similar to discretionary decisions about whether to prosecute." *Id.* at 1116 (quoting *Beltran v. Santa Clara County*, 514 F.3d 906, 908 (9th Cir. 2008)

[27] ODHS visit notes.

(en banc)). On qualified immunity the court left no room at all: "there is no such thing as a minor amount of actionable perjury or of false evidence that is somehow permissible," because "government perjury and the knowing use of false evidence are absolutely and obviously irreconcilable with the Fourteenth Amendment's guarantee of Due Process in our courts." *Id.* at 1119. And: "There are no circumstances in a dependency proceeding that would permit government officials to bear false witness against a parent." *Id.* The court also foreclosed the distinction your counsel is most likely to reach for. *Costanich v. Dep't of Soc. & Health Servs.*, 627 F.3d 1101 (9th Cir. 2010), is inapplicable because Costanich concerned a foster-care licensee's state-derived interest, whereas "the fundamental liberty interests of parents and their children in their familial relationship has long been clearly established." *Hardwick*, 844 F.3d at 1120–21. I am a legal parent. *Costanich* offers no shelter here. The interest at stake is the one *Hardwick* quoted from *Wallis v. Spencer*, 202 F.3d 1126, 1136 (9th Cir. 2000): "Parents and children have a well-elaborated constitutional right to live together without governmental interference. That right is an essential liberty interest protected by the Fourteenth Amendment's guarantee that parents and children will not be separated by the state without due process of law except in an emergency." *Hardwick*, 844 F.3d at 1116. You are now on written notice, with the record attached. Whatever your employees believed in September and October of 2025, the agency's knowledge from the date of this letter forward is not in question. The pattern documented here is not confined to ODHS. Washington County Human Resources (Exhibit K) denied a fee waiver on the stated ground that I intend to "provide legal assistance to the «convicted» perpetrator of the crimes she is the victim of," and the Washington County District Attorney (Exhibit L) adopted the same position on appeal. As to the *County* defendants, a pattern of that kind is the municipal custom on which liability rests and it forecloses any good-faith-mistake defense.

10. Preservation of Evidence

This letter, its exhibits, and the recorded calls of January 28, 2026 and April 28, 2026 place ODHS on notice of pending and anticipated litigation. ODHS, its counsel, and each recipient shall preserve all records, communications, case notes, drafts, , recordings, and electronically stored information relating to *In re A.D.*, No. 25JU04261, and to Mother's prior involvement with the agency. The duty to preserve extends to text messages, emails, CF307A intake records, screening decisions, and the diligent-efforts file. Destruction or alteration of these records after receipt of this notice supports an adverse inference and sanctions.

11. Reservation of Rights

Nothing in this letter waives any right, claim, or remedy. Mother reserves all claims under 42 U.S.C. § 1983, the Oregon Tort Claims Act, and Oregon law, and all rights to move to set aside the judgments entered without service, to seek review of the orders that rest on the default, and to pursue the oversight avenues identified in the copy list. This letter is written notice under your recorded commitment; it is not the limit of the relief Mother will seek if the record is not corrected.

Ms. Faulkner, you told me on a recorded line that if you found perjury or unlawful conduct in this record, you would "absolutely handle that" with your employees and "notify the court." The record is now in front of you. What you do with it is the measure of that commitment.

Respectfully,



/s/
Ash Le' A. Penn
Mother, self-represented
17548 NW Springville Road, Unit 9
Portland, OR 97229
(424) 242-3374 ▪ ashlepenn.ap3@gmail.com

Appendix A — Proposed Stipulation — follows.

12. Appendix A — Proposed Stipulation and Order

Mother offers the following stipulation to resolve the defects identified above without contested litigation of the threshold jurisdictional question. This stipulation is offered without waiver of, and expressly preserves, Mother's position that jurisdiction was never validly acquired.

(a) **Return.** ODHS shall release Al-mira to Mother's care forthwith. Pending entry of an order effecting release, ODHS shall place Al-mira with Mother.

(b) **Correction of the record.** ODHS shall file a written correction disclosing to the juvenile court the September 6, 2025 recantation, the omissions in the Duffy Declaration and the Miller Affidavit, and the statements attributed to Mother and to the maternal grandmother that each denies.

(c) **Set-aside.** ODHS shall join, or file a statement of non-opposition to, Mother's motion under ORS 419B.923 to set aside the October 31, 2025 order finding Mother in default and the jurisdictional, dispositional, review, and permanency judgments resting upon it.

(d) **Service, if the case proceeds at all.** Upon the setting aside of the default, ODHS shall complete service of summons by a method authorized under ORS 419B.823 and 419B.824, or move for court-ordered alternative service under ORS 419B.824(5), so that any jurisdictional determination proceeds on proper notice and a contested record.

(e) **Interim terms, without waiver.** Pending resolution, ODHS shall provide Mother a written visitation plan and reasonable transportation assistance, and shall not treat Mother's assertion of her constitutional rights as evidence of danger.

(f) **No concession.** Neither this stipulation nor any performance under it constitutes an admission by Mother that the State's custody of Al-mira was lawfully obtained or lawfully maintained, and all of Mother's claims and objections are expressly reserved.

Sonya Faulkner, D16 Manager, ODHS	AshLe' Antoinette Penn, Mother
Date: _____	Date: _____

Exhibit B

Neuropsychological Evaluation — Dr. Christopher Tongue (10/30/2021)

Christopher K Tongue, Ph.D. **649 NE Hood Avenue**
Licensed Psychologist **Gresham, OR 97030**
Tel: (503) 318-5568 Fax: (503) 658-3835

NEUROPSYCHOLOGICAL EVALUATION / PARENTAL ASSESSMENT

NAME: Ashle A. Penn
DOB: 02/15/1988

DATE OF EVALUATION: 10/30/2021

REFERRAL: Ashle Penn is a 32-year-old woman who is the mother of three children and whose youngest child, born in 2019, is in the custody of Child Welfare and placed in relative foster care. According to the caseworker, Ms. Penn is seen by social service providers as intelligent and confident and has demonstrated very good parenting skills with her children. They also describe her as becoming defensive when asked about anything to do with her Child Welfare case and describe her as being difficult to have productive conversations with due to this. The DHS caseworker's letter states that they are often surprised by Ms. Penn's decisions, and they reportedly do not appear to line up with what she expresses. They describe her as not seeming to have an accurate perception of the reality of her situation. The purpose of the current evaluation is to aid in understanding the reason behind her decision making, and she has been previously court-ordered to participate in an evaluation since December of 2020, missing two previous appointments. Information about Ms. Penn's mental health is unknown, and it is unclear to Child Welfare whether she has had any previous mental health diagnoses. The caseworker's letter goes on to report that they have little understanding about Ms. Penn's family background. Ms. Penn's father moved to Portland, Oregon in 2021 to help her regain custody of her son. After two visits, her father reportedly abruptly left and told Child Welfare he could no longer participate and support Ashle due to concerns he had for her but did not elaborate about what he meant. Child Welfare reports that Ms. Penn has previously been in a relationship with the father of her two oldest children which was marred by domestic violence, although, as will be seen below, she denies this. She is described as having been more cooperative with her ex-partner in recent years. A primary concern on the part of Child Welfare, according to the caseworker's letter, is that according to them Ms. Penn seems to have a limited ability to understand what the children have witnessed and how this may have affected them psychologically. According to the caseworker's letter, Ms. Penn has not acknowledged the violence that has been inflicted on her in front of her children. There are a number of specific questions posed by the referring caseworker which I will attempt to address at the conclusion of the narrative below.

NAME: Ashle A. Penn
DOB: 02/15/1988

PROCEDURES: Ms. Penn was evaluated using clinical interview, review of available records, and the measures listed below.

1. Wechsler Adult Intelligence Scale-IV.
2. Wide Range Assessment of Memory and Learning-2.
3. Grooved Pegboard Test.
4. Boston Naming Test.
5. Delis-Kaplan Executive Function System – Trail Making Test, Conditions 1-5.
6. Delis-Kaplan Executive Function System – Verbal Fluency Test.
7. Delis-Kaplan Executive Function System – Color Word Interference Test.
8. Wisconsin Card Sorting Test – Computer Version 4.
9. Child Abuse Potential Inventory.
10. Millon Clinical Multiaxial Inventory-IV.

In addition to the above-mentioned psychometric instruments, the following records were reviewed.

1. Family Report from Multnomah County – 09/03/2021
2. DHS Assessment Summary – 11/14/2019
3. Washington County Sheriff's Office Reports

INFORMED CONSENT: Ms. Penn was informed that the contents of our diagnostic interview and psychometric assessment would be shared in a detailed report with Child Welfare and potentially the courts. She agreed to proceed with the exam.

BACKGROUND / SOCIAL HISTORY: Ms. Penn reports that she was born and raised in Southern California, moving to Portland, Oregon at age 17, where she completed her final year of high school. Her father, Avery Penn, now age 56, was a naval officer working in electronics during her childhood years, and her mother, Marie Penn, worked in medical office administration. She has a 35-year-old sister, Brittney, and a younger brother, Avery Penn Jr., age 29. Ms. Penn also has a half-brother, Masai Penn, age 8. Her parents separated when Ms. Penn was 26 years of age. Ms. Penn describes a normal childhood absent of any abuse or neglect on the part of her parents or any other family members.

Ms. Penn reports graduating from Roosevelt High School here in Portland with an A average and attending Portland Community College and Portland State University, obtaining a bachelor's degree in business and communication. She says at age 18 she worked for her father for a year as a loan originator and then for several years as a call

center employee for Wells Fargo. During her college years she worked as a waitress and bartender for three years. This was followed by three years of human resources work as a staffing manager and recruiter, at which she is now currently employed. She states that she is working 8-5, Monday-Friday, and sometimes on weekends.

Ms. Penn reports an arrest for DUII in 2012 and participation in what sounds like a diversion program for six weeks of alcohol and drug treatment. This is somewhat at odds with the legal history given in DHS records, which says that Ms. Penn has had two DUIIs and an assault charge resulting from one of them. She is notably listed as the victim on multiple police reports relating to her former domestic partner Barry Washington.

With regard to relationship history, Ms. Penn reports that at age 18 she commenced a relationship with an Alquon Davis, then age 26, and they were a couple for a decade, separating when she was 28 years of age. She says they are still friendly with one another. Their union produced two daughters: Amaiya, age 12, and Almira, age 10. Those two children are currently placed with Mr. Davis during the week, and he has legal custody. She denies any domestic violence occurring in this partnership. Prior to the onset of the Child Welfare case, Mr. Davis did not have legal custody of the children. Ms. Penn reports that at age 28 she commenced a relationship with a Barry Washington, and they were together for four years, separating approximately two years ago. She says that there were repeated episodes of domestic violence occurring over the 12 months prior to their separation. Their union produced a son, Feliciano, who was born in January of 2019. Ms. Penn reports that Mr. Washington was arrested for domestic violence on multiple occasions and is currently on probation related to a conviction for assault of Ms. Penn. They have no contact with one another. Ms. Penn states that she is currently living alone about five minutes by car from her daughters. Feliciano is placed with a paternal aunt in Vancouver, Washington and she has been having visitation with Feliciano once a week for an hour at the DHS office but now an hour a week in the community which is supervised.

PERTINENT MEDICAL HISTORY: Ms. Penn reports having all three of her children by cesarean section. She denies any history of serious injuries or illnesses. She denies any medication allergies. She takes no current medications.

SUBSTANCE USE HISTORY: Ms. Penn reports on interview that her first use of alcohol began at age 21 and she denies any history of alcohol dependence. She describes her typical pattern of use as consuming a bottle of wine over a period of two weeks, usually drinking socially with others. She reports using cannabis on an intermittent basis between ages 18 and 27 and says her last use was two years ago. She denies use of any other illicit

substances and denies participation in any substance use treatment other than the diversion program which followed her DUII arrest in 2012. According to the caseworker's letter, DHS has received information from collaterals about potential substance use by Ms. Penn, but this has not been confirmed and there was a report apparently in 2019 of an attempted overdose, which Ms. Penn denies on interview with me.

MENTAL HEALTH HISTORY: Ms. Penn denies any history of psychiatric hospitalizations, suicide attempts, or self-harm behaviors. She denies any history of eating disorder. She does report experiencing post-partum depression after the birth of her first child, which was successfully managed with the help of a parent mentor and a community health nurse who aided her in the early stages of her oldest child's development. She says that she has had 17 sessions of one-on-one domestic violence counseling through a therapist whom she states told her that she thought no further individual counseling was required. The history given by Ms. Penn is that she was referred to Lifeworks and no treatment was recommended, although the court has still mandated that she obtain more counseling. She says that in 2018, prior to the DHS case, she had gone to seek counseling at Lifeworks to discuss strengthening her parenting abilities and attended a year's worth of a parenting class. She states that when the children were removed in 2020 she went back to Lifeworks, and she was told that she did not meet their criteria for participation in their program, but she says Child Welfare did not believe her. Ms. Penn states that she obtained a letter from Lifeworks asserting her positive participation. After receiving another mental health referral from Child Welfare and attending an intake, she reports being told by providers that it was not medically necessary. She has been told, by her report, that the 17 sessions she attended were insufficient and has been referred again for more individual counseling but has not yet obtained a connection to do this.

I was able to speak by telephone with Sherri Lynn Blanton, QMHP, who is a counselor working for a licensed clinical social worker. Ms. Blanton states that she saw Ms. Penn this year when she had been referred for domestic violence counseling. Ms. Blanton felt that Ms. Penn met criteria for a diagnosis of adjustment disorder with anxiety. She states that Ms. Penn had denied seeing the father of her youngest child, but appeared not to be clear what the requirements were from Child Welfare. She states that most of the sessions were spent allowing the patient to vent her complaints about Child Welfare. She states that she gave her resources and eventually told her there was nothing else she thought they could do. She reports they had 15 visits altogether. They ended with the patient saying she was not going to be talking with her ex-partner Barry anymore and that they were not in contact. Ms. Blanton says her impression was that Ms. Penn was not entirely forthcoming about the nature of her situation.

NAME: Ashle A. Penn
DOB: 02/15/1988

CURRENT COMPLAINTS AND FUNCTIONING: When asked about mental health symptoms, Ms. Penn states that her primary concern is that she misses her children. She denies any significant mental health symptoms, rating her mood as 8 on a scale from 0-10 most of the time, and she denies any suicide ideation. She denies any psychotic symptoms such as auditory or visual hallucinations. She denies any compulsive rituals or obsessive thoughts. She denies any trauma history such as sexual or physical assault, aside from that occurring in the context of her domestic partnership in which she was the victim of domestic violence. She denies any history of panic attacks and denies any anxiety other than that associated with her Child Welfare case. She denies any symptoms of post-traumatic stress disorder. She denies problems with sleep, saying she works late but wakes at 6am and feels rested on waking. Her appetite is normal, and she reports eating two meals a day.

BEHAVIORAL OBSERVATIONS / MSE: Ms. Penn is a right-handed, 32-year-old, African American woman, who is 5'4" tall and reports her weight at 135 lbs. She is dressed in casual clothing appropriate for the season and shows good self-care, grooming, and personal hygiene. Her speech is normal rate and productivity, with no abnormal prosody or dysarthria. She shows a normal range of affect. There were no gross motor abnormalities. Ms. Penn was cooperative to both diagnostic interview and psychometric testing and appeared to make her best effort on test tasks. Results obtained from neurocognitive assessment can be presumed to reflect an accurate picture of her abilities.

TEST FINDINGS

OVERALL INTELLECT: Ms. Penn was administered the Wechsler Adult Intelligence Scale-IV (WAIS-IV). On this measure she obtained a full scale IQ score in high average range, at the 86th percentile. High average range scores were obtained on WAIS-IV indices of verbal comprehension and working memory. She had an average range score on the WAIS-IV index of perceptual reasoning ability and her processing speed index score fell in very superior range. The reader is referred to the table below for a summary of WAIS-IV composite and subtest scaled scores, which will be discussed in greater detail as they apply to specific domains of cognitive functioning outlined below.

WAIS-IV Composite	Composite Score	Percentile Rank
Verbal Comprehension	110	75
Perceptual Reasoning	98	45
Working Memory	111	77
Processing Speed	140	99.6
Full Scale	116	86

NAME: Ashle A. Penn
DOB: 02/15/1988

WAIS-IV Subtests	Scaled Score	Percentile Rank
Similarities	11	63
Vocabulary	13	84
Information	12	75
Block Design	9	37
Matrix Reasoning	11	63

WAIS-IV Subtests	Scaled Score	Percentile Rank
Visual Puzzles	9	37
Digit Span	10	50
Arithmetic	14	91
Symbol Search	16	98
Coding	19	99.9

MOTOR FUNCTION: Ms. Penn showed no deficit in fine motor control or motor speed. On the Grooved Pegboard Test, she obtained a high average range score of 63 seconds with her right (dominant) hand and 59 seconds with her left hand. On the Delis-Kaplan Executive Function System (D-KEFS) Trail Making Test Condition 5, a measure of motor speed, her score was also high average (SS=13).

LANGUAGE BASED FUNCTION: Ms. Penn shows a high average range vocabulary, consistent with her measured overall intellect. This was replicated in her performance on the Boston Naming Test in which she was asked to verbally identify a series of 60 objects presented in pictures. She obtained an average range score, with 54 of 60 spontaneously given correct responses and 59 of 60 correct responses with phonemic cueing. Ms. Penn also showed no deficit in oral fluency and verbal retrieval, in fact scoring in above average range on the D-KEFS Verbal Fluency Test and gave a superior range score when cognitive load was increased (D-KEFS Verbal Fluency: Condition 1 SS=15, Condition 2 SS=14, Condition 3 SS=19).

ATTENTION / CONCENTRATION: Ms. Penn showed no deficit in attention span, with an average range performance on WAIS-IV digit span. She was able to repeat 8 digits forward and had a raw score of 6 on sequencing and also fell in average range on digits backward. This was replicated in her performance on both the letter number repetition and sentence memory subtests of the Wide Range Assessment of Memory and Learning-2. Ms. Penn was also administered the D-KEFS Trail Making Test Conditions 1-4. On this measure she showed superior range function on a visual scanning task and scored in high average range on both number and letter sequencing tasks. Her score on Condition 4 of the Trail Making Test, which requires both divided attention and sequential reasoning, fell in average range with 1 error of set loss (D-KEFS Trail Making: Condition 1 SS=15, Condition 2 SS=13, Condition 3 SS=13, Condition 4 SS=11).

VISUALLY BASED SKILLS: As noted above, Ms. Penn showed no deficit on a visual scanning task. She performed in average range on tests requiring constructional ability and mental modeling of the assembly of parts into wholes. On the matrix reasoning subtest of

the WAIS-IV, a visually based analytic and fluid reasoning task which requires novel problem solving using visual material, her score was in the middle of average range.

REASONING AND JUDGMENT: Ms. Penn showed a solidly average range capacity for abstract reasoning, consistent with her measured overall intellect and background and education. Her fund of information was high average compared to same-age cohorts. There was no indication, based on diagnostic interview, that she has any difficulty recognizing ordinary social mores.

LEARNING AND MEMORY: Ms. Penn was administered the Wide Range Assessment of Memory and Learning-2 (WRAML-2). This is a broad range battery of both verbal and visual memory tests which includes both immediate and delayed recall trials, as well as tests of recognition memory for both verbal and visual material. Ms. Penn showed no deficit on this measure in either verbal or visual memory on either immediate or delayed recall trials, or on tests of recognition memory. The reader is referred to the table below for a summary of WRAML-2 core subtest scaled scores (scaled score of 7-13 is average).

WRAML-2 Core Subtest	Scaled Score
Story Memory	15
Design Memory	15
Verbal Learning	8
Picture Memory	9
Number Letter	14
Sentence Memory	10
Story Memory Recall	14
Verbal Learning Recall	9
Story Recognition	12
Design Recognition	15
Picture Memory Recog.	9
Verbal Learning Recog.	9

EXECUTIVE FUNCTIONING: As noted above, Ms. Penn scored within normal limits on a task requiring both divided attention and sequential reasoning. She showed superior range processing speed on both symbol search and coding subtests of the WAIS-IV and had a superior range score on the arithmetic subtest of the WAIS-IV showing again, no difficulties with working memory. She again showed normal range processing speed on the D-KEFS Color/Word Interference Test on both color naming and word reading tasks. On Condition 3 of the Color/Word Interference Test, which requires response inhibition, her score was high average, and when cognitive load was increased and she was required to perform a task which involved both response inhibition and category switching in

combination, her score was again at the top end of average range (D-KEFS C/W Interference Test: Condition 1 SS=12, Condition 2 SS=14, Condition 3 SS=13, Condition 4 SS=13).

Ms. Penn was additionally administered the Wisconsin Card Sorting Test – Computer Version 4 (WCST). In this test the subject is asked to match a series of cards appearing on a computer screen by using different strategies such as color, shape, or number. The demand for matching strategy is shifted unexpectedly over the course of the test's administration and the test is thought to measure the subject's capacity for conceptual reasoning, mental flexibility, and shifting of cognitive set. Ms. Penn scored in average range on this measure in terms of her ability to avoid making errors and in her ability to avoid making errors when categories were switched unexpectedly. She recognized 6 of 6 categories (WCST: TE standard score = 102, PE standard score = 98, Categories = 6 – using age and education demographically corrected norms).

PERSONALITY FUNCTIONING ASSESSMENT: Ms. Penn was administered the Millon Clinical Multiaxial Inventory-IV (MCMI-IV). No specific clinical syndromes such as mood, anxiety, or thought disorder emerge from the profile. There are elements of histrionic and narcissistic personality, but Ms. Penn was mildly defensive in her responding. Individuals with this profile tend to display at times impetuous behavior and yet have a high self-regard, viewing themselves as highly reliable and as disciplined in their communication. This profile is obtained by two groups of individuals. The first group includes well-functioning, generally adaptive individuals with no major personality disturbances who may be experiencing current psychosocial stressors. The second group of people show some behaviors which others may find difficult to tolerate. Typically, individuals with this profile have little in the way of uncertainty and while adept at winning over the favor of others initially, many relationships may not be long lasting. Individuals with this profile are often also unwilling to examine their own role in difficult situations that they find themselves in which involve prolonged distress and may respond by behaving in a somewhat erratic fashion. She is more novelty-seeking than average. Most notable is that this profile is someone with a very forceful and driven energy level who is likely to be quite ambitious, leading a highly structured and strictly organized existence. Individuals with this profile are unlikely to seek individual psychotherapy.

DHS CASE / PARENTING: I asked Ms. Penn to convey the narrative of how she became involved with Child Welfare and the nature of her child's placement in substitute care. She states that she did have an involvement with a Child Welfare caseworker in 2019, but after an initial contact, this individual never came to see her. She states that in January of 2020

a caseworker named Carissa came to the house and was accompanied by police. The caseworker assumed that she was in danger from her partner Barry, who had been arrested four days prior. Ms. Penn says she told the police she was okay when they arrived at first, but then the caseworker Cassie arrived. She reports that at the time she had a domestic violence grant and she had suitcases packed, intending to go to Las Vegas along with her son to where family was living. The worker questioned why Barry was in the house and Ms. Penn says that it happened to be Feliciano's first birthday. The caseworker then obtained a warrant and removed the children after the patient refused to allow her to inspect the home. Feliciano was at his paternal grandmother's house for the weekend at the time. The children were removed on February 29th. Ms. Penn's understanding is that the allegation was that she was failing to protect the children from exposure to domestic violence and she learned at a hearing in February that she was alleged to have refused services, something she vehemently denies. When I asked why her one-year-old has still not been returned after nearly two years, she says her belief is that Child Welfare fears she will allow contact with the father. The two older girls were removed on January 29, after which Ms. Penn placed them with their father to avoid their becoming involved in the social services system. She states that Child Welfare has mandated that she seek mental health services but was told by Lifeworks at an intake last year, by her report, that there is no need for services. I asked her to discuss the issue of her father coming to visit her and subsequently leaving rather abruptly. She says that she got into an argument with her father over her telling her 8-year-old half-brother, her father's son, not to spit on one of the girls when they were in the backseat of the car. Her father reacted to her angrily saying that she was not to discipline his child. They were not able to resolve their conflict and her father left and returned to the eastern seaboard. We went on to discuss her relationship with Child Welfare and she describes this as conflicted. She disagrees with the statement by the caseworker that she had said her son was not affected by exposure to domestic violence. She says that this is not what she intended to convey. She states that she has now had five hearings and the plan has been return-to-parent up until the last hearing. She has a new attorney and says she has discharged several past attorneys, feeling that they were not adequately representing her. There is another hearing scheduled for January. At this point, she says she has had 17 visits of individual therapy with a therapist named Sherri Lynn Blanton. She says that she has also been referred to Wolfpack as a mandated service through Child Welfare and was supposed to see a counselor named Klarissa Gaskell but ended up not seeing her. There has been no referral to a parenting class, and she says DHS has never felt that she had problems with her parenting or parent child interaction. She was later referred, after the Wolfpack referral, to the Domestic Violence Resource Center where she did an intake but was told that they could not offer what Child Welfare was asking for, which was more than the 10 sessions of supportive counseling that the domestic violence

resource center offers. While there, she talked with a Saba Attar. I asked her to talk about the outcome of her therapy with Sherri Lynn Blanton and she said that the primary focus of counseling was on psychological self-care, prioritizing things in her life, and recognizing her own agency in making decisions about her life. She does not recall any mental health diagnoses being made.

We went on to talk about her relationship with her youngest son's father. She says they have no contact at present and he is on probation. She is aware that he has visitation similar to her own, which is once a week at the Child Welfare office and which is supervised. She does not think they would ever reconcile but believes that they could cooperatively coparent as separated parents. We went on to talk further about the effect of all of these events and the domestic violence that the girls witnessed has had on them. She says that they witnessed only one incident of domestic violence and states that the girls were not physically abused by her partner Barry. She states that she does not believe the girls are showing symptoms of maladjustment or post-trauma syndrome. She is concerned that the girls' father, Alquon, with whom the girls are staying, is physically abusive to the girls and that he is not attending to their hygiene and often leaves them alone.

With regard to parenting practices, Ms. Penn answered questions regarding ordinary child development expectations and parenting practices in a coherent and constructive way. I also asked her to complete the Child Abuse Potential Inventory (CAPI). This is a broad range self-report measure which yields a subscale indicating the overall general risk of the possibility of abusive behavior in the parenting role, as well as containing subscales suggesting the presence of distress, rigidity in her coping style, unhappiness, problems in relationship with the child, problems with family, and an ego strength subscale. I was not able to obtain a valid profile on this measure and the cutoff score for the so-called "lie" scale was exceeded. Perusal of specific items however did not suggest to me that Ms. Penn was significantly at risk for harming her children. She was consistent in her responding and there was no evidence of random responding. The rigidity subscale of the CAPI was mildly elevated, consistent with what appears to be some elements of compulsive personality, and the ego strength subscale was significantly elevated, suggesting that Ms. Penn may at times have a rather inflated view of herself.

SUMMARY / FORMULATION: This 32-year-old woman is the mother of three children, one of whom, a 3-year-old boy, has been placed in the custody of Child Welfare for nearly the last two years. The children were removed in early 2020 as a result of concerns about their exposure to domestic violence from Ms. Penn's former domestic partner, who is the father of her youngest child. Child Welfare has continued to have concerns about Ms.

Penn's ongoing contact with this man, although she claims they do not have any. This is at odds with information obtained from Child Welfare which reports that there have continued to be episodes in which they are involved with one another, potentially representing a danger to her youngest child. She currently has visitation once a week in the community but previously supervised had visitation over most of the last two years for one hour a week at the DHS office. Her 3-year-old son is placed with his paternal grandmother. Ms. Penn arranged for her oldest two children to be given to the custody of their father at the beginning of the case and they are not a part of the current Child Welfare involvement. Ms. Penn describes a childhood in which she was mostly raised in Southern California but finished high school in Oregon and has obtained a bachelor's degree in business and communications through Portland State University. Her parents separated when she was 26 years of age, and she has an 8-year-old half-brother. She denies any history of being a victim of abuse or neglect but describes her father as a military man with a compulsive style. Ms. Penn reports an arrest for driving under the influence of intoxicants in 2012 and participation in a diversion program. Ms. Penn had an assault charge associated with one of these DUII charges and she is listed as the victim on multiple police reports relating to violence from her former domestic partner Barry Washington. Ms. Penn also describes a somewhat conflicted relationship with her ex-partner Alquon Davis, the father of her two daughters, aged 12 and 10, insofar as she sees him as a poor parent who has at times been physically abusive toward the children and not attended to their personal hygiene and care.

Medical history is unremarkable. Ms. Penn describes first using alcohol at age 21 and denies any history of alcohol dependence. She has a history of intermittent cannabis use by her report between ages 18-27. She denies use of any other illicit substances. Ms. Penn denies reports given to Child Welfare that she made a suicide gesture by attempted overdose in 2019. Her mental health history is reportedly absent of any psychiatric hospitalizations, suicide attempts, or self-harm behavior. She does report an episode of post-partum depression after the birth of her first child, which she says was significantly mitigated by involvement with a parent mentor and Child Development specialist. She has had referrals for mental health counseling and reports attending a 17-session course of therapy, who gives a mixed report of her involvement in treatment and participation in counseling. She describes having other referrals to Lifeworks and to the Domestic Violence Resource Center which were not completed as a result, by her report, of inconsistency between the offerings of these programs and the mandate from Child Welfare and the courts.

Ms. Penn denies any current mental health symptoms, although she reports distress about missing her children. She denies any trauma history and describes normal sleep and appetite. Ms. Penn presented with a normal rate and rhythm of speech and no abnormal motor behavior. She shows good self-care, grooming, and personal hygiene, and a normal range of affect. She displayed some carelessness in her approach to the evaluation at times, taking a longer lunch than was anticipated and arrived somewhat late as a result of traffic. Ms. Penn's measured overall intellect falls in high average range. She shows no deficit in fine motor control or motor speed and high average to superior range functioning in the domain of language. There is no evidence of any deficit in attention span, and she shows no impairment in sequential reasoning. Visual spatial ability also falls well within normal limits. She shows a solidly average range capacity for abstract reasoning and a high average range fund of information. Tests of learning and memory for both visual and verbal material show no deficit. Tests of executive functioning were similar, insofar as there is no evidence of any deficit in her capacity for processing speed, mental flexibility, set shifting, or planning and organization. A measure of personality functioning was answered in a mildly defensive fashion but did not indicate the presence of any clinical diagnoses. She has a personality style characterized by compulsive and paranoid personality traits and is highly mistrustful of others. She appears to display a degree of inflated self-regard. Individuals with her profile are sometimes unwilling to examine their own role in complicated or adverse circumstances in which they find themselves. The narrative of her involvement with Child Welfare was somewhat hard to follow but she has now dismissed several attorneys representing her and has had a fraught relationship with a variety of caseworkers and social service providers. She describes her relationship with her youngest child's father as estranged, at odds with reports from Child Welfare, and claims no intent to reconcile with him but believes they could coparent responsibly as separated individuals. A self-report measure related to parenting and the overall risk of abusive behavior did not yield a valid profile, but specific perusal of item endorsement did not indicate that Ms. Penn is at risk of harming her child.

With regard to the specific questions posed by the referring caseworker, I find no evidence of any cognitive deficits or intellectual difficulties. In fact, Ms. Penn scores in high average range overall. There are no clinical diagnoses evident but features of compulsive and paranoid personality. Ms. Penn's insight into the conditions which led to her children being in custody appears to be fair. Ms. Penn's perception of her own strengths and weaknesses is that she sees herself as a highly organized and functional individual who has had inadequate representation and/or treatment by social service providers. I have no way of establishing the veracity of her self-report with regard to her contact with her ex-partner, which is quite at odds with that given by Child Welfare. A referral for mental health

counseling would not be in the service of treatment of mood, anxiety, or thought disorder, nor is there evidence for a severe disorder of personality. I do suspect that the personality traits evidenced by Ms. Penn do contribute to some conflicted interactions with legal representation and social service providers. I do not see any evidence in the profile or in diagnostic interview that Ms. Penn has any difficulty recognizing ordinary stages of child development or that she has any unusual attitudes toward parenting practices and discipline.

DSM-5 DIAGNOSES

1. Features of compulsive and paranoid personality.

RECOMMENDATIONS:

1. Mental Health Services: At this point, I do not recommend participation in substance abuse treatment or mental health counseling, given the lack of evidence for mental disorder. In spite of her history of being a victim of domestic violence, I do not see Ms. Penn as suffering from symptoms of post-traumatic stress disorder.

2. Parenting: Ms. Penn, in my opinion, does not merit referral for parent training. She seems to have an adequate understanding of child development and parenting practices which would likely not be improved by attending the typical parenting class. I do not see strong evidence that she would be unable to put the needs of her children ahead of her own. Nevertheless, Ms. Penn's mixed ability to understand the nature of Child Welfare and the degree to which she has been frank and transparent with social service providers appears to be a complicating factor in the case. I am not in a position to ascertain the veracity of Ms. Penn's statements to social services providers; however, overall, her mental health evaluation does not suggest significant psychiatric illness of any kind.

3. Neuropsychological Follow-Up: It is recommended that Ms. Penn have a follow-up session with this provider in order to review in detail the findings of the current psychological examination.

NAME: Ashle A. Penn
DOB: 02/15/1988

Thank you for the opportunity to evaluate this interesting woman. Please let me know if I can be of further help in this matter.

C. Tongue

Christopher K. Tongue, Ph.D.

CKT/jt

Exhibit C

Letter from Al-Quan Davis to AshLe' Penn (Jan. 15, 2023)

Gmail AshLe' Penn <ashlepenn.ap3@gmail.com>

(no subject)

1 message

Alquan Davis <alquand78@gmail.com> Sun, Jan 15, 2023 at 2:36 PM
To: "ashlepenn.ap3@gmail.com" <ashlepenn.ap3@gmail.com>

Get Outlook for iOS

Document1.docx
14K

Exhibit C1

Letter

Goal with this meeting is for the two of us to work together and co-parent. We have had bad blood for a while and I want to put all that behind us. Our children need both of us in their lives and I want you and I to come to an agreement to work together not against each other to provide support and love to our girls.

In order to get us on track, I have listed a couple needs I have from you. Please know these requests are coming from a positive place.

1. You and I will have conversations with the children about our finances and the child support you are providing or any legal things happening
3. Be respectful of my apartment. Clean up after yourself.
4. Don't bring food when the kids tell you they are hungry. I always have food. The kids just don't like to cook. I would prefer that you come over and teach them how to cook.
5. Stick to your word. If you say you are coming over at a certain time, make sure you follow through. It hurts the kids when you don't show up.
6. Per our agreement I need you to get the girls on the weekend, NO excuses. If you are not able to get them. I need you to call me 2 days before, so I have time to make arrangements.
7. DO NOT overstay your welcome. Unless you have spoken with me about spending the night, when I tell you it is time to go, please respect that and leave
8. Not allowed to pick the kids up for school or from school without getting my approval first
9. You must communicate with me first before doing anything with the girls. I am the primary parent; any decisions need to go through me.
10. I must be present moving forward during all your phone conversations with the girls until I feel comfortable that you are honoring my requests.

Exhibit D

Audio Excerpt — Faulkner Statement (Jan. 28, 2026)

Exhibit E

Recorded Calls — Jan. 28 & Apr. 28, 2026

Provided by email — SonyaFaulkner_1.28.mp4; SonyaFaulkner_4.28.mp4

Exhibit F

Kimberly Beck Email (Sept. 9, 2025) Rejecting Filing

From: **Kimberly A. Beck** <Kimberly.A.Beck@ojd.state.or.us>
Date: Tue, Sep 9, 2025 at 3:09 PM
To: ashlepenn.ap3@gmail.com <ashlepenn.ap3@gmail.com>

Good afternoon, Ms. Penn,

Your personal appearance was required for the shelter hearing on September 8, 2025, and you failed to appear. Attempting to submit paperwork in place of a required in-person appearance does not satisfy court requirements.

If you have any further concerns or wish to discuss your situation in more detail, you are welcome to contact our Trial Court Administrator, Richard Moellmer. He can be reached by phone at 503.846.8888 ext.70568 or by email richard.e.moellmer@ojd.state.or.us

Thank you,

Kimberly Beck
Juvenile Case Processing Clerk*
Juvenile Department Lead
Washington County Circuit Court
(503) 846-8888 ext. 70621
*Adoptions, Guardianships, Emancipations, Back-Up Courtroom Clerk for Judge Goldman

NOTICE: *This communication may contain privileged, confidential, or other information exempt from disclosure under applicable law. If you received it in error, please advise me by reply email and immediately delete the message and any attachments without further reviewing, copying, or disclosing the contents.*

Exhibit G

Jurisdictional Trial Transcript (Oct. 31, 2025)

October 31, 2025: Jurisdictional Hearing 25JU04261 In The Matter of Al-mira Davis

August 10, 2026

October 31, 2025 Jurisdictional Hearing 25JU04261

00:00:01,030 –> 00:00:01,850

AAD Yasmin Wadia: Good morning, Your Honor. We're

00:00:01,850 –> 00:00:02,670

AAD Yasmin Wadia: here in the matter while we are

00:00:02,670 –> 00:00:05,890

AAD Yasmin Wadia: Davis. Case number 25JU04261.

00:00:05,890 –> 00:00:07,750

AAD Yasmin Wadia: Today's day is October 31st,

00:00:07,750 –> 00:00:09,770

AAD Yasmin Wadia: 2025. This is the time to

00:00:09,770 –> 00:00:11,470

AAD Yasmin Wadia: accept your sexual trial as to

00:00:11,470 –> 00:00:13,480

AAD Yasmin Wadia: mother in this matter. Yasmin W

00:00:13,480 –> 00:00:14,880

AAD Yasmin Wadia: adia on behalf of the Attorney

00:00:14,880 –> 00:00:16,390

AAD Yasmin Wadia: General's Office, on behalf of

00:00:16,390 –> 00:00:17,800

AAD Yasmin Wadia: the Orton Department of Human

00:00:17,800 –> 00:00:19,340

AAD Yasmin Wadia: Services court worker Emily Mar

00:00:19,340 –> 00:00:20,840

AAD Yasmin Wadia: quand, permanency caseworker

00:00:20,840 –> 00:00:22,110

AAD Yasmin Wadia: David Mellon, as well as PS

00:00:22,110 –> 00:00:23,690

AAD Yasmin Wadia: worker Ashley Platton. On

00:00:01,030 –> 00:00:01,850

AAD Yasmin Wadia: Good morning, Your Honor. We're
00:00:01,850 –> 00:00:02,670

AAD Yasmin Wadia: here in the matter while we are
00:00:02,670 –> 00:00:05,890

AAD Yasmin Wadia: Davis. Case number 25JU04261.
00:00:05,890 –> 00:00:07,750

AAD Yasmin Wadia: Today's day is October 31st,
00:00:07,750 –> 00:00:09,770

AAD Yasmin Wadia: 2025. This is the time to
00:00:09,770 –> 00:00:11,470

AAD Yasmin Wadia: accept your sexual trial as to
00:00:11,470 –> 00:00:13,480

AAD Yasmin Wadia: mother in this matter. Yasmin W
00:00:13,480 –> 00:00:14,880

AAD Yasmin Wadia: adia on behalf of the Attorney
00:00:14,880 –> 00:00:16,390

AAD Yasmin Wadia: General's Office, on behalf of
00:00:16,390 –> 00:00:17,800

AAD Yasmin Wadia: the Orton Department of Human
00:00:17,800 –> 00:00:19,340

AAD Yasmin Wadia: Services court worker Emily Mar
00:00:19,340 –> 00:00:20,840

AAD Yasmin Wadia: quand, permanency caseworker
00:00:20,840 –> 00:00:22,110

AAD Yasmin Wadia: David Mellon, as well as PS
00:00:22,110 –> 00:00:23,690

AAD Yasmin Wadia: worker Ashley Platton. On
00:00:23,690 –> 00:00:24,820

AAD Yasmin Wadia: behalf of the trial in this
00:00:24,820 –> 00:00:26,350

AAD Yasmin Wadia: matter, counsel Ryan Lotzky.
00:00:26,350 –> 00:00:28,240

AAD Yasmin Wadia: Mother Ashley Penn is not
00:00:28,240 –> 00:00:29,170

AAD Yasmin Wadia: present.
00:00:30,170 –> 00:00:31,850

AAD Yasmin Wadia: father Alquan Davis is present,
00:00:31,850 –> 00:00:33,420

AAD Yasmin Wadia: represented by counsel Ivana M
00:00:33,420 –> 00:00:35,090

AAD Yasmin Wadia: oles. On behalf of the CASA
00:00:35,090 –> 00:00:35,450

AAD Yasmin Wadia: program
00:00:35,450 –> 00:00:37,930

AAD Yasmin Wadia: this morning, CASA supervisor,
00:00:37,930 –> 00:00:40,400

Rini: Alton Murphy. Okay, let me make
00:00:40,400 –> 00:00:42,650

Rini: a couple little notes here.
00:00:47,130 –> 00:00:47,680

Rini: All right.
00:00:47,680 –> 00:00:50,480

AAD Yasmin Wadia: Thank you, Judge. At this time, I would request that
00:00:50,480 –> 00:00:52,410

AAD Yasmin Wadia: mother be found in default,
00:00:52,970 –> 00:00:56,240

AAD Yasmin Wadia: pursuant to ORS 419B 914. The
00:00:56,240 –> 00:00:58,390

AAD Yasmin Wadia: agency has filed an affidavit
00:00:58,390 –> 00:01:00,460

AAD Yasmin Wadia: of an absent parent search as
00:01:00,460 –> 00:01:00,970

AAD Yasmin Wadia: well
00:01:00,970 –> 00:01:02,380

AAD Yasmin Wadia: as the Oregon Department of
00:01:02,380 –> 00:01:03,480

AAD Yasmin Wadia: Justice has filed its
00:01:03,480 –> 00:01:05,190

AAD Yasmin Wadia: declaration of diligent efforts
00:01:05,190 –> 00:01:06,730

AAD Yasmin Wadia: in trying to serve
00:01:06,730 –> 00:01:09,520

AAD Yasmin Wadia: mother. Mother has, despite the
00:01:09,520 –> 00:01:12,040

AAD Yasmin Wadia: agency attempting contact with
00:01:12,040 –> 00:01:14,730

AAD Yasmin Wadia: mother, emailing with mother,
00:01:14,730 –> 00:01:14,890

AAD Yasmin Wadia: trying
00:01:14,890 –> 00:01:16,900

AAD Yasmin Wadia: trying to set up dates, times,
00:01:16,900 –> 00:01:19,090

AAD Yasmin Wadia: locations to serve Mother, she
00:01:19,090 –> 00:01:22,750

AAD Yasmin Wadia: has essentially evaded service.
00:01:23,870 –> 00:01:24,530

Rini: Well, she's got that little pesky
00:01:24,530 –> 00:01:25,570

Rini: warrant out.
00:01:25,870 –> 00:01:28,640

AAD Yasmin Wadia: Yes. And additionally, it can
00:01:28,640 –> 00:01:30,670

AAD Yasmin Wadia: be argued that Mother has
00:01:30,670 –> 00:01:33,170

AAD Yasmin Wadia: constructive notice of these
00:01:33,170 –> 00:01:33,590

AAD Yasmin Wadia: proceedings
00:01:33,590 –> 00:01:35,410

AAD Yasmin Wadia: that she has been attempting to
00:01:35,410 –> 00:01:37,450

AAD Yasmin Wadia: file in the dependency case. At
00:01:37,450 –> 00:01:39,510

AAD Yasmin Wadia: this point in time, Judge,
00:01:40,030 –> 00:01:41,100

AAD Yasmin Wadia: I would request that Mother be
00:01:41,100 –> 00:01:42,640

AAD Yasmin Wadia: found in default and that the
00:01:42,640 –> 00:01:44,410

AAD Yasmin Wadia: agency be able to proceed with
00:01:44,410 –> 00:01:44,610

AAD Yasmin Wadia: its
00:01:44,610 –> 00:01:46,230

AAD Yasmin Wadia: prima faccia as to the
00:01:46,230 –> 00:01:48,310

AAD Yasmin Wadia: allegations as to mother,
00:01:48,310 –> 00:01:50,730

AAD Yasmin Wadia: father at our previous hearing
00:01:50,730 –> 00:01:52,730

AAD Yasmin Wadia: did enter admissions.
00:01:53,850 –> 00:01:57,730

Rini: Okay. I will note in my file, I
00:01:57,730 –> 00:02:01,250

Rini: have had an opportunity to
00:02:01,250 –> 00:02:02,730

Rini: review the
00:02:02,730 –> 00:02:06,720

Rini: declaration of diligent efforts
00:02:06,720 –> 00:02:09,410

Rini: and also the affidavit
00:02:09,410 –> 00:02:13,720

Rini: regarding efforts to serve mom,
00:02:13,720 –> 00:02:15,330

Rini: both of which have been filed.
00:02:15,330 –> 00:02:17,010

Rini: I will also take judicial
00:02:17,010 –> 00:02:19,090

Rini: notice of the fact that Judge
00:02:19,090 –> 00:02:19,510

Rini: Thompson
00:02:19,510 –> 00:02:20,910

Rini: has signed a warrant for mom
00:02:20,910 –> 00:02:22,660

Rini: and that is still outstanding.
00:02:22,660 –> 00:02:25,290

Rini: Mom has attempted to file
00:02:25,290 –> 00:02:26,440

Rini: documents
00:02:26,440 –> 00:02:31,090

Rini: which I ruled upon. Why are
00:02:31,090 –> 00:02:35,370

Rini: those not in the file? Can you
00:02:35,370 –> 00:02:37,780

Rini: ask him why those are not in
00:02:37,780 –> 00:02:38,990

Rini: the file?
00:02:38,990 –> 00:02:41,370

Rini: because I made a ruling on them
00:02:41,370 –> 00:02:41,710

Rini: .
00:02:43,750 –> 00:02:44,810

Rini: Let me double check.
00:02:44,910 –> 00:02:46,330

Rini: Oh, no, they're down on 1014.
00:02:47,470 –> 00:02:49,000

Rini: Mom is clearly using some AI,
00:02:49,000 –> 00:02:52,170

Rini: some chat, you know, whatever,
00:02:52,810 –> 00:02:55,930

Rini: but citing statutes that don't
00:02:55,930 –> 00:02:58,430

Rini: actually apply to juvenile
00:02:58,430 –> 00:02:59,270

Rini: proceedings.
00:02:59,270 –> 00:03:01,530

Rini: So it's computer generated.
00:03:03,070 –> 00:03:06,160

Rini: So she also is making some
00:03:06,160 –> 00:03:09,580

Rini: other efforts to do some fil
00:03:09,580 –> 00:03:12,970

Rini: ings, but I will find the state
00:03:12,970 –> 00:03:15,840

Rini: has made diligent efforts under
00:03:15,840 –> 00:03:19,810

Rini: 419B 914, and therefore will
00:03:19,810 –> 00:03:22,190

Rini: find mother in default.
00:03:22,490 –> 00:03:23,510

Rini: And she clearly knows of the
00:03:23,510 –> 00:03:25,100

Rini: proceedings as she keeps filing
00:03:25,100 –> 00:03:26,710

Rini: regarding the proceedings.
00:03:27,990 –> 00:03:30,390

Rini: So you may proceed.
00:03:30,390 –> 00:03:31,670

AAD Yasmin Wadia: Thank you, Your Honor. Your
00:03:31,670 –> 00:03:33,630

AAD Yasmin Wadia: Honor, at this time, the agency
00:03:33,630 –> 00:03:35,350

AAD Yasmin Wadia: would call Emily Marquand to
00:03:35,350 –> 00:03:37,360

AAD Yasmin Wadia: provide testimony regarding the
00:03:37,360 –> 00:03:39,390

AAD Yasmin Wadia: allegations to one another.
00:03:43,730 –> 00:03:43,730

Clerk: Under the penalty of perjury,
00:03:43,730 –> 00:03:43,730

Clerk: do you solemnly swear or affirm
00:03:43,730 –> 00:03:45,190

Clerk: that the testimony you were

00:03:45,190 –> 00:03:46,500

Clerk: about to give in this

00:03:46,500 –> 00:03:48,430

Clerk: proceeding is the truth or the

00:03:48,430 –> 00:03:50,450

Clerk: whole truth and nothing but the

00:03:50,450 –> 00:03:51,330

Clerk: truth?

00:03:51,410 –> 00:03:51,930

Marquand: Yes, I do.

00:03:52,170 –> 00:03:53,480

Clerk: Please state and spell your first and last name for

00:03:53,480 –> 00:03:55,350

Clerk: the record,

00:03:55,350 –> 00:03:57,670

Marquand: Emily Marquand, E-M-I-L-I-E-M-A-R-Q-U-A-N-D.

00:03:58,670 –> 00:04:00,430

Rini: Oh, you can be seated for your

00:04:00,430 –> 00:04:01,330

Rini: testimony.

00:04:03,670 –> 00:04:05,190

AAD Yasmin Wadia: Good morning, Ms. Marquand. How

00:04:05,190 –> 00:04:05,870

AAD Yasmin Wadia: are you employed?

00:04:06,110 –> 00:04:06,670

Marquand: I work for the Oregon

00:04:06,670 –> 00:04:07,970

Marquand: Department of Human Services,

00:04:07,970 –> 00:04:09,110

Marquand: Child Welfare in Washington
00:04:09,110 –> 00:04:09,650

Marquand: County.
00:04:10,050 –> 00:04:10,800

AAD Yasmin Wadia: And how long have you been so
00:04:10,800 –> 00:04:11,730

AAD Yasmin Wadia: employed, ma'am?
00:04:11,970 –> 00:04:12,980

Marquand: I've worked for the agency for
00:04:12,980 –> 00:04:14,070

Marquand: eight and a half years.
00:04:14,590 –> 00:04:16,010

AAD Yasmin Wadia: Ms. Marquand, are you familiar
00:04:16,010 –> 00:04:17,700

AAD Yasmin Wadia: with the agency's petition in
00:04:17,700 –> 00:04:19,510

AAD Yasmin Wadia: the matter of Elmira Davis?
00:04:19,810 –> 00:04:20,110

Marquand: Yes.
00:04:20,810 –> 00:04:22,020

AAD Yasmin Wadia: And as it relates to
00:04:22,020 –> 00:04:25,640

AAD Yasmin Wadia: allegations surrounding mother,
00:04:25,640 –> 00:04:27,390

AAD Yasmin Wadia: have you reviewed the petition
00:04:27,390 –> 00:04:28,390

AAD Yasmin Wadia: allegations?
00:04:28,670 –> 00:04:30,430

AAD Yasmin Wadia: Yes. What is the agency then
00:04:30,430 –> 00:04:32,050

AAD Yasmin Wadia: regarding allegation A? The
00:04:32,050 –> 00:04:34,350

AAD Yasmin Wadia: mother does not understand the
00:04:34,350 –> 00:04:35,770

AAD Yasmin Wadia: specific needs of this child
00:04:35,770 –> 00:04:37,580

AAD Yasmin Wadia: and lacks skills necessary to
00:04:37,580 –> 00:04:39,660

AAD Yasmin Wadia: safely parent.
00:04:39,660 –> 00:04:42,000

Marquand: At the time of the after hours call related to
00:04:42,000 –> 00:04:43,980

Marquand: this family, there was an
00:04:43,980 –> 00:04:46,050

Marquand: incident between child and
00:04:46,050 –> 00:04:47,940

Marquand: father. This resulted
00:04:47,940 –> 00:04:50,190

Marquand: ultimately in the child being
00:04:50,190 –> 00:04:52,080

Marquand: taken to the hospital for
00:04:52,080 –> 00:04:54,390

Marquand: reviews of any injuries. At
00:04:54,390 –> 00:04:56,390

Marquand: that point in time, hospital
00:04:56,390 –> 00:04:58,330

Marquand: staff had talked with the child
00:04:58,330 –> 00:04:58,640

Marquand: 00:04:58,670 –> 00:05:00,520

Marquand: and the child had made some
00:05:00,520 –> 00:05:02,790

Marquand: very concerning disclosures of
00:05:02,790 –> 00:05:04,020

Marquand: suicidal ideations.
00:05:05,470 –> 00:05:06,560

Marquand: When Almira was informed that D
00:05:06,560 –> 00:05:09,190

Marquand: HS was attempting to contact her
00:05:09,190 –> 00:05:11,140

Marquand: mother to release her to her
00:05:11,140 –> 00:05:11,470

Marquand: care,
00:05:11,470 –> 00:05:13,410

Marquand: she expressed concerns about
00:05:13,410 –> 00:05:15,390

Marquand: being in her mother's care.
00:05:17,630 –> 00:05:18,310

Marquand: After talking with the hospital
00:05:18,310 –> 00:05:20,310

Marquand: social worker, it was learned
00:05:20,310 –> 00:05:21,790

Marquand: that there were concerns around
00:05:21,790 –> 00:05:23,370

Marquand: the child's mental health and
00:05:23,370 –> 00:05:24,990

Marquand: self-harming, leading to the
00:05:24,990 –> 00:05:26,580

Marquand: hospital recommending that
00:05:26,580 –> 00:05:28,270

Marquand: the child actually admitted
00:05:28,270 –> 00:05:30,170

Marquand: that day for further evaluation
00:05:30,170 –> 00:05:34,430

Marquand: . The social worker did have the
00:05:34,430 –> 00:05:36,330

Marquand: conversation with the child and
00:05:36,330 –> 00:05:38,170

Marquand: completed the risk assessment
00:05:38,170 –> 00:05:39,760

Marquand: and was and the child was
00:05:39,760 –> 00:05:40,110

Marquand: flagged as
00:05:40,110 –> 00:05:41,740

Marquand: high risk for suicidal ideation
00:05:41,740 –> 00:05:42,870

Marquand: and that the child had
00:05:42,870 –> 00:05:44,330

Marquand: attempted to commit suicide a
00:05:44,330 –> 00:05:45,150

Marquand: few days prior
00:05:45,150 –> 00:05:46,700

Marquand: with a knife but refused to
00:05:46,700 –> 00:05:48,520

Marquand: have her wrist and arms checked
00:05:48,520 –> 00:05:50,430

Marquand: for injuries. The child noted
00:05:50,430 –> 00:05:50,830

Marquand: that
00:05:51,790 –> 00:05:53,550

Marquand: she wouldn't attempt suicide if
00:05:53,550 –> 00:05:55,090

Marquand: she went home with her dad but
00:05:55,090 –> 00:05:56,750

Marquand: would attempt suicide if she
00:05:56,750 –> 00:05:58,910

Marquand: went home with her mom. The
00:05:58,910 –> 00:06:01,260

Marquand: hospital social worker informed
00:06:01,260 –> 00:06:03,280

Marquand: the agency that because of
00:06:03,280 –> 00:06:03,550

Marquand: these
00:06:03,550 –> 00:06:05,920

Marquand: ideations that the child would
00:06:05,920 –> 00:06:08,060

Marquand: be held overnight and have a
00:06:08,060 –> 00:06:10,390

Marquand: full evaluation the morning of
00:06:10,390 –> 00:06:11,630

Marquand: September 7th.
00:06:15,870 –> 00:06:18,630

Marquand: the hospital social worker
00:06:18,630 –> 00:06:21,660

Marquand: later informed the agency that
00:06:21,660 –> 00:06:24,390

Marquand: the mother did talk with the
00:06:24,390 –> 00:06:24,750

Marquand: child
00:06:24,750 –> 00:06:27,260

Marquand: while at the hospital and this
00:06:27,260 –> 00:06:29,490

Marquand: conversation ultimately
00:06:29,490 –> 00:06:31,500

Marquand: resulted in the child or
00:06:31,500 –> 00:06:32,590

Marquand: ultimately
00:06:32,590 –> 00:06:33,850

Marquand: resulted in the mother
00:06:33,850 –> 00:06:35,570

Marquand: confronting the child on these
00:06:35,570 –> 00:06:37,370

Marquand: concerning behaviors which led
00:06:37,370 –> 00:06:38,110

Marquand: to the child
00:06:38,110 –> 00:06:40,130

Marquand: then recanting these behaviors
00:06:40,130 –> 00:06:42,100

Marquand: or these statements and saying
00:06:42,100 –> 00:06:44,130

Marquand: that everybody was lying about
00:06:44,130 –> 00:06:44,510

Marquand: what she
00:06:44,510 –> 00:06:46,050

Marquand: had said related to the self-
00:06:46,050 –> 00:06:47,650

Marquand: harming and that she had tried
00:06:47,650 –> 00:06:49,310

Marquand: to kill herself at the mom.
00:06:51,550 –> 00:06:51,760

Marquand: There is significant concern
00:06:51,760 –> 00:06:54,100

Marquand: that the mother did coach the
00:06:54,100 –> 00:06:55,950

Marquand: child to recant these
00:06:55,950 –> 00:06:57,680

Marquand: statements after the
00:06:57,680 –> 00:07:00,090

Marquand: conversation that the mother
00:07:00,090 –> 00:07:02,350

Marquand: had with the child via phone.
00:07:06,830 –> 00:07:10,140

Marquand: and there have been numerous
00:07:10,140 –> 00:07:13,180

Marquand: situations over the years
00:07:13,180 –> 00:07:16,350

Marquand: related to the mother and the
00:07:16,350 –> 00:07:16,830

Marquand: child's
00:07:16,830 –> 00:07:18,800

Marquand: relationship. There have been
00:07:18,800 –> 00:07:20,760

Marquand: numerous reports captured under
00:07:20,760 –> 00:07:23,910

Marquand: the mother's case and there
00:07:23,910 –> 00:07:24,110

Marquand: have
00:07:24,110 –> 00:07:26,550

Marquand: been a total of 32 calls to the
00:07:26,550 –> 00:07:29,010

Marquand: agency with 19 of those calls
00:07:29,010 –> 00:07:31,630

Marquand: being assigned for assessment.
00:07:32,190 –> 00:07:34,350

Marquand: These are related to strictly
00:07:34,350 –> 00:07:36,700

Marquand: just Ms. Penn's case. There is
00:07:36,700 –> 00:07:38,070

Marquand: another case open under father's
00:07:38,070 –> 00:07:38,190

Marquand: 00:07:38,190 –> 00:07:40,120

Marquand: name as father does have sole
00:07:40,120 –> 00:07:42,230

Marquand: custody of the child related to
00:07:42,230 –> 00:07:44,510

Marquand: the domestic relations case.
00:07:45,070 –> 00:07:46,140

Marquand: However, these calls of
00:07:46,140 –> 00:07:47,840

Marquand: concerns are concerns for
00:07:47,840 –> 00:07:49,710

Marquand: neglect, threat of harm,
00:07:49,710 –> 00:07:50,830

Marquand: exposure to violence,
00:07:50,830 –> 00:07:52,350

Marquand: and concerns for physical abuse
00:07:52,350 –> 00:07:53,820

Marquand: and substance use by the mother
00:07:53,820 –> 00:07:56,990

Marquand: . This child was in ODHS custody
00:07:56,990 –> 00:07:57,150

Marquand: from
00:07:58,030 –> 00:08:01,900

Marquand: January of 2020 to May of 2021.
00:08:01,900 –> 00:08:04,330

Marquand: Ultimately, this child and her
00:08:04,330 –> 00:08:06,570

Marquand: full sibling were returned to
00:08:06,570 –> 00:08:06,830

Marquand: their
00:08:06,830 –> 00:08:08,270

Marquand: father's care. Father had
00:08:08,270 –> 00:08:09,770

Marquand: engaged in all of the services
00:08:09,770 –> 00:08:11,210

Marquand: and had done what he needed to
00:08:11,210 –> 00:08:11,710

Marquand: do to get
00:08:11,710 –> 00:08:13,110

Marquand: his girls back. However,
00:08:13,110 –> 00:08:14,650

Marquand: through the life of that case,
00:08:14,650 –> 00:08:16,010

Marquand: the mother did not engage in
00:08:16,010 –> 00:08:16,750

Marquand: any services
00:08:16,750 –> 00:08:19,070

Marquand: and actually failed to do any
00:08:19,070 –> 00:08:21,850

Marquand: of the services. Those services
00:08:21,850 –> 00:08:24,210

Marquand: were ordered were parenting
00:08:24,210 –> 00:08:24,650

Marquand: classes,
00:08:24,650 –> 00:08:26,370

Marquand: stable housing, visitation, a
00:08:26,370 –> 00:08:28,260

Marquand: neuropsychological, maintaining
00:08:28,260 –> 00:08:29,710

Marquand: contact with the agency,
00:08:29,710 –> 00:08:30,490

Marquand: engaging in
00:08:30,490 –> 00:08:32,320

Marquand: DV counseling, sorry, victim
00:08:32,320 –> 00:08:34,230

Marquand: services or survivor services,
00:08:34,230 –> 00:08:36,150

Marquand: signing releases of information
00:08:36,150 –> 00:08:36,410

Marquand: 00:08:36,410 –> 00:08:38,040

Marquand: and engaging in the children's
00:08:38,040 –> 00:08:39,960

Marquand: services. Again, mother did not
00:08:39,960 –> 00:08:41,610

Marquand: engage in these. Ultimately,
00:08:41,610 –> 00:08:44,440

Marquand: the agency petitioned or motion
00:08:44,440 –> 00:08:47,270

Marquand: ed to dismiss the case, but that
00:08:47,270 –> 00:08:49,370

Marquand: was at the point in time
00:08:49,370 –> 00:08:50,640

Marquand: where father did have sole
00:08:50,640 –> 00:08:52,130

Marquand: custody of the children and he
00:08:52,130 –> 00:08:53,580

Marquand: was granted that in February of
00:08:53,580 –> 00:08:54,410

Marquand: 2021.
00:08:56,970 –> 00:08:56,970

Marquand: During this assessment, the
00:08:56,970 –> 00:08:59,510

Marquand: agency did have conversations
00:08:59,510 –> 00:09:01,530

Marquand: with mother about the child's
00:09:01,530 –> 00:09:03,980

Marquand: suicidal ideations. The mother
00:09:03,980 –> 00:09:06,040

Marquand: refused to pick this child up
00:09:06,040 –> 00:09:08,250

Marquand: from the hospital. The mother
00:09:08,250 –> 00:09:08,490

Marquand: was
00:09:08,490 –> 00:09:11,160

Marquand: also made aware of the concerns
00:09:11,160 –> 00:09:13,640

Marquand: that brought the child to the
00:09:13,640 –> 00:09:16,440

Marquand: hospital and refused to really
00:09:16,440 –> 00:09:16,730

Marquand: engage
00:09:16,730 –> 00:09:19,090

Marquand: with the agency and protect her
00:09:19,090 –> 00:09:21,620

Marquand: child. She has made very little
00:09:21,620 –> 00:09:24,570

Marquand: attempts to have any visitation
00:09:24,570 –> 00:09:25,820

Marquand: in terms of in-person visit
00:09:25,820 –> 00:09:27,130

Marquand: ation or engagement with the
00:09:27,130 –> 00:09:28,120

Marquand: agency that have been
00:09:28,120 –> 00:09:30,410

Marquand: meaningful. As
00:09:30,410 –> 00:09:33,380

Marquand: noted earlier, that mother has
00:09:33,380 –> 00:09:36,240

Marquand: engaged in emails to the agency
00:09:36,240 –> 00:09:38,970

Marquand: more demands than anything and
00:09:38,970 –> 00:09:39,130

Marquand: has
00:09:39,130 –> 00:09:40,480

Marquand: refused to meet with the agency
00:09:40,480 –> 00:09:41,770

Marquand: and understand and learn this
00:09:41,770 –> 00:09:42,750

Marquand: child's behaviors and
00:09:42,750 –> 00:09:43,450

Marquand: understand and
00:09:43,450 –> 00:09:45,610

Marquand: learn what the child and the
00:09:45,610 –> 00:09:47,690

Marquand: trauma that this child has
00:09:47,690 –> 00:09:49,450

Marquand: engaged in or has been
00:09:49,450 –> 00:09:50,090

Marquand: subjected to,
00:09:50,090 –> 00:09:53,190

Marquand: my apologies. The agency does
00:09:53,190 –> 00:09:56,050

Marquand: have concerns that the mother
00:09:56,050 –> 00:09:59,450

Marquand: has coached this child. There
00:09:59,450 –> 00:09:59,770

Marquand: has been
00:09:59,770 –> 00:10:02,150

Marquand: ongoing concerns over the years
00:10:02,150 –> 00:10:04,230

Marquand: related to that and that the
00:10:04,230 –> 00:10:06,330

Marquand: mother at this point in time
00:10:06,330 –> 00:10:06,490

Marquand: does
00:10:06,490 –> 00:10:08,290

Marquand: not have the skills necessary
00:10:08,290 –> 00:10:09,980

Marquand: and does not understand the
00:10:09,980 –> 00:10:11,770

Marquand: specific needs of this child
00:10:11,770 –> 00:10:13,700

Marquand: related to specifically mental
00:10:13,700 –> 00:10:15,470

Marquand: health and the ongoing kind of
00:10:15,470 –> 00:10:17,450

Marquand: tumultuous relationship between
00:10:17,450 –> 00:10:18,950

Marquand: the mother and father related
00:10:18,950 –> 00:10:20,800

Marquand: to custody. Ms. Markpond, what
00:10:20,800 –> 00:10:22,330

AAD Yasmin Wadia: additional information has the
00:10:22,330 –> 00:10:24,000

AAD Yasmin Wadia: agency learned regarding Alley
00:10:24,000 –> 00:10:25,720

AAD Yasmin Wadia: ation 2B which reads the mother
00:10:25,720 –> 00:10:27,370

AAD Yasmin Wadia: fails to recognize the safety
00:10:27,370 –> 00:10:28,160

AAD Yasmin Wadia: threats
00:10:28,160 –> 00:10:30,080

AAD Yasmin Wadia: presented by father, I
00:10:30,080 –> 00:10:32,670

AAD Yasmin Wadia: apologize for that type of, and
00:10:32,670 –> 00:10:34,670

AAD Yasmin Wadia: is unwilling or unable to
00:10:34,670 –> 00:10:35,040

AAD Yasmin Wadia: protect the
00:10:35,040 –> 00:10:37,030

AAD Yasmin Wadia: child from father's unsafe behaviors
00:10:37,030 –> 00:10:39,110

Marquand: um as noted the day
00:10:39,110 –> 00:10:42,130

Marquand: of the after hours situation
00:10:42,130 –> 00:10:42,490

Marquand: and all
00:10:42,490 –> 00:10:44,650

Marquand: call workers did have contact
00:10:44,650 –> 00:10:46,750

Marquand: with mother eventually i think
00:10:46,750 –> 00:10:48,410

Marquand: it was many hours later
00:10:48,410 –> 00:10:50,570

Marquand: and informed them of what had
00:10:50,570 –> 00:10:53,270

Marquand: been happening um and um which
00:10:53,270 –> 00:10:56,890

Marquand: ultimately led the child to the
00:10:56,890 –> 00:10:58,580

Marquand: hospital in the first place um
00:10:58,580 –> 00:11:00,140

Marquand: related to the altercation
00:11:00,140 –> 00:11:02,570

Marquand: between father and child um
00:11:04,010 –> 00:11:05,550

Marquand: Despite knowing that, the
00:11:05,550 –> 00:11:07,230

Marquand: mother refused to pick up this
00:11:07,230 –> 00:11:12,250

Marquand: child. In addition, since the
00:11:12,250 –> 00:11:13,530

Marquand: dismissal of
00:11:13,530 –> 00:11:15,210

Marquand: the prior dependency case in
00:11:15,210 –> 00:11:17,530

Marquand: 2021, there have been a total
00:11:17,530 –> 00:11:19,280

Marquand: of 20 calls to the hotline
00:11:19,280 –> 00:11:20,250

Marquand: related to
00:11:20,250 –> 00:11:23,390

Marquand: father's case in our system, 10
00:11:23,390 –> 00:11:26,040

Marquand: of which have been assigned.
00:11:26,040 –> 00:11:28,540

Marquand: And those cases have been
00:11:28,540 –> 00:11:29,850

Marquand: related to
00:11:29,850 –> 00:11:31,750

Marquand: to concerns of physical abuse
00:11:31,750 –> 00:11:33,740

Marquand: and maltreatment. The mother
00:11:33,740 –> 00:11:34,890

Marquand: has engaged in those
00:11:34,890 –> 00:11:35,730

Marquand: assessments.
00:11:35,730 –> 00:11:37,490

Marquand: The mother has, I will say
00:11:37,490 –> 00:11:39,730

Marquand: limitedly, has engaged in those
00:11:39,730 –> 00:11:41,730

Marquand: assessments. She has been
00:11:41,730 –> 00:11:43,360

Marquand: put on notice of the concerning
00:11:43,360 –> 00:11:44,680

Marquand: behaviors that have been
00:11:44,680 –> 00:11:46,450

Marquand: happening, especially around
00:11:46,450 –> 00:11:48,770

Marquand: that relationship between child
00:11:48,770 –> 00:11:50,960

Marquand: and father. Mother also has a
00:11:50,960 –> 00:11:53,130

Marquand: very tumultuous relationship
00:11:53,130 –> 00:11:55,890

Marquand: with father and I apologize
00:11:55,890 –> 00:11:58,420

Marquand: excuse me the agency has an
00:11:58,420 –> 00:12:00,630

Marquand: obligation to inform
00:12:00,630 –> 00:12:02,370

Marquand: legal and biological parents of
00:12:02,370 –> 00:12:03,720

Marquand: all of these assessments
00:12:03,720 –> 00:12:05,010

Marquand: happening and so again
00:12:05,010 –> 00:12:06,760

Marquand: despite knowing all of this is
00:12:06,760 –> 00:12:08,580

Marquand: despite the history the mother
00:12:08,580 –> 00:12:09,390

Marquand: has failed to
00:12:09,390 –> 00:12:11,440

Marquand: modify the domestic relations
00:12:11,440 –> 00:12:13,530

Marquand: order in which granted father's
00:12:13,530 –> 00:12:14,670

Marquand: old custody and I
00:12:14,670 –> 00:12:16,460

Marquand: believe mom was supervised
00:12:16,460 –> 00:12:17,770

Marquand: parenting time is my
00:12:17,770 –> 00:12:19,470

Marquand: understanding and she is
00:12:19,470 –> 00:12:20,350

Marquand: to be able to protect this
00:12:20,350 –> 00:12:21,980

AAD Yasmin Wadia: child. And finally, Ms. Marqu
00:12:21,980 –> 00:12:23,690

AAD Yasmin Wadia: and, what additional information
00:12:23,690 –> 00:12:24,150

AAD Yasmin Wadia: has the
00:12:24,150 –> 00:12:25,720

AAD Yasmin Wadia: agency learned regarding Alley
00:12:25,720 –> 00:12:27,190

AAD Yasmin Wadia: ation 2C, which reads, the
00:12:27,190 –> 00:12:28,790

AAD Yasmin Wadia: mother is involved in criminal
00:12:28,790 –> 00:12:29,470

AAD Yasmin Wadia: activities
00:12:29,470 –> 00:12:30,790

AAD Yasmin Wadia: which interfere with her
00:12:30,790 –> 00:12:32,300

AAD Yasmin Wadia: ability to safely parent the child.

00:12:32,300 –> 00:12:33,860

Marquand: Yeah, mother has at

00:12:33,860 –> 00:12:34,690

Marquand: least two open

00:12:34,690 –> 00:12:36,090

Marquand: cases. One is the pending

00:12:36,090 –> 00:12:37,740

Marquand: charges of unlawful possession

00:12:37,740 –> 00:12:39,380

Marquand: of methamphetamine and theft in

00:12:39,380 –> 00:12:39,670

Marquand: the

00:12:39,670 –> 00:12:41,260

Marquand: first degree from September of

00:12:41,260 –> 00:12:43,400

Marquand: 2024. Mother currently has an

00:12:43,400 –> 00:12:44,830

Marquand: active warrant out for her

00:12:44,830 –> 00:12:46,810

Marquand: arrest and this has been active

00:12:46,810 –> 00:12:49,620

Marquand: since June of 2025, June 23rd

00:12:49,620 –> 00:12:52,510

Marquand: of 2025. She also has the

00:12:52,510 –> 00:12:52,830

Marquand: pending

00:12:52,830 –> 00:12:54,140

Marquand: theft in the first degree

00:12:54,140 –> 00:12:56,410

Marquand: charge from May of 2024. Mother
00:12:56,410 –> 00:12:58,060

Marquand: failed to appear to her hearing
00:12:58,060 –> 00:12:59,050

Marquand: on June 23
00:12:59,050 –> 00:13:01,570

Marquand: of 2025 for the theft of the
00:13:01,570 –> 00:13:03,630

Marquand: first degree but there was no
00:13:03,630 –> 00:13:05,010

Marquand: warrant issued in my
00:13:05,010 –> 00:13:06,170

Marquand: understanding
00:13:06,170 –> 00:13:08,520

Marquand: for that case likely because
00:13:08,520 –> 00:13:10,860

Marquand: there was the warrant for the
00:13:10,860 –> 00:13:13,290

Marquand: possession of meth and theft
00:13:13,290 –> 00:13:15,670

Marquand: charged from September of 24.
00:13:15,670 –> 00:13:18,350

Marquand: These are still open cases. The
00:13:18,350 –> 00:13:21,990

Marquand: mother hasn't cleared her
00:13:21,990 –> 00:13:23,960

Marquand: warrant for those cases. There
00:13:23,960 –> 00:13:26,940

Marquand: are significant concerns around
00:13:26,940 –> 00:13:29,700

Marquand: the substance use, but at this
00:13:29,700 –> 00:13:32,300

Marquand: time, these are pending and
00:13:32,300 –> 00:13:35,000

Marquand: open cases, and the agency has
00:13:35,000 –> 00:13:37,860

Marquand: not had meaningful contact with
00:13:37,860 –> 00:13:40,520

Marquand: the mother to fully assess her
00:13:40,520 –> 00:13:42,250

Marquand: and get information about her
00:13:42,250 –> 00:13:43,050

Marquand: substance use.
00:13:43,050 –> 00:13:43,970

Marquand: but these are concerning
00:13:43,970 –> 00:13:44,530

Marquand: behaviors.
00:13:45,410 –> 00:13:46,690

AAD Yasmin Wadia: Does the agency have any reason
00:13:46,690 –> 00:13:47,940

AAD Yasmin Wadia: to believe that Amira is an
00:13:47,940 –> 00:13:48,570

AAD Yasmin Wadia: Indian child
00:13:48,570 –> 00:13:49,660

AAD Yasmin Wadia: for the purposes of the Indian
00:13:49,660 –> 00:13:50,820

AAD Yasmin Wadia: Child Welfare Act or the Oregon
00:13:50,820 –> 00:13:51,830

AAD Yasmin Wadia: Indian Child Welfare Act?
00:13:51,970 –> 00:13:53,180

Marquand: There is no reason to believe
00:13:53,180 –> 00:13:54,610

Marquand: that equal or equal or why.
00:13:55,530 –> 00:13:56,280

AAD Yasmin Wadia: Ms. Marquant, to best of your
00:13:56,280 –> 00:13:58,430

AAD Yasmin Wadia: knowledge, is mother an active
00:13:58,430 –> 00:13:59,610

AAD Yasmin Wadia: service member
00:13:59,610 –> 00:14:00,930

AAD Yasmin Wadia: subject to the Service Member
00:14:00,930 –> 00:14:01,870

AAD Yasmin Wadia: Civil Relief Act?
00:14:02,210 –> 00:14:02,510

AAD Yasmin Wadia: No.
00:14:03,010 –> 00:14:03,930

AAD Yasmin Wadia: To best of your knowledge, is
00:14:03,930 –> 00:14:05,370

AAD Yasmin Wadia: there any reason why mother's
00:14:05,370 –> 00:14:07,370

AAD Yasmin Wadia: appearance today is out of her,
00:14:07,750 –> 00:14:08,770

AAD Yasmin Wadia: non-appearance today, is out of
00:14:08,770 –> 00:14:09,490

AAD Yasmin Wadia: her control?
00:14:10,210 –> 00:14:10,450 No.
00:14:11,190 –> 00:14:11,970

AAD Yasmin Wadia: I have no further questions,
00:14:11,970 –> 00:14:12,490

AAD Yasmin Wadia: Judge.
00:14:13,050 –> 00:14:15,450

Rini: All right. Ms. Moles and Mr. L
00:14:15,450 –> 00:14:17,690

Rini: otzke, anything you wish to add
00:14:17,690 –> 00:14:20,310

Rini: regarding the default fact
00:14:20,310 –> 00:14:20,790

Rini: basis?
00:14:20,790 –> 00:14:23,410

Rini: All right. Based upon the
00:14:23,410 –> 00:14:26,070

Rini: testimony received and the
00:14:26,070 –> 00:14:31,360

Rini: court is...okay, let me back up
00:14:31,360 –> 00:14:32,850

Rini: a little bit. I've pulled up so
00:14:32,850 –> 00:14:34,090

Rini: many files right now.
00:14:43,050 –> 00:14:51,610

Rini: All right, I want to. I'll take
00:14:51,610 –> 00:14:56,620 judicial notice of the fact
00:14:56,620 –> 00:15:00,970

Rini: that she has a warrant out on
00:15:00,970 –> 00:15:11,050

Rini: 24 CR 49043. And.
00:15:13,050 –> 00:15:27,740 I think there was one other one
00:15:27,740 –> 00:15:34,830

Rini: . Okay. So as to mom and just f
00:15:34,830 –> 00:15:39,410

Rini: leshing out some of the diligent
00:15:39,410 –> 00:15:42,170

Rini: efforts finding. I am noting
00:15:42,170 –> 00:15:44,450

Rini: that not only do I have your
00:15:44,450 –> 00:15:47,070

Rini: affidavit and your filings as
00:15:47,070 –> 00:15:47,550

Rini: to your
00:15:47,550 –> 00:15:49,280

Rini: efforts, I will note also mom
00:15:49,280 –> 00:15:51,100

Rini: actively avoiding service and
00:15:51,100 –> 00:15:52,920

Rini: has an active warrant. Mother
00:15:52,920 –> 00:15:53,450

Rini: is clearly
00:15:53,450 –> 00:15:54,930

Rini: aware of the proceedings. She
00:15:54,930 –> 00:15:56,370

Rini: has been submitting motions,
00:15:56,370 –> 00:15:57,640

Rini: emailing the court staff,
00:15:57,640 –> 00:15:58,410

Rini: including the
00:15:58,410 –> 00:16:00,170

Rini: deputy trial court
00:16:00,170 –> 00:16:03,450

Rini: administrator. I will also note
00:16:03,450 –> 00:16:06,120

Rini: because for all files, files
00:16:06,120 –> 00:16:07,730

Rini: get linked in the
00:16:07,730 –> 00:16:11,510

Rini: system. I am also aware that,
00:16:11,510 –> 00:16:15,580

Rini: well, interesting to note, when
00:16:15,580 –> 00:16:18,690

Rini: I read, I think it was Barr
00:16:18,690 –> 00:16:19,490

Rini: ister
00:16:19,490 –> 00:16:20,780

Rini: Legal Services did one of your
00:16:20,780 –> 00:16:22,100

Rini: attempted affidavits, and he
00:16:22,100 –> 00:16:23,350

Rini: described the person who
00:16:23,350 –> 00:16:23,590

Rini: answered
00:16:23,590 –> 00:16:25,600

Rini: the door at the one place, who,
00:16:25,600 –> 00:16:27,090

Rini: by the way, matches the
00:16:27,090 –> 00:16:29,150

Rini: description of the daddy of her
00:16:29,150 –> 00:16:31,450

Rini: child, Feliciana, who has a
00:16:31,450 –> 00:16:33,660

Rini: warrant out and attorney and
00:16:33,660 –> 00:16:35,780

Rini: date, though, for, lo and
00:16:35,780 –> 00:16:36,650

Rini: behold,
00:16:36,810 –> 00:16:38,300

Rini: They're co-defendants for a
00:16:38,300 –> 00:16:40,360

Rini: retail theft case, and he's got
00:16:40,360 –> 00:16:42,630

Rini: a TSI right now to address that
00:16:42,630 –> 00:16:42,930

Rini: warrant,
00:16:43,390 –> 00:16:44,320

Rini: which is for contempt for
00:16:44,320 –> 00:16:46,290

Rini: having contact with Ms. Penn.
00:16:46,590 –> 00:16:48,490

Rini: And also noting that Ms. Penn
00:16:48,490 –> 00:16:50,530

Rini: has attempted to file habeas
00:16:50,530 –> 00:16:52,550

Rini: corpus motions to get him out
00:16:52,550 –> 00:16:53,730

Rini: of custody.
00:16:55,230 –> 00:16:57,860

Rini: Very complex web of stuff going
00:16:57,860 –> 00:16:59,330

Rini: on here.
00:17:00,170 –> 00:17:02,180

Rini: but she clearly knows and the
00:17:02,180 –> 00:17:03,950

Rini: fact that she is actively
00:17:03,950 –> 00:17:06,170

Rini: avoiding service does not stop
00:17:06,170 –> 00:17:06,330

Rini: the

00:17:06,330 –> 00:17:08,180

Rini: proceedings from going forward

00:17:08,180 –> 00:17:09,950

Rini: the agency has definitely made

00:17:09,950 –> 00:17:11,690

Rini: diligent efforts was the foster

00:17:11,690 –> 00:17:13,670

Rini: parent notified of today's

00:17:13,670 –> 00:17:15,920

Rini: hearing yes okay i'll note that

00:17:15,920 –> 00:17:18,170

Rini: but no foster parent appeared

00:17:26,080 –> 00:17:27,840

Rini: I will also note that in the

00:17:27,840 –> 00:17:29,950

Rini: dismissal of Feliciano's case

00:17:29,950 –> 00:17:32,360

Rini: in Multnomah County, Judge Troy

00:17:32,360 –> 00:17:34,330

Rini: clearly was not happy, wrote

00:17:34,330 –> 00:17:36,230

Rini: multiple paragraphs about his

00:17:36,230 –> 00:17:38,190

Rini: concerns about the lethality of

00:17:38,190 –> 00:17:39,800

Rini: domestic violence in that

00:17:39,800 –> 00:17:40,770

Rini: household.

00:17:40,770 –> 00:17:42,380

Rini: That was not part of this case
00:17:42,380 –> 00:17:44,210

Rini: with mom and this father. It's
00:17:44,210 –> 00:17:45,290

Rini: part of the jurisdiction.
00:17:46,030 –> 00:17:48,200

Rini: But this is a mother who is not
00:17:48,200 –> 00:17:51,190

Rini: unfamiliar with the dependency
00:17:51,190 –> 00:17:52,290

Rini: system.
00:17:53,830 –> 00:17:55,190

Rini: I have no reason to believe the
00:17:55,190 –> 00:17:56,320

Rini: Indian Child Welfare Act
00:17:56,320 –> 00:17:57,530

Rini: federal or state applied.
00:17:57,630 –> 00:17:58,390

Rini: Is anyone else?
00:17:58,630 –> 00:17:59,560

Rini: I did not see anything in the
00:17:59,560 –> 00:18:00,250

Rini: paperwork.
00:18:00,710 –> 00:18:02,490

Rini: Child is under the age of 18.
00:18:02,630 –> 00:18:03,630

Rini: Venue is proper.
00:18:04,600 –> 00:18:05,330

Rini: This course has jurisdiction
00:18:05,330 –> 00:18:07,160

Rini: under the Uniform Child Custody

00:18:07,160 –> 00:18:09,270

Rini: Jurisdiction Enforcement Act.

00:18:10,130 –> 00:18:12,010

Rini: I will find that the state has

00:18:12,010 –> 00:18:13,770

Rini: proven for mom.

00:18:14,630 –> 00:18:17,670

Rini: That was allegations A, B, and

00:18:17,670 –> 00:18:18,290

Rini: C.

00:18:23,830 –> 00:18:28,530

Rini: Let's see. Dad made his

00:18:28,530 –> 00:18:38,470

Rini: admissions back on October 14.

00:18:38,470 –> 00:18:49,230

Rini: Based upon that, child is found

00:18:49,230 –> 00:18:50,440

Rini: within the jurisdiction of the

00:18:50,440 –> 00:18:50,830

Rini: court.

00:18:51,830 –> 00:18:53,230

Rini: All right. Are the parties

00:18:53,230 –> 00:18:54,030

Rini: prepared to proceed to

00:18:54,030 –> 00:18:55,890

Rini: disposition? Yes, Your Honor.

00:18:55,890 –> 00:18:58,050

Rini: All right. I have been handed

00:18:58,050 –> 00:19:00,580

Rini: what will be marked as State's
00:19:00,580 –> 00:19:03,290

Rini: Exhibit 1, consisting of the
00:19:03,290 –> 00:19:05,920

Rini: October 30th letter to the
00:19:05,920 –> 00:19:08,190

Rini: court and a proposed action
00:19:08,190 –> 00:19:11,080

Rini: agreement for each parent. What
00:19:11,080 –> 00:19:13,450

Rini: would you like to tell me?
00:19:13,690 –> 00:19:14,990

AAD Yasmin Wadia: At this point in time, Judge,
00:19:14,990 –> 00:19:16,240

AAD Yasmin Wadia: the agency does respectfully
00:19:16,240 –> 00:19:17,390

AAD Yasmin Wadia: request the court order the
00:19:17,390 –> 00:19:17,810

AAD Yasmin Wadia: services
00:19:17,810 –> 00:19:19,970

AAD Yasmin Wadia: as outlined on the service
00:19:19,970 –> 00:19:22,020

AAD Yasmin Wadia: checklist as to mother and
00:19:22,020 –> 00:19:22,930

AAD Yasmin Wadia: father.
00:19:23,190 –> 00:19:25,340

AAD Yasmin Wadia: I believe Mr. Davis previously
00:19:25,340 –> 00:19:27,480

AAD Yasmin Wadia: indicated a stipulation to the
00:19:27,480 –> 00:19:29,750

AAD Yasmin Wadia: psychological evaluation.
00:19:31,150 –> 00:19:31,850

AAD Yasmin Wadia: At this point in time, if Ms.
00:19:31,850 –> 00:19:34,110

AAD Yasmin Wadia: Marquand is still under oath, I
00:19:34,110 –> 00:19:34,860

AAD Yasmin Wadia: would ask her to provide
00:19:34,860 –> 00:19:35,970

AAD Yasmin Wadia: some updates and testimony.
00:19:36,310 –> 00:19:36,910

AAD Yasmin Wadia: Ms. Marquand?
00:19:36,910 –> 00:19:41,260

Marquand: Your Honor, the agency has
00:19:41,260 –> 00:19:46,110

Marquand: attempted to have contact with
00:19:46,110 –> 00:19:49,670

Marquand: mother. Again, most of these
00:19:49,670 –> 00:19:52,430

Marquand: contacts is more of demands by
00:19:52,430 –> 00:19:55,080

Marquand: mother and she stated that she
00:19:55,080 –> 00:19:57,250

Marquand: will only meet with the
00:19:57,250 –> 00:20:00,250

Marquand: agency once these demands are
00:20:00,250 –> 00:20:03,390

Marquand: kind of fulfilled. The child
00:20:03,390 –> 00:20:05,430

Marquand: has been at the relative
00:20:05,430 –> 00:20:06,530

Marquand: resource parent

00:20:07,330 –> 00:20:09,490

Marquand: since the onset of this case.

00:20:09,490 –> 00:20:12,180

Marquand: The child is doing well. The

00:20:12,180 –> 00:20:15,820

Marquand: child has stated that she does

00:20:15,820 –> 00:20:16,050

Marquand: want

00:20:16,050 –> 00:20:18,210

Marquand: contact with dad and that she,

00:20:18,210 –> 00:20:20,260

Marquand: you know, on the onset of this

00:20:20,260 –> 00:20:22,210

Marquand: case didn't want to go home

00:20:22,210 –> 00:20:22,360

Marquand: back

00:20:22,360 –> 00:20:23,380

Marquand: to dad. I think that

00:20:23,380 –> 00:20:24,850

Marquand: relationship with dad is a much

00:20:24,850 –> 00:20:25,950

Marquand: stronger bond than the

00:20:25,950 –> 00:20:26,930

Marquand: relationship with

605 00:20:26,930 –> 00:20:28,790

Marquand: mother that this child has but

00:20:28,790 –> 00:20:30,580

Marquand: ultimately she has also said

00:20:30,580 –> 00:20:32,450

Marquand: that she will go live with her
00:20:32,450 –> 00:20:32,840

Marquand: mother
00:20:32,840 –> 00:20:34,180

Marquand: but wants to do family
00:20:34,180 –> 00:20:36,230

Marquand: counseling first before that.
00:20:36,230 –> 00:20:38,110

Marquand: Obviously mom has not engaged
00:20:38,110 –> 00:20:38,690

Marquand: with the
00:20:38,690 –> 00:20:40,180

Marquand: agency so that may take some
00:20:40,180 –> 00:20:41,600

Marquand: time in order to kind of get
00:20:41,600 –> 00:20:43,330

Marquand: set up but the child is willing
00:20:43,330 –> 00:20:43,410

Marquand: and
00:20:43,410 –> 00:20:44,990

Marquand: wanting to engage in that
00:20:44,990 –> 00:20:47,030

Marquand: service. My understanding is
00:20:47,030 –> 00:20:49,940

Marquand: with both parents and while the
00:20:49,940 –> 00:20:51,170

Marquand: agency didn't
00:20:51,170 –> 00:20:54,500

Marquand: check that box on the checklist
00:20:54,500 –> 00:20:57,940

Marquand: of kind of therapeutic family
00:20:57,940 –> 00:21:00,210

Marquand: therapy the agency is looking
00:21:00,210 –> 00:21:01,890

Marquand: at that as through the route of
00:21:01,890 –> 00:21:03,580

Marquand: the child services child is is
00:21:03,580 –> 00:21:05,240

Marquand: wanting that type of service
00:21:05,240 –> 00:21:05,570

Marquand: and that
00:21:05,570 –> 00:21:06,900

Marquand: will be happening through the
00:21:06,900 –> 00:21:08,250

Marquand: counseling services that the
00:21:08,250 –> 00:21:12,130

Marquand: child is engaged in um father
00:21:12,130 –> 00:21:13,410

Marquand: at the time
00:21:13,410 –> 00:21:14,930

Marquand: of the last hearing was still
00:21:14,930 –> 00:21:16,560

Marquand: in custody he's been since been
00:21:16,560 –> 00:21:19,570

Marquand: released yes as noted um and i
00:21:19,570 –> 00:21:20,130

Marquand: believe
00:21:20,130 –> 00:21:21,690

Marquand: that the no contact order with
00:21:21,690 –> 00:21:23,360

Marquand: child is still in place. It was

00:21:23,360 –> 00:21:25,830

Marquand: not modified. The agency is

00:21:25,830 –> 00:21:26,130

Marquand: working

00:21:26,130 –> 00:21:28,290

Marquand: with the father now that he's

00:21:28,290 –> 00:21:30,100

Marquand: out and child to get some of

00:21:30,100 –> 00:21:32,010 the things at the father's

00:21:32,010 –> 00:21:32,930 house for the

00:21:32,930 –> 00:21:34,450 child that she has wanted. This

00:21:34,450 –> 00:21:35,690 has been kind of an ongoing

00:21:35,690 –> 00:21:37,000 need for the child, but given

00:21:37,000 –> 00:21:37,730 father was

00:21:37,730 –> 00:21:38,980 incarcerated, there was kind of

00:21:38,980 –> 00:21:40,130

Marquand: some barriers around that.

00:21:40,130 –> 00:21:43,430

Marquand: Father has been extremely

00:21:43,430 –> 00:21:45,080

Marquand: cooperative,

00:21:45,080 –> 00:21:46,110

Marquand: and I want to just note that

00:21:46,110 –> 00:21:47,250

Marquand: since father is here, he was

00:21:47,250 –> 00:21:48,500

Marquand: really cooperative in the last

00:21:48,500 –> 00:21:49,250

Marquand: case too. He

00:21:49,250 –> 00:21:52,010

Marquand: did what he needed to do to get
00:21:52,010 –> 00:21:54,810

Marquand: his children back and you know
00:21:54,810 –> 00:21:56,570

Marquand: as noted in testimony mother
00:21:56,570 –> 00:21:56,850

Marquand: didn't
00:21:57,410 –> 00:21:58,830

Marquand: and so a lot of that case in
00:21:58,830 –> 00:22:01,190

Marquand: the prior dependency case was
00:22:01,190 –> 00:22:03,730

Marquand: for kind of fighting the system
00:22:03,730 –> 00:22:03,970

Marquand: and
00:22:05,010 –> 00:22:05,630

Marquand: but father did engage in
00:22:05,630 –> 00:22:07,690

Marquand: services father's willing to
00:22:07,690 –> 00:22:09,890

Marquand: engage in services he's been in
00:22:09,890 –> 00:22:10,610

Marquand: communication
00:22:10,610 –> 00:22:13,010

Marquand: with mr milner is the perman
00:22:13,010 –> 00:22:15,730

Marquand: ency worker and i think that you
00:22:15,730 –> 00:22:18,290

Marquand: know with that no contact order
00:22:18,290 –> 00:22:19,790

Marquand: there is that barrier, but once
00:22:19,790 –> 00:22:21,290

Marquand: that's lifted, if and when that
00:22:21,290 –> 00:22:22,670

Marquand: 's lifted, the agency will
00:22:22,670 –> 00:22:24,270

Marquand: work diligently to kind of
00:22:24,270 –> 00:22:26,040

Marquand: start those visits and start
00:22:26,040 –> 00:22:27,950

Marquand: that in-home planning process
00:22:27,950 –> 00:22:28,570

Marquand: between
00:22:28,570 –> 00:22:30,040

Marquand: father and child. I have no
00:22:30,040 –> 00:22:32,170

Marquand: reason to believe that ICWA or
00:22:32,170 –> 00:22:34,650

Marquand: ICWA apply. Grandparents were
00:22:34,650 –> 00:22:36,130

Marquand: also notified, or that at least
00:22:36,130 –> 00:22:37,440

Marquand: the grandparents that we are
00:22:37,440 –> 00:22:39,010

Marquand: aware of were notified as well,
00:22:39,310 –> 00:22:40,490

Marquand: including the resource parent.
00:22:40,490 –> 00:22:44,590

Rini: All right, thank you. Ms. Molz?
00:22:44,590 –> 00:22:46,290

Marquand: Thank you, Your Honor.
00:22:46,290 –> 00:22:49,390

Marquand: I'll just say dad is continuing
00:22:49,390 –> 00:22:50,640

Marquand: to be cooperative as he was in
00:22:50,640 –> 00:22:51,430

Marquand: the last case.
00:22:51,570 –> 00:22:54,330

Marquand: He has already done parenting
00:22:54,330 –> 00:22:56,930

Marquand: classes as set up by DHS.
00:22:58,030 –> 00:22:58,710

Marquand: He also really wants to have
00:22:58,710 –> 00:23:00,580

Marquand: contact with his daughter to
00:23:00,580 –> 00:23:01,450

Marquand: that end.
00:23:01,910 –> 00:23:02,710

Marquand: I've been working with his
00:23:02,710 –> 00:23:03,870

Marquand: criminal attorney.
00:23:05,210 –> 00:23:06,180

Marquand: We filed the competing orders
00:23:06,180 –> 00:23:07,990

Marquand: paperwork, and that was denied
00:23:07,990 –> 00:23:08,830

Marquand: by Judge Guptill.
00:23:08,990 –> 00:23:10,560

Rini: Right, because I think you have
00:23:10,560 –> 00:23:12,040

Rini: to go through the old school
00:23:12,040 –> 00:23:12,550

Rini: process
00:23:12,550 –> 00:23:13,990

Rini: of requesting just the criminal
00:23:13,990 –> 00:23:15,110

Rini: court modification.
00:23:16,290 –> 00:23:17,790

Marquand: All right, so we'll continue
00:23:17,790 –> 00:23:19,930

AAD Yasmin Wadia: working on that. Maybe a third
00:23:19,930 –> 00:23:22,920

AAD Yasmin Wadia: try will be successful, finally
00:23:22,920 –> 00:23:25,090

AAD Yasmin Wadia: . I think that there's still a
00:23:25,090 –> 00:23:26,990

AAD Yasmin Wadia: lot of interested parties in
00:23:26,990 –> 00:23:28,730

AAD Yasmin Wadia: this case. The district
00:23:28,730 –> 00:23:30,630

Marquand: attorney may still have some
00:23:30,630 –> 00:23:32,670

Marquand: concerns about that contact,
00:23:32,670 –> 00:23:34,410

Marquand: but if we can have it per DHS
00:23:34,410 –> 00:23:36,700

Marquand: and then supervising, hopefully
00:23:36,700 –> 00:23:38,490

Marquand: that can alleviate some of
00:23:38,490 –> 00:23:39,930

Marquand: those concerns.

00:23:39,930 –> 00:23:41,520

Marquand: And dad is happy to cooperate

00:23:41,520 –> 00:23:43,680

Marquand: with the agency and getting the

00:23:43,680 –> 00:23:45,450

Marquand: child any of the things that

00:23:45,450 –> 00:23:47,390

Marquand: she's needing from the house,

00:23:47,390 –> 00:23:49,000

Marquand: anything that he's needing

00:23:49,000 –> 00:23:50,810

Marquand: moving forward, he's happy to

00:23:50,810 –> 00:23:51,210

Marquand: do.

00:23:51,770 –> 00:23:52,460

Marquand: As you know, he's already

00:23:52,460 –> 00:23:53,950

Marquand: resolved in this case, he didn

00:23:53,950 –> 00:23:55,250

Marquand: 't need to be here, but this

00:23:55,250 –> 00:23:56,730

Marquand: case is important to him, so it

00:23:56,730 –> 00:23:57,990

Marquand: was important for him to be

00:23:57,990 –> 00:23:59,240

Marquand: here and to keep abreast of

00:23:59,240 –> 00:24:00,590

Marquand: what's going on.

00:24:01,330 –> 00:24:02,770

Marquand: And I anticipate continuing in

00:24:02,770 –> 00:24:05,170

Marquand: that vein throughout the case.

00:24:06,050 –> 00:24:06,730

Marquand: Thank you.

00:24:06,730 –> 00:24:07,850

Rini: Mr. Latsky?

00:24:09,050 –> 00:24:10,200 Childhood is definitely in

00:24:10,200 –> 00:24:11,660 support of a modification of

00:24:11,660 –> 00:24:14,250 the release order for her

00:24:14,250 –> 00:24:14,670 father.

00:24:15,670 –> 00:24:17,270 And we'll support any devotion

00:24:17,270 –> 00:24:18,610 for the same.

00:24:19,210 –> 00:24:20,710 Otherwise, she's doing well.

00:24:22,390 –> 00:24:23,530 Continue in therapy.

00:24:27,870 –> 00:24:28,510 Sorry.

00:24:39,050 –> 00:24:58,830

Marquand: I realize that I did not list

00:24:58,830 –> 00:24:59,710

Marquand: the services.

00:25:00,710 –> 00:25:02,190

Rini: Oh, I'm going through that now.

00:25:02,190 –> 00:25:02,790

Rini: Okay, sorry.

00:25:09,050 –> 00:25:13,250

Rini: I'm just filling up the check

00:25:13,250 –> 00:25:18,320

Rini: in the box this is a goal all

00:25:18,320 –> 00:25:25,110

Rini: right you said

00:25:25,110 –> 00:25:28,390

Rini: grandparents were made aware.

00:25:28,390 –> 00:25:34,770 All right, at this point in

00:25:34,770 –> 00:25:40,390

Rini: time, child is placed in the

00:25:40,390 –> 00:25:40,950

Rini: legal custody

00:25:40,950 –> 00:25:42,020

Rini: of the Oregon Department of

00:25:42,020 –> 00:25:43,250

Rini: Human Services and Substitute

00:25:43,250 –> 00:25:44,450

Rini: Care. Diligent efforts were

00:25:44,450 –> 00:25:44,870

Rini: made for

00:25:44,870 –> 00:25:46,240

Rini: relative placement as that has

00:25:46,240 –> 00:25:47,770

Rini: occurred. That placement is the

00:25:47,770 –> 00:25:49,440

Rini: least restrictive, most family-

00:25:49,440 –> 00:25:49,670

Rini: like

00:25:49,670 –> 00:25:51,560

Rini: setting. Reasonable efforts

00:25:51,560 –> 00:25:53,170

Rini: have been made to prevent or

00:25:53,170 –> 00:25:54,910

Rini: eliminate the need for removal.

00:25:54,910 –> 00:25:55,190

Rini: I'm

00:25:55,190 –> 00:25:57,690

Rini: noting the contents of Exhibit
00:25:57,690 –> 00:25:59,830

Rini: 1 and also noting mother
00:25:59,830 –> 00:26:02,200

Rini: actively evading DHS despite
00:26:02,200 –> 00:26:03,050

Rini: multiple
00:26:03,050 –> 00:26:04,820

Rini: attempts by the agency. Current
00:26:04,820 –> 00:26:06,420

Rini: case plan is reunification.
00:26:06,420 –> 00:26:08,050

Rini: Backup plan would be given her
00:26:08,050 –> 00:26:10,290

Rini: age or guardianship. Again,
00:26:10,290 –> 00:26:12,370

Rini: child was made war to the court
00:26:12,370 –> 00:26:14,690

Rini: , legal custody, and guardians
00:26:14,690 –> 00:26:15,370

Rini: hip to the
00:26:15,370 –> 00:26:17,170

Rini: agency for out-of-home care the
00:26:17,170 –> 00:26:18,870

Rini: agency shall notify court and
00:26:18,870 –> 00:26:19,930

Rini: attorneys when a
00:26:19,930 –> 00:26:21,290

Rini: child has been returned to a
00:26:21,290 –> 00:26:22,820

Rini: parent or a change in placement
00:26:22,820 –> 00:26:23,770

Rini: make appropriate
00:26:23,770 –> 00:26:25,260

Rini: referrals for the services
00:26:25,260 –> 00:26:26,960

Rini: consult with parents attorney
00:26:26,960 –> 00:26:29,610

Rini: regarding the evaluator
00:26:29,610 –> 00:26:31,770

Rini: maintain regular contact with
00:26:31,770 –> 00:26:33,740

Rini: the providers mom shall visit
00:26:33,740 –> 00:26:35,090

Rini: participate in
00:26:35,090 –> 00:26:37,250

Rini: parent education classes
00:26:37,250 –> 00:26:39,250

Rini: maintain contact with the
00:26:39,250 –> 00:26:40,930

Rini: agency clear and resolve
00:26:40,930 –> 00:26:42,230

Rini: warrants and pending criminal
00:26:42,230 –> 00:26:43,540

Rini: matters and comply with their
00:26:43,540 –> 00:26:48,150

Rini: criminal court cases. For dad,
00:26:48,150 –> 00:26:48,850

Rini: visit
00:26:48,850 –> 00:26:50,590

Rini: when you can, when we can get
00:26:50,590 –> 00:26:52,400

Rini: that all lined up. Do a psych
00:26:52,400 –> 00:26:54,150

Rini: eval, participate in those
00:26:54,150 –> 00:26:55,070

Rini: services.
00:26:55,630 –> 00:26:57,490

Rini: Dad stipulates to the service
00:26:57,490 –> 00:27:00,140

Rini: with a CAPI. Clear and resolve
00:27:00,140 –> 00:27:02,710

Rini: all warrants pending criminal
00:27:02,710 –> 00:27:03,130

Rini: matters,
00:27:03,310 –> 00:27:05,150

Rini: comply with terms of pretrial
00:27:05,150 –> 00:27:07,660

Rini: release, probation, parole, etc
00:27:07,660 –> 00:27:10,010

Rini: . Sign releases and participate
00:27:10,010 –> 00:27:10,450

Rini: in any
00:27:10,450 –> 00:27:11,960

Rini: of the child's therapies when
00:27:11,960 –> 00:27:13,760

Rini: allowed and if necessary. We
00:27:13,760 –> 00:27:16,610

Rini: will go ahead and set a review
00:27:16,610 –> 00:27:18,990

Rini: hearing for February 23rd at 9.

00:27:18,990 –> 00:27:24,680

Rini: And permanency, if we're still

00:27:24,680 –> 00:27:31,000

Rini: involved, will be June 29th at

00:27:31,000 –> 00:27:32,350

Rini: 9.

00:27:40,450 –> 00:27:41,650

Rini: Anything further we need to

00:27:41,650 –> 00:27:42,470

Rini: address today?

00:27:42,990 –> 00:27:43,510

AAD Yasmin Wadia: No, Your Honor.

00:27:44,290 –> 00:27:44,730

Rini: Okay.

00:27:45,150 –> 00:27:46,290

Rini: Dad, I'm glad you're out.

00:27:47,070 –> 00:27:47,800

Rini: We never want you to go

00:27:47,800 –> 00:27:48,750

Rini: sideways.

00:27:50,250 –> 00:27:50,840

Rini: Everything goes better if you

00:27:50,840 –> 00:27:52,650

Rini: remain out of custody.

00:27:53,250 –> 00:27:54,220

Rini: So your attorneys will keep

00:27:54,220 –> 00:27:55,860

Rini: working regarding the visit

00:27:55,860 –> 00:27:56,490

Rini: ation.

00:27:58,930 –> 00:27:59,440

Rini: And let's see if we can make

00:27:59,440 –> 00:28:01,470

Rini: that happen because I know she

00:28:01,470 –> 00:28:02,590

Rini: really does want to see you.

00:28:02,850 –> 00:28:03,850

Rini: And it can be done in a safe

00:28:03,850 –> 00:28:04,830

Rini: and secure way.

00:28:05,210 –> 00:28:05,910

Rini: We just need to get the

00:28:05,910 –> 00:28:07,380

Rini: criminal court to allow us to

00:28:07,380 –> 00:28:08,190

Rini: control it.

00:28:08,890 –> 00:28:09,490

Rini: All right.

00:28:09,530 –> 00:28:10,370

Rini: That would be the order.

00:28:10,450 –> 00:28:11,530

Rini: THANK YOU, EVERYONE.

Exhibit H

Duffy — Declaration of Diligent Efforts (Oct. 2025)

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR WASHINGTON COUNTY

Juvenile Department

In the Matter of AL-MIRA AMIRA JAZMINE DAVIS, A child.	Case No. 25JU04261 DECLARATION OF DILIGENT EFFORTS

I, Rylan Duffy, do hereby declare that:

1.

I am a Litigation Legal Assistant for the State of Oregon Department of Justice, Child Advocacy and Protection Division.

2.

My responsibilities include facilitating service of legal documents on parties involved in juvenile dependency matters pending in the Washington County Circuit Court.

3.

On September 8, 2025, the Oregon Department of Human Services (ODHS) filed a dependency petition to establish jurisdiction of the above-named child.

4.

On October 10, 2025, our office completed an Oregon Offender Search for mother. No information regarding the parent was located.

///

///

///

DEPARTMENT OF JUSTICE
100 SW Market St.
Portland, OR 97201

PHONE: (971) 673-1880
FAX: (971) 673-1888
TTY: (800) 735-2900
Email: Yazmin.Wadia@doj.oregon.gov

5.

On October 10, 2025, our office searched the Washington County Jail, Multnomah County Jail, and Clackamas County Jail rosters for father. No information regarding the parent was located.

6.

On October 10, 2025, our office ran a CLEAR search for mother. The CLEAR search provided the following addresses: 17548 NW Springville Rd. Unit 9, Portland, OR 97229, reported last 8/14/2025.

7.

On October 10, 2025, our office completed a VISOR search for mother in the state of Oregon. Mother was in custody on September 20, 2024 and released at an unknown date. Mother currently has an active warrant for her arrest.

8.

On September 19, 2025, my office prepared a service packet for mother, which included a certified true copy of the Petition along with a certified true copy of the Summons. The service packet was provided to Barrister Support Service to attempt service on mother at 17548 NW Springville Rd. Unit 9, Portland, OR 97229, which was the parent's last known address.

9.

On October 8, 2025, our office received information from Barrister Support Service regarding their attempts to serve the parent. Barrister Support Service indicated that they were unable to successfully serve the parent at 17548 NW Springville Rd. Unit 9, Portland, OR 97229.

10.

Notwithstanding, the investigation described above, and the investigation done by Oregon Department of Human Services (ODHS), the where about of mother cannot be reasonably ascertained and she cannot, therefore, be personally served with the certified true copies of the Summons and Petition.

DEPARTMENT OF JUSTICE
100 SW Market St.
Portland, OR 97201

PHONE: (971) 673-1880
FAX: (971) 673-1888
TTY: (800) 735-2900
Email: Yazmin.Wadia@doj.oregon.gov

I hereby declare that the above statement is true to the best of my knowledge and belief, and that I understand it is made for use as evidence in court and is subject to penalty for perjury.

DATED this 10th day of October, 2025.

/s/ Rylan Duffy
Rylan Duffy
Litigation Legal Assistant, CAPD

DEPARTMENT OF JUSTICE
100 SW Market St.
Portland, OR 97201

PHONE: (971) 673-1880
FAX: (971) 673-1888
TTY: (800) 735-2900
Email: Yazmin.Wadia@doj.oregon.gov

CERTIFICATE OF SERVICE

I hereby certify that on October 21, 2025, I caused to be served a true, exact and full copy of the foregoing Declaration of Diligent Efforts upon the parties hereto, by the method(s) so noted below, to:

Ashle Penn 17458 NW Springville Rd., Apt 9 Portland, OR 97229	Mail Delivery
Yvana Mols 5289 NE Elam Young Pkwy, Ste. 110 Hillsboro, OR 97124 yvanam@hillsborolawgroup.com cc: kymn@hillsborolawgroup.com *Father's Attorney*	E-Mail
Ryan Lhotsky 180 East Main, Suite 210 Hillsboro, OR 97123 ryan@myfamilyfirm.com *Child's Attorney*	E-Mail
Washington County CASA 230 NE 2nd Ave., Ste.1 Hillsboro, OR 97124 casa.office@multco.us	E-Mail

Yazmin Wadia, #OSB141244
Assistant Attorney General

DEPARTMENT OF JUSTICE
100 SW Market St.
Portland, OR 97201

PHONE: (971) 673-1880
FAX: (971) 673-1888
TTY: (800) 735-2900
Email: Yazmin.wadia@doj.oregon.gov

Exhibit I

Miller — Affidavit Re Efforts to Serve Parent (Oct. 2025)

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON

JUVENILE DEPARTMENT

In the Matter of	)	No. 25JU04261
AL-MIRA DAVIS	)	AFFIDAVIT REGARDING EFFORTS
Child	)	TO SERVE PARENT
STATE OF OREGON	)	
County of Washington	)	

I, Kayla Miller, being first duly sworn, say:

1. The Department of Human Services has made a due and diligent search to locate the parent, Ashle Penn, including inquiry on the following dates of the following persons most likely to know where Ashle can be found:

09/06/2025 Caseworker Nicole Bennett attempted to call Ashle at the following numbers:

424-242-3375 – Call could not be completed

971-888-0674 – Number not in service

	424-242-3374 – Call went to voicemail. Caseworker called this number again 6 times and texted the number twice.
09/06/2025	Caseworker Wiengkhone Soumpholphakdy called Ashle again at 424-242-3374. There was no answer and a voicemail was left.
09/06/2025	Caseworker Wiengkhone Soumpholphakdy attempted contact with Ashle at 17548 NW Springville Rd. Apt. 9, Portland, OR 97229 but was unsuccessful. From an unidentified person speaking through the door of the apartment, caseworker was able to gather an additional number for Ashle, 971-379-4231, but the number was out of service. Caseworker called 424-242-3374 two additional times, left a voicemail, and a follow up text with no response.
09/06/2025	Ashle called caseworker Nicole Bennett around 4:30pm where Nicole attempted to make plans to meet with and transport Ashle to her daughter. After saying she would call back, Ashle did not call back and did not answer follow up calls at 4:46pm and 5:28pm.
09/06/2025	Caseworker Nicole Bennett was able to speak with Ashle again at around 5:30pm when she called the hospital but was unable to safety plan or meet in person.
09/07/2025	On call workers attempted contact with Ashle at her residence but were unsuccessful.
09/23/2025	Caseworkers Ashley Crafton and David Milne attempted contact with Ashle at two different apartments in her last known complex but were unsuccessful.
09/30/2025	I received an Absent Parent Search request from Emilie Marquand for Ashle Penn. Included in the request was a last known address of 17458 NW Springville Rd. Apt. 9, Portland, OR 97229. Also included in the request is Ashle has two open criminal cases (24CR27775 & 24CR49043), one with an active warrant.
09/30/2025	I sent a request to the FPLS. **Result: Pending.**
09/30/2025	I searched ORKids for possible addresses and phone numbers for Ashle.
	17548 NW Springville Rd. Apt. 9 Portland, OR 97229
	16179 NW Brugger Rd. Apt. 303 Portland, OR 97229

	424-242-3374, 424-242-3347, 971-888-0674, 360-916-9569, & 360-718-1692
09/30/2025	I searched LexisNexis Accurint for recent addresses and phone numbers for Ashle. 17548 NW Springville Rd. Apt. 9 Portland, OR 97229 16179 NW Brugger Rd. Apt. 303 Portland, OR 97229 247 SE 160th Ave. Apt. B202 Portland, OR 97233 424-242-3374
09/30/2025	I searched the criminal record feature in LexisNexis Accurint and found Ashle's last criminal record is from September 2024. The address listed is 2850 SW Cedar Hills Blvd. Apt 234, Beaverton, OR 97005.
09/30/2025	I searched LexisNexis Accurint for Virtual Identity Report for email addresses. Ashlepenn.ap3@gmail.com & Ashlepenn215@yahoo.com
09/30/2025	I searched the Ecourt website and confirmed Ashle's last criminal case was from September 2024 and there are currently two open criminal cases. There is an address and phone number listed on Ashle's most recent security release agreement dated 9/20/2024 as well as an additional address on the official receipt. 2850 SW Cedar Hills Blvd. #234 Beaverton, OR 97005 710 NW Autumn Creek Way Apt. L304 Beaverton, OR 97006 424-242-3374 The only open civil case is the Juvenile Dependency case but there is one closed landlord/tenant case from April 2025, and it looks like she was possibly evicted from the apartment located at 17548 NW Springville Rd. Apt. D13 Portland, OR 97229.
09/30/2025	I searched Visor and Ashle is listed as out of custody since 9/20/2024.

09/30/2025	I sent an email to D16 Common Cases for any updated addresses or phone numbers for Ashle. **Results:** Ashle has an open TANF case with an assigned family coach in Beaverton. Mail being sent to 17548 NW Springville Rd. #9 is being returned to sender and Ashle has not provided an updated address. There is a phone number and email on file. Ashle's family coach, Valeria Loera will return to the office on 10/6, and I will connect with her then to see if she can help in contacting Ashle. 424-242-3374 Ashlepenn.ap3@gmail.com
09/30/2025	I searched Medicaid Management Information System MMIS. **Results:** I found a case for Ashle with an address and phone number. 17548 NW Springville Rd. Apt. 9 Portland, OR 97229 424-242-3374
09/30/2025	I searched DHR for EBT purchases for Ashle and found she has an active EBT card but there is no money on the card. Her purchases show she attempted a purchase today at 1:24pm at a Safeway located at 2177 NW 185th Ave. in Hillsboro and another on 9/28 at a 76 Food mart located at 12128 E Burnside St. Based on previous purchases this month, Ashle frequents the Safeway listed above as well as the following stores: Safeway located at 18425 NW West Union Rd. Fred Meyer located at 11425 SW Beaverton Trader Joes located at 2285 NW 185th Ave.
09/30/2025	I searched the DMV screen in DHR and Ashle has two cars registered to her, but neither are current (one from 2013 and the other from 2023). The address listed for both vehicles is 6220 SE 92nd Ave. Portland, OR 97266. 2014 Chrysler 300 – License plate 131NGK 2004 Buick RDV – License plate 223FLZ
10/02/2025	I sent certified restricted letters to the following addresses for Ashle: (list cert/rest# and check status)

Ashle Penn
17458 NW Springville Rd. Apt. 9
Portland, OR 97229
Certified Mail #: 9589 0710 5270 1861 4878 84
Results: Returned to sender 10/8/2025. Apartment was vacant, unable to forward.

Ashle Penn
17548 NW Springville Rd. D13
Portland, OR 97229.
Certified Mail #: 9589 0710 5270 1861 4878 91
Results: Returned to sender 10/8/2025. Attempted delivery but not known at address, unable to forward.

Ashle Penn
16179 NW Brugger Rd. #303
Portland, OR 97229
Certified Mail #: 9589 0710 5270 1861 4879 07
Results: Returned to sender 10/8/2025. Apartment was vacant, unable to forward.

Ashle Penn
247 SE 160th Ave. B202
Portland, OR 97233
Certified Mail #: 9589 0710 5270 1861 4879 14
Results: Returned to sender 10/14/2025. Not deliverable as addressed, unable to forward.

Ashle Penn
6220 SE 92nd Ave.
Portland, OR 97266.
Certified Mail #: 9589 0710 5270 1861 4879 21
Results: Returned to sender 10/22/2025. Not deliverable as addressed, unable to forward.

Ashle Penn
2850 SW Cedar Hills Blvd. #234
Beaverton, OR 97005
Certified Mail #: 9589 0710 5270 1861 4879 38
Results: Returned to sender 10/14/2025. Delivery attempted, not known at address.

Ashle Penn
710 NW Autumn Creek Way Apt. L304
Beaverton, OR 97006
Certified Mail #: 9589 0710 5270 1861 4879 45

Results: Pending.

10/02/2025 I searched Facebook but was unable to find and confirm a page for Ashle.

10/02/2025 I searched the relative spreadsheet in ORKids and found the following relatives for Ashle:

Marie A Penn – Mother
1209 Gary Carmena Ave.
North Las Vegas, NV 89081

Avery L Penn Sr. – Father
1917 Lake Omega St. #A
El Paso, Tx 79936

Brittany M Horsley – Half sister
4268 Pennwood Ave. #1
Las Vegas, NV 89102

Avery Penn Jr – Brother
312 Estella Ave.
Las Vegas, NV 89107

10/02/2025 I searched Overs but found no information for Ashle.

10/03/2025 I mailed a request for information to the Postmaster General (list addresses & which Postmaster):

17458 NW Springville Rd. Apt. 9
Portland, OR 97229
Sent to: Hillsboro Post Office
Results: Response received 10/21/2025. Marked as "mail is delivered to address given"

17548 NW Springville Rd. D13
Portland, OR 97229.
Sent to: Hillsboro Post Office
Results: Response received 10/21/2025. Marked as other, new address 17548 NW Springville Rd. #9. Note states "customer does not have access to mailbox currently, mail not deliverable as addressed."

16179 NW Brugger Rd. #303
Portland, OR 97229
Sent to: Hillsboro Post Office

Results: Response received 10/21/2025. Marked as vacant.

247 SE 160th Ave. B202
Portland, OR 97233
Sent to: Midway Post Office
Results: Response received 10/21/2025. Marked as vacant.

6220 SE 92nd Ave.
Portland, OR 97266.
Sent to: Lents at Eastport Post Office
Results: Pending.

2850 SW Cedar Hills Blvd. #234
Beaverton, OR 97005
Sent to: Beaverton Post Office
Results: Response received 10/20/2025. Marked as "Not known at address given"

710 NW Autumn Creek Way Apt. L304
Beaverton, OR 97006
Sent to: Hillsboro Post Office
Results: Response received 10/20/2025. Marked as "Not known at address given"

10/03/2025 I sent letters to relatives found for Ashle.

Marie A Penn
1209 Gary Carmena Ave.
North Las Vegas, NV 89081

Avery L Penn Sr.
1917 Lake Omega St. #A
El Paso, Tx 79936

Brittany M Horsley
4268 Pennwood Ave. #1
Las Vegas, NV 89102

Avery Penn Jr
312 Estella Ave.
Las Vegas, NV 89107

Results: Letter sent to Avery Penn Jr. was returned to sender 10/23/2025. Not known at address.

10/06/2025 I sent an email to the email addresses found for Ashle on 9/30/2025.

Hi Ashle
My name is Kayla Miller, and I work for Oregon Department of Human Services, Child Welfare, out of the Hillsboro Oregon office. Our caseworker, David Milne, is trying to contact you regarding your child and an open case he is working. It is very important you please contact David at 971-673-5476 or email him at David.Milne@odhs.oregon.gov as soon as possible. Thank you for your time and take care.

Kayla Miller
ODHS Child Welfare
Hillsboro Oregon

Results:

I received a response from Ashle (ashlepenn.ap3@gmail.com) stating she was planning on contacting CPS caseworker Ashley Crafton today, and was confused on how David Milne was involved in the case. I gave her a brief explanation of who David is, told her my role is to connect her with caseworkers to provide her the court summons, and requested she contact David and Ashley as soon as possible (I added them both into the email thread). I then sent a follow up message to Ashley and David regarding my email exchange with Ashle.

10/06/2025 I searched DHR for any purchases for Ashle and found she made the following transactions.

10/2/2025 – Cash Withdrawal at BMO Bank located at 2495 NW Town Center Dr.

10/2/2025 – Cash Purchase at Safeway located at 18425 NW West Union Rd.

10/08/2025 I searched LexisNexis Accurint for new addresses and phone numbers for Ashle, but no new information was found.

10/08/2025 I searched Ecourts for new criminal or civil cases for Ashle, but no new cases were found.

10/08/2025 I searched Visor and Ashle is not currently incarcerated.

10/08/2025 I searched Facebook again for pages for Ashle but was still unable to locate a page for her.

10/08/2025 I searched DHR for new purchases for Ashle, but no new purchases were found.

10/10/2025 I searched LexisNexis Accurint for new addresses and phone numbers for Ashle, but no new information was found.

10/10/2025 I searched Ecourts for new criminal or civil cases for Ashle, but no new cases were found.

10/10/2025 I searched Visor and Ashle is not currently incarcerated.

10/10/2025 I searched DHR for new purchases for Ashle and found she made two purchases on 10/8/2025.

8:06 PM & 8:08PM - 76 Food Mart located at 12128 E Burnside St. in Portland

10/13/2025 I searched TRACS (Transition Referral & Client Self-Sufficiency):
Results: I found a case for Ashle and there is a note from 10/8/2025, but it is noted it was a late entry from 8/6/2025. Email listed as ashlepenn.ap2@gmail.com

10/13/2025 I sent an email to Ashle's family coach, Valeria Loera, inquiring about contact information for Ashle.
Results: I received a response back from Valeria with an address and phone number for Ashle. Valeria also let me know Ashle is not responding and the last time she had in person contact with Ashle was in May 2025 and the last time she has had any communication with Ashle was in August 2025. There is being returned mail from the address on file for Ashle. Valeria stated Ashle was in the eviction process last she heard, but it was put on hold as her landlord was sick and unable to move forward with the process.

17548 NW Springville Rd Unit 9
Portland, OR 97229

424-242-3374

10/13/2025 I sent a certified letter to the address provided to me by Ashle's family coach.

Ashle Penn
17548 NW Springville Rd. Unit 9
Portland, OR 97229
Certified Mail #: 9589 0710 5270 1861 4879 52
Results: Returned to sender 10/21/2025. Letter unclaimed and unable to forward.

10/15/2025 I searched LexisNexis Accurint for new addresses or phone numbers for Ashle, but no new information was found.

10/15/2025	I searched Ecourts for new criminal or civil cases for Ashle, but no new cases were found.
10/15/2025	I searched Visor and Ashle is not currently incarcerated or under supervision.
10/15/2025	I searched DHR for new purchases for Ashle and found she last used her card on 10/13 at a Walgreens located at 4816 NW Bethany Blvd. in Portland. Ashle also used her card the same day at QFC located at 4756 NW Bethany Blvd. in Portland.
10/15/2025	I sent an email to caseworkers Ashley Crafton and David Milne inquiring on any contact they have had with Ashle since she responded to my email on 10/6/2025. **Results:** I received a response from both Ashley and David. Ashley – Has not heard from Ashle since her email on 10/6/2025 David – Had a phone conversation with Ashle on 10/14/2025. Ashle requested multiple things be done by ODHS before she would agree to a date and time to meet with Dave and have the summons served to her
10/21/2025	I searched LexisNexis Accurint for new addresses or phone numbers for Ashle, but no new information was found.
10/21/2025	I searched Ecourts for new criminal or civil cases for Ashle, but no new cases were found.
10/21/2025	I searched Visor and Ashle is not currently incarcerated or under supervision.
10/21/2025	I searched Facebook but was still unable to locate a page for Ashle.
10/21/2025	I searched DHR for new purchases for Ashle and found her last purchase was on 10/19/2025 at a Safeway located at 18425 NW West Union Rd. Ashle used the rest of her benefits on this purchase.

3. By reason of the foregoing, service cannot be made by any method of personal or substituted service, nor by office service or service by mail as permitted under ORCP 7.

Kayla Miller

Department of Human Services

Subscribed and sworn to before me this DATED this 28th day of October 2025.

OFFICIAL STAMP
JORDAN JARRE VANOVEREEM
NOTARY PUBLIC - OREGON
COMMISSION NO. 1041144
MY COMMISSION EXPIRES SEPTEMBER 28, 2027

Notary Public for Oregon

Exhibit J

Faulkner Emails (June 2, 2026)

Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

7 messages

AshLe' Penn <ashlepenn.ap3@gmail.com> Fri, May 15, 2026 at 1:25 PM
To: Sonya.Faulkner@odhs.oregon.gov
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <Skye.F.Hopkins@odhs.oregon.gov>

Greetings Ms. Faulkner et al.,

I write to address ODHS's characterization of my conduct in the May 2026 Safety Plan and the agency's effort to proceed without identifying any specific conduct that creates a current risk of harm sufficient to justify my daughter Al-Mira Davis's placement outside my home.

Even assuming ODHS could characterize my decision as a refusal of access, that characterization cannot be reconciled with the agency's obligation to recognize a parent's right to decline voluntary surveillance and state intrusion into the privacy of the home absent lawful process. More importantly, ODHS has not identified any specific conduct by me that establishes a current risk of harm, nor has it explained any nexus between any alleged concern and a concrete safety threat. A lawful refusal of voluntary access is not, standing alone, a safety failure.

ODHS also cannot convert a requested home visit, which it has not specifically requested of me, into a substitute for judicial authorization. Oregon's dependency framework is court-centered: if the agency seeks compelled access, compelled services, or other coercive relief, it must proceed through the juvenile court with proper notice and service.

Notwithstanding what appears to be retaliation for the exercise of protected rights, the statements in the safety plan are inflammatory and false. They do not accurately reflect my recent and plainly cooperative participation in a two-hour in-home interview of my children. ODHS has had substantial engagement with my family over the last five to six years, and it has not identified any conduct by me that undermines my fitness as a parent.

Please take notice of the attached letter for further response.

Regards,
AshLe' Penn
Mother of Al-Mira Davis
424.242.3374

Safety Plan Follow Up.pdf
251K

AshLe' Penn <ashlepenn.ap3@gmail.com> Fri, May 15, 2026 at 6:59 PM
To: Helpless inlove <helplessinlove242@gmail.com>

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Fri, May 15, 2026 at 7:14 PM
To: Helpless inlove <helplessinlove242@gmail.com>

[Quoted text hidden]

Safety Plan Follow Up.pdf
251K

FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov> Tue, Jun 2, 2026 at 10:33 AM

To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Good morning AshLe'

At this time, your lack of engagement in the process is limiting the ability to make progress toward the reunification of your child into your home. Your decision to decline access to yourself and your home, along with your refusal to participate fully in the court process, limits ODHS's ability to assess your functioning, protective capacities, and whether your home is now safe for your child. Your engagement is necessary for ODHS to evaluate progress toward reunification.

During our recent call, we discussed your willingness and ability to engage in case planning and the court process. You requested that I obtain a copy of the shelter hearing transcript or recording so I could review it and respond to your concerns. I am currently working to obtain access; however, I cannot guarantee the court will permit its release. This request is separate from the steps you need to take to achieve case goals. My understanding is that you have now received case planning documents to help guide and answer questions related to your daughter's reunification with a parent.

I remain willing to meet with you to discuss the case, hear your questions, and ensure you have what you need to work toward reunification. Your participation is essential, and I want to ensure you can engage in a meaningful way. **We can proceed with the meeting today, June 2nd at 4:00 p.m.,** but the focus will need to be specifically on how we move forward with the steps required for reunification.

You are encouraged to contact an attorney or request court-appointed counsel if you do not currently have one. Concerns related to the conduct of ODHS staff can be addressed through the appropriate internal processes; these matters remain private and are separate from the requirements of your child welfare case.

Please let me know if you would like to meet today.

Thanks,

Sonya Faulkner (she/her)

District 16 Interim Manager

Washington County

Sonya.Faulkner@odhs.oregon.gov

503-559-0544

OREGON DEPARTMENT OF Human Services

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Friday, May 15, 2026 1:25 PM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>; Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>
Subject: Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Jun 2, 2026 at 2:27 PM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Ms. Faulkner,

Please find my response to your email of this morning attached. I will be available at 4:00 PM as you proposed. Please review the attached letter in advance of that call.

Regards,

AshLe' Penn

Penn_Faulkner_Reply_25JU04261_20260602.pdf
20K

FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov> Tue, Jun 2, 2026 at 3:19 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Thank you for the clarifying question AshLe, which is your sole purpose of meeting today, given that you have one question I am answering via email rather than a phone call later today. Given the history of our previous phone interactions, I want to make sure that I have the opportunity to fully answer without interruption.

Here is the answer to your question:

What conduct allows ODHS to evaluate you?

I want to provide a clear explanation based on Oregon law and child welfare rules, now that your case is open and the court has taken jurisdiction.

Once the juvenile court found jurisdiction, ODHS became legally responsible for assessing safety, monitoring progress, and supporting the plan the court has ordered. This authority does not come from any new or specific conduct on your part, it comes directly from the court's jurisdictional finding.

Under Oregon statutes and ODHS rules, when a child is in foster care and the court has jurisdiction:

- ODHS is required to complete and update family assessments.
- ODHS is required to meet with parents, review safety concerns, and monitor progress.
- ODHS is required to have regular contact with you and your child.
- ODHS must evaluate whether safety threats have been addressed and whether reunification can safely occur.

These duties come from Oregon law **ORS 419B** and **ORS 409.185**, as well as ODHS rules including **OAR 413-015** (CPS assessment rules) and **OAR 413-080** (ongoing case and monthly contact requirements).

Because jurisdiction has been established by the court, ODHS has the legal authority and the obligation to evaluate your situation as part of ensuring your child's safety and moving the case toward a permanent plan.

Moving forward please work with Skye and David on next steps, they are the experts on your case. **I am canceling our call for today.**

Thanks,

Sonya Faulkner (she/her)

District 16 Interim Manager

Washington County

Sonya.Faulkner@odhs.oregon.gov

503-559-0544

OREGON DEPARTMENT OF Human Services

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Tuesday, June 2, 2026 2:28 PM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>; Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>; Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>
Subject: Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

Ms. Faulkner,

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Jul 14, 2026 at 5:09 PM
To: Brittney Horsley <bhorsleycpht@gmail.com>

Forwarded Conversation

Subject: Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

---

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, May 15, 2026 at 1:25 PM
To: <Sonya.Faulkner@odhs.oregon.gov>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <Skye.F.Hopkins@odhs.oregon.gov>

Greetings Ms. Faulkner et al.,

I write to address ODHS's characterization of my conduct in the May 2026 Safety Plan and the agency's effort to proceed without identifying any specific conduct that creates a current risk of harm sufficient to justify my daughter Al-Mira Davis's placement outside my home.

Even assuming ODHS could characterize my decision as a refusal of access, that characterization cannot be reconciled with the agency's obligation to recognize a parent's right to decline voluntary surveillance and state intrusion into the privacy of the home absent lawful process. More importantly, ODHS has not identified any specific conduct by me that establishes a current risk of harm, nor has it explained any nexus between any alleged concern and a concrete safety threat. A lawful refusal of voluntary access is not, standing alone, a safety failure.

ODHS also cannot convert a requested home visit, which it has not specifically requested of me, into a substitute for judicial authorization. Oregon's dependency framework is court-centered: if the agency seeks compelled access, compelled services, or other coercive relief, it must proceed through the juvenile court with proper notice and service.

Notwithstanding what appears to be retaliation for the exercise of protected rights, the statements in the safety plan are inflammatory and false. They do not accurately reflect my recent and plainly cooperative participation in a two-hour in-home interview of my children. ODHS has had substantial engagement with my family over the last five to six years, and it has not identified any conduct by me that undermines my fitness as a parent.

Please take notice of the attached letter for further response.

Regards,
AshLe' Penn
Mother of Al-Mira Davis
424.242.3374

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, May 15, 2026 at 6:59 PM
To: Helpless inlove <helplessinlove242@gmail.com>

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Fri, May 15, 2026 at 7:14 PM
To: Helpless inlove <helplessinlove242@gmail.com>

From: **FAULKNER Sonya** <Sonya.FAULKNER@odhs.oregon.gov>
Date: Tue, Jun 2, 2026 at 10:33 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Good morning AshLe'

At this time, your lack of engagement in the process is limiting the ability to make progress toward the reunification of your child into your home. Your decision to decline access to yourself and your home, along with your refusal to participate fully in the court process, limits ODHS's ability to assess your functioning, protective capacities, and whether your home is now safe for your child. Your engagement is necessary for ODHS to evaluate progress toward reunification.

During our recent call, we discussed your willingness and ability to engage in case planning and the court process. You requested that I obtain a copy of the shelter hearing transcript or recording so I could review it and respond to your concerns. I am currently working to obtain access; however, I cannot guarantee the court will permit its release. This request is separate from the steps you need to take to achieve case goals. My understanding is that you have now received case planning documents to help guide and answer questions related to your daughter's reunification with a parent.

I remain willing to meet with you to discuss the case, hear your questions, and ensure you have what you need to work toward reunification. Your participation is essential, and I want to ensure you can engage in a meaningful way. **We can proceed with the meeting today, June 2nd at 4:00 p.m.,** but the focus will need to be specifically on how we move forward with the steps required for reunification.

You are encouraged to contact an attorney or request court-appointed counsel if you do not currently have one. Concerns related to the conduct of ODHS staff can be addressed through the appropriate internal processes; these matters remain private and are separate from the requirements of your child welfare case.

Please let me know if you would like to meet today.

Thanks,

Sonya Faulkner (she/her)

District 16 Interim Manager

Washington County

Sonya.Faulkner@odhs.oregon.gov

503-559-0544

OREGON DEPARTMENT OF Human Services

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Friday, May 15, 2026 1:25 PM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>; Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>
Subject: Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

From: **AshLe' Penn** <ashlepenn.ap3@gmail.com>
Date: Tue, Jun 2, 2026 at 2:27 PM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Ms. Faulkner,

Please find my response to your email of this morning attached. I will be available at 4:00 PM as you proposed. Please review the attached letter in advance of that call.

Regards,

AshLe' Penn

From: **FAULKNER Sonya** <Sonya.FAULKNER@odhs.oregon.gov>
Date: Tue, Jun 2, 2026 at 3:19 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>
[Quoted text hidden]

3 attachments

Safety Plan Follow Up.pdf
251K

Safety Plan Follow Up.pdf
251K

Penn_Faulkner_Reply_25JU04261_20260602.pdf
20K

Exhibit K

Notice of Tort Claim & § 1983 Pre-Suit Demand

NOTICE OF TORT CLAIM UNDER ORS 30.275 AND 42 U.S.C. § 1983 PRE-SUIT DEMAND

Claimant: AshLe' Penn, natural mother of A.D. (minor, DOB 06/23/2011)
Underlying Matter: *In the Matter of Al-mira Davis*, Wash. Co. Circuit Ct., Juv. No. 25JU04261 **Date of Notice:** July 30, 2026 **Delivery:** Electronic mail and U.S. Mail, certified

---

TO:

- Washington County, Oregon, c/o Courtney Duke-Driesson, County Counsel, CountyCounsel@washingtoncountyor.gov
- Richard E. Moellmer, Trial Court Administrator, Washington County Circuit Court, richard.e.moellmer@ojd.state.or.us
- Kimberly A. Beck, Juvenile Case Processing Clerk / Juvenile Department Lead, Kimberly.A.Beck@ojd.state.or.us
- Scott A. Johnson, Court Clerk, Scott.A.Johnson@ojd.state.or.us
- Oregon Judicial Department, State Court Administrator, Salem, OR
- Oregon Department of Human Services, Child Welfare, c/o Director's Office and Attorney General
- Oregon Department of Justice, Child Advocacy and Protection Division
- ODHS Program Manager (Permanency), Lori Hernandez
- ODHS Supervisor Heather Kitto
- ODHS Supervisor Sonya Faulkner
- Caseworkers David Milne, Nicole Bennett, Ashley L. Crafton
- Rylan Duffy, DOJ Litigation Legal Assistant

- Kayla Miller (affiant)
- Barrister Support Service (process server)

I. QUESTION PRESENTED

Whether Washington County, the State of Oregon, the Oregon Department of Human Services, and their named agents violated Claimant's rights under the Fourteenth Amendment, First Amendment, and Oregon law by (1) executing a warrantless nineteen-minute removal of Claimant's child on an unverified, subsequently recanted, conditional statement never pleaded as a jurisdictional basis; (2) rejecting Claimant's timely written appearance and objection through a court clerk exercising a ministerial duty; (3) proceeding to shelter, jurisdictional, and permanency judgments without service and after a documented telephonic contact with the court; and (4) denying Claimant access to the case record until a copy reached her through counsel for the child.

II. BRIEF ANSWER

Yes. The Washington County Circuit Court, the Oregon Department of Human Services, and the individually named officers acted outside their statutory and constitutional authority. Absolute quasi-judicial immunity does not extend to a clerk's non-discretionary refusal to docket a statutorily conforming filing. *Antoine v. Byers & Anderson, Inc.*, 508 U.S. 429, 436 (1993); *Mullis v. U.S. Bankr. Ct.*, 828 F.2d 1385, 1390 (9th Cir. 1987). A warrantless removal of a child requires reasonable cause to believe the child faces imminent danger of serious bodily injury — a standard the record affirmatively negates. *Kirkpatrick v. County of Washoe*, 843 F.3d 784, 789 (9th Cir. 2016) (en banc); *Mabe v. San Bernardino County*, 237 F.3d 1101, 1106 (9th Cir. 2001); *Wallis v. Spencer*, 202 F.3d 1126, 1138 (9th Cir. 2000). Claimant seeks (a) declaratory relief that the September 8, 2025 shelter order and all derivative orders are void for want of service and personal jurisdiction; (b) immediate return of the child; (c) compensatory and punitive damages; and (d) preservation of all evidence pending suit.

III. STATEMENT OF FACTS

A. The 2024 DHS Home Interview and Unfounded Assessment

On March 26, 2024, ODHS caseworker Emily Gonnuscio, accompanied by caseworker Wiengkhone Soumpholphakdy, conducted a scheduled interview inside Claimant's home at 17548 NW Springville Rd., Unit 9, Portland, OR 97229. The interview covered A.D., her siblings, and Claimant. It lasted approximately two hours. At its conclusion Claimant informed the caseworkers that recording occurred in her home. The caseworkers documented that fact in their case notes and Claimant provided her email address.

Supervisor Heather Kitto reviewed the interview the same day and determined: "Out of control not believed to be met at this time so a safety plan will not be implemented." The 2024 assessment closed as UNFOUNDED for physical abuse to A.D. by Claimant. A.D. recanted her allegation and stated she had lied because she was upset with her mother. Law enforcement closed the referral on the same basis.

The agency's own assessment history reflects two founded findings against Claimant, both from 2019, both involving co-perpetrator Barry Washington. All post-2019 assessments (2020, 2021, 2024) closed unfounded or unable to determine.

B. DHS Restored Father's Contact and Placed the Child in the Home Where the September 2025 Assault Later Occurred

In April 2024, A.D.'s father, Alquan Davis, was arraigned and taken into custody temporarily. During his custody, an ODHS worker transported A.D. from grand jury proceedings directly to Claimant's home. Claimant filed for custody in Washington County; the court declined jurisdiction and referred her to Multnomah County based on the auxiliary jurisdiction from Claimant's prior dependency case involving Barry Washington. Before Claimant could complete transfer proceedings, ODHS took the position that the father "was a safe placement" for A.D. and moved the court to remove the no-contact

order. A.D. returned to father's care. Approximately five months later — on September 6, 2025 — Alquan Davis was arrested at his home for Criminal Mischief in the First Degree and Strangulation of A.D.

C. The Nineteen-Minute Reversal on September 6, 2025

A.D. was transported to Legacy Randall Children's Hospital. Hospital records document suicidal ideation with multiple stated plans, including a plan to stab herself and a plan to strangle herself. Hospital staff attributed to A.D. a conditional statement that she would not attempt suicide if she went home with her father but would if she went home with her mother.

At 5:40 PM on September 6, 2025, ODHS Supervisor Heather Kitto texted Claimant: "…we can release custody to you." Nineteen minutes later, at 5:59 PM, Kitto reversed the release: "We've received new information that your child has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody while we assess these concerns and she will not be released to your custody tonight."

Within those nineteen minutes ODHS did not: (a) conduct a protective capacity assessment of Claimant; (b) consult a clinical professional about the attributed statement; (c) determine present or impending danger under OAR 413-015-0425; (d) obtain supervisor consultation before the protective custody decision as OAR 413-015-0415 requires; (e) assess Claimant's capacity to manage the identified risk in light of her Certification in Suicide Prevention – Diagnosis and Treatment; (f) offer or consider a safety plan; (g) evaluate placement with Claimant's uncles, who were physically present at the hospital and later approved by ODHS as A.D.'s placement; or (h) contact Claimant to give her an opportunity to respond.

A.D. recanted the attributed statement to the hospital social worker and to Claimant. Hospital social worker Leah Sathrum recorded the recantation. ODHS caseworker Nicole Bennett recorded it. ODHS Supervisor Sonya Faulkner acknowledged the recantation on a recorded call at transcript time 19:18 ("once there was a recantation for that to be considered") and 20:08 ("even given the recantation"). Faulkner further acknowledged: "we didn't actually look at mom's parental capacity" and "we really don't have any instances of her acting dangerously with regard to the safety of this girl."

D. Claimant's September 8, 2025 Written Special Appearance

Claimant received no summons, no petition, and no hearing notice for the September 8, 2025 shelter hearing. She received only a "Notice of Protective Custody" pamphlet, which is neither a summons nor a petition and imposes no in-person appearance requirement. ODHS Program Manager Lori Hernandez told Claimant that the agency was "not required to physically serve you for a shelter hearing." No text message, voicemail, or notification followed on the communication channels ODHS had used the day before — including Claimant's cell number, Claimant's email, and the text thread through which Supervisor Kitto had communicated on September 6, 2025.

Claimant nonetheless learned the hearing was on Monday, September 8, 2025. She telephoned the clerk's office. She was told two mutually incompatible things: that she was not permitted to file anything in the case, and that filings could only be made in person. She informed the clerk that she could not appear in person and that no proper summons or signed court order had been issued or served on her. The clerk terminated the call before Claimant could complete her special-appearance objection.

At 1:44 PM on September 8, 2025 — before the shelter hearing concluded — Claimant emailed the juvenile court clerk (juvenileweb@washingtoncountyor.gov) a written filing captioned *Objection to Referee Jurisdiction, Motion to Participate by Written Filing, Objection to Continued Custody, and Demand for Immediate Placement with Natural Mother*. The filing contained the court name, the cause title, the party names, and was legible. It expressly designated itself as a special appearance, cited ORS 419A.150, ORS 419B.809, ORS 419B.812, ORS 419B.815, ORS 419B.836, ORS 419B.838, ORS 419B.848(3)(a), ORS 419B.851, and ORS 419B.918, and preserved all jurisdictional objections. At 1:47 PM, Claimant transmitted a duplicate to kat_sanchez@washingtoncountyor.gov.

During the September 8 shelter hearing itself, court personnel confirmed on the record: "Apparently, Mom is called into the court, not to the court hearing, so I'm not quite sure how we can rectify that." A second speaker responded: "She was told of the need to be here in person." A third added: "Hopefully, that's what Ms. Roberson is telling her in the back." No one connected

Claimant to the proceeding, though the court had a Webex session generated for the hearing pursuant to Washington County Presiding Judge Order No. 343 (signed February 15, 2024).

Attorney Ireland Mahoney of Metro Public Defender Inc. appeared at the shelter hearing purporting to represent Claimant. Claimant had not authorized the appearance. On a recorded call on September 15, 2025, Mahoney stated: "That was a mistake because I'm not yet your lawyer. I was contacting you the day of the shelter because I was representing you on that day, but I was not formally appointed to your case." Mahoney confirmed she appeared "just in that limited capacity."

At 3:34 PM on September 8, 2025, Claimant emailed Supervisor Kitto: "I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing."

E. The Clerk's Written Rejection

On September 9, 2025 at 3:09 PM, Juvenile Case Processing Clerk / Juvenile Department Lead Kimberly A. Beck sent Claimant the following email:

> "Good afternoon, Ms. Penn,
>
> Your personal appearance was required for the shelter hearing on September 8, 2025, and you failed to appear.
>
> Attempting to submit paperwork in place of a required in-person appearance does not satisfy court requirements.
>
> If you have any further concerns or wish to discuss your situation in more detail, you are welcome to contact our Trial Court Administrator, Richard Moellmer. He can be reached by phone at 503.846.8888 ext. 70568 or by email richard.e.moellmer@ojd.state.or.us
>
> Thank you, Kimberly Beck Juvenile Case Processing Clerk* Juvenile Department Lead Washington County Circuit Court (503) 846-8888 ext. 70621 *Adoptions, Guardianships, Emancipations, Back-Up Courtroom Clerk for Judge Goldman"

Beck's email cites no statute, no court rule, no UTCR provision, no standing order, and no written deficiency notice. Beck's signature block confines her judicial-adjacent portfolio to adoptions, guardianships, emancipations, and backup courtroom clerking for Judge Goldman.

Claimant replied and asked Beck to identify the "specific defects in my filing making it unsatisfactory to be accepted and to carry out its purpose so that I might be able to correct the issue." Beck identified none. She never has.

The clerk's office subsequently accepted a second filing identical in substance and forwarded it to the tribunal for consideration. No procedural distinction exists between the two.

F. Service — Thirty-Six Days Late

ORS 419B.812 requires service of summons within thirty days of the filing of a dependency petition. The petition was filed on September 8, 2025. The statutory deadline was on or about October 8, 2025. The first service attempt occurred on October 14, 2025 — thirty-six days after the deadline. Caseworker David Milne acknowledged on recorded calls on December 8, 2025 and December 25, 2025 that service had not been accomplished.

The October 10, 2025 *Declaration of Diligent Efforts toward Service* (Rylan Duffy, DOJ Litigation Legal Assistant) and the October 28, 2025 *Affidavit Regarding Efforts to Serve Parent* (Kayla Miller) recite database searches (Oregon Offender, county jail rosters, CLEAR, VISOR) and one attempt through Barrister Support Service on September 19, 2025. Neither document discloses to the court (a) Claimant's September 8, 2025 written filing received by the clerk's office; (b) Beck's September 9, 2025 written response acknowledging receipt; (c) Claimant's September 8, 2025 email to Supervisor Kitto documenting her attempt to participate; (d) Claimant's telephonic contact with the court during the hearing; or (e) the ongoing text and email channel through which ODHS had communicated with Claimant on September 6–8, 2025. Each of these facts sat in the agency's own file.

G. Records Access Denied

Claimant requested the case file under ORS 419A.255 and every other statute permitting access. Judge Rini denied the request and conditioned

inspection on Claimant's physical appearance at the Washington County courthouse. The condition operated as an absolute bar: Claimant has an active warrant in a separate criminal proceeding (24CR49043) she is contesting on constitutional grounds, and physical appearance at that courthouse exposed her to arrest. Judge Rini's order prevented the clerk from performing the ministerial act of providing copies.

Claimant learned the pleaded allegations only because ODHS Supervisor Sonya Faulkner read them aloud on a recorded call. Claimant obtained the case record only because the child's attorney provided A.D. a zip drive of the pleadings, which A.D. delivered to Claimant, who copied it. The record was affirmatively withheld from Claimant by the state, and reached her only through an intermediary the state did not control.

H. Continued Proceedings on a Void Record

- **September 8, 2025 Shelter Order:** entered while Claimant's September 8, 2025 written objection was undocketed and unresolved, without service, and without offer of the operative Webex link. The order identifies Claimant's counsel as "Mahoney (pending)."
- **September 10, 2025:** Order to Appoint CASA entered.
- **October 14, 2025:** Order Re: Jurisdiction entered; father admitted allegations 2D and 2E.
- **October 31, 2025:** Jurisdictional allegations against Claimant "proven": (A) does not understand the child's specific needs and lacks parenting skills; (B) fails to recognize safety threats from father; (C) is involved in criminal activities. The self-harm statement was not pleaded as a jurisdictional basis.
- **February 23, 2026:** Review Judgment entered.
- **March 11, 2026:** Beck rejected Claimant's Emergency Motion for Telephonic Appearance because it was submitted by email rather than through Guide & File — again with no statute or rule cited. Court co-counsel Scott A. Johnson advised: "email is not the correct method to submit documents into a juvenile case."

- **March 18, 2026:** Order on Mother's Motion.
- **June 29, 2026:** Permanency Judgment entered.

The permanency plan orients A.D. toward return to the father whose September 6, 2025 assault triggered these proceedings — conditioned only on resolution of his criminal case, then on July 21, 2026 rescheduling. A.D. has remained with her great-aunt and uncle since September 7, 2025.

IV. STANDARD OF REVIEW

Whether absolute immunity attaches to a state actor's conduct is a question of law reviewed de novo. *Antoine*, 508 U.S. at 432. A clerk carries the burden of establishing that a challenged act was judicial rather than ministerial. *Id.* at 436. A warrantless child seizure is reviewed under the Fourth and Fourteenth Amendments; the seizing officer bears the burden of showing "reasonable cause to believe that the child is in imminent danger of serious bodily injury and that the scope of the intrusion is reasonably necessary to avert that specific injury." *Wallis*, 202 F.3d at 1138.

V. DISCUSSION

A. Clerk Beck's Rejection of Claimant's Filing Was Ministerial, Not Judicial, and Is Not Immunized

Absolute quasi-judicial immunity attaches only to functions that are "truly judicial." *Antoine v. Byers & Anderson, Inc.*, 508 U.S. 429, 435 (1993). The Supreme Court held that court reporters, whose duty to produce a transcript is prescribed by statute, are not judicial officers and do not receive absolute immunity, because their function is "ministerial," involving no "discretionary judgment." *Id.* at 436. The Ninth Circuit applies the same rule: a clerk performing a discretionary act done under judicial direction may share quasi-judicial immunity, but a clerk performing a non-discretionary act does not. *Mullis v. U.S. Bankr. Ct.*, 828 F.2d 1385, 1390 (9th Cir. 1987).

ORS 419B.851(5) prescribes the clerk's duty in mandatory terms. The clerk "shall indorse the time of day, day of the month, month and year upon the

paper." The statute identifies the conditions under which the clerk "is not required to receive" a filing: illegibility or absence of court name, cause title, party names, or attorney name. It identifies no others. Acceptance is therefore ministerial. Rejection outside those enumerated defects is *ultra vires*.

Beck rejected Claimant's September 8, 2025 filing on grounds — required in-person appearance, failure to appear, "does not satisfy court requirements" — that appear nowhere in ORS 419B.851. Beck cited no other authority. Beck's own signature block confines her judicial-adjacent duties to adoptions, guardianships, emancipations, and backup courtroom work for a different judge. She was not acting under judicial direction in the September 8 dependency matter; she was acting on her own.

The disparate treatment resolves the point. The clerk's office accepted a second, substantively identical filing. No procedural distinction between the two exists. A ministerial officer who accepts filing B while rejecting substantively identical filing A demonstrates that the rejection of filing A was not ministerial refusal for statutory defect — it was arbitrary conduct. Arbitrary conduct is not immunized. *Antoine*, 508 U.S. at 436.

Beck's rejection violated Claimant's First Amendment right of access to the courts and her Fourteenth Amendment right to procedural due process before a governmental deprivation of her fundamental liberty interest in the care and custody of her child. The conduct is redressable under 42 U.S.C. § 1983.

B. The September 6, 2025 Removal Violated the Fourth and Fourteenth Amendments

Officials may seize a child from parental custody without prior judicial authorization only when the "information they possess at the time of the seizure is such as provides reasonable cause to believe that the child is in imminent danger of serious bodily injury and that the scope of the intrusion is reasonably necessary to avert that specific injury." *Wallis v. Spencer*, 202 F.3d 1126, 1138 (9th Cir. 2000); accord *Mabe v. San Bernardino County*, 237 F.3d 1101, 1106 (9th Cir. 2001); *Rogers v. County of San Joaquin*, 487 F.3d 1288, 1294 (9th Cir. 2007); *Kirkpatrick v. County of Washoe*, 843 F.3d 784,

789 (9th Cir. 2016) (en banc). Reasonable cause requires objective evidence, not the officer's subjective belief. *Mabe*, 237 F.3d at 1106–07.

The record affirmatively negates reasonable cause as to Claimant. At 5:40 PM on September 6, 2025, ODHS had determined in writing that Claimant was a safe placement and was preparing to release A.D. to her. Nineteen minutes later ODHS reversed based on a single conditional statement attributed to a fourteen-year-old in a hospital bed following her father's assault. The statement was not verified by a clinician. It was not evaluated in light of Claimant's Certification in Suicide Prevention – Diagnosis and Treatment. It was recanted. It was never connected by assessment to any parental conduct by Claimant. And an available family placement — Claimant's uncles — sat in the hospital room. The agency's own Supervisor Faulkner acknowledged that no parental capacity assessment was performed and that "we really don't have any instances of her acting dangerously with regard to the safety of this girl."

An unverified, unassessed, subsequently recanted, conditional statement — acted upon in nineteen minutes, contradicted by the agency's own contemporaneous determination, and never connected to any parental conduct — does not supply reasonable cause under *Wallis*, *Mabe*, *Rogers*, or *Kirkpatrick*. Nor did it justify continued custody after recantation. The seizure violated the Fourth and Fourteenth Amendments.

C. The Court Lacked Personal Jurisdiction Over Claimant

Oregon law is unambiguous: "A court may make an order establishing jurisdiction under ORS 419B.100 only after service of summons and a true copy of the petition." ORS 419B.815(1). Service must be accomplished within thirty days. ORS 419B.812. The savings clause at ORS 419B.836 forgives minor defects; it does not forgive total absence of service. *See Dep't of Human Servs. v. C. M. R.*, 281 Or. App. 618 (2016) (mother not served with summons and petition — judgment vacated); *Dep't of Human Servs. v. K. L.*, 272 Or. App. 617 (2015) (jurisdiction contested for defective service).

The dependency petition was filed on September 8, 2025. The first service attempt occurred on October 14, 2025 — thirty-six days late. Caseworker Milne admitted on recorded calls that service had not been completed.

Attorney Mahoney's unauthorized appearance did not cure the defect: where personal appearance is required in a dependency proceeding, an attorney cannot appear on the parent's behalf without authority. *Dep't of Human Servs. v. S.C.T.*, 281 Or. App. 246, 253 (2016). Mahoney confirmed on a recorded call that she was "not yet [Claimant's] lawyer" and appeared "just in that limited capacity."

Every order entered against Claimant after September 8, 2025 rests on absent personal jurisdiction. The orders are void, not merely voidable. ORS 419B.803(1)(a); ORS 109.717 (child custody determinations bind only those served or who submitted).

D. The Diligent-Efforts Affidavits Concealed Material Facts

An affidavit of diligent efforts must disclose facts known to the agency that bear on the parent's availability and prior contact. *See Hardwick v. County of Orange*, 844 F.3d 1112 (9th Cir. 2017) (social workers who fabricate or omit material facts from dependency filings enjoy no absolute immunity). The Duffy Declaration and Miller Affidavit describe database searches. They omit: (a) Claimant's September 8, 2025 written filing received by the clerk's office; (b) Beck's September 9, 2025 written response acknowledging receipt; (c) Claimant's September 8, 2025 email to Supervisor Kitto; (d) Claimant's telephonic contact with the court during the shelter hearing; and (e) the ongoing text and email channels through which ODHS had communicated with Claimant on the days immediately preceding filing.

Omitting known channels of contact from a diligent-efforts affidavit — while telling the court that a parent could not be found — is judicial deception. *Id.* at 1116–17.

E. The Records-Access Denial Independently Tolls Any Timeliness Bar

Judge Rini denied Claimant access to the case record and conditioned inspection on physical appearance at a courthouse that exposed Claimant to arrest on an unrelated warrant Claimant is constitutionally contesting. Conditioning a statutory right to court records on submission to arrest is an unconstitutional condition. *Perry v. Sindermann*, 408 U.S. 593, 597 (1972).

Claimant received the pleaded allegations only when Supervisor Faulkner read them aloud on a recorded call, and received the file itself only when the child's attorney provided A.D. a zip drive that A.D. delivered to Claimant.

Any timeliness defense grounded in the thirty-day appeal window of ORS 419A.200 or the ninety-day extension is defeated by the state's own affirmative denial of the records necessary to appeal. Where the state prevents a party from learning the basis of the judgment, the timeliness clock does not run. That is a due process floor, not a discretionary tolling doctrine.

F. ORS 30.275 Notice — Notice of Tort Claim

Pursuant to ORS 30.275, Claimant provides written notice of the following tort claims against Washington County, the State of Oregon, and the Oregon Department of Human Services:

1. **False imprisonment / unlawful seizure of the child.** September 6, 2025 through the present.
2. **Intentional and negligent infliction of emotional distress.** From September 6, 2025 through the present, arising from the removal on a recanted statement, the concealment of the child's location, the denial of visitation, and the misrepresentations at the shelter hearing that Claimant had "refused a safety plan."
3. **Deprivation of parental relationship / interference with parent-child association.** *See* U.S. Const. amend. XIV; Or. Const. Art. I, § 10.
4. **Malfeasance, misfeasance, and nonfeasance** by clerk, court, and agency personnel — including the September 8 filing rejection, the disparate treatment of a substantively identical second filing, and the March 11, 2026 email-rejection.
5. **Denial of access to courts and denial of access to public records** under the First Amendment, the Oregon Constitution, and ORS 419A.255.

Damages are not yet fully ascertainable and will be proven at trial. Economic damages include legal expense, lost income, and out-of-pocket costs. Non-economic damages include emotional distress, loss of parental consortium,

and constitutional injury. Punitive damages are sought against individual actors for willful and reckless disregard of Claimant's rights. *See Horton v. OHSU*, 359 Or. 168 (2016) (Oregon caps on non-economic damages).

G. 42 U.S.C. § 1983 Claims — Pre-Suit Demand

Claimant will pursue civil-rights claims against the individually named actors, in their individual capacities, for:

1. Fourteenth Amendment procedural due process (Kitto, Bennett, Faulkner, Milne, Crafton, Hernandez, and Beck).
2. Fourth Amendment unreasonable seizure of the child (Kitto, Bennett, and their supervisors).
3. First Amendment denial of access to courts (Beck, Johnson, Moellmer).
4. Fourteenth Amendment substantive due process — interference with the fundamental right to family integrity (all named actors).
5. Judicial deception in dependency proceedings under *Hardwick v. County of Orange*, 844 F.3d 1112 (9th Cir. 2017).

Monell liability against Washington County will be pursued for the custom or policy that permits clerks to reject conforming filings without written statutory basis and to require in-person appearance as a filing prerequisite. *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658, 690 (1978).

VI. DEMANDS

Claimant demands the following, each within fourteen (14) days of receipt of this notice:

1. Written confirmation that the September 8, 2025 written filing has been docketed *nunc pro tunc* as of 1:44 PM on that date, together with the ORS 419A.150 objection docketed as pending.
2. Immediate written disclosure of A.D.'s current placement location, together with any orders authorizing restriction of Claimant's contact.

3. Complete production of the case record, without any in-person condition and without fee, including all pleadings, orders, transcripts, exhibits, and audio recordings from September 6, 2025 to present.
4. A copy of any proof of service upon Claimant, with date, method, address, and affiant.
5. All communications between the clerk's office, chambers, ODHS, and the DOJ Child Advocacy and Protection Division regarding Claimant's September 8, 2025 filing and Claimant's records requests.
6. Preservation of all electronically stored information, hard-copy records, court audio, and case-management data related to Case No. 25JU04261, from inception through resolution.
7. Written response to this Notice of Tort Claim under ORS 30.275.

VII. LITIGATION HOLD AND SPOLIATION NOTICE

Each recipient is on notice to preserve every document, communication, record, transcript, audio recording, video recording, calendar entry, text message, email, backup file, archive, and electronically stored information relating to Claimant or A.D. from January 1, 2024 to the present. Preservation extends to court records systems, OJIN, ORCAS, DHS case notes, Barrister Support Service records, chambers correspondence, personal devices used for state business, and all backups. Spoliation of this material will support adverse-inference instructions, sanctions, and independent tort liability.

VIII. RESERVATION OF RIGHTS

Claimant appears specially, without waiving any objection to personal jurisdiction, subject-matter jurisdiction, or venue in the underlying dependency proceeding. Claimant does not consent to the jurisdiction of the Washington County Circuit Court by this notice. Claimant reserves all federal

and state claims and all remedies, including injunctive, declaratory, compensatory, punitive, and equitable relief.

IX. CONCLUSION

Washington County, the State of Oregon, and their named agents removed Claimant's child on an unverified, recanted, conditional statement; rejected Claimant's timely written appearance on grounds appearing in no statute; proceeded to permanency without service; and denied Claimant the records necessary to appeal. The orders are void. The conduct is redressable. The Claimant seeks the return of her child and full compensation for the constitutional and statutory injuries inflicted.

/s/ AshLe' Penn *Without Prejudice* Appearing Specially, Natural Mother of A.D. 17548 NW Springville Rd., Unit 9 Portland, OR 97229
ashlepenn.ap3@gmail.com

Date: July 30, 2026

CERTIFICATE OF SERVICE

I certify that on July 30, 2026, I served a true copy of the foregoing on each of the persons and entities listed above by electronic mail and by U.S. Mail, certified with return receipt requested.

/s/ AshLe' Penn *Without Prejudice*

AUTHORITIES CITED

- *Antoine v. Byers & Anderson, Inc.*, 508 U.S. 429 (1993).
- *Mullis v. U.S. Bankruptcy Court*, 828 F.2d 1385 (9th Cir. 1987).
- *Wallis v. Spencer*, 202 F.3d 1126 (9th Cir. 2000).
- *Mabe v. San Bernardino County*, 237 F.3d 1101 (9th Cir. 2001).
- *Rogers v. County of San Joaquin*, 487 F.3d 1288 (9th Cir. 2007).
- *Kirkpatrick v. County of Washoe*, 843 F.3d 784 (9th Cir. 2016) (en banc).

- *Hardwick v. County of Orange*, 844 F.3d 1112 (9th Cir. 2017).
- *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658 (1978).
- *Perry v. Sindermann*, 408 U.S. 593 (1972).
- *Lassiter v. Dep't of Soc. Servs.*, 452 U.S. 18 (1981).
- *Dep't of Human Servs. v. C. M. R.*, 281 Or. App. 618 (2016).
- *Dep't of Human Servs. v. K. L.*, 272 Or. App. 617 (2015).
- *Dep't of Human Servs. v. S.C.T.*, 281 Or. App. 246 (2016).
- *Dep't of Human Servs. v. M. C.-C.*, 275 Or. App. 121 (2015).
- *Horton v. OHSU*, 359 Or. 168 (2016).
- ORS 30.275; ORS 109.717; ORS 419A.150; ORS 419A.200; ORS 419A.255; ORS 419B.100; ORS 419B.192; ORS 419B.297; ORS 419B.340; ORS 419B.803; ORS 419B.809; ORS 419B.812; ORS 419B.815; ORS 419B.836; ORS 419B.838; ORS 419B.839; ORS 419B.848; ORS 419B.851; ORS 419B.869; ORS 419B.918.
- OAR 413-015-0415; OAR 413-015-0425; OAR 413-015-0455; OAR 413-040-0006.
- 42 U.S.C. § 1983; 42 U.S.C. § 671(a)(15).
- U.S. Const. amend. I, IV, XIV.
- Wash. Co. Presiding Judge Order No. 343 (Feb. 15, 2024).

Exhibit L

Washington County HR Fee-Waiver Denial (Mendes, 9/19/2025)

[feewaiverrequest.pdf]

Exhibit M

Washington County DA Denial Opinion (Khachaturova, 10/31/2025)

[DistrictAttorneyOpinion10-31-2025.pdf]

Exhibit N

Petition for Review of Fee-Waiver Denials (10/17/2025)

Exhibit O

Kitto Text Thread — 5:40 PM Release / 5:59 PM Reversal

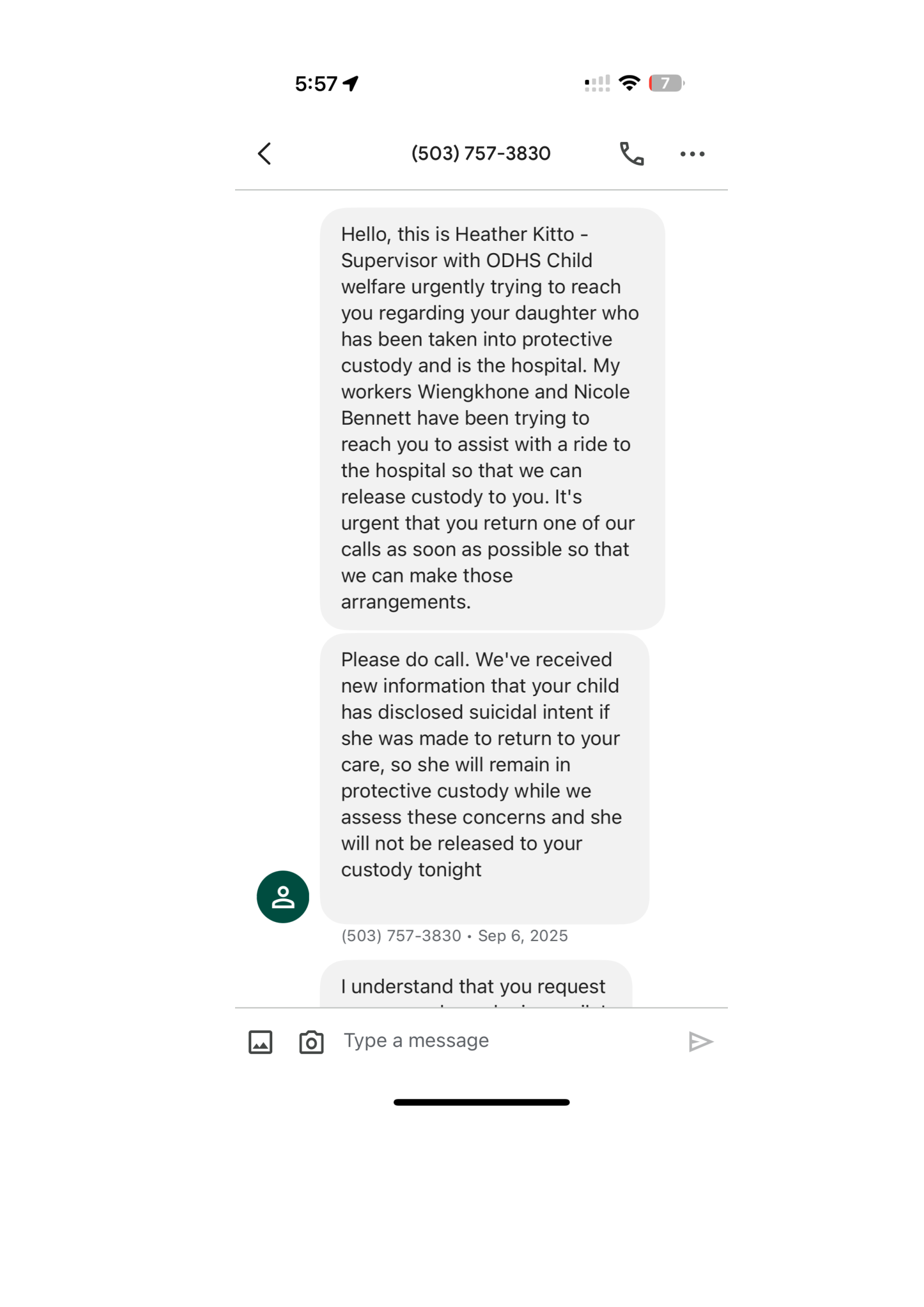

5:57
(503) 757-3830
Hello, this is Heather Kitto - Supervisor with ODHS Child welfare urgently trying to reach you regarding your daughter who has been taken into protective custody and is the hospital. My workers Wiengkhone and Nicole Bennett have been trying to reach you to assist with a ride to the hospital so that we can release custody to you. It's urgent that you return one of our calls as soon as possible so that we can make those arrangements.
Please do call. We've received new information that your child has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody while we assess these concerns and she will not be released to your custody tonight
(503) 757-3830 • Sep 6, 2025
I understand that you request
Type a message

Exhibit P

Shelter Hearing Transcript Excerpts (Sept. 8, 2025)

Speaker 1 - **00:01**

Go ahead.

Judicial Officer - **00:02**

Good afternoon, you, Honor. The state calls case number 25 ju04261. This is the time set for a shelter hearing from DHS. We have Ms. Galaher present today in the courtroom. We have the youth present today in the courtroom as well, with her attorney, Mr. Lathke, who's also present today in the courtroom. Don't believe we have mother present today, but we do have Ms. Monesy appearing today on behalf of mother in person. I don't believe we have father present today due to issues with getting him to appear via WebEx from the jail. But we do have Ms. Moales present in person on behalf of father today from Casa. We have Ms. Fong in the courtroom today. We also have, from the DA's office, DDA Willyamson in the courtroom today.

Judicial Officer - **00:42**

We also have the resource parents present today in the courtroom, the maternal great aunt and uncle. And my name is Nick Ricciado. I'm here today on behalf of the state, and I'm appearing today for AAG yb. Thank you.

Speaker 1 - **00:53**

Apparently, mom is called into the court, not to the court hearing, so not quite sure how we can rectify that.

Speaker 3 - **01:00**

She was told of the need to be here in person.

Speaker 1 - **01:04**

Hopefully, that's what Ms. Robertson is telling her in the back. What are you asking for, Amy Ricciado?

Speaker 2 - **01:11**

Well, you, Honor, today. DHS is asking for the court to grant a temporary custody of this child. This child was taken in protective custody over the weekend without a court order due to imminent threat of severe harm to this child. The agency is asking the court to find that jurisdiction is appropriate for the uccjda. The child has lived in Oregon for the last six consecutive months. Reasonable efforts have been made to prevent the need for removal. And diligent efforts have been made to notify parents and grandparents of today's hearing, along with diligent efforts to place the child with relatives. This child is placed in a relative placement. This is substitute out of home placement. The agency would ask the court to find as appropriate as the least restrictive placement.

Speaker 2 - **01:53**

At this time, the agency does not have the information to believe that this is an Indian child for the state or federal Indian Child Welfare Act. And if this court does grant temporary custody of this child of dhs, the agency would ask that this court set a jurisdiction trial within 60 days of filing of the petition today. Lastly, you, Honor, the state at this time would move to enter the fact, findings, reassessment summary and the PCR that have been filed for today's hearing.

Speaker 1 - **02:15**

Thank you so much. States one, the protective custody report states two, the fact finding consisting of 207 pages states through the ODHS assessment summary consisting of 78 pages. Ms. Galaher, please raise your right hand to be sworn.

Speaker 4 - **02:34**

Yes.

Speaker 3 - **02:34**

Thank you. For the record, please state Victoria Gallaher V I C T O R A G A L L A G H.

Speaker 1 - **02:40**

E R All right, you may be seated. I did have an opportunity to review the protective custody report. What else would

you like me to know?

Speaker 3 - **02:46**

Just at this time, we are requesting temporary custody with placement and substitute care. Current placement is maternal great aunt and uncle. Father is currently incarcerated on charges related to the assault and strangulation of this child. He was already out on a release agreement due to prior charges related to the physical abuse of this child from April of this year. And during this most recent incident, numerous witnesses observed father physically abusing the child. And as a result, there were multiple calls made to 911. Mother is aware of the hearing as well as ODHS intervention. She was not cooperative in speaking with the agency or planning for her child while at the hospital. Did not really appear to understand the safety concerns. Mother also currently has a warrant for her arrest related to pending charges of theft 1 and possession of mass.

Speaker 3 - **03:33**

Given the current circumstances, we believe that placement in the home of the parent is not appropriate and that substitute care would be the appropriate placement. We don't have any reason to know that ICWA applies. Both parents have either denied ancestry or at times, father has indicated he does not know.

Speaker 4 - **03:47**

All right,.

Speaker 1 - **03:50**

Ms. Monesy, anything? No, Ms. Moales.

Speaker 5 - **03:55**

Your Honor, I would enter a general denial on behalf of father. Ask for Walker to be appointed for future dates.

Speaker 1 - **04:01**

Shalotsky.

Speaker 6 - **04:03**

Your honor, defer to the court on placement. But Charles does want to be allowed contact with mother. She reported to me that she recently had.

Speaker 1 - **04:12**

Hold one second. That's a deputy. He might be getting dad. All right. We do have father, so I'm going to take a quick jump back. Really quick. Ms. Galaher, again, the exhibits have been received. What would you like me to know? Go ahead.

Speaker 2 - **05:17**

Good afternoon, your honor. The state calls case number 25 ju04261. This is the time set for a shelter hearing from DHS. We have Ms. Galaher present.

Speaker 1 - **05:32**

Her in that substitute care. Align for visitation. I'll note that the court. I will be appointing a cost on this case.

Speaker 6 - **05:44**

Now, she did have overnight contact with mom last weekend.

Speaker 1 - **05:53**

All right, we do have father, so I'm going to take a quick jump back. Really quick. Ms. Galaher, again, the exhibits have been received. What would you like me to know?

Speaker 3 - **06:02**

We are requesting Temporary custody today with placement and substitute care. The current placement is police like the maternal great aunt and great uncle. Father is currently incarcerated on charges related to the assault and strangulation of his child. He was already out of custody on a release agreement due to prior charges. Also related to the physical abuse of this child from April of this year. During the most recent incident, there were numerous witnesses that observed father physically assaulting the child and as a result Multiple calls to 911 were made. Mother is aware of the agency's involvement. She is aware of today's hearing. Over the weekend. She was not cooperative or engaged when trying to. When the agency was trying to contact her and speak with her. She wouldn't participate in planning for her child at the hospital and doesn't appear to understand the safety concerns.

Speaker 3 - **06:55**

She also currently has a warrant for her arrest and she has pending charges for possession of meth and theft. 1. This time we don't leave an in home plan with either parent. It's appropriate. We also don't have any reason to believe that ICWA applies.

Speaker 1 - **07:10**

All right, go ahead, Mr. Wotisky. Sorry about that.

Speaker 4 - **07:13**

No problem.

Speaker 6 - **07:14**

Again, daughter is requesting to maintain contact with mother. She would also like contact with father but she understands that the court is not able to permit that right now. She did have overnight contact with mom last weekend where they were able to go and help get Charles hair done. Apparently everything was all well and everybody had a good time. So she is requesting to be able to have robust contact with mom. We are also requesting notice if the agency is wanting to change placement. And Charlie's also wanting to be able to go back to father's house, which is a rented apartment to make sure that she's able to get her belongings from that house in case that house is barred from father or if the eviction proceedings or anything like that were to be brought.

Speaker 4 - **08:11**

Thank you.

Speaker 1 - **08:11**

Thank you councilman.

Speaker 4 - **08:14**

Anything, your honor.

Speaker 1 - **08:16**

Ms. Willyamson, resource parents, anything you guys want me to know today?

Speaker 4 - **08:29**

Yes. Oh my God.

Speaker 1 - **08:33**

You're good to see it's more comfortable. It's nerve wracking.

Speaker 4 - **08:39**

I guess this duration of this placement at this juncture. I'm concerned right now.

Speaker 3 - **08:48**

I'm sorry.

Speaker 4 - **08:52**

I'm concerned about further child at this juncture with regards to first of her mental health. One because I know DHS has some order, well being order against her right now as far as her mental health with certain restrictions for that regarding that and barring her mom for talking to her because of that also, which is one of my concerns at this juncture about how quickly that gets resolved and when does that get resol And I guess the other one is also asking with her continuing her education to move forward as far as her going to school way out here in Hillsboro and that's maybe way out in Shoutdale. It was kind of concerned for me also about maybe go back and forth but over a two hour period in any given day for that in my concern.

Speaker 1 - **09:42**

Okay, thank you. So we are here today for a shelter hearing leave Ichor oracle apply priors were notified resource parents are in attendance. We don't have any grandparents intends. The court does have jurisdiction under the UCC JEA to make child custody determination. We'll consider the agency to have made reasonable efforts to prevent or eliminate need for protective custody. Child's currently placed out of home. This is the least strict most family like setting agency has made diligent efforts towards relative placement. I will be appointing a CASA on this case. Should mother apply qualify MPD will be appointed to represent mother. Father need not apply since he is in custody automatically qualifies. Hillsborough Law Group will be appointed to represent father.

Speaker 1 - **10:24**

Child need not apply Ride Olig and associates will be appointed to represent the child at this time the child will be placed in the Temporary custody of ODHs for care placement and supervision and substitute care. Noting visitation I'm noting is after consultation with the child. It sounds like she wants those visits but I want to give her a little bit of personal agency in how those visits are set up and how they look. If she does want visitation alone the expectation would be you know the standard within 48 hours of today essentially.

Speaker 3 - **10:52**

Sorry. I believe the grandmother has joined the hearing by phone.

Speaker 1 - **10:56**

Is that maternal or paternal? Grandma, is there anything you want me to know today?

Speaker 7 - **11:05**

No, I. Oh, sorry. I was having problems getting logged in. I missed the beginning. Spending minutes trying to get logged in. I missed the beginning. I just got logged in a little bit ago. I don't know what I missed.

Speaker 1 - **11:19**

I appreciate that you're here. The state has requested that Almira be made award of the court take temporary jurisdiction of Almira and continue her placement out of home with the relatives. And that is effectively what we are doing. We're continuing her in that substitute care allowing for visitation. I will note that the court supports any criminal no contact order with father allow for contact. Per the Oregon Department and Services this case is being assigned to Judge Rey. Judge Rey is across hall courtroom 110. Are the attorneys able to come back on October 14th at 9:30 and 10? October 14th at 9, 30 and 10.

Speaker 7 - **12:08**

Are you asking me if I'm able.

Speaker 3 - **12:09**

To come back it?

Speaker 1 - **12:10**

No, just the attorneys. Yes.

Speaker 5 - **12:12**

Yes.

Speaker 2 - **12:13**

Oh, networks rer.

Speaker 4 - **12:14**

Thank you.

Speaker 1 - **12:15**

All right. Trial, if necessary, is going to be October 31st at 9am there may be conflicts at dates. I mean, I sent a CJ there already. If that's the case, I'll let you take that up with Judge Rey when you get to the 14th. Dad, I recognize you're presently in custody. If you are still in custody when we get to October 14, arrangements will be made for you there to appear remotely like you are today or you'll be brought over. However, if you are out of custody, you are going to have to come to court. My guess is the agency will probably be delivering a subpoena to you in the next. My guess is 24 hours. Mr. Shaddo, do you have any questions?

Speaker 2 - **12:51**

Just to confirm, is that October 31st?

Speaker 1 - **12:52**

Correct.

Speaker 2 - **12:53**

Thank you, Honor.

Speaker 1 - **12:54**

Ms. Shalotsky?

Speaker 2 - **12:55**

No, thank you, Ms. Moni.

Speaker 1 - **12:57**

Ms. Moales.

Speaker 5 - **12:58**

Your Honor, I wanted to clarify that you were recommending that contact in Dad's criminal order be per dhs.

Speaker 1 - **13:05**

Yeah. So this court supports any criminal no contact order with father allow for contact per ODHs. So should he have one, my hope is that contact is allowed per dhs.

Speaker 5 - **13:15**

Okay, it sounded like the court supports no contact.

Speaker 1 - **13:19**

No, the court. I will rephrase this to make sure it doesn't look like I supported no contact works. I do support contact per ODHs. All right, again, this will be Judge Reaney's case. She will see you all back on the 14th at 9:30am thank you very much.

Speaker 4 - **13:33**

Thank you.

Speaker 2 - **13:33**

Thank you.

Exhibit Q

ODHS In-Home Interview Record (3/26/2024)

3/26/24 11:00 AM	Emily Gonnuscio	Non-Custodial Parent/Caregiver	Ashle A. Penn	Worker/Parent	Scheduled Contact Occurred
An interview was completed with AshLe' at her home with caseworker Wiengkhone Soumpholphakdy. At the end of the conversation, AshLe' announced that everything ODHS says in her home is recorded. She later emailed to provide her email address which is ashlepenn.ap3@gmail.com. 1536 and business card previously provided					

Exhibit R

ARIA Certification of Completion

SAFE of Columbia County
Support
Advocacy
Freedom
Empowerment

Certificate of Participation

Ashle Penn

Has completed

ARIA

Assessing Relationships: Information and Abuse

4 Hours of Domestic Violence Training:

Information and Abuse

Power and Control as a Dynamic in Relationships

Safety Planning is a Verb

Assessing Self and Relationships

Janelle Adams

Janelle Adams, DHS Co-Located DV/SA Advocate

4/5/2022

Date

Exhibit S

Wolfpack Consulting Progress Notes (Partial)

WOLF PACK CONSULTING AND THERAPEUTIC SERVICES, LLC

PROGRESS NOTES

Client:	AshLe Penn (AP02980)	Birth Date:	02/15/1988
Service Date:	05/03/2021 01:00 PM - 01:45 PM	Duration:	45 minutes
Provider(s):	Clinical Director Terry Ellis, LCSW (NPI: 1992844096); Mental Health Intern Klarissa Gaskell, QMHA (NPI: 1710585005); Admin Admin Staff		
Insurer(s):	Health Share Care Oregon		
Place Of Service:	Home	CPT Code: H0004	Case #

Focus of Session:

T/w met with AshLe in her home for individual therapy session.

Therapeutic Intervention:

Treatment focus was on utilizing narrative therapy techniques to engage with therapy and bring to light the struggles that AshLe has experienced over the past few years. AshLe expressed feelings of disempowerment and frustration while working within the system as a survivor of intimate partner violence. AshLe expressed a strong connection with her children and an understanding of the need to provide them with a safe and loving home. AshLe was engaged, focused, and determined during the session.

Planned Intervention:

T/w will meet with AshLe on 5/10/21 in her home for individual therapy.

Return Appointment: 05/10/2021 01:00 PM

Exhibit T

LifeWorks — Early Services Attempts

July 2, 2020

LIFEWORKSNW

To Whom It May Concern,

This letter is to contact you regarding Ashle Penn. Ms Penn worked with our program, Family Support & Connections through Lifeworks NW from the dates of June 14, 2018 to August 3, 2018. Ms Penn volunteered to participate in our parenting support program after being referred by an employee at the DHS Child Welfare Hotline.

Our program is voluntary and works with families who have identified goals for themselves to improve the overall quality of life for themselves and their family. We assist families in the following areas: identifying goals, removing barriers, information and referral advocacy, support, and encouragement.

During this time, Ms Penn worked with an FS&C Family Advocate who reported to me in a weekly supervision in which we discuss client progress. In order for our program to be successful families must be willing to commit themselves to their goals, work with their advocate, and show dedication and persistence. For the time the Family Advocate worked with Ms Penn, the Family Advocate was impressed with Ms Penn's commitment to providing all she can for her family despite various barriers. She reliably kept her appointments and obligations. She consistently followed up on resources given to secure needed services for her family. Her progress during her time in the FS&C program was exceptional. Ms Penn completed the FS&C Program successfully reaching her goals.

In December of 2019, another referral was made for Ms Penn to the FS&C program from her DHS Family Coach. The referral stated that Ms Penn was seeking financial assistance for utility bills. When I spoke to the former FS&C Family Advocate, she was enthusiastic about working with Ms Penn again. I assigned Ms Penn to work with the same advocate due to their established rapport and prior success.

An opening appointment was scheduled. However, the appointment was then cancelled due to the circumstances of Ms Penn having an open child welfare case. The Family Advocate told Ms Penn that she could not participate in the FS&C program nor receive resources as long as there was an open case with Child Welfare. It is my understanding that no further support was communicated nor alternative resources were given to Ms Penn in this conversation. The Family Advocate requested Ms Penn contact her when the child welfare case was closed. While this qualification is true about our program, with ineligible families I encourage Family Advocates to give as many referral resources, referral agencies, and knowledge as we can.

I regret that this may have caused undue stress and trauma for Ms Penn and I wanted to clarify things in any way possible.

If you have any questions regarding our program, please contact me (information below).

Sincerely,
Betsy McClimans
Program Coordinator
Family Support and Connections
Lifeworks NW
971-201-2266
betsy.mcclimans@lifeworksnw.org